

<<<CASE_START>>>

SUMMARY:

The petitioner, a member of the District Development Council, was arrested by army personnel on 9 August 1981 during communal disturbances under the orders of the 2nd respondent, an Assistant Superintendent of Police. He alleged that after the arrest the 2nd respondent instructed the army personnel to "do as they like with him," following which he was brutally assaulted inside an army truck, kicked with booted feet, had his beard burnt, and sustained a fractured jaw. The petitioner invoked Articles 11 and 13 of the Constitution, alleging torture and unlawful arrest by State officers. The respondents denied responsibility for the alleged torture and disputed that any constitutional violation had occurred. The Supreme Court, by a majority of three to two, dismissed the application and held that no infringement of fundamental rights had been established. The Court applied a high degree of probability because of the gravity of allegations involving torture by State authorities. It emphasized that the petitioner failed to complain before the Magistrate, medical officer, or police at the earliest opportunity. The Court further reasoned that State liability arises only where wrongful acts are committed under colour of office or pursuant to administrative practice. The alleged conduct was characterized as a private criminal aberration rather than official executive action attributable to the State.

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SUMMARY:

The petitioner, a Reserve Police Sub-Inspector, was reprimanded by the 2nd respondent, an Assistant Superintendent of Police, on 7 December 1995 for failing to check vehicles at a road-block due to inadequate staff. After serving a two-month suspension and being reinstated, he worked at the Foreshore Police Station for two months. On 12 May 1996 he was abruptly informed through a police message that his services had been invalidated on the orders of the Inspector-General of Police. No charge sheet was served, no disciplinary inquiry was conducted, and no reasons were given for the termination. The petitioner alleged that the arbitrary dismissal violated Article 12(1) of the Constitution. Earlier allegations under Article 11 relating to assault were withdrawn because they were time-barred. The Supreme Court held that the petitioner's right to equality and equal protection of the law had been infringed by the

1st respondent. The Court ordered immediate reinstatement with full back wages and awarded compensation and costs. The Court reasoned that under the Police Ordinance only the Commandant, as appointing authority, possessed legal authority to terminate a Reserve officer. The Inspector-General's action was ultra vires, arbitrary, capricious, and unsupported by procedure. The Court further held that punishing the petitioner again for the same misconduct and denying him a hearing violated natural justice and proportionality.

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SUMMARY:

The petitioner owned and operated "Jackpot Machines" imported under valid licenses and installed in public establishments. In June 1991 the Police seized the machines pursuant to Emergency Regulations introduced by the President prohibiting private jackpot operations. The petitioner challenged the regulations, contending that they discriminated against private operators while exempting lotteries conducted by the State or public corporations. He alleged violations of Articles 12(1), 12(2), and 14(1)(g) of the Constitution and argued that the restrictions were unconstitutional despite Article 15(7). The respondents maintained that the regulations were necessary in the interests of public order and national security. The Supreme Court dismissed the application and held that no fundamental rights had been violated. The Court reasoned that the distinction between private gaming establishments and State lotteries constituted a valid classification because private jackpot centers had been associated with narcotics, prostitution, and terrorism. It held that Article 12 does not require perfect legislative symmetry and that the State may selectively eliminate perceived threats to public order. The Court further observed that Article 14(1)(g) protects only lawful occupations, and once the regulations rendered jackpot operations unlawful, constitutional protection ceased. The President's subjective satisfaction regarding the necessity of Emergency Regulations could not be reviewed absent proof of mala fides. The Court also emphasized that equitable relief requires clean hands and cannot legitimize illegal conduct.

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SUMMARY:

The petitioner was arrested at his residence on 22 February 2006 by officers attached to the Welikada Police Station. While in police custody he was subjected to severe torture. His hands and legs were tied together, an iron rod was inserted between his elbows and knees, and he was suspended and beaten with batons and poles. He was produced before a Magistrate only on 28 February 2006, six days after the arrest. Medical evidence confirmed nineteen injuries including a fractured jaw, a perforated eardrum, and a dislocated joint. The petitioner alleged violations of Articles 11 and 13(2) of the Constitution. The respondents denied the allegations and claimed that the petitioner had been arrested on 27 February 2006 and injured after falling from a wall. The Supreme Court rejected the police version and found that official records had been falsified. A complaint made to the Human Rights Commission on 24 February established that the petitioner had already been detained by that date. The Court further held that the severity of the injuries was inconsistent with the explanation offered by the police. The 2nd respondent, as Officer-in-Charge, was found liable for culpable inaction and complicity because he failed to supervise subordinates and facilitated falsification of official records. The Court declared that Articles 11 and 13(2) had been violated and awarded compensation and costs against the State.

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SUMMARY:

On 4 May 2002 the petitioners were travelling to a Telecom office when plainclothes officers from the Intelligence Unit attempted to apprehend them based on mistaken information identifying them as wanted suspects. Unaware that the individuals were police officers, the 1st petitioner resisted arrest and during the struggle bit off part of a police sergeant's ear lobe. Both petitioners were arrested at approximately 1:00 p.m. for obstructing a public servant and causing grievous hurt. Although the alleged offences occurred in the presence of police officers and required minimal investigation, the petitioners were detained overnight and produced before a Magistrate only at noon on the following day. The petitioners alleged violations of Articles 11, 13(1), and 13(2) of the Constitution. The Supreme Court held that Articles 11 and 13(1) had not been violated because the police acted on credible information and were justified in using reasonable force to restrain violent resistance. However, the Court found that Article 13(2) had been infringed because the continued detention after arrest was unnecessary and unreasonable. Relying on Section 37 of the Criminal Procedure Code, the Court stated that suspects must be produced before a judge within a reasonable time and that twenty-four hours is the maximum permissible limit. Although a declaration of violation was granted, compensation was denied because of the violent conduct of the 1st petitioner.

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SUMMARY:

On 1 July 1992 several political parties organized a nationwide fifteen-minute "Jana Ghosha" protest involving bells, drums, horns, and other sounds to express opposition to government policies. The petitioner participated in the protest at Ingiriya by beating a drum. Police constables threatened him, broke his drum using a rice pounder, and assaulted him when he continued protesting by clapping his hands. The police subsequently dispersed the gathering using tear gas and a baton charge, alleging that protesters were shouting slogans calling for the overthrow of the government. The petitioner alleged that the conduct of the police violated his freedom of speech and expression guaranteed by Article 14(1)(a) of the Constitution. The respondents contended that police action was necessary to prevent a breach of the peace and maintain public order. The Supreme Court held that the petitioner's fundamental right under Article 14(1)(a) had been infringed and ordered the State to pay compensation. The Court

reasoned that freedom of speech and expression extends beyond verbal communication and includes symbolic and non-verbal acts such as drumming and clapping. It emphasized that criticism of the government and political dissent are essential elements of a democratic society so long as there is no incitement to violence. The Court found that the police failed to establish any reasonable apprehension of disorder and acted merely because anti-government slogans were expressed during a peaceful protest.

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SUMMARY:

On 12 February 1997 at approximately 2:15 a.m., senior officers attached to the Criminal Investigation Department forcibly entered and searched the residence of the petitioner, a Member of Parliament, claiming to act on instructions from the Inspector-General of Police to locate a murder suspect. The respondents asserted that a reliable informant of fifteen years had reported that the suspect, Susantha Punchi Nilame, had entered the petitioner's residence. The search lasted around twenty minutes and no suspect was discovered. The petitioner's residence was situated within a high-security zone guarded by the Special Task Force, making unauthorized access improbable. The petitioner alleged that the search violated Article 12(1) of the Constitution. The Supreme Court held that the respondents had infringed the petitioner's right to equality and equal protection of the law. The Court awarded compensation against both the State and the individual respondents. It found that the alleged informant was more likely non-existent because the police failed to provide sufficient information regarding the source or explain how the informant had observed the suspect entering a heavily secured area. The Court further held that the respondents lacked the legally required "reason to believe" under Sections 24 and 25 of the Code of Criminal Procedure before conducting such an intrusive search. It also ruled that Section 125 of the Evidence Ordinance could not be invoked to conceal the absence of any factual basis for the police action. The conduct of the respondents was therefore arbitrary and unconstitutional.

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SUMMARY:

The petitioner, a student who had obtained strong results at the G.C.E. Advanced Level examination, challenged the university admission process administered by the University Grants Commission. She alleged that the admission criteria previously communicated and consistently applied by the authorities were altered or inconsistently implemented, depriving her of admission despite her qualifications. The petitioner contended that the actions of the University Grants Commission violated Article 12(1) of the Constitution by treating her arbitrarily and denying equal protection of the law. The respondents defended the admission process as an administrative policy decision falling within the authority of the Commission. The Supreme Court held that the petitioner's fundamental rights had been infringed and ruled in her favour. The Court emphasized the doctrine of legitimate expectation, holding that such expectation may arise from undertakings, surrounding circumstances, or established practices even where no formal written assurance exists. It reasoned that once students are led to expect that admissions will be conducted according to identified criteria, the authorities cannot arbitrarily depart from those standards without lawful justification. The Court further observed that Article 12(1) extends to administrative decision-making and binds executive bodies such as the University Grants Commission when implementing admission policies and circulars. The inconsistent application of the criteria therefore constituted arbitrary administrative action incompatible with equality and equal protection guaranteed under the Constitution.

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SUMMARY:

The petitioner sat for the 2001 G.C.E. Advanced Level examination and became eligible for university admission. During the selection process the University Grants Commission applied the Z-Score method for admissions. The petitioner challenged the decision denying her admission to her preferred course of study, alleging that the calculation or implementation of the admission criteria had been flawed and inconsistently applied in comparison with other candidates. She claimed that these actions violated Article 12(1) of the Constitution by denying equality and equal protection of the law. The respondents maintained that the University Grants Commission possessed authority to classify and select students according to the established Z-Score system. The Supreme Court ruled in favour of the petitioner and held that her fundamental rights had been infringed. The Court directed the University Grants Commission to admit the petitioner to the relevant course of study. It reasoned that administrative or technological errors committed by public authorities cannot deprive a qualified student of educational opportunities. The Court further recognized that students possess a legitimate expectation that admissions will be conducted fairly, transparently, and strictly in accordance with published criteria. Although the University Grants Commission may create classifications for admissions purposes, such classifications must remain rational and non-arbitrary. The Court concluded that deviations from established procedures without lawful justification violate Article 12(1) and undermine the constitutional guarantee of equality in educational administration.

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SUMMARY:

Following a 1978 incident in which the National State Assembly punished two newspaper editors for breach of parliamentary privilege relating to the publication of a photograph of a Minister, the respondent, a lawyer, authored articles in the Sun newspaper criticizing the Assembly's decision to punish for contempt directly instead of referring the matter to the courts or a Select Committee. The Attorney-General subsequently initiated proceedings seeking to punish the respondent under Section 23 and Schedule A paragraph 7 of the Parliament (Powers and Privileges) Act for making allegedly defamatory statements reflecting upon the Assembly and its proceedings. The matter raised issues concerning the scope of freedom of speech and

expression protected under Article 14(1)(a) of the Constitution. The Supreme Court discharged the respondent and held that the alleged offence had not been established. The Court reasoned that parliamentary proceedings are subject to a permissible area of criticism and public comment. It found that the respondent's writings focused on legal and constitutional objections to the Assembly exercising contempt powers itself rather than attacking the integrity or legitimacy of Parliament. The Court further observed that the comments did not lower the reputation of the Assembly or expose it to contempt because they constituted reasoned criticism of institutional procedure. In the absence of malice or intent to undermine Parliament, the respondent's publications remained within the limits of lawful constitutional expression and comment.

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SUMMARY:

In 1977 a Member of Parliament representing Ududumbara made derogatory remarks in Parliament describing Karl Marx as a “briefless lawyer” and a “beggar.” In response, the respondent, who was the editor of the Aththa newspaper, published an editorial comparing the Member and other parliamentarians to “bulls and donkeys,” implying that they lacked intelligence and were unfit to hold elected office. The Attorney-General initiated contempt proceedings against the editor under the Parliament (Powers and Privileges) framework. Although the matter was not a Fundamental Rights application, the Court extensively considered the scope of freedom of speech and expression under Article 14(1)(a). The respondent argued that the editorial constituted lawful political criticism and a reaction to the insulting parliamentary remarks concerning Karl Marx. The Court acknowledged that members of the public possess a legitimate right to criticize Parliament and its proceedings. However, it emphasized that freedom of speech is not absolute and does not extend to defamatory ridicule that undermines the dignity and decorum of Parliament. The Court distinguished permissible criticism from insulting abuse and held that the respondent exceeded acceptable constitutional limits by likening members of Parliament to animals. Applying a balancing approach between individual expression and institutional integrity, the Court concluded that the editorial amounted to contempt because it reflected adversely upon the character and dignity of the House rather than constituting constructive political criticism.

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SUMMARY:

The petitioners, representing the United National Party, sought permission to conduct their 1995 May Day rally at the Kandy Central Bus Stand together with a procession through Kandy town. The 1st respondent, the Inspector-General of Police, refused permission citing security, logistical, and administrative concerns, while offering alternative venues that were rejected by the petitioners. At the same time, four political parties affiliated with the ruling People's Alliance were granted permission to hold meetings within Kandy. The petitioners alleged violations of Articles 12(1), 12(2), 14(1)(a), and 14(1)(b) of the Constitution. The Supreme Court held that the respondents had infringed the petitioners' fundamental rights and awarded costs against the State. The Court reasoned that the respondents failed to explain the precise security concerns relied upon to deny permission to the opposition party while simultaneously permitting similar political gatherings by parties aligned with the government. The differential treatment was therefore discriminatory on the basis of political opinion and inconsistent with equal protection of the law. The Court further emphasized that the freedoms of speech, expression, and peaceful assembly include the right to organize political rallies and public processions. Such constitutional freedoms cannot be restricted through arbitrary administrative action lacking objective justification. The refusal to permit the May Day event was therefore held to be an unjustified interference with democratic political participation and constitutionally protected expression.

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SUMMARY:

The petitioners were twenty-two surveyors on probation who were following a residential degree course while employed in public service. After joining a trade union, they participated in a work-to-rule campaign and submitted medical certificates explaining their absence from a compulsory workshop. The 1st respondent treated their conduct as amounting to a vacation of post and terminated their employment without issuing charge sheets or conducting disciplinary inquiries. Subsequently, the petitioners expressed willingness to resume duties and provide undertakings requested by the 2nd respondent, yet reinstatement was refused. The petitioners alleged that the respondents violated Article 12(1) of the Constitution by acting arbitrarily and discriminatorily. The Supreme Court held that the petitioners' right to equality and equal protection of the law had been infringed and ordered compensation to be paid. The Court reasoned that even probationary public officers are entitled to fair, equitable, and lawful administrative treatment. It found that the summary termination without providing an opportunity for explanation constituted a deliberate departure from accepted standards of fairness and natural justice. The Court further held that the refusal to reinstate the petitioners after they complied with the conditions imposed by the administration amounted to arbitrary and discriminatory conduct. Probationary status did not authorize unrestricted administrative power to dismiss employees in disregard of the Establishments Code and principles governing disciplinary action in public employment.

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SUMMARY:

The Petitioners, representing the Wekada Jumma Mosque, obtained approval to construct a two-storey school building and completed the ground floor. During construction of the upper floor, authorities observed deviations from the approved plan, including installation of a concrete slab rather than the approved roof structure. Local residents and Buddhist monks protested, alleging the building was being converted into a mosque. Under community pressure, the Petitioners signed an undertaking affirming the premises would be used solely as a school, after

which amended plans were approved. Subsequently, police ordered suspension of construction to prevent an anticipated breach of peace arising from escalating communal tension and continued allegations of religious use. The Petitioners alleged violations of Articles 10, 12(1), and 14(1)(e), claiming interference with religious freedom and discriminatory treatment. The Supreme Court held that the authorities acted lawfully to preserve public order and communal harmony. It found that evidence indicated non-compliance with the original permit and failure to obtain mandatory approval required for construction connected to religious education under applicable circulars. The Court further held that the suspension was motivated by legitimate public order concerns rather than religious or racial discrimination. It concluded that the Petitioners failed to establish arbitrary or unequal treatment and dismissed the application.

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SUMMARY:

The petitioner, a minor studying at Sri Subhuthi Vidyalaya, was summoned to the principal's office where he was assaulted by the Principal, Deputy Principal, Vice Principal, and a teacher. The assault included slapping and repeated blows with a cane, causing injuries to the petitioner's ear and face. The respondents claimed that the incident either constituted lawful disciplinary action or was a private act arising from tensions created by the petitioner's father regarding matters connected to a school sports meet. The petitioner alleged that the conduct violated Article 11 of the Constitution prohibiting torture and cruel, inhuman, or degrading treatment or punishment. The Supreme Court held that the respondents had infringed the petitioner's fundamental rights and awarded compensation and costs against both the State and the individual respondents. The Court rejected the argument that the assault was a private act and held that the respondents, being public officers acting during school hours within the school environment, were engaged in executive or administrative action. Although school authorities possess disciplinary powers, the Court held that savage corporal punishment causing physical injury exceeded the limits of reasonable chastisement and amounted to unconstitutional treatment prohibited by Article 11. The Court relied on medical evidence confirming injuries consistent with the allegations and emphasized the personal responsibility of educators to avoid abuse of authority while exercising disciplinary functions within public educational institutions.

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SUMMARY:

The petitioner produced a telefilm titled “Makara Vijithaya” at considerable expense and repeatedly requested the Sri Lanka Rupavahini Corporation to telecast it during prime time broadcasting hours. The Corporation rejected the request on three occasions through different review boards without disclosing the identities of board members, the criteria applied, the procedures followed, or the reasons for refusal. The petitioner alleged that the conduct of the respondents violated Article 12(1) of the Constitution by denying equal treatment and subjecting him to arbitrary administrative action. The Supreme Court held that the petitioner’s right to equality and equal protection of the law had been infringed and awarded substantial compensation and costs, including personal liability against several respondents. The Court reasoned that statutory powers exercised by the Sri Lanka Rupavahini Corporation are held in trust for the public and therefore must be exercised fairly, transparently, and reasonably. It found that the absence of objective standards and the failure to provide reasons or procedural safeguards rendered the decision-making process arbitrary. The Court further emphasized that broadcasting frequencies constitute public property and cannot be controlled capriciously by State authorities. By denying access without rational justification or disclosed standards, the respondents failed to ensure equitable treatment and abused the discretionary powers entrusted to them. The Court concluded that administrative opacity and arbitrary exclusion from public broadcasting violated constitutional guarantees of equality and fair treatment under Article 12(1).

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SUMMARY:

On 11 January 1991 the petitioners, who were members of political parties, organized a Satyagraha protest at the Maha Maluwa of the Dalada Maligawa in Kandy to demonstrate against the Gulf War. Police officers intervened, seized posters and placards, and dispersed the gathering. The petitioners maintained that the protest was peaceful and alleged violations of Articles 14(1)(a) and 14(1)(b) of the Constitution relating to freedom of speech, expression, and peaceful assembly. The police contended that the demonstrators were shouting slogans, carrying placards, obstructing access to a sacred religious site, and disturbing public order during a period of civil unrest. The Supreme Court dismissed the application and held that no fundamental rights had been infringed. The Court reasoned that the Maha Maluwa was primarily a place associated with worship and religious observance rather than a public forum intended for political demonstrations. It emphasized that no implied right existed to conduct political protests at such a location without obtaining permission from the relevant religious authorities. The Court further found that the gathering could not be regarded as entirely peaceful because the shouting of slogans and display of placards disrupted the religious atmosphere surrounding the temple premises. Since the freedoms guaranteed under Article 14 are subject to restrictions in the interests of public order, the police were entitled to act under existing legal powers to disperse an assembly perceived as threatening security and order at a sensitive religious location.

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SUMMARY:

The petitioners, who were brothers engaged in the textile trade under valid licenses, alleged that while transporting approximately 20,000 textile coupons to Colombo, one petitioner's suitcase was stolen. They immediately reported the incident to both the Police and the Textile Controller. Without conducting an inquiry or framing charges, the respondent cancelled the petitioners' textile licenses on the basis that they were unfit to continue as license holders because of the

alleged loss. The petitioners sought a writ of certiorari to quash the cancellation. Although the matter arose prior to the 1978 Constitution, the case concerned principles analogous to Article 12(1) and natural justice. The Court quashed the respondent's order and held that the cancellation had been effected unlawfully. The Court reasoned that the statutory requirement of "reasonable grounds to believe" demanded more than mere suspicion and required evidence capable of satisfying a reasonable person. Because the respondent's authority depended upon the existence of such grounds, the exercise of power was judicial or quasi-judicial in character and therefore subject to judicial review. The Court further emphasized that a fundamental rule of fairness requires public officers exercising quasi-judicial powers to hear affected parties and act in good faith. By cancelling the licenses without investigation or affording the petitioners an opportunity to explain the circumstances, the respondent violated principles of procedural fairness and exceeded the lawful scope of administrative authority entrusted under the relevant regulations.

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SUMMARY:

On 6 April 1990 police officers entered and searched "Le Casino," a casino operated by the petitioner at the Galadari Meridien Hotel, pursuant to a warrant issued by a Magistrate. During the operation several persons, equipment, and sums of money were taken into custody. The petitioner alleged that the warrant had been obtained maliciously and for a collateral purpose, namely to advance the interests of a rival casino business by falsely representing the establishment as a social club. The Magistrate later informed the Court that the warrant had been issued inadvertently without proper compliance with Section 5(1) of the Gaming Ordinance. The petitioner invoked Articles 17 and 126 of the Constitution, alleging infringement of fundamental rights through executive or administrative action. The Supreme Court dismissed the application and held that no constitutional violation had been established. The Court reasoned that the police officers acted pursuant to a judicial warrant issued by a Magistrate and therefore their conduct derived legal authority from judicial process rather than executive or administrative discretion. It emphasized that actions taken in obedience to judicial orders remain judicial in character even if the underlying information supplied to the court was allegedly false or malicious. The Court further held that mala fides on the part of police officers do not convert judicial acts into executive acts capable of attracting relief under Article 126. Constitutional

remedies for infringement of fundamental rights are confined to executive or administrative action and do not extend to consequences arising from judicial determinations or the exercise of judicial discretion.

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SUMMARY:

The dispute arose after the 2nd respondent, a farm manager employed by Farms and Retail Markets Ltd., had his services terminated and subsequently sought relief before a Labour Tribunal against both his employer and Carson Cumberbatch & Co. Ltd., which acted as managers and secretaries of the company. The appellant contended that it merely functioned as an agent for a disclosed principal and could not be regarded as an employer within the meaning of the Industrial Disputes Act. The Labour Tribunal nevertheless identified the appellant as an employer and proceeded against it. Although the matter predated the 1978 Constitution, the proceedings concerned principles analogous to equality, jurisdictional fairness, and proper interpretation of statutory obligations. The Court of Appeal allowed the appeal, quashed the Labour Tribunal's order, and directed that proceedings against the appellant be discontinued. The Court reasoned that under established principles of agency law, a company acting solely as manager or secretary for a disclosed principal does not incur personal liability as an employer. It held that the use of the term "agent" constituted a clear assertion that contractual obligations belonged to the principal rather than the intermediary. The Court further interpreted the definitions of "employer" and "workman" in the Industrial Disputes Act as excluding liability for agents where the true employer was clearly identifiable. The Labour Tribunal therefore exceeded its jurisdiction by proceeding against the appellant despite the absence of an employer-employee relationship between the parties.

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SUMMARY:

The petitioners were employees of the Embilipitiya Factory operated by the National Paper Corporation and members of the All Ceylon Corporation Employees Union. For several years the corporation deducted trade union membership fees from the petitioners' salaries and remitted those amounts directly to the Union treasurer. Beginning in July 1982 the corporation refused to continue making the deductions and remittances. The petitioners alleged that this decision was politically motivated and constituted discrimination on the basis of political opinion contrary to Article 12(2) of the Constitution. The respondents challenged the maintainability of the application and argued that the impugned conduct did not amount to executive or administrative action capable of attracting the jurisdiction of the Supreme Court under the fundamental rights provisions. The Supreme Court upheld the preliminary objection and dismissed the application. The Court reasoned that the jurisdiction conferred under Article 126 is limited strictly to infringements arising from executive or administrative action attributable to the State. Relying upon earlier precedent, including *Wijetunga v Insurance Corporation*, the Court held that the National Paper Corporation's conduct in relation to trade union fee deductions did not constitute State action for the purposes of constitutional liability. Since the impugned act did not fall within the category of executive or administrative action, the Court concluded that it lacked jurisdiction to consider the merits of the alleged political discrimination claim regardless of whether the petitioners had suffered unfair treatment.

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SUMMARY:

The petitioner, a Sub-Inspector of Police serving as the Officer-in-Charge of the Katunayake Police Station, alleged that he was subjected to a punitive transfer to a remote area and later

interdicted without lawful disciplinary justification. He contended that the actions were orchestrated by senior police officials, including the 1st respondent, due to political pressure arising from the petitioner's impartial discharge of official duties, which displeased influential individuals. The petitioner invoked Articles 12(1), 12(2), and 14(1)(a) of the Constitution, asserting that the transfer and interdiction were discriminatory, arbitrary, and intended to suppress his professional conduct. The respondents maintained that the administrative measures were lawful exercises of disciplinary and managerial authority within the Police Department. The Supreme Court held that the petitioner's fundamental rights under Article 12(1) had been violated. The Court reasoned that the transfer was not based on legitimate administrative necessity but was instead punitive and arbitrary in nature. It further observed that the interdiction and transfer had been implemented without a proper inquiry or rational justification, thereby failing to satisfy standards of equal protection and administrative fairness. Emphasizing that public powers relating to transfers and discipline are held in trust for lawful purposes, the Court stated that such authority cannot be exercised to harass officers or appease political interests. The impugned measures were therefore characterized as an abuse of discretion incompatible with constitutional guarantees of equality and fair treatment in public administration.

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SUMMARY:

Following the enactment process relating to the Online Safety Act No. 9 of 2024, several Members of Parliament, including Dr. Harsha de Silva and other opposition legislators, challenged the conduct of the Speaker, Mahinda Yapa Abeywardena, alleging that he certified the Bill into law despite the failure to incorporate amendments previously mandated by the Supreme Court. The petitioners contended that the Speaker thereby bypassed the constitutional determination of the Court and caused to be enacted a version of the legislation that had earlier been found unconstitutional unless amended. They alleged violations of Articles 12(1) and 14(1)(a) of the Constitution, arguing that the enactment undermined judicial safeguards and threatened freedom of speech and expression. The dispute raised questions concerning the constitutional relationship between Parliament and the Judiciary. The respondents relied on Articles 79 and 80(3), maintaining that once a Bill is certified by the Speaker it becomes law and

cannot thereafter be challenged in court. The matter remained pending and unresolved at the constitutional level, although the Speaker's conduct became the subject of parliamentary criticism and a motion of no confidence. The petitioners argued that the Speaker holds a constitutional trust requiring compliance with judicial determinations and that failure to do so constituted an abuse of constitutional authority affecting the sovereignty of the people. The case therefore highlighted tensions between legislative supremacy, judicial review, and constitutional accountability in the enactment of legislation affecting civil liberties and political expression.

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SUMMARY:

The petitioner, a villager, was arrested by police officers on suspicion of theft and taken into custody at a police station. While detained he was subjected to severe physical assault, including beatings with a rubber hose. The petitioner alleged that the police assaulted him during interrogation and unlawfully deprived him of liberty without reasonable justification. Medical examination conducted by the Judicial Medical Officer confirmed the existence of multiple injuries that were consistent with the petitioner's account. The police attempted to characterize the incident as a minor scuffle and denied responsibility for the injuries. The petitioner invoked Articles 11 and 13(1) of the Constitution, alleging torture and arbitrary arrest. The Supreme Court held that the respondents had infringed the petitioner's constitutional rights and ordered compensation and costs against both the State and the responsible officers. The Court placed significant reliance on the medical evidence, observing that the extent and nature of the injuries established the use of excessive and unlawful force inconsistent with lawful restraint. It further held that the respondents failed to demonstrate reasonable suspicion or credible information justifying the arrest at the time it occurred, rendering the deprivation of liberty arbitrary. The Court emphasized that when an individual comes within the coercive power of the State, authorities bear a strict obligation to protect that person's physical integrity. Any intentional infliction of pain or violence upon a detainee for punishment or interrogation constitutes a direct violation of Article 11 and undermines constitutional protections against abuse of police power.

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SUMMARY:

The petitioner was arrested by officers attached to the Padukka Police Station on suspicion of receiving a stolen water pump belonging to the wife of a senior police officer. He was not informed of the reasons for his arrest and was taken into police custody where he was brutally assaulted with clubs, suspended by his wrists from a beam, and had water mixed with chili powder thrown into his face. Medical evidence later confirmed seventeen injuries, including abrasions and contusions consistent with being tied and beaten while suspended. The respondents denied the allegations and claimed that the petitioner sustained the injuries by falling on rocks while assisting police investigations. The petitioner alleged violations of Articles 11 and 13(1) of the Constitution. The Supreme Court held that the respondents had infringed the petitioner's fundamental rights and ordered compensation against the State together with personal liability for costs against the individual officers. The Court held that the arrest lacked reasonable suspicion because it was based solely upon an unsupported allegation from another suspect claiming to have sold the stolen property to the petitioner. It further observed that the medical evidence conclusively disproved the police version of events and established custodial torture. The Court emphasized that the intentional infliction of violence upon suspects held in police custody is barbaric and incompatible with constitutional guarantees of dignity and liberty. The State bears primary responsibility for preventing abuses committed by officers exercising coercive powers over individuals deprived of their liberty.

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SUMMARY:

The petitioner, a trained physical education teacher and active trade union member, was transferred from the Puttalam Regional Education Office to Nikaweratiya during the middle of the academic year with only six days' notice. He alleged that the transfer was politically motivated and influenced by a Member of Parliament. The 3rd respondent, the Provincial Director of Education, claimed that the transfer was disciplinary in nature and had been made with the petitioner's consent due to complaints against him. The petitioner challenged the transfer under Articles 12(1), 12(2), and 14(1)(d) of the Constitution, asserting that the decision was arbitrary and discriminatory. The Supreme Court held that the transfer violated Article 12(1) and declared the order void. The Court relied on documentary evidence demonstrating that the transfer had neither been requested by the petitioner nor based upon legitimate disciplinary grounds, thereby contradicting the respondents' affidavits. It further observed that effecting a transfer in the middle of the school year with minimal notice and without a reasonable administrative justification amounted to arbitrary conduct incompatible with equal protection of the law. The Court concluded that there was no acceptable explanation for the decision and characterized the action as selective hostile discrimination directed against the petitioner. The exercise of transfer powers in an unreasonable and politically influenced manner therefore constituted an abuse of administrative discretion contrary to constitutional guarantees of fairness and equality.

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SUMMARY:

The petitioners were members of the Ratawesi Peramuna, an organization advocating for the rights of impoverished persons and criticizing government policies. Between May and June 1992 several petitioners were arrested under Emergency Regulations on suspicion of maintaining links with the outlawed Janatha Vimukthi Peramuna or participating in subversive

activities. The petitioners alleged that they were arrested without being informed of specific reasons, unlawfully detained, and subjected to torture while in custody, including beatings and suspension in painful positions. The respondents justified the arrests on the basis of national security concerns and emergency powers. The Supreme Court held that several petitioners had suffered violations of Articles 11, 13(1), and 13(2) of the Constitution and awarded compensation and costs. The Court reasoned that even under Emergency Regulations arrests must be supported by objective and credible grounds giving rise to reasonable suspicion. Mere subjective belief or vague assertions concerning political activity were insufficient to justify deprivation of liberty. It further held that informing detainees merely that they were required “for questioning” failed to satisfy the constitutional obligation to communicate reasons for arrest. Medical evidence confirming physical injuries established that custodial violence had occurred. The Court reaffirmed that the State remains constitutionally responsible for safeguarding individuals placed under its coercive authority and that emergency powers cannot be used to legitimize torture, arbitrary arrest, or unlawful detention inconsistent with constitutional guarantees of liberty and human dignity.

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SUMMARY:

In July 1998 the petitioner and a female companion stayed overnight at a guest house when police officers arrived claiming to investigate information relating to suspected LTTE members. Upon discovering the couple, the officers arrested them together with several others under the purported authority of the Brothels Ordinance. The petitioner was detained at the Chilaw Police Station and subsequently produced before a Magistrate, who remanded him for six days before ultimately discharging him. The petitioner alleged that his arrest and detention violated Article 13(1) of the Constitution. The Supreme Court held that the petitioner’s right against arbitrary arrest had been infringed and awarded compensation and costs against both the State and the individual police officers. The Court found that the respondents failed to establish any reasonable suspicion that the guest house was being used as a brothel or that the petitioner had committed any cognizable offence. It held that merely occupying a guest house room with a member of the opposite sex did not constitute criminal conduct and therefore could not justify

arrest. The Court characterized the conduct of the police as a gross abuse of coercive power exercised without lawful foundation. Although the Court examined Article 13(2), it concluded that no separate violation arose because the petitioner had been produced before a Magistrate within the statutory period. The Court additionally criticized the Magistrate for mechanically issuing the remand order without exercising independent judicial scrutiny over the allegations presented by the police.

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SUMMARY:

The petitioner was arrested and subsequently remanded by a Magistrate following reports submitted by police officers identified as the 1st and 2nd respondents. He alleged that the police reports were false and misleading and that his continued detention for approximately three months before release on bail was unlawful. The petitioner invoked Article 13(2) of the Constitution, contending that his detention constituted an infringement of his right against arbitrary deprivation of liberty. The respondents argued that the petitioner's detention occurred pursuant to judicial orders lawfully issued by the Magistrate. The Supreme Court dismissed the application and held that no violation of fundamental rights had been established within the scope of Article 126 jurisdiction. The Court reasoned that the petitioner's deprivation of liberty resulted directly from remand orders made by the Magistrate in the exercise of judicial discretion rather than from executive or administrative action attributable to the respondents. It emphasized that the Supreme Court's jurisdiction under Article 126 extends only to infringements arising from executive or administrative conduct and does not encompass consequences flowing from judicial determinations, even where such determinations may have been influenced by inadequate or misleading police reports. Although the Court criticized the police reports as woefully inadequate and cautioned that Magistrates must not function merely as rubber stamps when authorizing remand, it concluded that the detention remained judicial in character and therefore fell outside the constitutional framework governing fundamental rights applications against executive action.

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SUMMARY:

In May 1996 the Ministry of Health invited applications for training positions leading to appointment as Assistant Medical Officers. The sixteen petitioners applied, sat a competitive examination conducted in December 1996, and successfully qualified according to the published criteria. The final stage of the process involved interviews intended only to verify educational and personal documents. Subsequently, following a policy change influenced by representations from the Government Medical Officers' Association, the Ministry abandoned the recruitment scheme and refused to proceed with the interviews and training programme. The petitioners alleged that the respondents thereby violated Article 12(1) of the Constitution by arbitrarily denying them the benefits of a process for which they had already qualified. The Supreme Court held that the petitioners' right to equality and equal protection of the law had been infringed and ordered the Ministry to complete the interviews and provide the promised training within specified periods. The Court reasoned that the Gazette notification and examination process created a legitimate expectation that successful candidates would be considered according to the published procedure. Although the executive retains authority to revise policy, such changes cannot unfairly deprive individuals of interests deserving constitutional protection without compelling justification grounded in the public interest. The Court concluded that abandoning the programme solely because of pressure from a third party organization constituted arbitrary administrative conduct and a failure of the State's duty to act fairly toward persons who had relied upon official representations and established procedures.

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SUMMARY:

The Petitioner, a Buddhist monk affiliated with the organization "Pavidi Handa," organized a campaign opposing the 1982 referendum intended to extend the life of Parliament. As part of this campaign, 50,000 political leaflets were printed. On December 8, 1982, police officers led by the 1st Respondent raided the printing press and seized 20,000 leaflets together with the printing plates, thereby preventing further publication and distribution. The police initially attempted to justify the seizure under election and emergency laws, but later relied on allegations of cheating and forgery under Sections 398 and 453 of the Penal Code following complaints by individuals connected to the leaflet publication. The Petitioner alleged that the seizure unlawfully infringed his freedom of speech and expression under Article 14(1)(a). The Supreme Court held that the police action was unlawful and constituted a violation of the Petitioner's fundamental rights. The Court reasoned that seizure of thousands of political leaflets was unnecessary to investigate an alleged act of cheating or forgery, particularly where the police failed to obtain the original allegedly forged document itself. The Court further found that the 1st Respondent failed to act with due care and attention required for good faith action and focused improperly on suppressing political expression. The Court emphasized the need for meaningful compensation to deter abuse of police power and ordered compensation and costs against the 1st Respondent.

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SUMMARY:

The petitioners were employees of the National Savings Bank who applied for promotion from Grade III to Grade II of the Executive Service. Following an interview-based selection process conducted in 2001, forty-one officers were promoted, including several candidates junior to the petitioners. The petitioners challenged the promotions under Article 12(1) of the Constitution, alleging that the interview procedure was arbitrary, rushed, and manipulated. Evidence before the Court showed that interviews lasted only a few minutes and that assessment marks had been altered or overwritten without explanation. The petitioners further argued that certain

promoted officers received evaluation scores inconsistent with their actual service records. The respondents raised a preliminary objection that the petition was time-barred, contending that the challenge should have been filed from the date of interview. The Supreme Court rejected this objection, holding that the relevant time period commenced when the promotions were officially announced. Examining the merits, the Court concluded that the interview process lacked transparency and fairness, making it impossible to properly evaluate the candidates' suitability. Although seniority alone did not guarantee promotion, the Court emphasized that departures from seniority required a rational and merit-based justification supported by a valid process. The arbitrary conduct of the interviews and unexplained alterations to marks constituted unequal treatment and violated the petitioners' right to equal protection of the law under Article 12(1). The Court therefore quashed the promotions of fourteen junior officers and directed that a fresh selection process be conducted for all eligible candidates.

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SUMMARY:

The petitioner applied for the position of General Manager of the State Engineering Corporation after the Corporation invited applications and conducted interviews through a selection board. Following the interviews, the Chairman of the Corporation appointed another candidate whom the petitioner alleged lacked the necessary qualifications and was less suitable for the post. The petitioner challenged the appointment under Article 12(1) of the Constitution, asserting that the selection process was arbitrary, biased, and conducted contrary to established procedures. The Supreme Court examined the process adopted by the respondents and found that the established selection criteria had not been consistently applied. The Court observed that public authorities exercising statutory powers are bound by principles of fairness, transparency, and rationality. It emphasized that when a State institution invites applications for public employment, each applicant acquires a constitutional right to fair and impartial consideration. Although courts ordinarily refrain from substituting their own judgment for that of expert selection bodies, judicial intervention is warranted where a process is tainted by arbitrariness, mala fides, or disregard for fairness. The Court held that the respondents had departed from proper procedures without providing valid reasons and that the appointment decision lacked transparency. Such conduct amounted to unequal and arbitrary treatment in violation of Article 12(1). The Court further stressed that the Chairman and Board exercised powers held in public trust and were therefore

obliged to act reasonably and without discrimination. Consequently, the Supreme Court quashed the impugned appointment and directed that a fresh selection process be conducted according to law.

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SUMMARY:

The petitioners were the editor and proprietor of the weekly newspaper Yukthiya. They alleged that the second respondent, who was the Mayoress of Nuwara Eliya and an Attorney-at-Law, forcibly seized approximately 450 copies of the newspaper from a local sales outlet to prevent the circulation of material critical of the government. The respondent claimed that she acted merely as a private citizen attempting to prevent a breach of the peace. However, the Supreme Court found that the seizure had been carried out under the colour of her official office and influence. The petitioners invoked Article 14(1)(a) of the Constitution, contending that the seizure constituted unlawful suppression of freedom of speech and expression, including publication. The Court emphasized that freedom of expression is indispensable to democratic governance and protects the peaceful exchange and criticism of ideas. It held that the respondents had failed to establish any urgent threat to public order or emergency situation capable of justifying interference with publication. The Court rejected the contention that the seizure was a private act, concluding instead that the Mayoress used her official authority to suppress political expression. The judgment further stated that compensation for a violation of free expression should be measured by the value of the liberty infringed rather than the market value of the newspapers seized. The Court held that the respondent's deliberate actions constituted a grave infringement of constitutional freedom under Article 14(1)(a). Accordingly, the Supreme Court ordered the second respondent to personally pay compensation and costs to the petitioners.

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SUMMARY:

The petitioners, Dhanu Contractors (Pvt) Ltd, challenged the award of a municipal construction tender for the Gongawela Shopping Complex in Matale. Although the petitioners were qualified bidders, the contract was awarded to the eighteenth respondent, Universal Civil Engineering Services, which lacked the mandatory registrations required by the Municipal Council and ICTAD at the time the tender was submitted. Evidence before the Court revealed that the successful bidder had secured the award through deliberate and serious misrepresentation by concealing the absence of the necessary qualifications. The petitioners alleged that the arbitrary award of the contract violated their right to equality and equal protection under Article 12(1) of the Constitution. The Supreme Court held that compliance with tender requirements was mandatory and that a contract awarded to an unqualified bidder was unlawful and void. The Court further found that the Mayor and members of the Municipal Council were directly responsible for the executive and administrative actions that resulted in the infringement of the petitioners' rights. The judgment emphasized that public procurement procedures must be conducted fairly, transparently, and in accordance with established legal standards. Concealment of material facts and manipulation of the competitive bidding process undermined the integrity of public administration and denied equal treatment to qualified bidders. The Court therefore concluded that the petitioners had been subjected to arbitrary and unequal administrative action contrary to Article 12(1). Compensation and costs were awarded against the Council, while the successful bidder and responsible municipal officials were ordered to bear personal liability for their roles in the unlawful tender process.

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SUMMARY:

The petitioner, a senior public servant and prosecution witness in a High Court case, became subject to an arrest warrant after failing to attend court. Acting on a message from the Officer-in-Charge, she voluntarily attended the police station where a police sergeant executed the warrant and arrested her. The petitioner alleged that she was not informed of the reason for her arrest and that the police deliberately delayed producing her before the High Court, resulting in a remand order for fifteen days despite the possibility of producing her in court the following day. She invoked Articles 13(1) and 13(2) of the Constitution, alleging unlawful arrest and arbitrary detention. The Supreme Court held that the failure to inform the petitioner of the reason for her arrest constituted a violation of Article 13(1), since the Constitution requires that a person arrested be made aware of the grounds for the deprivation of liberty. However, the Court refused relief under Article 13(2), reasoning that the petitioner's detention flowed from a remand order issued by a judicial officer. The Court reaffirmed that its jurisdiction under Article 126 extends only to executive or administrative action and does not encompass judicial acts. Even if police officers acted maliciously or supplied misleading material to secure a remand order, the resulting detention remained an exercise of judicial discretion. Consequently, the Court granted relief solely in relation to the violation of Article 13(1) while declining to treat the remand order itself as an actionable infringement under the fundamental rights jurisdiction.

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SUMMARY:

The petitioners, eight Members of Parliament belonging to the United National Party, challenged the validity of their expulsion from the party after they signed and promoted a resolution seeking the impeachment of the President under Article 38(2) of the Constitution. They contended that the party's Working Committee acted without jurisdiction and violated principles of natural justice by expelling them without a fair hearing. The proceedings were brought under Article 99(13)(a) of the Constitution and involved substantial consideration of the freedoms of speech, expression, and association guaranteed by Article 14(1)(a) and Article 14(1)(c). The petitioners argued that participation in constitutional processes and criticism of party leadership were protected political activities. The Supreme Court, however, upheld the validity of the expulsions. The Court reasoned that although Members of Parliament enjoy constitutional freedoms, those freedoms must be balanced against obligations owed to their political party and the maintenance of party discipline. The Court found that the petitioners' conduct, including

supporting impeachment proceedings against the party leader without proper internal consultation and misleading Cabinet colleagues, constituted serious acts of indiscipline and disloyalty inconsistent with continued membership in the party. The Court further held that the Working Committee acted within the powers granted by the party constitution and that the petitioners had been given a sufficient opportunity to explain their conduct. Consequently, the Court concluded that the principles of natural justice had not been breached and dismissed the applications, thereby affirming the legality of the expulsions.

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SUMMARY:

Three suspects accused of rape were produced before an Additional Magistrate, who ordered that they be remanded while police investigations continued. Their remand was repeatedly extended over a period totaling approximately eight weeks. The petitioners challenged the legality of this prolonged detention, arguing that the Magistrate exceeded the limits imposed by the Code of Criminal Procedure Act. Although the proceedings arose in the context of a bail application before the Court of Appeal, the case directly concerned the constitutional protection of personal liberty reflected in Article 13(2) of the Constitution. The Court examined Section 115(2) of the Code of Criminal Procedure Act and held that the provision clearly limited remand during an incomplete investigation to a maximum period of fifteen days, except in relation to three specifically identified offences under the Penal Code. Since the offence under investigation did not fall within those exceptions, the repeated remand orders were declared wholly irregular and contrary to law. The Court emphasized that judicial officers bear a duty of vigilance when depriving individuals of liberty and must strictly comply with statutory safeguards governing detention. The judgment criticized the Magistrate for failing to consider the legal basis for extending custody and for disregarding established precedents restricting remand periods. Recognizing that personal liberty cannot be curtailed beyond the precise authority granted by statute, the Court ordered the immediate release of the petitioners on bail upon the furnishing of the required sureties. The decision reaffirmed the principle that restrictions on liberty must be strictly construed and carefully supervised by judicial authorities.

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SUMMARY:

The petitioner, a student at the University of Sri Jayewardenepura, was suspended for four academic semesters and prohibited from entering the university premises following a disciplinary inquiry into allegations that he obstructed the Vice-Chancellor and university officials. The petitioner challenged the disciplinary action under Article 12(1) of the Constitution, arguing that the inquiry violated principles of natural justice because he was not permitted legal representation or the opportunity to cross-examine witnesses. The Supreme Court examined the nature of university disciplinary proceedings and held that such inquiries are domestic and quasi-judicial rather than formal judicial proceedings. Consequently, they are not required to follow the strict procedural rules applicable in courts of law. The Court found that the petitioner had been informed of the allegations against him and had been given an adequate opportunity to present his version of events before the disciplinary authorities. In the circumstances, the absence of cross-examination rights or legal representation did not amount to a denial of natural justice. The Court further recognized the authority of universities to maintain institutional discipline and preserve the orderly functioning of academic environments. Judicial intervention in disciplinary decisions would therefore be limited to situations involving mala fide conduct or decisions that were irrational or entirely arbitrary. Since the petitioner failed to establish bad faith or a fundamental procedural defect, the Court concluded that the disciplinary action was within the university's lawful administrative discretion. Accordingly, the Supreme Court held that there had been no infringement of the petitioner's fundamental rights under Article 12(1) and dismissed the application.

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SUMMARY:

The petitioner was arrested by the police and produced before a Magistrate on the basis of reports submitted by law enforcement officers. Following consideration of those reports, the Magistrate ordered that the petitioner be remanded to Mahara Prison. The petitioner subsequently challenged his detention under Article 13(2) of the Constitution, alleging that the police reports contained false information and that his continued incarceration therefore amounted to an unlawful deprivation of liberty. The Supreme Court examined whether the detention constituted an infringement arising from executive or administrative action within the meaning of Article 126 of the Constitution. The Court held that the petitioner's incarceration was the direct consequence of a remand order made by a judicial officer in the exercise of judicial discretion. It reaffirmed the constitutional principle that the Supreme Court's fundamental rights jurisdiction is confined strictly to executive and administrative action and does not extend to judicial acts performed bona fide within judicial authority. Even where misleading or inaccurate information may have been supplied by police officers, the legal cause of the detention remained the judicial decision of the Magistrate. The Court emphasized that errors arising from judicial discretion must be corrected through appellate or revisional procedures rather than through a fundamental rights application. Accordingly, the Court concluded that the petitioner had failed to establish a constitutional violation attributable to executive action. The application was therefore dismissed, and the Court reaffirmed that the State is not constitutionally liable under Article 126 for bona fide judicial acts performed by judicial officers acting within their lawful authority.

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SUMMARY:

In Dr Neville Fernando v. Liyanage, the petitioners challenged a Proclamation issued by the President under the Public Security Ordinance following the 1982 Presidential Election and preceding a national Referendum. The Proclamation brought Part II of the Ordinance into operation and enabled Emergency Regulations which the petitioners alleged were intended to

suppress political opposition and restrict democratic activity. The petitioners claimed that the regulations violated their rights to equality, freedom of speech, and freedom of association. They further argued that the President's satisfaction regarding the existence of a public emergency should be reviewable by the Court. The Supreme Court dismissed the application and held that no infringement of fundamental rights had been established. The Court reasoned that the Constitution granted the President immunity from legal proceedings in respect of official acts performed in the exercise of presidential powers. It further held that the declaration of a state of emergency depended upon the President's subjective satisfaction, which the Court could not substitute with its own assessment. The Court accepted that Emergency Regulations were enacted to preserve public order and essential services during a politically volatile period and found no evidence that the measures were arbitrary, irrational, or unrelated to national security concerns. Accordingly, the Court refused relief and upheld the validity of the emergency measures.

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SUMMARY:

In *Edirisuriya v. Navaratnam*, the petitioner was arrested under Emergency Regulations on suspicion of involvement in a conspiracy to overthrow the government during a period of emergency rule. He was detained for an extended period without being produced before a Magistrate and challenged the legality of both his arrest and continued detention. The petitioner alleged that there was no reasonable suspicion to justify the deprivation of his liberty and claimed violations of constitutional protections against arbitrary arrest and detention. The Supreme Court dismissed the application and held that no infringement of fundamental rights had been established. The Court reasoned that Emergency Regulations conferred broader powers of arrest and detention than ordinary criminal law and that the subjective satisfaction of the arresting officer concerning threats to national security was generally not reviewable unless mala fides were proved. The Court found that the information available to the police at the time of arrest constituted sufficient material to create reasonable suspicion within the context of emergency conditions. It further held that valid Emergency Regulations modified the operation of Article 13(2) by permitting prolonged detention without immediate judicial supervision for investigative purposes connected with subversive activities. In the absence of evidence

demonstrating bad faith or arbitrariness, the Court concluded that the arrest and detention were lawfully carried out under the emergency legal framework and therefore did not violate the petitioner's constitutional rights.

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SUMMARY:

In *Environmental Foundation Ltd v. Urban Development Authority*, the petitioners challenged a lease agreement entered into by the Urban Development Authority granting EAP Technologies (Pvt) Ltd exclusive authority to manage and commercially operate the Galle Face Green. The agreement permitted the private company to charge entry fees, erect permanent structures, and restrict public access for events. The petitioners argued that the arrangement unlawfully privatized a historic public space held in trust for the people and infringed constitutional rights relating to equality, movement, occupation, and public access. The Supreme Court held that the agreement violated fundamental rights and declared the lease null and void. The Court issued a permanent injunction restraining the UDA from alienating the Green for commercial purposes and directed that it remain freely accessible to the public. The Court's reasoning centered on the Public Trust Doctrine, holding that State agencies do not possess absolute ownership over public land but hold such property in trust for the benefit of the public. By granting exclusive commercial rights to a private entity, the UDA unlawfully fettered its statutory discretion and acted contrary to the public interest. The Court further observed that constitutional freedoms become meaningful only where citizens retain access to public spaces and information. The arrangement therefore amounted to arbitrary state action inconsistent with the constitutional guarantee of equal protection and the State's obligation to preserve public resources for collective use.

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SUMMARY:

In *Fernando v. The Sri Lanka Broadcasting Corporation*, the petitioner was a regular participant in the Non-Formal Education Programme conducted by the Sri Lanka Broadcasting Corporation, a programme that facilitated discussion on political, social, ethnic, and human rights issues through listener participation. Following the 1994 General Election, the respondents abruptly terminated the broadcasts without providing any valid administrative justification. The petitioner challenged the discontinuation, alleging that it silenced an established forum for public discussion and infringed his constitutional right to freedom of speech and expression. The Supreme Court held that the respondents violated the petitioner's fundamental rights under Article 14(1)(a). The Court ordered the Sri Lanka Broadcasting Corporation to pay compensation and costs. In its reasoning, the Court adopted a broad interpretation of freedom of speech and expression, holding that the constitutional guarantee extends not only to speakers but also to listeners who participate in the exchange of ideas and information. The Court recognized that the right to information is essential to making freedom of expression meaningful, particularly where public broadcasting institutions create established forums for discussion. The abrupt termination of the programme without rational justification was treated as a form of prior restraint on expression and public participation. Since the petitioner had actively contributed to the programme and relied on it as a channel of discourse, the Court concluded that the respondents acted arbitrarily and infringed constitutionally protected expressive freedoms.

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SUMMARY:

In *Gamaethige v. Siriwardena*, the petitioner, who served as the General Secretary of the Sri Lanka Government Clerical Union, participated in a strike in 1980 and was subsequently treated as having vacated his post. Before leaving service, his name had been included on the waiting list for Government Quarters. During the period in which he remained out of service, the authorities removed his name from the list. Although he was reinstated in 1985, the respondents refused to restore his original seniority on the waiting list and instead treated him as a new applicant. The petitioner alleged that this refusal constituted discriminatory treatment in violation of his constitutional rights. The Supreme Court dismissed the application and held that no violation of Article 12(1) had been established. The Court first determined that the petition was time-barred under Article 126(2), because the petitioner became aware of the removal of his name in 1985 but filed proceedings only in 1987. The Court further held that repeated representations and reminders to authorities could not extend the constitutional time limit. On the merits, the Court found that the petitioner failed to establish unequal treatment by identifying similarly situated reinstated officers who retained their original seniority. The respondents had acted according to existing administrative rules applicable to officers who were legally out of service. In the absence of evidence demonstrating selective or arbitrary discrimination, the Court concluded that the petitioner's rights had not been infringed.

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SUMMARY:

In *Gunaratne v. Ceylon Petroleum Corporation*, the petitioners operated a filling station under a Dealership Agreement with the Ceylon Petroleum Corporation. In January 1996, the Corporation summarily terminated the agreement and cancelled the petitioners' authority to distribute petroleum products without prior notice, hearing, or an opportunity to respond. The Corporation alleged breaches of the agreement, while the petitioners contended that the termination was arbitrary, politically motivated, and procedurally unfair. The Supreme Court held that the respondents violated the petitioners' fundamental rights under Article 12(1). The Court awarded compensation and costs and directed the Corporation either to provide a new dealership within six months or pay additional damages. In its reasoning, the Court rejected the argument that constitutional review was limited to the formation of contracts with the State. It held that executive or administrative action extends to the performance and termination of contracts where statutory powers are exercised. The Court emphasized that the Corporation

acted under statutory authority granted by the CPC Act, making its conduct administrative rather than purely commercial. The summary cancellation without notice or hearing was found to violate the principle of equal protection of the law, which requires State authorities to act fairly, reasonably, and non-arbitrarily. The Court concluded that the petitioners were denied procedural fairness and subjected to arbitrary executive action inconsistent with constitutional guarantees governing the exercise of public power.

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SUMMARY:

In *Gunaratne v. People's Bank*, the plaintiff, an employee of People's Bank serving in Grade IV, was offered a promotion to Grade III on the condition that he resign from membership in his trade union. The Bank maintained a policy that executive-grade officers should not belong to unions that also included subordinate employees. The plaintiff refused to resign from the union, was denied promotion, and instituted legal proceedings challenging the condition as unlawful interference with his associational rights. The Supreme Court allowed the appeal and restored the judgment of the District Court in favour of the plaintiff. The Court held that the requirement to abandon trade union membership as a condition for promotion violated the constitutional and statutory protection of freedom of association. In its reasoning, the Court emphasized that the right of employees to form and join trade unions is a recognized legal right that cannot be removed by contractual conditions imposed by employers, including State banks. The Court rejected the Bank's attempt to justify the restriction through internal policy and held that statutory or constitutional rights cannot be waived or diminished through employment contracts. While acknowledging that certain categories of public officers may be subject to lawful restrictions, the Court stated that such limitations must be expressly authorized by law rather than unilaterally imposed through administrative policy. The Court concluded that the Bank's condition constituted unlawful interference with the plaintiff's freedom of association and was therefore invalid and unenforceable.

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SUMMARY:

In *Visuvalingam and Others v. Liyanage and Others*, following the declaration of a State of Emergency in 1983, the Competent Authority issued orders under Emergency Regulations sealing the printing press of New Era Publications Ltd. and prohibiting publication of the newspaper *Saturday Review*. The petitioners, including the company, its directors, and shareholders, challenged the orders, alleging they were politically motivated measures intended to silence criticism of the government's handling of the ethnic conflict. They claimed violations of constitutional guarantees relating to equality, freedom of expression, and occupation. The Supreme Court dismissed the application and held that no infringement of fundamental rights had been established. The Court first held that a company, not being a citizen, could not invoke rights guaranteed under Article 14, although the individual shareholders were permitted to proceed because their personal expressive rights were intertwined with the publication. The Court further reasoned that during a valid state of emergency, the Competent Authority possessed broad discretionary powers and that judicial review was limited where the authority was subjectively satisfied that a publication threatened national security or public order. The Court found that some material published in the newspaper could incite violence and agitation among readers during a period of grave domestic unrest. In the absence of proof that the orders were irrational or mala fide, the Court concluded that the restrictions imposed under the Emergency Regulations were lawful and constitutionally permissible.

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SUMMARY:

In *Vivienne Goonewardena v. Perera and Others*, the petitioner, a prominent former Member of Parliament, participated in a peaceful protest march toward the American Embassy on International Women's Day in 1983. Police officers intercepted the procession, seized banners, and arrested the petitioner despite the absence of violence or unlawful conduct. The petitioner further alleged that she was kicked by a police officer and subjected to degrading treatment while detained at the Kollupitiya Police Station. The Supreme Court held that the arrest was unlawful and that the petitioner had been subjected to degrading treatment contrary to Article 11. The Court ordered the State to pay compensation. In its reasoning, the Court found that the protest did not amount to an unlawful assembly and that no cognizable offence was being committed at the time of arrest. Consequently, the police lacked lawful authority to arrest the petitioner without a warrant. Although the Court held that the evidence was insufficient to establish torture through physical assault, it concluded that the manner in which the petitioner was treated, including the unjustified confinement of a respected public figure in police custody, amounted to degrading treatment prohibited by the Constitution. The Court further reaffirmed that the State bears responsibility for executive and administrative acts committed by police officers acting under colour of office. The arrest and detention were therefore held to constitute violations of constitutional protections against arbitrary arrest and degrading treatment.

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SUMMARY:

In *W.K.C. Perera v. Prof. Daya Edirisinghe and Others*, the appellant was a student at the Institute of Aesthetic Studies of the University of Kelaniya specializing in Design. After completing the final Bachelor of Fine Arts examination in 1990, the University refused to award her degree on the basis that she had failed a subject termed "Advanced Drawing," which the respondents claimed was a compulsory main subject. The appellant contended that under the official Rules and Examination Criteria governing the Design stream, Advanced Drawing was not categorized as a main subject and that she had fulfilled all requirements necessary for an ordinary pass. The Supreme Court allowed the appeal, set aside the order of the Court of Appeal, and issued writs of Certiorari and Mandamus directing the University authorities to

award the degree. The Court also awarded costs to the appellant. In its reasoning, the Court held that where administrative rules are clear and unambiguous, authorities cannot rely on external examination criteria to override or alter those rules after students have completed their studies. The Court found that the official rules applicable to the Design specialization did not designate Advanced Drawing as a compulsory main subject. As public institutions funded by the State, the University and Institute were required to act fairly and consistently with their published regulations. Arbitrarily changing academic requirements after the examination process violated principles of legitimate expectation and equal protection guaranteed by the Constitution.

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SUMMARY:

The petitioners, members of a social organization, convened a seminar on adult education that included discussion of Supreme Court fundamental rights decisions. Police officers arrived, forcibly dispersed the gathering, and arrested the first petitioner, a laboratory sub-assistant. He was detained for several days without production before a Magistrate and alleged severe custodial torture, including suspension by the hands and beating with clubs, allegedly to extract a confession regarding a stolen microscope. The case raised issues under Articles 11, 13(1), 13(2), 14(1)(a), and 14(1)(b) of the Constitution concerning freedom from torture, arbitrary arrest and detention, expression, and peaceful assembly. The Supreme Court held that the assembly was peaceful and educational in nature, and therefore its dispersal by police lacked legal justification, violating freedom of expression and assembly. The Court also found that custodial injuries, supported by medical evidence, triggered a presumption against the State, shifting the burden to explain injuries sustained in custody. It further emphasized that legitimate criticism and discussion of legal systems is protected in a democratic society and does not constitute a threat to national security. The Court concluded that all alleged rights were infringed, affirming unlawful arrest, detention, and torture, and held the State responsible for constitutional violations arising from abusive executive conduct in custody.

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SUMMARY:

The petitioner and her sister were arrested and initially detained under an Emergency Regulations detention order valid for ninety days, which expired on 12 November 1989. Despite expiration of legal authority, the petitioner remained in police custody for approximately one year without being produced before a Magistrate, and only later was remanded to fiscal custody. The State failed to justify continued detention or provide evidence supporting prolonged custody, raising issues under Articles 13(1) and 13(2) of the Constitution concerning arbitrary arrest and detention and failure to produce a detainee before judicial authority within a reasonable time. The Supreme Court held that once the lawful detention order expired, any continued confinement without fresh valid authority was unconstitutional and amounted to unlawful detention. The Court emphasized that investigative convenience cannot override constitutional safeguards protecting personal liberty, and that prolonged detention without evidence of culpability is impermissible. It further noted that executive officers bear responsibility to ensure strict compliance with legal requirements governing deprivation of liberty. The Court declared the detention illegal, quashed relevant orders, and granted relief including compensation against the State and personal costs against the officer in charge. The decision reaffirmed strict judicial protection against arbitrary executive detention and reinforced the requirement of timely judicial oversight over custodial deprivation of liberty.

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SUMMARY:

The petitioner, a laboratory assistant, was arrested on suspicion of theft and detained for four days without being produced before a Magistrate. During custody, he alleged severe physical torture, including beating with a club and suspension by his hands from a beam to extract a confession. Medical reports corroborated injuries consistent with custodial assault. The case engaged Articles 11, 13(1), and 13(2) of the Constitution concerning freedom from torture, arbitrary arrest, and unlawful detention. The Supreme Court found that detention beyond the constitutionally permitted period without judicial production was illegal and that coercive interrogation methods violated absolute protections under Article 11. It emphasized that custodial torture is prohibited regardless of guilt or investigative necessity, and that confessions obtained through violence are constitutionally inadmissible in principle. The Court also held that medical evidence of unexplained injuries in custody creates a presumption against police conduct, shifting the burden to the State to provide explanation. The respondents failed to rebut this presumption. Accordingly, the Court concluded that the petitioner's fundamental rights were violated, and ordered compensation against the State and personal liability for the officer responsible, reinforcing strict constitutional limits on police powers of arrest and detention.

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SUMMARY:

The petitioner, a Customs officer, was arrested under the Prevention of Terrorism Act on suspicion of involvement in smuggling weapons and aircraft parts for an insurgent organization. He challenged the legality of his arrest and prolonged detention, arguing there was no credible or objective material linking him to unlawful activity. He was detained for several months and later remanded by a Magistrate without adequate judicial scrutiny of jurisdiction or the legality of prior executive detention. The case involved Articles 13(1) and 13(2) of the Constitution concerning freedom from arbitrary arrest and detention. The Supreme Court held that arrest under anti-terror legislation must be supported by objective grounds of suspicion and cannot rely on vague or unverified intelligence. It further held that judicial remand must be an independent judicial act, requiring consideration of legality and authority under which a person is already detained. The Court found that the remand process in this case was defective and amounted to administrative continuation of executive custody rather than genuine judicial oversight. As a result, the prolonged detention was characterized as unconstitutional executive

action. The Court held that the petitioner's fundamental rights were violated and imposed compensation on State officials responsible for the unlawful arrest and detention.

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SUMMARY:

The petitioner, a medical officer, challenged his non-appointment as ENT Surgeon at a government hospital despite possessing required qualifications and seniority. Authorities appointed another candidate and sought to transfer the petitioner to a different post, relying on later administrative circulars concerning specialist qualifications issued after establishment of the Post Graduate Institute of Medicine. The dispute concerned Article 12(1) of the Constitution on equality and equal protection of the law. The Supreme Court examined whether the classification used by the State was rational and consistent with legitimate administrative objectives. It held that while the State may prescribe qualifications for efficiency, such classifications must not be arbitrary, irrational, or retrospectively applied in a discriminatory manner. The Court found that the petitioner was similarly situated to other eligible candidates and that exclusion based on narrow interpretation of updated circulars was unjustified. It further held that public appointments must be conducted transparently and consistently with established legal standards, and deviation from relevant criteria renders administrative action invalid. The Court concluded that the petitioner's right to equality was infringed, quashed the appointment of the selected candidate, invalidated the petitioner's transfer, and directed his appointment as ENT Surgeon, reaffirming constitutional protection against arbitrary administrative discrimination in public employment.

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SUMMARY:

The petitioner, a long-standing petroleum dealer, challenged the Ceylon Petroleum Corporation's termination of his dealership agreement by a three-month notice without citing misconduct or breach. He alleged the termination was arbitrary and politically motivated, intended to replace him with another dealer. The case involved Articles 12(1) and 12(2) of the Constitution concerning equality and non-discrimination based on political opinion. The Supreme Court held that although the relationship arose from contract, the Corporation, as a state entity, is bound by public law standards requiring fairness, rationality, and non-arbitrariness. It found that the termination lacked objective justification and was inconsistent with any established policy governing dealership termination. The selective action against the petitioner, while others similarly situated were not affected, amounted to hostile discrimination under Article 12(1). However, the Court found insufficient evidence to conclusively establish discrimination based specifically on political opinion under Article 12(2). The termination was therefore declared invalid under equality principles. The Court emphasized that state corporations exercising contractual powers must still comply with constitutional guarantees against arbitrary administrative action, though no compensation was awarded due to continued business operations during proceedings.

METADATA:

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"year": 1998,
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SUMMARY:

The petitioner, a university lecturer, was detained under Emergency Regulations during a period of civil unrest based on orders issued by the Secretary to the Ministry of Defence. He challenged the legality of continued detention, arguing lack of proper evaluation of necessity and overbroad emergency powers. The case engaged Articles 13(1), 13(2), and 15(7) concerning arbitrary arrest, detention, and permissible restrictions on rights in the interest of national security. The Supreme Court held that under emergency legal frameworks, detention

decisions are based on the subjective satisfaction of the executive authority, and judicial review is limited to assessing mala fides or absence of any material basis. It further held that courts must defer to executive judgment in national security contexts unless the decision is irrational or made in bad faith. The Court found that some material existed to justify suspicion and that emergency powers validly permitted restriction of liberty. It emphasized that constitutional safeguards under Article 15(7) allow derogation of fundamental rights for national security purposes. Accordingly, the Court concluded that the detention orders were valid and that the petitioner's fundamental rights were not violated, thereby dismissing the application.

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"judgment": "NOT_VIOLATED",  
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<<<CASE_START>>>

SUMMARY:

The petitioner was a petroleum dealer whose dealership agreement was summarily terminated by the Ceylon Petroleum Corporation without prior notice or a fair hearing, and the premises were taken over. He alleged the termination was arbitrary, lacked procedural fairness, and was politically motivated following a change in government. The case engaged Articles 12(2) and 14(1)(g) concerning discrimination on political grounds and freedom to carry on lawful business. The Supreme Court held that although the relationship arose from contract, the Corporation's actions constituted executive or administrative action subject to constitutional scrutiny. It found that abrupt termination without inquiry into alleged misconduct violated principles of fairness and equal protection of the law. The Court also found indications that political considerations influenced the decision, rendering it unconstitutional under Article 12(2). It emphasized that deprivation of livelihood requires adherence to due process and cannot be carried out arbitrarily by state institutions. The Court concluded that the petitioner's fundamental rights were violated and awarded compensation and costs, reinforcing that state entities must act in accordance with constitutional norms even in contractual dealings affecting occupation and livelihood.

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<<<CASE_START>>>

SUMMARY:

The petitioner, a sixteen-year-old student, was involved in a student demonstration during a period of civil unrest and was apprehended by police while attempting to join the gathering. He alleged that he was assaulted, resulting in injuries, including a slit lip and cheek injury. The respondent officer admitted to using a single blow but justified it as necessary to effect arrest in a volatile situation. The case involved Article 11 concerning freedom from torture and cruel, inhuman, or degrading treatment. The Supreme Court assessed whether the use of force met the constitutional threshold of severity required to constitute Article 11 violation. It held that while police use of force must be reasonable and proportionate, not all instances of physical force amount to constitutional torture or degrading treatment. It found that the circumstances justified limited force in a chaotic environment and that there was no evidence of intentional humiliation or brutality. The Court concluded that although the force might have been excessive in a technical sense, it did not reach the constitutional standard of inhuman or degrading treatment. Accordingly, the application was dismissed and no violation was found.

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{  
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"case_number": "SC No 191/1988",  
"year": 1988,  
"word_count": 209,  
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<<<CASE_START>>>

SUMMARY:

The petitioner, a cadet pilot employed by Air Lanka, left Sri Lanka while his application for no-pay leave was pending, intending to seek employment abroad. Upon return, he was informed that he had vacated his post after the airline refused leave and treated his absence as abandonment of employment. He alleged unequal treatment compared to other employees and claimed violation of Article 12(1) concerning equality before the law. The Supreme Court held that the dispute primarily arose from an employment contract and administrative decision-making within a state-owned enterprise, rather than from a statutory or constitutional

breach. It reasoned that not every employment grievance involving a public corporation constitutes a fundamental rights violation, particularly where the remedy lies in labour or contract law. The Court further held that Article 12(1) does not extend to converting contractual disputes into constitutional claims absent violation of a law of general application. It also noted procedural delay issues affecting the application. Accordingly, the Court dismissed the petition, holding that it lacked jurisdiction to entertain the matter as a fundamental rights claim and finding no constitutional violation of equality rights.

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  "word_count": 211,  
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<<<CASE_START>>>

SUMMARY:

The appellant was convicted of culpable homicide not amounting to murder based on the testimony of a single eyewitness, the deceased's father, who claimed to have identified the appellant during a nighttime incident using torchlight. The prosecution failed to produce the First Information report recorded at the initial stage of investigation, which allegedly contained a materially different version of events and did not implicate the appellant. The case concerned Article 13(3) of the Constitution relating to the right to a fair trial before a competent court. The Supreme Court examined whether non-disclosure of materially relevant investigative material impaired the fairness of the criminal process. It held that the prosecution has a duty to disclose all material evidence, particularly evidence capable of contradicting its own case or supporting the defence. The suppression of the First Information deprived the defence of the opportunity to effectively challenge the reliability of the sole identifying witness, thereby undermining the integrity of cross-examination. The Court further observed that identification evidence based on a single witness under poor visibility conditions required careful scrutiny and corroboration, which was absent in this case. Given the withheld evidence and resulting evidentiary uncertainty, the Court held that a reasonable doubt existed regarding the appellant's guilt. It concluded that the conviction was unsafe and constituted a denial of the constitutional guarantee of a fair trial, and accordingly set aside the conviction and acquitted the appellant.

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{  
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  "case_name": "Wijepala v. The Attorney-General",
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"year": 1999,
"word_count": 200,
"judgment": "VIOLATED",
"articles_cited": ["13(3)"],
"legal_topic": ["fair_trial", "presumption_of_innocence"]
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<<<CASE_START>>>

SUMMARY:

The petitioner, a Police Sergeant, was interdicted following criminal charges but was later acquitted by a competent court. Despite reinstatement, the Police Department refused to grant back wages for the interdiction period, relying on administrative circulars. The petitioner alleged that similarly situated officers who had been acquitted were granted back pay, and that the differential treatment was arbitrary and discriminatory. The case involved Article 12(1) of the Constitution guaranteeing equality and equal protection of the law. The Supreme Court examined whether administrative discretion in granting financial benefits was exercised consistently and on rational grounds. It held that once an officer is acquitted, denial of back wages must be based on objective criteria applicable uniformly across similarly situated persons. The Court found that the respondents failed to provide any reasonable justification for treating the petitioner differently from other officers in comparable circumstances. It further held that reliance on internal circulars cannot override constitutional requirements of equal treatment where a benefit is consistently extended to others in the same category. The Court concluded that the action constituted hostile discrimination and violated the equal protection guarantee. Accordingly, it ordered payment of full back wages and emoluments for the interdiction period along with costs, reaffirming that administrative discretion must be exercised fairly, reasonably, and without arbitrariness.

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SUMMARY:

The petitioners, employees of the People's Bank security service, challenged their classification

into a lower grade following an internal reorganization that placed them in “Class B” despite receiving higher salaries than officers in “Class A.” They alleged that the restructuring deprived them of promotional opportunities and constituted unequal treatment under Article 12(1) of the Constitution. The Supreme Court considered whether the Bank’s restructuring amounted to “executive or administrative action” within the meaning of fundamental rights jurisdiction. It held that the impugned restructuring was part of internal commercial and managerial decision-making of a banking institution rather than an exercise of sovereign executive power. The Court reasoned that although the institution was state-sponsored, its employment and structural arrangements were governed by operational and contractual considerations. It further held that not all actions of statutory corporations qualify as state action for the purposes of Article 126 jurisdiction. Applying an aggregate assessment of governmental character, the Court concluded that the decision lacked sufficient public law character to attract fundamental rights scrutiny. As a result, the application was dismissed on the basis of lack of jurisdiction without examining merits of the alleged discrimination.

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"case_id": 63,
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<<<CASE_START>>>

SUMMARY:

The petitioner, a trade union secretary and casual worker, was involved in organizing a peaceful picketing campaign to demand better wages. Prior to the planned protest, police conducted a warrantless search of his residence, seized union materials, and arrested him. He was detained for approximately 22 hours and released without charge. The case involved Articles 13(1) and 14(1)(a), (b), and (c) of the Constitution concerning freedom from arbitrary arrest, expression, assembly, and association. The Supreme Court examined whether police action was supported by reasonable suspicion of criminal conduct. It held that participation in peaceful union activity, including possession of posters for a planned demonstration, is lawful and constitutionally protected. The Court found no objective material justifying arrest without warrant and held that the police acted on unsupported subjective suspicion. It further held that interference with union activity through arrest and seizure of materials constituted direct suppression of constitutional freedoms of expression and association. Although the detention did not exceed 24 hours and thus did not violate Article 13(2), the arrest itself was unlawful. The Court concluded that the petitioner’s fundamental rights were violated and ordered compensation against responsible officers and the State.

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{
"case_id": 64,
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"case_number": "SC APPLICATION NO. 379/93",
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"judgment": "VIOLATED",
"articles_cited": ["13(1)", "14(1)(a)", "14(1)(b)", "14(1)(c)"],
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"freedom_of_association"]
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<<<CASE_START>>>

SUMMARY:

The petitioner, a Sub-Postmistress, had her services terminated by the Cabinet of Ministers without formal charges or a hearing. She challenged the termination as arbitrary and discriminatory, alleging violations of Article 12(1) and 12(2) of the Constitution. The Supreme Court considered whether the termination amounted to a constitutional infringement of equality and non-discrimination. It held that not every wrongful administrative decision or breach of natural justice in employment matters amounts to a fundamental rights violation. The Court reasoned that employment disputes arising from master-servant relationships, even involving state entities, do not automatically engage constitutional jurisdiction unless discrimination on prohibited grounds or unequal protection in law is established. It further held that the petitioner failed to demonstrate that she was singled out based on any constitutionally prohibited ground such as race, religion, or political opinion. The Court emphasized the distinction between ordinary legal wrongs and constitutional violations, noting that Article 126 jurisdiction is limited to fundamental rights breaches. Although the Court acknowledged that procedural fairness may have been lacking, it found no constitutional infringement of equality or discrimination provisions. Accordingly, the application was dismissed for want of a fundamental rights violation.

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SUMMARY:

The petitioner was arrested by police on suspicion of involvement in a jewellery robbery and detained for several days without production before a Magistrate. During custody, he alleged severe torture including suspension by the hands, beating with a club, and application of chili powder to sensitive areas to extract a confession. Medical evidence supported the presence of injuries consistent with custodial abuse. The case concerned Article 11 of the Constitution prohibiting torture and cruel, inhuman, or degrading treatment. The Supreme Court evaluated whether the conduct of police officers met the constitutional threshold of severity. It held that custodial torture designed to extract confessions constitutes a grave violation of absolute constitutional rights. The Court placed significant weight on medical findings corroborating the petitioner's version and rejected blanket denials by the respondents. It further held that systematic physical abuse for investigative purposes is incompatible with constitutional protections and cannot be justified under any circumstances. The Court concluded that Article 11 had been violated by multiple officers involved in the detention and interrogation. It ordered compensation and costs, including personal liability for the Officer-in-Charge, reaffirming strict constitutional prohibition against custodial violence.

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{
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SUMMARY:

The petitioner, a police sub-inspector, was transferred from one station to another and alleged that the transfer was not routine administrative action but a punitive measure motivated by personal and political bias due to his involvement in investigations against political associates of a superior officer. The case concerned Article 12(1) of the Constitution on equality and equal protection of the law, alongside arguments relating to occupational rights. The Supreme Court examined whether the transfer constituted bona fide administrative action or an abuse of discretionary power. It held that while the State possesses authority to transfer officers for administrative efficiency, such power must be exercised for legitimate purposes and not as disguised punishment. The Court found that the petitioner was singled out without adherence to proper disciplinary or procedural safeguards, indicating arbitrariness and mala fide intent. It further held that equality under Article 12(1) requires public officers to be treated according to established rules and not subjected to selective adverse treatment. The transfer was found to

be an abuse of power and a violation of constitutional guarantees of equality. Accordingly, the Court quashed the transfer order and granted relief including compensation and costs.

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SUMMARY:

The petitioner, an employee of the Insurance Corporation and trade union official, participated in a poster campaign highlighting worker grievances. Following a disciplinary inquiry, he was found guilty of misconduct, resulting in suspension of increments and transfer. He challenged these actions as violations of freedom of speech and association under Article 14(1)(a) and 14(1)(d). The Supreme Court considered whether disciplinary actions of a state-sponsored corporation constituted executive or administrative action under fundamental rights jurisdiction. It held that although the entity was state-sponsored, its employment and disciplinary functions were commercial in nature and lacked sufficient governmental character. The Court declined to adopt a broad interpretation of “State” as in comparative jurisdictions, maintaining a narrower constitutional approach. It further held that disputes arising from employer-employee relationships in statutory corporations do not automatically fall within fundamental rights jurisdiction unless linked to sovereign state action. Accordingly, the Court upheld the preliminary objection and dismissed the application for lack of jurisdiction without examining substantive rights claims.

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SUMMARY:

The case concerned the arrest of a suspect under Emergency Regulations in connection with a murder investigation. Although the underlying offence was a conventional criminal act under the Penal Code, authorities invoked emergency powers to justify arrest and extended detention. The petitioner challenged the legality of arrest and detention, alleging violations of Articles 11, 13(1), and 13(2) of the Constitution. The Supreme Court examined whether emergency powers could be used to bypass ordinary criminal procedure. It held that Emergency Regulations cannot be used as a substitute for normal criminal law in investigating ordinary offences and must be applied only where there is a genuine nexus to national security or public order. The Court further held that arrest must be based on lawful procedure and that misuse of emergency powers renders detention unconstitutional from inception. It emphasized that constitutional safeguards under Article 13(1) require proper legal basis and disclosure of reasons for arrest, and Article 13(2) mandates timely judicial production. The Court concluded that the arrest and detention were illegal, as the authorities improperly used emergency law to investigate a normal crime. Accordingly, it held that the petitioner's fundamental rights were violated.

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SUMMARY:

The petitioner was arrested following a complaint by a government minister alleging involvement in a mob attack on his residence. He was detained under Emergency Regulations on suspicion of committing an offence involving public disorder. The petitioner challenged the arrest and detention as mala fide and violative of Articles 13(1), 13(2), 14(1)(g), and 14(1)(h) of the Constitution. The Supreme Court examined whether the arrest was supported by reasonable suspicion under emergency legal frameworks. It held that an arrest is valid if the officer has objective material amounting to reasonable suspicion at the time of arrest, and that a direct complaint from a responsible authority may constitute sufficient basis. The Court further held that in a state of emergency, authorities are entitled to broader discretion in restricting liberty, provided procedural requirements are substantially complied with. It found insufficient evidence to prove mala fides or political victimization and accepted the respondents' affidavits denying improper motive. The Court also held that incidental restrictions on profession and movement were justified consequences of lawful detention under emergency powers. Accordingly, it

concluded that the petitioner's fundamental rights were not violated and dismissed the application.

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"judgment": "NOT_VIOLATED",
"articles_cited": ["13(1)", "13(2)", "14(1)(g)", "14(1)(h)"],
"legal_topic": ["arrest", "detention", "occupation", "freedom_of_movement"]
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<<<CASE_START>>>

SUMMARY:

The petitioner was arrested and detained under Emergency Regulations during a period of civil unrest. Authorities justified the detention on grounds of public order and national security, asserting that preventive detention was necessary under emergency powers then in force. The petitioner challenged the arrest and prolonged detention as arbitrary and lacking an objective factual basis, alleging violations of Articles 13(1) and 13(2) of the Constitution relating to freedom from arbitrary arrest and detention. The Supreme Court adopted a deferential approach toward executive action under emergency law. It held that where the arresting authority or Secretary was subjectively satisfied that detention was required for public security, judicial interference was limited unless there was clear proof of mala fides or abuse of power. The Court further reasoned that Emergency Regulations validly enacted under the Public Security Ordinance could lawfully restrict ordinary constitutional liberties during emergencies. It emphasized that judicial review in such contexts is confined to determining whether the proper authority exercised the power, rather than examining adequacy or sufficiency of the underlying material giving rise to suspicion. The Court concluded that the detention had been carried out pursuant to lawful emergency powers and that no constitutional violation had been established. Accordingly, the application was dismissed and the detention upheld as lawful under prevailing emergency regulations.

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SUMMARY:

The petitioner's husband was arrested late at night by an Assistant Superintendent of Police acting under Emergency Regulations. The arresting officer acted solely on instructions from a superior officer and possessed no personal knowledge or factual basis regarding the alleged offence. The detainee was not informed of the reasons for arrest. A Habeas Corpus application challenged the legality of the arrest and detention, raising principles now reflected in Articles 13(1) and 13(2) of the Constitution concerning arbitrary arrest and detention. The Court held that the legality of an arrest without warrant depends on the arresting officer personally possessing reasonable grounds for suspicion at the time of arrest. It reasoned that reasonable suspicion is a condition precedent to lawful exercise of arrest powers and cannot be delegated or mechanically adopted from a superior's instructions. The Court further emphasized that a person deprived of liberty has the right to know the grounds of arrest, and an officer unaware of those grounds cannot lawfully communicate them. Since the arresting officer lacked personal suspicion and failed to inform the detainee of the basis for arrest, the detention was held unlawful. Accordingly, the Court allowed the application and declared the arrest and subsequent detention unauthorized in law.

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{
"case_id": 72,
"case_name": "Gunasekera v. De Fonseka",
"case_number": "SC APPLICATION NO. 411/71",
"year": 1972,
"word_count": 205,
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SUMMARY:

The petitioner, a trade union secretary and casual worker, organized a peaceful picketing campaign seeking improved wages and labour conditions. Prior to the protest, police officers searched his residence without warrant, seized trade union posters, and arrested him. He was detained for approximately twenty-two hours and released without charge. The case involved Articles 13(1) and 14(1)(a), (b), and (c) of the Constitution concerning arbitrary arrest, freedom of expression, peaceful assembly, and association. The Supreme Court examined whether there existed any lawful basis or reasonable suspicion justifying arrest without warrant. It held that peaceful picketing and possession of union posters are lawful activities protected under the

Constitution. The Court found that the respondents failed to identify any cognizable offence or objective material linking the petitioner to criminal conduct. It further held that the seizure of posters and arrest of a union leader immediately before a planned demonstration constituted deliberate suppression of trade union activity and protected democratic freedoms. The Court emphasized that police powers cannot be exercised on subjective suspicion or personal whim, but require objective and reasonable grounds. Although detention did not exceed twenty-four hours and therefore did not violate Article 13(2), the arrest itself and interference with expression, assembly, and association were unconstitutional. The Court accordingly granted relief against the officers and the State.

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{  
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  "case_name": "Wijeratne v. Vijitha Perera and Others",  
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  "year": 1993,  
  "word_count": 217,  
  "judgment": "VIOLATED",  
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<<<CASE_START>>>

SUMMARY:

The respondents, editor and publisher of a national newspaper, published a news item reproducing a parliamentary notice of motion containing allegations against two Supreme Court judges, including suggestions that legal pleadings had been prepared within a judge's chambers. Contempt proceedings were initiated on the basis that publication of such allegations undermined public confidence in the judiciary. The matter engaged principles connected to Article 14(1)(a) concerning freedom of speech and expression. The Supreme Court held that the publication tended to scandalize the court and damage the integrity and authority of the judicial institution. It reasoned that although the material originated from parliamentary proceedings, republication in a newspaper for wider public dissemination was not protected by absolute privilege. The Court balanced the competing interests of press freedom and preservation of confidence in the administration of justice, concluding that public confidence in the judiciary constituted a higher constitutional value in the circumstances. It further emphasized that the press bears a duty of restraint where publication may irreparably damage faith in judicial independence. Although contempt was established, the Court exercised restraint in punishment by discharging the respondents after confirmation of the Rule without imposing further sanction. The Court thereby affirmed limits on expressive freedom where publication threatens the administration of justice and institutional integrity of courts.

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SUMMARY:

Following the 1982 Presidential Election, the Competent Authority acting under Emergency Regulations ordered the sealing of the petitioner's printing press, which was used to print an opposition newspaper. The petitioner alleged that the closure was politically motivated, mala fide, and intended to silence dissenting opinion. The case involved Articles 12(1) and 12(2) concerning equality and discrimination based on political opinion. The Supreme Court examined whether the executive action taken under emergency powers was arbitrary or irrational. It held that under Article 15(7), constitutional rights may be restricted through Emergency Regulations in the interests of national security and public order. The Court applied a reasonableness standard and found that the Competent Authority's decision could not be characterized as capricious or one that no reasonable official would make in the prevailing circumstances. It further held that allegations of political vengeance were unsupported by sufficient evidence and accepted that the authority acted in good faith to prevent possible unrest. The Court emphasized judicial restraint in reviewing executive decisions during emergencies, particularly where national security considerations arise. Accordingly, it concluded that the sealing of the press did not violate the petitioner's constitutional rights and dismissed the application.

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"case_number": "SC Application No. 127/1982",
"year": 1982,
"word_count": 203,
"judgment": "NOT_VIOLATED",
"articles_cited": ["12(1)", "12(2)", "15(7)"],
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SUMMARY:

The petitioner, an employee of Robinson Club Bentota Ltd., was suspended following allegations of fraud by management officials. The company operated as a joint venture involving Sri Lanka Insurance Corporation and a foreign corporation. A preliminary objection was raised that the suspension constituted a private employment matter and did not amount to executive or administrative action capable of founding a fundamental rights claim under Article 126. The case involved Article 12(1) concerning equality before the law. The Supreme Court examined the relationship between the State and the corporate entities involved. It held that Sri Lanka Insurance Corporation was effectively a State agency because its shares were held by the Treasury and its directors were state-appointed. The Court further reasoned that the second respondent company functioned as an agent of the State entity, and disciplinary actions carried out through that corporate structure retained the character of executive or administrative action. Distinguishing earlier restrictive decisions concerning statutory corporations, the Court expanded the scope of constitutional jurisdiction where effective state control existed over the entity concerned. Accordingly, the preliminary objection was overruled and the matter was permitted to proceed on its merits within the Supreme Court's fundamental rights jurisdiction.

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SUMMARY:

The petitioner applied to purchase agricultural land from the Land Reform Commission after obtaining the required recommendation from a Member of Parliament. Instead of considering the application in accordance with statutory requirements, the Commission alienated a larger portion of the same land to another individual without following mandatory procedures prescribed under the Land Reform Law. The petitioner challenged the transfer as arbitrary, preferential, and violative of Article 12(1) of the Constitution guaranteeing equality and equal protection of the law. The Supreme Court held that the Land Reform Commission constituted an instrumentality of the State because it performed governmental functions, received public funding, and remained under ministerial control. Accordingly, its actions were subject to constitutional scrutiny under Article 126. The Court found that the alienation of land in disregard of mandatory statutory requirements amounted to unequal treatment and arbitrary exercise of public power. It reasoned that equal protection requires state agencies to follow prescribed legal

procedures consistently and not act on favoritism or whim. The Court further clarified that constitutional procedural time limits governing determinations are directory rather than mandatory, ensuring substantive justice is not defeated by technical delay. The Court concluded that the petitioner's right to equality was violated and declared the impugned deed of transfer null and void.

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SUMMARY:

The petitioner, a Senior Superintendent of Police, was denied promotion to the rank of Deputy Inspector General despite greater seniority and a comparatively cleaner disciplinary record than several officers who were promoted. The authorities relied on evaluations by a Selection Board that applied subjective assessment criteria. The petitioner alleged that the promotion process was arbitrary and inconsistent with established standards governing seniority and merit, thereby violating Article 12(1) of the Constitution. The Supreme Court examined whether the selection procedure had been administered fairly and rationally. It held that while the State possesses discretion to formulate and apply promotion schemes, such discretion must be exercised transparently, consistently, and on objective grounds. The Court found that subjective scoring had been used to override objective seniority without adequate justification or documented reasoning. It further held that seniority in public service constitutes a significant factor that cannot be disregarded absent clear evidence of unsuitability or exceptional merit in junior candidates. The failure of the Selection Board to explain the petitioner's exclusion rendered the process arbitrary and discriminatory. The Court concluded that the petitioner's right to equality and equal protection of the law had been infringed. Accordingly, it directed the authorities to promote the petitioner with retrospective effect and awarded compensation.

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SUMMARY:

Two Members of Parliament signed a notice supporting an impeachment resolution against the President and later withdrew their signatures, claiming they had been misled regarding the document's contents. Their political party initiated disciplinary proceedings and expelled them for conduct allegedly contrary to party rules. The petitioners challenged the expulsions, invoking principles associated with Article 10 concerning freedom of thought and conscience and Article 14(1)(a) relating to freedom of expression. The Supreme Court examined whether the expulsions violated principles of natural justice or constitutional freedoms. It held that political parties in a parliamentary system possess authority to discipline members in order to preserve organizational coherence and political stability. The Court found that the petitioners' conduct in signing a document without proper knowledge of its contents justified disciplinary action under party rules. It further held that natural justice requirements had been satisfied because the petitioners were provided opportunities to submit written explanations and observations, and that an oral hearing was not indispensable in the circumstances. The Court emphasized that constitutional freedoms do not exempt party members from accountability under internal party constitutions. Accordingly, the expulsions were upheld as lawful and valid, and the applications were dismissed.

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SUMMARY:

The petitioner was appointed as an Inquirer into Sudden Deaths for a fixed three-year term. Following a change in government, the Secretary to the Ministry of Justice summarily cancelled the appointment and appointed another individual to the position without providing reasons or affording the petitioner a hearing. The replacement appointee had previously made allegations against the petitioner that remained unsubstantiated. The petitioner challenged the removal as

arbitrary and violative of Article 12(1) of the Constitution. The Supreme Court held that powers relating to appointment and removal from public office must be exercised in accordance with fairness, justice, and established legal principles. It reasoned that even where a public authority possesses discretionary power to remove an appointee, such authority cannot be exercised arbitrarily or on unverified allegations without observance of procedural fairness. The Court emphasized that public powers are held in trust and must be exercised for proper purposes consistent with the rule of law. It further held that cancellation of a public appointment without notice, hearing, or stated reasons constituted arbitrary executive action denying equal protection of the law. The Court concluded that the petitioner's constitutional right to equality had been violated and declared both the cancellation and subsequent appointment null and void, while awarding compensation and costs.

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<<<CASE_START>>>

SUMMARY:

The petitioner organized a meeting concerning the impact of Emergency Regulations on education and distributed posters and leaflets publicizing the event. Police officers arrested the petitioner and several others without a warrant under Emergency Regulations, seized the printed material, and detained them on allegations that the publications were subversive and intended to incite disaffection against the government. The petitioner alleged violations of Articles 13(1), 13(2), 14(1)(a), and 14(1)(b) of the Constitution. The respondents argued that the actions were lawful under Emergency Regulations enacted in the interests of national security and public order. The Supreme Court held that the petitioner's fundamental rights had been infringed and declared the impugned regulations unconstitutional and ultra vires. The Court reasoned that any restriction on constitutional freedoms must be specific and based on objective standards rather than granting naked and unfettered discretion to executive officers. The Court emphasized that criticism of government policy is an essential feature of democratic society and cannot automatically be equated with subversion or threats to national security. The Court further held that arrests under Emergency Regulations still require a reasonable and objective basis to believe an offense has been committed, and arbitrary executive action violates the rule of law.

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"articles_cited": ["13(1)", "13(2)", "14(1)(a)", "14(1)(b)"],
"legal_topic": ["arrest", "unlawful_arrest", "detention", "unlawful_detention", "personal_liberty",
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SUMMARY:

The petitioner, a suspect in a murder investigation, was arrested at his residence on June 13, 1984, and taken to the Criminal Investigation Department where he remained in custody until June 18 before being produced before a Magistrate. He alleged that he had been unlawfully arrested, assaulted, harassed, and denied access to legal representation. The respondents disputed the date of arrest and claimed he had only been arrested on June 16. The petitioner invoked Articles 11, 13(1), 13(2), 13(3), and 14(1)(g) of the Constitution. The Supreme Court accepted the petitioner's evidence regarding the date of arrest and concluded that his detention beyond the statutory twenty-four-hour period without judicial authorization violated Article 13(2). However, the Court held that the initial arrest was lawful because it was supported by reasonable suspicion under Article 13(1). The allegations of torture and cruel treatment were rejected due to insufficient medical evidence corroborating the claims. The Court further held that the constitutional protection relating to legal representation under Article 13(3) primarily applies to the trial stage and that any police interference with counsel during investigation was a matter for the Magistrate. Compensation was awarded against the responsible respondents for the unlawful detention.

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"articles_cited": ["11", "13(1)", "13(2)", "13(3)", "14(1)(g)"],
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SUMMARY:

The petitioners challenged the President's appointment of the first respondent, then serving as Attorney-General, as Chief Justice. They alleged that the appointment was improper because disciplinary inquiries concerning his conduct as an attorney-at-law were pending and argued that the appointment undermined judicial independence and violated their rights under Articles 12(1), 14(1)(a), and 14(1)(g) of the Constitution. The respondents raised preliminary objections asserting that the Court lacked jurisdiction to review a presidential appointment protected by constitutional immunity. The Supreme Court refused leave to proceed and dismissed the applications without examining the merits. The Court reasoned that Article 35 grants immunity to the President from court proceedings concerning acts performed in an official capacity and that the challenge constituted an indirect attempt to question an official presidential act. The Court further held that the Constitution establishes an exclusive mechanism under Article 107 for the removal of a Chief Justice through Parliament, and the Court could not employ its fundamental rights jurisdiction to bypass that constitutional process. Emphasizing the separation of powers, the Court stated that it could not interfere with presidential powers of appointment or legislative powers of removal unless expressly authorized by the Constitution. Accordingly, the Court held that no infringement of fundamental rights had been established.

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SUMMARY:

The petitioners challenged the President's appointment of the first respondent, a law academic, as a Judge of the Supreme Court. They alleged that the appointment was arbitrary because the appointee had neither served as a judge nor practiced as an attorney-at-law and that more qualified career judges had been overlooked without consultation with the Chief Justice. The petitioners relied on Articles 12(1), 14(1)(a), and 14(1)(g) of the Constitution, contending that the appointment violated equality and constitutional standards governing judicial appointments. The Supreme Court refused leave to proceed and held that the petitioners failed to establish a prima

facie infringement of fundamental rights. The Court reasoned that Article 107 grants the President sole discretion to appoint judges of the Supreme Court and that the Constitution does not expressly prescribe mandatory professional qualifications or consultation requirements. Although the Court acknowledged that presidential discretion is not entirely untrammelled, it held that the petitioners failed to provide cogent evidence proving the existence of a binding constitutional convention requiring consultation with the Chief Justice. Mere assertions and unproven beliefs were insufficient to override constitutional authority vested in the President. The Court emphasized the importance of cooperation between the Executive and Judiciary but concluded that the appointment remained within lawful constitutional limits and therefore did not violate the petitioners' fundamental rights.

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"judgment": "NOT_VIOLATED",
"articles_cited": ["12(1)", "14(1)(a)", "14(1)(g)"],
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<<<CASE_START>>>

SUMMARY:

The petitioners were employees of the Co-operative Wholesale Establishment who had historically received annual extensions of service from the age of fifty-five to sixty pursuant to a long-standing administrative policy and a 1995 circular, provided their conduct and health remained satisfactory. In June 2002 the Board abruptly issued a new circular terminating the practice and compulsorily retiring the petitioners at the age of fifty-five without prior notice or an opportunity to make representations. The petitioners alleged that the sudden reversal violated Article 12(1) of the Constitution. The respondents argued that the Board possessed authority to alter employment policy and discontinue extensions of service. The Supreme Court held that the petitioners' right to equality and equal protection of the law had been infringed. The Court reasoned that the established policy and continuous administrative practice created a legitimate expectation that service extensions would continue subject to the stated conditions. Although the Board retained power to revise policy, principles of procedural fairness and natural justice required that affected employees receive notice and an opportunity to be heard before a significant benefit was withdrawn. The Court found that the abrupt implementation of the new policy without transitional measures or rational consideration of existing expectations amounted to arbitrary and discriminatory treatment. Compensation rather than reinstatement was awarded because the petitioners had remained out of employment for a substantial period.

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"judgment": "VIOLATED",
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"legal_topic": ["equality", "equal_protection", "discrimination_employment", "occupation",
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<<<CASE_START>>>

SUMMARY:

Following a fatal motor accident involving a jeep belonging to a businessman, the first and second petitioners, who were carpenters employed at the businessman's residence, were arrested by police officers investigating the incident. They alleged that they were assaulted and threatened by the third respondent in an attempt to coerce them into falsely implicating the businessman's son as the driver responsible for the accident. The third, fourth, and fifth petitioners, who later attended court to see the first two petitioners, were also arrested and detained for several hours without explanation or suspicion of criminal conduct. The petitioners invoked Articles 11, 13(1), and 13(2) of the Constitution. The Supreme Court held that the petitioners' fundamental rights had been violated and ordered compensation against the State and the responsible officers personally. The Court reasoned that the use of physical assault and threats to compel witnesses to provide a predetermined statement constituted cruel, inhuman, and degrading treatment prohibited by Article 11 and represented a grave abuse of police power. The Court further held that arresting and detaining associates of witnesses without reasonable suspicion of a cognizable offense amounted to arbitrary arrest and detention under Article 13. The Court emphasized that overzealous efforts to secure convictions cannot justify disregard for constitutional safeguards and imposed personal liability to deter future misconduct.

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"judgment": "VIOLATED",
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"legal_topic": ["torture", "cruel_treatment", "inhuman_treatment", "degrading_treatment",
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SUMMARY:

The petitioners held minor leases over a land known as “Gallewatta,” which had originally vested in the Land Reform Commission before being transferred to the State. Following the transfer, the first and second respondents, acting under the Land Grant (Special Provisions) Law, sought to redistribute the land in small allotments. The petitioners alleged that they were being unfairly evicted and discriminated against in comparison to leaseholders of two nearby lands that remained vested in the Land Reform Commission. They further alleged that the respondents acted under political pressure exerted by a Member of Parliament. The petitioners relied on Articles 12(1) and 12(2) of the Constitution. The Supreme Court dismissed the application and held that no infringement of fundamental rights had been established. The Court reasoned that once “Gallewatta” became State land, it entered a distinct legal category different from lands that remained under the Land Reform Commission, and therefore the petitioners were not similarly situated to the other leaseholders. The Court further held that any alleged discrimination arose at the stage when the land was originally vested in the State, but the petitioners had failed to challenge that order within the prescribed time. The Court also found no evidence that the officials had acted under political influence and concluded that they had exercised their functions independently.

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SUMMARY:

Following the 1982 Presidential Election and during the period preceding the Referendum, the first respondent, acting as Competent Authority under Emergency Regulations, ordered the sealing of the “Pavidi Handa” printing press used by members of the clergy to print pamphlets opposing the extension of Parliament’s term. The petitioners alleged that the sealing order was issued mala fide to suppress political dissent and interfere with their campaign activities. They invoked Articles 14(1)(a), 14(1)(g), and 12(1) of the Constitution. The respondents argued that the order was lawfully made under Emergency Regulations in the interests of national security and public order. The Supreme Court dismissed the application and held that no infringement of

fundamental rights had been established in the context of the prevailing emergency. The Court reasoned that Article 15(7) permits restrictions on constitutional rights through laws enacted for national security and public order, including Emergency Regulations. The majority held that where the Competent Authority is satisfied that restrictive action is necessary, the Court should not substitute its own judgment for executive assessment during periods of national crisis provided there exists material supporting the suspicion. One judge further observed that judicial review of executive actions taken under Emergency Regulations is significantly limited because courts lack the institutional machinery to reassess urgent security decisions. The Court therefore upheld the sealing order as a lawful emergency measure.

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SUMMARY:

The State Pharmaceutical Corporation invited worldwide tenders for the supply of Rubella vaccines. The petitioner company submitted the only responsive bid before the deadline and satisfied the mandatory requirement of registration with the Cosmetic Devices and Drugs Authority. Several competing bidders offered lower prices but failed to meet the registration requirement at the relevant time. Although the Cabinet Appointed Tender Board initially decided to award the contract to the petitioner, it later reversed that decision and permitted a non-responsive bidder to submit registration details after the closing date. The petitioners alleged that the altered decision-making process violated Article 12(1) of the Constitution by treating bidders unequally and arbitrarily. The Supreme Court held that the impugned decisions violated the petitioner's right to equality and equal protection of the law. The Court reasoned that public tender procedures require fairness, transparency, and uniform application of mandatory conditions to all participants. A responsive offer must comply with all essential tender requirements at the time the bid is submitted, and permitting non-compliant bidders to cure defects after the deadline while disregarding the only compliant bidder constituted arbitrary discrimination. The Court further emphasized that public interest extends beyond securing the lowest price and includes maintaining integrity and predictability in public procurement processes so that reliable suppliers are not discouraged by unfair treatment. The impugned decisions were quashed and compensation was awarded.

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SUMMARY:

The petitioner filed a fundamental rights application on behalf of her husband alleging that he was being unlawfully held in police custody by a special police unit conducting investigations into a criminal offense. The husband had been taken to Ratnapura during the investigation, and while the police asserted that a formal arrest occurred only at a later stage, the petitioner argued that the earlier period of informal restraint amounted to arbitrary arrest and detention in violation of Articles 13(1) and 13(2) of the Constitution. The respondents contended that the husband had voluntarily remained with the police during a sensitive inquiry and that no unlawful detention had taken place. The Supreme Court dismissed the application on the basis that the petitioner lacked locus standi under Article 126. The Court reasoned that a fundamental rights application must be instituted either by the person whose rights were allegedly infringed or by an Attorney-at-Law acting on that person's behalf, and that a spouse or family member was not constitutionally authorized to invoke the Court's jurisdiction independently. The Court further observed that remaining with police out of fear, protection, or cooperation during an investigation does not automatically constitute arrest or detention where formal criminal proceedings have not commenced. Emphasizing strict construction of constitutional provisions governing extraordinary jurisdiction, the Court concluded that no actionable infringement had been established.

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SUMMARY:

The first petitioner applied for the admission of her daughter to Grade 1 at Dharmasoka College, Ambalangoda, under the close proximity category for the year 2021. The family owned a single land containing two houses, including an older residence identified by assessment number 78/E and a newly constructed house. School authorities refused admission on the basis that the family allegedly resided in the new house rather than the old residence and calculated the relevant distance accordingly to disqualify the child. The petitioners alleged that the refusal violated Article 12(1) of the Constitution. The Supreme Court held that the petitioners' fundamental rights had been infringed and directed the school authorities to admit the child immediately. The Court reasoned that ownership and occupation of the same land by the family rendered it irrelevant which particular structure within the compound was occupied, especially where no unrelated occupants resided there. The Court held that the authorities acted arbitrarily by embarking on an unnecessary inquiry into the exact location of residency despite the submission of electricity bills, water bills, and electoral documents supporting the application. The Court further held that subsequent documents obtained after the interview did not alter the illegality of the original refusal. Emphasizing administrative fairness and reasonableness, the Court concluded that state authorities cannot rely on technical distinctions to deny educational opportunities where applicants satisfy the prescribed criteria.

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SUMMARY:

Arumadura Lawrence Romello Duminda Silva was convicted of the murder of Bharatha Lakshman Premachandra and sentenced to death, and the conviction was later affirmed by a five-judge bench of the Supreme Court. In June 2021 the President granted Silva a pardon under Article 34(1) of the Constitution. The petitioners challenged the pardon, alleging that it was arbitrary, lacked transparency, and failed to comply with mandatory constitutional procedures. They contended that the exercise of the pardon power violated Article 12(1) of the Constitution by placing a politically connected individual above the ordinary operation of the law. The Supreme Court held that the petitioners' fundamental rights had been infringed and declared the pardon null and void. The Court quashed the presidential decision and directed the

Commissioner General of Prisons to implement the original sentence imposed by the criminal courts. The Court reasoned that the constitutional power to grant pardons is a public trust rather than an unrestricted personal prerogative and must therefore be exercised reasonably, transparently, and in the public interest. The Court found that the President had disregarded adverse recommendations and mandatory procedural safeguards requiring reports from the trial judges and advice from the Attorney General. Granting a pardon without any rational basis or new circumstances was held to violate the principle of equal protection of the law and undermine public confidence in the administration of justice.

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SUMMARY:

The petitioners challenged Cabinet decisions granting the outgoing President extensive retirement benefits, including a valuable land near Parliament, a residence in Colombo 7, and substantial staff and facilities. They alleged that these benefits exceeded the scope of the President's Entitlement Act No. 4 of 1986 and violated Article 12(1) of the Constitution. The respondents maintained that the allocations were lawfully made pursuant to statutory authority governing presidential entitlements. The Supreme Court held that the impugned decisions were arbitrary and infringed the petitioners' right to equality and equal protection of the law. The Court reasoned that executive power constitutes a public trust exercised for the benefit of the people and cannot lawfully be used to confer excessive personal benefits upon public officials. The Court further held that the President's Entitlement Act creates exceptional privileges unavailable to ordinary public officers and must therefore be interpreted strictly. The allocations of land, residence, and facilities were found to exceed the scope of "appropriate" benefits contemplated by the legislation. The Court also emphasized the principle that no person should adjudicate upon matters involving personal interest, noting that the first respondent presided over Cabinet meetings approving her own benefits. Concluding that the decisions represented an unlawful abuse of executive authority and public resources, the Court awarded costs against both the State and the first respondent.

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SUMMARY:

The petitioner, a District Medical Officer attached to the District Hospital in Kandana, was summarily transferred to the Medical Support Division in Colombo following an incident in which he was allegedly obstructed by a group. The transfer was described as being necessitated by service exigencies, and approval from the Public Service Commission was sought retrospectively. As the petitioner was not formally released from his previous station, he remained without salary for nearly four months. The petitioner alleged that the transfer process and related administrative actions violated Article 12(1) of the Constitution. The Supreme Court held that the petitioner's fundamental rights had been infringed. The Court reasoned that the authorities failed to provide adequate details regarding the alleged service exigencies or accusations against the petitioner, thereby preventing him from effectively exercising his right to appeal to the Public Service Commission. The Court further held that the failure to comply with Rule 224 of the Public Service Commission Rules directly caused the non-payment of salary and imposed unnecessary hardship upon the petitioner. Although the Ministry may have possessed concerns regarding the petitioner's conduct, the Court concluded that transferring a public officer without transparency, procedural compliance, or an opportunity to respond constituted arbitrary administrative action inconsistent with equality and equal protection of the law. Compensation and costs were awarded against the responsible respondents and the State.

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"word_count": 227,
"judgment": "VIOLATED",
"articles_cited": ["12(1)"],
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<<<CASE_START>>>

SUMMARY:

The first petitioner, a police constable, alleged that his superior officers fabricated allegations of heroin consumption against him because he had refused to release suspected drug traffickers. After being accused at the police station, the petitioner fled fearing a conspiracy. The police subsequently arrested and detained his wife and their nine-month-old child for several hours in an attempt to pressure him into surrendering and giving statements favorable to the respondents. The petitioner later surrendered and obtained negative urine, Judicial Medical Officer, and Government Analyst reports disproving the allegations. Despite this, he was interdicted and faced a second allegedly malicious case accusing him of threatening witnesses after he indicated his intention to seek legal remedies. The petitioners invoked Articles 12(1), 13(1), and 14(1)(g) of the Constitution. The Supreme Court held that the actions of the respondents were arbitrary, malicious, and constituted an abuse of executive power. The Court reasoned that the medical and analyst reports demonstrated that the drug allegations were fabricated to satisfy personal animosity. The Court further held that arresting and detaining family members, including an infant, in order to pressure a suspect was wholly unlawful and incompatible with constitutional protections against arbitrary arrest. Interdicting the petitioner before lawful inquiry or prosecution was viewed as a calculated attempt to destroy his career and therefore violated equality and occupational rights.

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  "case_number": "SC/FR Application No. 136/2022",
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  "judgment": "VIOLATED",
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<<<CASE_START>>>

SUMMARY:

The first petitioner sought admission for his son to Grade 1 at Maliyadeva Adarsha Maha Vidyalaya, Kurunegala, for the year 2021 under the Old Boys category. Although the petitioner possessed sufficient marks and qualifications under the relevant National School Admission Circular, the school authorities rejected the application based on alleged inconsistencies relating to residency documents and the required period of residence within the school boundary. The petitioners contended that the refusal violated Article 12(1) of the Constitution by introducing arbitrary barriers to admission. The Supreme Court held that the rejection of admission was arbitrary and infringed the petitioners' right to equality and equal protection of the law. The Court reasoned that once an applicant satisfies the objective criteria and point requirements

prescribed by the circular, school authorities cannot impose additional subjective conditions to deny admission. The Court found that the authorities had adopted an excessively restrictive interpretation of residency requirements and had improperly relied on minor clerical discrepancies despite the petitioner having produced valid documentation proving residence and proximity. Emphasizing the importance of fairness and reasonableness in administrative decision-making, the Court held that denying a child access to education through rigid and flawed administrative reasoning amounted to unlawful discrimination. The Court directed the immediate admission of the child and awarded compensation and costs to the petitioners.

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"word_count": 226,
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<<<CASE_START>>>

SUMMARY:

The petitioner, a Sub-Inspector of Police, was denied promotion to the rank of Inspector in February 2010 because the Inspector General of Police relied upon a pending disciplinary inquiry arising from a 2004 incident. The petitioner contended that the inquiry had remained unresolved for an unreasonable period and that several other officers facing similar or more serious disciplinary proceedings had nevertheless been promoted during the same period. He alleged that the decision violated Article 12(1) of the Constitution by subjecting him to arbitrary and discriminatory treatment. The Supreme Court held that the refusal to promote the petitioner was irrational and infringed his right to equality and equal protection of the law. The Court reasoned that the police department lacked a consistent policy governing promotions where disciplinary proceedings remained pending. By promoting certain officers while withholding the petitioner's advancement on the basis of a comparatively minor and long-delayed inquiry, the respondents acted unequally and arbitrarily. The Court further observed that the inquiry had remained unresolved for nearly six years and that denying promotion indefinitely pending completion of an administrative process constituted unreasonable treatment. The respondents failed to provide any rational explanation for treating the petitioner differently from similarly situated officers. The Court therefore directed that the petitioner's promotion be backdated together with all related salary increments, seniority, and entitlements.

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"judgment": "VIOLATED",  
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<<<CASE_START>>>

SUMMARY:

The petitioner alleged that he was arbitrarily arrested, assaulted, and detained by officers attached to the Payagala Police in May 2013. According to the respondents and independent neighbors, the petitioner had a history of disputes and violent conduct and on the relevant day obstructed an ambulance summoned for his ill father, behaved in a disorderly manner, and assaulted police officers attempting to mediate the situation. The petitioner was thereafter arrested and produced before a Magistrate. He alleged violations of Articles 12(1), 13(1), and 13(2) of the Constitution. The Supreme Court dismissed the application and held that the petitioner failed to establish any infringement of fundamental rights. The Court reasoned that the arrest was lawful because the petitioner was committing cognizable offenses, including obstructing public officers and interfering with medical assistance to his father. The force used by police officers was considered a necessary response to the petitioner's violent resistance rather than arbitrary violence. The Court attached substantial weight to affidavits provided by independent neighbors which corroborated the police account and contradicted the petitioner's allegations. The Court further referred to Article 28(e) of the Constitution, emphasizing that constitutional rights coexist with duties to respect the rights and freedoms of others. The petitioner's conduct toward his neighbors and father undermined his claim to constitutional protection against the police intervention.

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<<<CASE_START>>>

SUMMARY:

The petitioner visited the BMICH on March 1, 2014, to purchase books and while searching for his motorbike in the parking area was confronted by police officers identified as the first to third respondents. Despite identifying himself as a medical student and producing identification documents, the officers verbally abused him, accused him of theft, and physically assaulted him. He was slapped, kicked, dragged by his hair, and suffered injuries including a perforated eardrum together with psychological trauma. The petitioner alleged violations of Articles 11 and 12(1) of the Constitution. The Supreme Court held that the respondents had infringed the petitioner's fundamental rights and ordered personal compensation against each officer. The Court reasoned that Article 11 protects individuals not only from physical injury but also from psychological suffering and degrading treatment. Public humiliation, abusive language, and unjustified violence against a cooperative citizen constituted degrading and inhuman treatment prohibited by the Constitution. The Court further held that the medical evidence provided by the Judicial Medical Officer strongly corroborated the petitioner's account and rendered the respondents' explanation that the injuries resulted from a fall implausible. Emphasizing that police officers are required to exercise restraint and lawful authority, the Court concluded that the assault represented an arbitrary abuse of power incompatible with equal protection of the law and constitutional guarantees against cruel treatment.

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  "word_count": 227,
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<<<CASE_END>>>

<<<CASE_START>>>

SUMMARY:

The petitioner, a Divisional Officer attached to the Department of Agrarian Development, applied for appointment to the post of Assistant Commissioner in 2013. Despite possessing substantial experience and qualifications, he was not selected following a structured interview process. The petitioner later discovered that he had been denied marks for his postgraduate diploma and years of service, while successful candidates were awarded marks inconsistently and on criteria not contained in the applicable gazette notification. The petitioner alleged that the recruitment process violated Article 12(1) of the Constitution by subjecting him to arbitrary and unequal treatment. The Supreme Court held that the petitioner's right to equality and equal protection of the law had been infringed. The Court reasoned that the interview board failed to comply with

the objective marking criteria established by the recruitment scheme and thereby undermined the integrity of the structured interview process. The petitioner was improperly denied marks for qualifications and experience that clearly satisfied the published requirements, while other candidates benefited from inconsistent assessment standards. The Court emphasized that the State, as a model employer, is required to conduct public recruitment transparently, fairly, and according to predetermined rules. Selecting candidates through a distorted and subjective marking system while excluding a more qualified applicant constituted manifestly arbitrary administrative action. The Court therefore ordered the petitioner's appointment together with back wages and seniority benefits retrospectively from the date of the original appointments.

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  "word_count": 227,  
  "judgment": "VIOLATED",  
  "articles_cited": ["12(1)"],  
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  "arbitrary_state_interference"]  
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<<<CASE_START>>>

SUMMARY:

The petitioner, a senior public officer and President of the Surveyors' Institute, challenged his compulsory transfer and subsequent retirement "in the public interest" following a speech criticising proposed amendments to the Surveyors' Ordinance. He alleged that these actions were not based on incompetence but were mala fide retaliatory measures by the Minister due to his exercise of free expression. The dispute concerned alleged violations of Article 12(1) (equality and equal protection of the law) and Article 14(1)(g) (freedom to engage in a lawful occupation). The respondents argued that the retirement was an administrative decision made within the lawful framework of the Establishments Code and within executive discretion. The Supreme Court dismissed the application, holding that the petitioner failed to prove fundamental rights violations. The Court emphasized that allegations of arbitrariness or discrimination require strict proof of mala fides or unequal treatment with supporting facts. It held that executive discretion to retire an officer in the public interest is valid unless clear evidence of improper motive is established. The Court further observed that mere criticism of policy followed by adverse administrative action does not automatically establish constitutional infringement. It reaffirmed that courts will not interfere with subjective satisfaction of executive authorities in public interest decisions unless illegality or bad faith is clearly demonstrated. Accordingly, the petitioner's claims were rejected and no violation was found.

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"judgment": "NOT_VIOLATED",
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"legal_topic": ["equality", "freedom_of_expression", "occupation"]
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<<<CASE_START>>>

SUMMARY:

The petitioner was arrested at a roadblock while travelling from Jaffna to Kandy after police discovered a large sum of cash in his possession, which he explained was intended for a land transaction and supported with documentation. Despite this explanation, he was detained at Vavuniya Police Station, and a B-report later falsely stated that he refused to provide a statement. The petitioner alleged violations of Article 13(1) relating to freedom from arbitrary arrest. The respondents failed to establish reasonable suspicion of any cognizable offence, relying solely on possession of cash without considering the petitioner's explanation and supporting documents. The Supreme Court found that mere possession of money, in the absence of incriminating material, did not justify arrest under criminal procedure law. The Court further held that the B-report was misleading and contradicted by evidence, demonstrating procedural irregularity and lack of lawful basis for producing the petitioner before a Magistrate. It concluded that the arrest was not carried out in accordance with procedure established by law and therefore constituted arbitrary deprivation of liberty. The Court held that the petitioner's fundamental rights were violated and ordered compensation against the responsible police officers for the unlawful arrest and detention.

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"legal_topic": ["arrest", "unlawful_arrest", "detention", "personal_liberty"]
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<<<CASE_START>>>

SUMMARY:

The petitioner, a Member of Parliament, challenged the Speaker's certification of the Online Safety Act, alleging non-compliance with Supreme Court-directed amendments and claiming the certification occurred during a prorogued Parliament. He argued violations of Articles 12(1) and 14(1)(a) and sought constitutional review of legislative procedure. The respondents raised preliminary objections, contending that Article 80(3) renders a Speaker's certificate conclusive and immune from judicial review once a Bill becomes law. The Supreme Court refused leave to proceed, holding that it lacked jurisdiction to examine internal parliamentary proceedings after certification. The Court emphasized the doctrine of legislative finality, stating that a certified Act of Parliament cannot be questioned in court. It further relied on parliamentary privilege and separation of powers principles, affirming that the judiciary cannot interfere with legislative processes even where alleged procedural irregularities or prior court determinations are raised. The application was therefore dismissed at threshold without examination of merits, and no fundamental rights violation was found.

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{
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  "case_number": "SC/FR 37/2024",
  "year": 2024,
  "word_count": 210,
  "judgment": "NOT_VIOLATED",
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  "legal_topic": ["freedom_of_expression", "equality"]
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SUMMARY:

The petitioners, Centre for Policy Alternatives and its Executive Director, challenged a Cabinet decision permitting a former President to continue residing in an official state residence and using public funds for its maintenance after retirement. They alleged violations of Article 12(1) and the rule of law, arguing that a state asset intended for a Head of State was being unlawfully allocated for private benefit. The respondents justified the decision as a lawful executive act under relevant entitlements. The Supreme Court held that the decision was arbitrary, unreasonable, ultra vires, and illegal, thereby violating constitutional principles of equality and public trust. It found that Cabinet members hold state property in trust for the people and cannot use it to confer undue benefits on a former President, particularly where the decision-maker is also the beneficiary. The Court further held that under the President's Entitlements Act, the residence provided exceeded what is "appropriate" for a retired President. It also emphasized conflict of interest principles and abuse of executive power, concluding that no person should be

a judge in their own cause. The decision was quashed and fundamental rights were found to be violated.

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SUMMARY:

The petitioner challenged the Bank of Ceylon's sale of mortgaged property and its refusal to disclose resale details and remit surplus proceeds after recovery of a loan. The bank had purchased the property at auction and later resold it at a significantly higher price, retaining the excess. The petitioner claimed entitlement to the surplus under statutory and constitutional principles, alleging violation of Article 12(1). The respondents relied on a restrictive interpretation of the Bank of Ceylon Ordinance, arguing no obligation to disclose resale proceeds or pay excess. The Supreme Court held that Section 27 of the Ordinance imposes a statutory duty to return surplus proceeds to the mortgagor after settlement of debt. It further held that refusal to disclose financial details necessary to assert this right was arbitrary and contrary to fairness. The Court emphasized that state-linked financial institutions must act transparently and cannot retain windfall profits beyond lawful entitlement. It found that withholding surplus funds constituted unequal application of law and breach of public trust principles. The petitioner's rights were therefore violated and the bank was directed to disclose, compute, and remit the excess with interest.

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<<<CASE_START>>>

SUMMARY:

The petitioner was allegedly assaulted by a traffic police constable during a routine stop in Mount Lavinia after a brief exchange regarding vehicle documentation. The officer punched and kicked the petitioner without provocation, prompting a complaint and medical treatment. Although an internal inquiry resulted in a minor disciplinary warning, the petitioner filed a fundamental rights application alleging violation of Article 11. The respondent denied the assault, but evidence including medical records, prompt complaint, and inconsistent police documentation supported the petitioner's version. The Supreme Court found the denial not credible and held that corroborating evidence established the occurrence of physical violence. It concluded that law enforcement officers must act within constitutional limits and that unprovoked assault constitutes cruel, inhuman, and degrading treatment. The Court held that the petitioner's fundamental rights were violated and ordered compensation against the officer personally as well as partial payment by the State. The decision emphasized accountability of police officers and the constitutional prohibition against unnecessary use of force.

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SUMMARY:

The petitioners, members of a technical education union, challenged a Public Service Commission decision relating to recruitment of Technical College Demonstrators, particularly the removal and later reintroduction of the G.C.E. O/L qualification requirement. The PSC applied the revised standard prospectively, thereby validating an examination conducted under relaxed criteria. The petitioners alleged violations of Articles 12(1) and 14(1)(g), arguing that the irregular recruitment process undermined fairness and professional standards. The Supreme Court held that the PSC's inconsistent policy changes were arbitrary and lacked rational justification. It further held that allowing unqualified individuals into teaching positions would undermine educational standards and administrative integrity. The Court rejected the argument that prior expenditure justified validation of an unlawful process, affirming that illegality cannot be cured by cost already incurred. It also found no justification for excluding the disputed examination from the reintroduced qualification requirement. The Court therefore quashed the PSC decision and restrained reliance on the impugned results, holding that the petitioners' fundamental rights were violated.

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"year": 2023,
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SUMMARY:

The petitioners, Chief Inspectors of the Special Task Force, challenged the National Police Commission's decision to promote certain officers to Assistant Superintendent of Police without following the established competitive procedure. They alleged that senior and more qualified officers were bypassed in violation of merit-based selection and Article 12(1). The respondents argued administrative discretion in promotions. The Supreme Court held that once a formal recruitment and promotion scheme with marking criteria is established, it cannot be arbitrarily abandoned. It found that appointments made through letters rather than competitive evaluation were unlawful and inconsistent with administrative fairness. The Court recognized the petitioners' legitimate expectation that promotions would be based on published criteria. It further held that failure to provide rational justification for deviation from procedure constituted arbitrariness. The Court declared the impugned appointments null and void and ordered adherence to proper selection processes. It concluded that the petitioners' fundamental rights were violated due to unequal and non-transparent treatment in public service recruitment.

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SUMMARY:

The petitioners, external degree holders, challenged their disqualification from a Graduate

Teacher recruitment process in the Western Province after being excluded for not meeting the qualification cut-off date specified in a gazette. They alleged unequal treatment, arguing that previous relaxations had been granted to others in similar circumstances, thereby invoking Article 12(1). The respondents maintained strict adherence to gazetted eligibility criteria as legally binding. The Supreme Court held that equality under Article 12(1) applies only within lawful parameters and does not extend to equality in illegality. It found that the petitioners did not satisfy the stipulated qualification requirement at the relevant date and therefore had no legal entitlement to appointment. The Court further held that prior irregular relaxations granted to others could not justify extending similar illegality to the petitioners. It emphasized that legitimate comparison arises only where parties are legally entitled to equal treatment under law. Accordingly, the petition was dismissed, and no violation of fundamental rights was found.

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SUMMARY:

The petitioner, a vehicle importer, was arrested by Customs officials on suspicion of using forged documents to clear a vehicle. He was subsequently hospitalized due to chest pain while in custody and later challenged the arrest and detention as arbitrary under Articles 13(1), 13(2), and 12(1). The respondents contended that the arrest was based on reasonable suspicion and that procedural requirements were followed. The Supreme Court held that the arrest was lawful as there was sufficient basis for reasonable suspicion regarding document forgery. It further held that the petitioner was aware of the nature of the investigation, satisfying informational requirements of lawful arrest. Regarding detention, the Court found that delay in production before a Magistrate was justified due to hospitalization, and that authorities acted in accordance with procedure by informing the Magistrate and transferring custody appropriately. The Court concluded that no violation of fundamental rights was established and dismissed the application in its entirety.

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"year": 2016,  
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SUMMARY:

The petitioner alleged that police officers forcibly entered his residence, assaulted him, and arrested him without lawful justification, subsequently detaining him overnight at Weeragula Police Station. He claimed release occurred only after intervention by his wife, constituting violations of Article 12(1) and Article 13(1). The respondents denied arrest or detention, asserting that officers had visited the premises solely to investigate a complaint regarding theft of a gold chain and that the petitioner was merely invited for questioning, which he refused while behaving aggressively. The Supreme Court dismissed the application, holding that the petitioner failed to establish any infringement of fundamental rights. The Court found significant suppression of material facts by the petitioner, including prior criminal allegations and the true investigative purpose of the police visit. It further observed that no independent corroborative evidence, such as medical documentation or witness testimony, supported claims of assault or unlawful detention. The Court emphasized that fundamental rights jurisdiction must not be misused for baseless or misleading allegations and highlighted the importance of full disclosure of relevant facts. It concluded that the petition was frivolous and capricious in nature, lacking credibility and evidentiary support, and accordingly imposed costs on the petitioner for filing a meritless application.

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"year": 2019,  
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SUMMARY:

The petitioners challenged large-scale soil mining operations conducted in Sandakalawa village, alleging severe environmental damage including depletion of groundwater, destruction of soil structure, and air pollution. They further contended that regulatory bodies, including the

Geological Survey and Mines Bureau and the Central Environmental Authority, failed to enforce environmental safeguards despite repeated complaints, amounting to a violation of Article 12(1). The respondents disputed liability, but the Supreme Court found that the mining activities were conducted negligently and without adequate regulatory oversight. The Court held that Article 12(1) encompasses the right to live in a safe and healthy environment and that state inaction in the face of environmental harm constituted denial of equal protection of the law. It further invoked the polluter pays principle, holding that the entity responsible for environmental degradation must bear the cost of harm caused. The Court found that state authorities failed to discharge their statutory duties under environmental legislation, thereby permitting continued ecological damage. Accordingly, it held that the petitioners' fundamental rights were violated and imposed liability on the offending party while affirming regulatory responsibility of state agencies.

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{
"case_id": 112,
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<<<CASE_START>>>

SUMMARY:

The petitioners were involved in a long-standing property dispute concerning use of a private roadway, during which the 12th respondent lodged multiple complaints alleging obstruction and damage to property. Based on one such complaint, the 1st petitioner was arrested by police in Moragahahena for alleged criminal damage. The petitioners alleged that the police acted with bias and used arrest powers to settle a private civil dispute, thereby violating Articles 12(1) and 13(1). The respondents maintained that the arrest followed a legitimate complaint of a cognizable offence and was necessary for maintaining public order. The Supreme Court dismissed the petition, holding that police intervention was lawful and based on valid criminal allegations. It found no evidence of collusion or mala fide conduct between the police and the complainant. The Court further held that investigating breaches of peace and property damage falls within the lawful duties of the police. It concluded that the arrest was not arbitrary but grounded in a specific complaint supported by reasonable cause. Accordingly, no violation of fundamental rights was established.

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<<<CASE_START>>>

SUMMARY:

The petitioner, a retired school teacher, participated in a political poster campaign in Hakmana when police officers arrived at the scene and allegedly used obscene language, assaulted him, and seized campaign materials. He sustained injuries requiring hospital treatment, with medical records confirming trauma. The petitioner alleged violations of Article 11 and Article 14(1)(a), contending that police conduct unlawfully interfered with political expression. The respondents denied wrongdoing, but the Supreme Court found the petitioner's version credible and supported by medical evidence and prompt complaint. It rejected the police narrative due to inconsistencies and fabricated documentation, including discrepancies in official arrest records. The Court held that the use of physical force against a citizen engaged in lawful political activity without provocation constituted cruel, inhuman, and degrading treatment. It further found that such conduct amounted to an abuse of police power and a violation of constitutional protections for freedom of expression. Accordingly, the Court held that the petitioner's fundamental rights were violated and granted relief against the responsible officers.

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<<<CASE_START>>>

SUMMARY:

The petitioner challenged the refusal of admission of his son to Grade 1 at a national school under the "Non-Catholic Christian" quota category, despite the child having sufficient merit marks. The rejection was based on the quota for that religious category being fully filled according to admission guidelines. The petitioner alleged arbitrariness and violation of Article 12(1), arguing that prior admissions had been handled more flexibly. The respondents

maintained strict adherence to prescribed quotas as mandatory under the admission system. The Supreme Court dismissed the application, holding that the quota system was lawfully established to maintain religious balance within national schools. It found that the respondents correctly applied the published criteria and that the petitioner's child was not entitled to admission once the quota was exhausted. The Court further held that equality under Article 12(1) requires lawful classification and does not permit deviation from valid regulatory frameworks. It concluded that the decision was a result of proper application of rules rather than discrimination or arbitrariness, and therefore no fundamental rights violation was established.

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"case_id": 115,  
"case_name": "Wickamasuriya v. Kariyawasam and Others",  
"case_number": "SC/FR 209/2022",  
"year": 2022,  
"word_count": 200,  
"judgment": "NOT_VIOLATED",  
"articles_cited": ["12(1)"],  
"legal_topic": ["equality"]  
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<<<CASE_START>>>

SUMMARY:

The petitioner, a differently-abled applicant missing his right hand, challenged the rejection of his application for the post of Station Master despite passing the written examination. The Railway authorities rejected his candidature on the basis that essential operational duties required full physical capability, including manual signalling and handling of railway equipment. The petitioner alleged violation of Articles 12(1), 12(4), and 14(1)(g), arguing that the decision was discriminatory. The respondents contended that the physical requirements were essential for safety-critical functions. The Supreme Court dismissed the application, holding that the recruitment criteria were based on rational classification linked to the inherent duties of the post. It found that the role of Station Master requires full physical competence to ensure railway safety and operational efficiency. The Court further held that special provisions for disabled persons under Article 12(4) do not override legitimate job requirements where safety is at stake. It concluded that the rejection was neither arbitrary nor discriminatory but based on objective necessity, and therefore no violation of fundamental rights was established.

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{  
"case_id": 116,  
"case_name": "Tilakaratne v. Ariyaratna and Others",  
"case_number": "SC (FR) 272/2016",  
"year": 2016,  
"word_count": 202,
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"judgment": "NOT_VIOLATED",
"articles_cited": ["12(1)", "12(4)", "14(1)(g)"],
"legal_topic": ["equality", "occupation"]
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SUMMARY:

The petitioner, a company director, was arrested by the Special Fraud Investigation Bureau following a complaint of misappropriation of funds and forgery. He alleged that the arrest was arbitrary, that he was subjected to degrading treatment including being handcuffed, and that police lacked sufficient grounds under Articles 11, 12(1), and 13(1). The respondents argued that the arrest was based on a cognizable offence and carried out according to legal procedure. The Supreme Court dismissed the petition, holding that the arrest was lawful and supported by a formal complaint disclosing criminal elements. It further held that the use of restraints during lawful arrest does not amount to degrading treatment where justified by procedure and circumstances. The Court rejected the argument that the petitioner's social status entitled him to preferential treatment. It also found that the matter involved criminal allegations justifying police intervention despite any concurrent civil aspects. It concluded that judicial oversight through Magistrate supervision ensured procedural fairness and that no fundamental rights were violated.

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{
"case_id": 117,
"case_name": "Selvaharan v. Kumarasinghe and Others",
"case_number": "SC FR 34/2017 & 125/2017",
"year": 2017,
"word_count": 200,
"judgment": "NOT_VIOLATED",
"articles_cited": ["11", "12(1)", "13(1)"],
"legal_topic": ["arrest", "cruel_treatment"]
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<<<CASE_START>>>

SUMMARY:

The petitioner was arrested by the Police Narcotics Bureau on suspicion of heroin trafficking and alleged that he was assaulted with a wooden club, blindfolded, and threatened while in custody, sustaining serious injuries including a fractured leg. The respondents claimed the injuries resulted from an attempted escape. The petitioner alleged violations of Articles 11 and 12(1). The Supreme Court found the medical evidence, particularly the Judicial Medical Officer's report, inconsistent with the police version and strongly indicative of custodial assault. It held that human dignity underpins all fundamental rights and applies equally to persons accused of serious offences. The Court rejected the respondents' justification of force and found that the

petitioner was subjected to brutal and unjustified violence while in custody. It concluded that such conduct constituted cruel, inhuman, and degrading treatment and a violation of equal protection of the law. Accordingly, the Court held that the petitioner's fundamental rights were violated and awarded compensation against the officers and the State.

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{
"case_id": 118,
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"case_number": "SC (FR) 417/2016",
"year": 2016,
"word_count": 204,
"judgment": "VIOLATED",
"articles_cited": ["11", "12(1)"],
"legal_topic": ["cruel_treatment", "torture", "equality"]
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<<<CASE_START>>>

SUMMARY:

The petitioner, a pregnant woman, alleged that police officers assaulted her at Imaduwa Police Station while she was inquiring about her detained husband. She claimed she was kicked in the abdomen, arrested, and detained overnight, after which she suffered a miscarriage supported by medical evidence linking it to trauma. She alleged violations of Articles 11, 12(1), and 13(1). The respondents denied wrongdoing, but the Supreme Court found the medical and clinical evidence conclusively established causation between the assault and miscarriage. It held that the use of force against a pregnant woman was grossly disproportionate, unlawful, and shocking to conscience. The Court further held that custodial violence of this nature violates the most basic principles of human dignity and equality before the law. It emphasized that police officers acting with malice outside lawful authority are personally liable for their actions. The Court found that the arrest and detention were arbitrary and unjustified, and concluded that the petitioner's fundamental rights were violated. Compensation was awarded against individual officers and partially against the State.

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{
"case_id": 119,
"case_name": "Lakmali v. Gunarathne and Others",
"case_number": "SC/FRA/505/19",
"year": 2019,
"word_count": 205,
"judgment": "VIOLATED",
"articles_cited": ["11", "12(1)", "13(1)"],
"legal_topic": ["cruel_treatment", "arrest", "detention", "equality"]
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}  
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<<<CASE_START>>>
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SUMMARY:

The petitioners, public sector technical officers, challenged a decision altering their salary placement after appointment. Although initial recruitment documents guaranteed higher salary steps to preserve prior seniority and pay, the respondents later unilaterally placed them at lower initial salary levels. The petitioners alleged violation of Article 12(1), arguing breach of legitimate expectation and unfair administrative action. The respondents contended that revised administrative decisions justified the salary adjustment. The Supreme Court held that the salary terms formed part of binding employment conditions and could not be altered unilaterally after acceptance of appointment. It found that the respondents acted arbitrarily and contrary to principles of fairness and consistency in administrative law. The Court further held that legitimate expectation arising from official appointment letters must be honoured unless a rational basis exists for deviation. It concluded that failure to implement agreed salary steps constituted unequal and unreasonable treatment under Article 12(1). Accordingly, the Court found that the petitioners' fundamental rights were violated and directed restoration of the originally promised salary structure.

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{  
"case_id": 120,  
"case_name": "Wickramasinghe and Others v. Attorney General",  
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"word_count": 204,  
"judgment": "VIOLATED",  
"articles_cited": ["12(1)"],  
"legal_topic": ["equality", "occupation"]  
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<<<CASE_START>>>
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SUMMARY:

The petitioner challenged alleged police actions including forcible entry into his home, assault, and an arrest he claimed was unlawful, followed by overnight detention at a police station. He alleged violations of Article 12(1) and Article 13(1), asserting that the conduct was arbitrary and without legal basis. The respondents denied any arrest or detention, stating that officers visited the premises solely to investigate a complaint regarding theft of property and that the petitioner was only requested to accompany them for questioning, which he refused while behaving aggressively. The Supreme Court dismissed the application, holding that the petitioner failed to establish any infringement of fundamental rights. The Court found that the petitioner suppressed material facts, including relevant background information concerning prior conduct and the legitimate purpose of the police visit. It further held that there was no corroborating medical or

independent evidence to support allegations of assault or unlawful detention. The Court emphasized that fundamental rights jurisdiction requires full and candid disclosure and cannot be invoked on speculative or inconsistent narratives. It concluded that the petition lacked credibility and was frivolous in nature, warranting dismissal along with an order of costs against the petitioner for abuse of process.

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{
"case_id": 121,
"case_name": "Aththanayake v. Udayakumara and Others",
"case_number": "SC (FR) 412/2015",
"year": 2015,
"word_count": 200,
"judgment": "NOT_VIOLATED",
"articles_cited": ["126(2)", "17"],
"legal_topic": ["arrest", "unlawful_arrest"]
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<<<CASE_END>>>
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<<<CASE_START>>>

SUMMARY:

The petitioners, public servants, challenged the implementation of a revised Scheme of Recruitment introduced in 2013 for promotion to Grade I of the Management Service Officers' Service. They alleged that the new scheme was applied unfairly and without adequate notice, resulting in loss of promotion opportunities, thereby violating Article 12(1). The respondents contended that the petition was filed belatedly and was barred by laches. The Supreme Court dismissed the application, holding that the petitioners had failed to act within a reasonable time after the introduction of the new scheme. The Court emphasized that equity aids the vigilant and not those who delay unreasonably in asserting their rights. It further held that administrative decisions affecting recruitment must be challenged promptly to avoid disruption of public service administration. The Court found that the delay of approximately three years was unjustified and that some petitioners were presumed to have knowledge of the recruitment changes at the relevant time. Accordingly, the Court held that the petitioners were barred from relief due to laches and dismissed the application without examining the merits of the alleged violation.

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{
"case_id": 122,
"case_name": "Karunasena and Others v. Attorney General",
"case_number": "SC (FR) 248/2016",
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"articles_cited": ["12(1)"],
"legal_topic": ["equality"]
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<<<CASE_START>>>
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SUMMARY:

The petitioners, Police Inspectors, challenged the cancellation of a completed recruitment process for promotion to Assistant Superintendent of Police, despite having successfully passed examinations and being placed on a merit list. The National Police Commission and Inspector General of Police cancelled the process based on a Cabinet decision to restructure the police service. The petitioners alleged violations of Article 12(1) and Article 14(1)(g), claiming deprivation of earned promotional rights. The Supreme Court held that once a competitive recruitment process is completed and a merit list is finalized, candidates acquire a legitimate expectation of promotion. It found that the retrospective cancellation of a valid selection process was arbitrary and irrational. The Court further held that while restructuring of public services is permissible, it cannot be used to nullify completed lawful processes without justification. It emphasized that administrative discretion must be exercised consistently with the rule of law and fairness. Accordingly, the Court found that the petitioners' fundamental rights were violated and quashed the impugned cancellation decisions.

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{  
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  "year": 2020,  
  "word_count": 200,  
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  "articles_cited": ["12(1)", "14(1)(g)"],  
  "legal_topic": ["equality", "occupation"]  
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<<<CASE_START>>>
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SUMMARY:

The petitioner, a Senior Superintendent of Police, challenged promotion decisions whereby junior or lower-scoring officers were promoted to Assistant DIG positions despite his higher merit ranking. He alleged that the National Police Commission altered marking schemes and applied subjective criteria, violating Article 12(1). The respondents relied on administrative discretion in promotions. The Supreme Court held that promotion criteria must be transparent, consistent, and applied uniformly to all eligible officers. It found that altering marking schemes during the selection process to favour certain candidates was arbitrary and violated equality principles. The Court further held that seniority and merit cannot be disregarded without a rational basis, and doing so constitutes abuse of executive power. It emphasized that public service bodies must act as model employers ensuring fairness and objectivity in promotions. The Court concluded that the petitioner was unfairly bypassed and held that his fundamental

rights were violated. Relief including retrospective consideration for promotion and compensation was granted.

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{
"case_id": 124,
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<<<CASE_START>>>

SUMMARY:

The petitioner alleged that officers of the Pradeshiya Sabha forcibly entered her property and demolished a boundary wall without prior notice, claiming it was done to harass her and benefit a neighbour. The respondents contended that the wall was an unauthorised structure on a reservation and that it collapsed accidentally during lawful drainage maintenance work. The petitioner alleged violation of Article 12(1). The Supreme Court dismissed the application, accepting the respondents' explanation that the damage occurred incidentally during lawful public works and was not a targeted demolition. The Court further held that the structure was illegal and therefore no compensable right arose from its damage. It emphasized that state authorities performing lawful duties cannot be held liable for incidental damage to unlawful constructions unless mala fides are proven. The Court found no evidence of malice, discrimination, or selective targeting against the petitioner. It concluded that the petitioner failed to discharge the burden of proof required to establish unequal treatment or arbitrary state action, and accordingly held that no fundamental rights violation was established.

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{
"case_id": 125,
"case_name": "Subadra v. Kotikawatte Mulleriyawa Pradeshiya Sabha",
"case_number": "SC/FR/247/2016",
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"judgment": "NOT_VIOLATED",
"articles_cited": ["12(1)"],
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SUMMARY:

The petitioners challenged the rejection of their child's admission to Grade 1 at Visaka Vidyalaya under the proximity-based admission system. The rejection was based on findings that the petitioners had submitted false residency information to gain advantage in the selection process. They alleged violation of Article 12(1) and Article 12(2). The Supreme Court dismissed the application, holding that the petitioners approached the Court with unclean hands due to material misrepresentation in their application. It found that the submission of false residency documents undermined the integrity of the admission process and justified rejection by the authorities. The Court emphasized that equal protection of the law does not extend to protecting fraudulent conduct or validating illegality. It further held that administrative authorities are entitled to reject applications tainted by deception to preserve fairness in competitive selection systems. The Court concluded that the petitioners were not entitled to relief under fundamental rights jurisdiction due to their own misconduct and accordingly dismissed the application.

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{
"case_id": 126,
"case_name": "Sheriffdeen and Others v. Sandamali Aviruppola, Principal, Visaka Vidyalaya and Others",
"case_number": "SC (F/R) Application No. 01/2015",
"year": 2015,
"word_count": 200,
"judgment": "NOT_VIOLATED",
"articles_cited": ["12(1)", "12(2)"],
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SUMMARY:

The petitioner challenged the refusal to grant a higher salary step upon recruitment as a Management Service Officer, alleging unequal treatment compared to similarly placed officers and violation of Article 12(1). The respondents argued that salary structures were governed by official circulars and statutory salary frameworks. The Supreme Court dismissed the application, holding that the petitioner failed to establish a legal entitlement to the claimed salary step beyond the applicable regulatory framework. It found that administrative correspondence alone could not create enforceable rights or override established salary scales. The Court further held that any ambiguity in communications did not amount to a binding promise or legitimate entitlement. It emphasized that deviations from statutory salary structures without legal authority would undermine public administration and consistency. The Court concluded that the petitioner's claim lacked a lawful basis and that no unequal treatment under Article 12(1) was established. Accordingly, the application was dismissed.

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{
"case_id": 127,
"case_name": "Liyanarachchi v. Walgampaya and Others",
"case_number": "SC (F/R) 123/2013",
"year": 2013,
"word_count": 200,
"judgment": "NOT_VIOLATED",
"articles_cited": ["12(1)"],
"legal_topic": ["equality"]
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SUMMARY:

The petitioners, employees of a state-owned plantation company, challenged the appointment of an Assistant General Manager allegedly made in violation of advertised minimum qualifications, and the exclusion of qualified internal candidates from the interview process. They alleged violation of Article 12(1). The respondents contended that the appointment was valid and that procedural discretion existed in recruitment decisions. The Supreme Court held that exclusion of qualified candidates from the selection process without justification constituted arbitrary treatment and violated equality principles. It further found that recruitment authorities must adhere strictly to eligibility criteria and ensure fair opportunity for all qualified applicants. However, considering the long tenure already served by the appointed officer, the Court declined to disturb the appointment. Instead, it granted monetary compensation to the affected petitioners. The Court emphasized that fairness in recruitment processes is essential to uphold equal protection of the law, even where corrective relief is limited by practical considerations. It concluded that the petitioners' fundamental rights were violated.

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{
"case_id": 128,
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"judgment": "VIOLATED",
"articles_cited": ["12(1)"],
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SUMMARY:

The petitioners sought enforcement of a prior Supreme Court judgment relating to the

annulment of the privatization of the Sri Lanka Insurance Corporation, claiming entitlement to profits earned during a transitional period prior to restoration of state ownership. They alleged violation of Article 12(1) in relation to executive implementation of the earlier judgment. The respondents argued that no profits existed and that the claim was inconsistent with final judicial determinations. The Supreme Court rejected the application, relying on audited financial statements showing that the company had incurred losses during the relevant period. It held that there was no factual or legal basis for claiming interim profits. The Court further emphasized the principle of finality of judgments, stating that court orders cannot be reopened or altered through collateral motions. It held that restitution had already been achieved through restoration of ownership and that no further obligations remained. Accordingly, the application was dismissed and no violation of fundamental rights was found.

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{
"case_id": 129,
"case_name": "Vasudeva Nanayakkara v. Choksy and Others",
"case_number": "SC FR 117/2007 & 158/2007",
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"judgment": "NOT_VIOLATED",
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"legal_topic": ["equality"]
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<<<CASE_START>>>

SUMMARY:

The petitioners challenged prolonged administrative confusion regarding the territorial boundaries and jurisdictional authority of their village, resulting in repeated referrals between local authorities without final resolution. They alleged violation of Article 12(1) due to unequal and inconsistent administrative treatment. The respondents contended that the issue arose from technical boundary ambiguities requiring determination by competent delimitation authorities. The Supreme Court acknowledged the hardship faced by the petitioners but held that the matter constituted an administrative boundary dispute rather than a deliberate infringement of fundamental rights. It found no evidence of discriminatory intent or unequal treatment targeted at the petitioners. However, the Court observed systemic delays and lack of coordination between relevant authorities. It directed the Divisional Secretary and Surveyor General to take steps to expedite submission of recommendations to the National Delimitation Commission for resolution of the boundary issue. The Court concluded that while no fundamental rights violation was established, the petitioners were entitled to administrative resolution of their grievance.

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"case_id": 130,
"case_name": "Dharmarathne and Others v. Divisional Secretary, Udapalatha",
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"case_number": "SC/FR/189/2020",
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"judgment": "NOT_VIOLATED",
"articles_cited": ["12(1)"],
"legal_topic": ["equality"]
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SUMMARY:

The petitioner, a former Director of the Criminal Investigation Department, challenged the legality of a Presidential Commission of Inquiry (PCoI) established to investigate alleged political victimization. The petitioner contended that the Commission exceeded its statutory mandate by acting as a quasi-judicial body, entertaining complaints from individuals previously investigated by him, and recommending withdrawal of ongoing criminal proceedings as well as punitive measures against law enforcement officers. The respondents maintained that the PCoI was merely exercising fact-finding powers within its remit. The Supreme Court held that the Commission had acted in excess of jurisdiction by effectively attempting to interfere with and override ongoing judicial and prosecutorial processes. It emphasized that a Commission of Inquiry cannot function as a parallel court or substitute the authority of the judiciary. The Court further found that penalizing officers for carrying out lawful investigations, absent proof of personal malice, undermined the rule of law and created an arbitrary and unequal administrative environment. It also held that the procedural conduct of the Commission failed to satisfy standards of natural justice, as it relied on complaints from suspects while disregarding the ongoing criminal adjudication process. Accordingly, the Court concluded that the recommendations were unlawful, quashed them, and restrained their implementation, finding a violation of the equal protection guarantee under Article 12(1).

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{
"case_id": 131,
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"case_number": "SC/FR 132/2021",
"year": 2021,
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"judgment": "VIOLATED",
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<<<CASE_START>>>

SUMMARY:

The petitioners, voters and a candidate in the 1999 Provincial Council elections, challenged

widespread electoral malpractice including ballot stuffing, voter intimidation, and disruption of polling stations by armed groups in the Kandy District. They alleged that despite being informed of these irregularities, the Commissioner of Elections failed to take corrective action such as nullifying affected polling stations or ordering a re-poll, and proceeded to declare results incorporating tainted votes. The Supreme Court held that the right to vote is a fundamental expression of sovereignty and that elections must reflect genuine voter choice. It found that the failure to ensure a free and fair poll amounted to a violation of equal protection under Article 12(1) and the expressive component of voting under Article 14(1)(a). The Court emphasized that the Election Commissioner has a constitutional duty to safeguard electoral integrity and to investigate credible allegations of fraud and violence. The inclusion of illegally obtained votes undermined the legitimacy of the electoral process and denied lawful voters equal weight in the democratic system. Although the Court did not annul the entire election due to passage of time, it declared that fundamental rights had been infringed and awarded costs against the State, reinforcing the principle that electoral processes must be free from coercion and manipulation.

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"case_id": 132,
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"case_number": "SC 412/1999",
"year": 1999,
"word_count": 217,
"judgment": "VIOLATED",
"articles_cited": ["12(1)", "14(1)(a)"],
"legal_topic": ["freedom_of_expression", "equality"]
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<<<CASE_START>>>

SUMMARY:

The petitioner challenged the seizure and prolonged detention of his motorcycle by the Department of Motor Traffic authorities after his employee was found riding it in violation of internal rules during a driving test. The respondent justified the seizure on administrative grounds, claiming enforcement of discipline within the premises. The Supreme Court held that although officials could regulate conduct within the premises, they had no statutory authority under the Motor Traffic Act or any other law to seize and retain a private vehicle for an extended period. It found that the month-long detention of the motorcycle constituted an arbitrary exercise of power lacking legal foundation. The Court reasoned that administrative inconvenience or breach of internal rules does not justify deprivation of property without lawful authority. It emphasized that state action must always be anchored in statutory power to satisfy constitutional requirements of equality and lawful treatment. By depriving the petitioner of his property without due legal process, the authorities failed to provide equal protection of the law under Article 12(1). The Court accordingly declared a violation, reaffirming that even regulatory enforcement must operate within clearly defined legal boundaries and cannot extend to indefinite or unauthorized deprivation of private property.

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{
"case_id": 133,
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"case_number": "SC FR 235/2012",
"year": 2012,
"word_count": 213,
"judgment": "VIOLATED",
"articles_cited": ["12(1)"],
"legal_topic": ["arbitrary_state_interference"]
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<<<CASE_START>>>

SUMMARY:

The petitioners, officers of the Sri Lanka Administrative Service, challenged Cabinet decisions granting retrospective promotions to another group of officers, arguing that such backdating adversely affected their seniority and career progression. The respondents justified the decision as part of a broader policy to correct historical administrative anomalies and recruitment delays. The Supreme Court held that seniority within public service is not an absolute vested right and may be adjusted through lawful policy decisions aimed at administrative reform. It found that the affected officers constituted a distinct category appointed under different recruitment schemes, thereby justifying differential treatment. The Court further held that the executive enjoys broad discretion in restructuring public services, provided decisions are not arbitrary or mala fide. It concluded that the policy was rationally connected to legitimate administrative objectives and did not amount to discriminatory treatment under Article 12(1). The Court emphasized that equality does not prohibit reasonable classification based on different service conditions or recruitment frameworks. Accordingly, the application was dismissed, reaffirming judicial restraint in reviewing complex administrative restructuring decisions.

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{
"case_id": 134,
"case_name": "Wasantha Dissanayake and Others v. Secretary, Ministry of Public Administration",
"case_number": "SC FR 611/2012",
"year": 2012,
"word_count": 204,
"judgment": "NOT_VIOLATED",
"articles_cited": ["12(1)"],
"legal_topic": ["equality"]
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<<<CASE_START>>>

SUMMARY:

The petitioner, a public officer, challenged a transfer order from the Chief Secretary's Office to a provincial department, alleging political motivation and procedural illegality in its initiation. The respondents maintained that the transfer was part of routine administrative functioning and had been duly approved by the relevant authority. The Supreme Court held that public officers do not possess a vested right to remain in a particular post or location and that transfers made for administrative necessity are valid if procedurally compliant. It found no credible evidence of mala fides or discriminatory treatment in the transfer process. The Court further noted that the petitioner failed to demonstrate that he was unlawfully prevented from assuming duties at the new station. It emphasized that equality under Article 12(1) requires proof of unequal treatment in comparable circumstances, which was absent in this case. As the transfer followed established provincial service procedures, the Court concluded that there was no violation of fundamental rights. The application was therefore dismissed.

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{  
  "case_id": 135,  
  "case_name": "Chandraratne v. Balalla and Others",  
  "case_number": "SC FR 204/2011",  
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  "judgment": "NOT_VIOLATED",  
  "articles_cited": ["12(1)"],  
  "legal_topic": ["equality"]  
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<<<CASE_START>>>

SUMMARY:

The petitioner, a teacher, challenged her transfer from a long-held position at a national school to another institution, alleging arbitrariness and political motivation. The respondents justified the transfer under the National Transfer Policy applicable to over-served teachers. The Supreme Court held that the petitioner had exceeded the prescribed maximum tenure at the school and was therefore eligible for transfer under uniform policy criteria. It found no evidence of mala fides or targeted action against the petitioner. The Court emphasized that public servants do not have a vested right to remain indefinitely in a particular post and that transfer policies are designed to ensure equitable distribution of staff resources. It further held that equality under Article 12(1) was satisfied because the petitioner was treated in accordance with a general rule applied consistently to similarly situated teachers. The Court concluded that the transfer was a lawful administrative measure and not a violation of fundamental rights. Accordingly, the petition was dismissed.

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"case_id": 136,  
"case_name": "Dayawathi v. The Principal, Girls' High School, Kandy",  
"case_number": "SC FR 459/2017",  
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"judgment": "NOT_VIOLATED",  
"articles_cited": ["12(1)"],  
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<<<CASE_START>>>

SUMMARY:

The petitioner, a senior manager, challenged the appointment of another candidate to a managerial post, alleging that the appointee lacked mandatory qualifications under the Scheme of Recruitment. The respondents argued that the selected candidate possessed equivalent qualifications and that the selection board exercised its expertise in evaluating suitability. The Supreme Court held that recruitment panels possess specialized discretion in assessing candidate qualifications, and judicial interference is limited unless there is illegality or mala fides. It found that the selection process involved all candidates equally and that no evidence was presented to show discriminatory intent or arbitrary deviation from recruitment criteria. The Court further held that the appointee's experience and qualifications substantially complied with the requirements of the Scheme of Recruitment. It concluded that there was no violation of Article 12(1) as the petitioner was afforded equal opportunity in the selection process and was assessed under the same criteria as other applicants. The application was therefore dismissed.

METADATA:

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{  
"case_id": 137,  
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"case_number": "SC FR 256/2017",  
"year": 2017,  
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<<<CASE_START>>>

SUMMARY:

The petitioners, officers of the Survey Department, challenged their transfer orders alleging political retaliation and punitive action linked to union activities. The respondents contended that the transfers were routine administrative rotations based on service requirements and tenure completion at respective stations. The Supreme Court held that transfers made in accordance

with departmental policies do not violate fundamental rights unless mala fides or discriminatory intent is proven. It found that the petitioners had exceeded standard station tenure limits, justifying reassignment under established policy. The Court further held that public officers have no vested right to remain in a particular posting indefinitely and that administrative discretion includes the power to transfer personnel to meet operational needs. It concluded that the petitioners failed to provide cogent evidence of targeted victimization or unequal treatment compared to similarly situated officers. Accordingly, the Court dismissed the application, finding no violation of Article 12(1) and reaffirming the legitimacy of routine administrative transfers.

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{  
"case_id": 138,  
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SUMMARY:

The petitioner, a military officer, challenged the denial of promotion to Colonel, alleging unequal treatment compared to other officers who were promoted despite his eligibility. The respondents argued that the petitioner was ineligible due to disciplinary issues and failure to meet revised promotion criteria under applicable military policy. The Supreme Court held that promotions in disciplined forces are governed strictly by service regulations and Cabinet-approved criteria, which may include disciplinary considerations. It found that the petitioner did not satisfy mandatory requirements applicable to his promotion batch and therefore could not claim discriminatory treatment. The Court further held that all officers within the relevant category were assessed under uniform criteria, and no evidence of selective targeting was established. It emphasized judicial restraint in reviewing military administrative decisions unless they are manifestly arbitrary or unlawful. The Court concluded that withholding promotion on disciplinary grounds was a legitimate and rational exercise of administrative authority and did not violate Article 12(1). Accordingly, the application was dismissed.

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SUMMARY:

The petitioner, an excise inspector, challenged a promotion decision alleging incorrect allocation of marks for seniority and merit, resulting in exclusion from the final list. The respondents contended that the selection process followed the established Scheme of Recruitment and that marks were awarded consistently across all candidates. The Supreme Court held that promotion assessments fall within the lawful administrative discretion of relevant authorities, particularly where structured evaluation criteria exist. It found no evidence of mala fides, bias, or deviation from prescribed marking procedures. The Court further held that dissatisfaction with scoring outcomes alone does not constitute a constitutional violation unless supported by proof of arbitrariness or unequal application of rules. It concluded that the petitioner was evaluated under the same framework as other candidates and that no differential or discriminatory treatment occurred. Accordingly, the application was dismissed, affirming that equality under Article 12(1) requires demonstrable departure from legal standards rather than subjective disagreement with administrative scoring.

METADATA:

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{
"case_id": 140,
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SUMMARY:

The petitioners in SC(FR) Application No. 127/2016 challenged a coordinated raid conducted on 23 March 2016 by Excise Department officers on the registered Ayurvedic pharmacy of the 1st petitioner, Dr. Kamal Bandula Weerapperuma. The officers allegedly impersonated narcotics police, seized medicinal equipment, CCTV DVRs, and “Kansa Choorna” (cannabis-based preparation), and arrested employees who were subsequently remanded. The petitioners contended that the raid was mala fide, supported by evidence of a solicited bribe refused by the petitioner’s son and suspiciously pre-dated B-reports. Although respondents justified the action by alleging illegal activity, the pharmacy possessed valid registration for 2016. The Supreme

Court examined whether the conduct violated Articles 12(1) and 14(1)(g) of the Constitution, focusing on equality before the law and freedom to engage in lawful occupation. The Court found that the raid constituted an abuse of power, as the respondents misrepresented facts to the Magistrate by claiming the substance was pure cannabis, while a Government Analyst confirmed it contained only 0.29% THC medicinal mixture. The Court held that the petitioners were engaged in a lawful business and that the State action was arbitrary, malicious, and discriminatory in effect. It concluded that the fundamental rights of all petitioners were violated and awarded compensation against both the State and individual officers.

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"case_id": 141,
"case_name": "Kamal Bandula Weerapperuma and Others v. A. Pushpakumara and Others",
"case_number": "SC (FR) Application No. 127/2016",
"year": 2016,
"word_count": 297,
"judgment": "VIOLATED",
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"legal_topic": ["equality", "occupation", "arbitrary_state_interference", "arrest"]
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SUMMARY:

In SC(FR) Application No. 61/2019, the petitioner challenged a decision of the University Grants Commission (UGC) disqualifying his university admission applications due to false declarations regarding his schooling. Although he registered as a school candidate in Anuradhapura, he actually attended a private tutoring in Kurunegala to obtain a lower Z-score advantage. Following this, the UGC rejected his 2016/2017 application and later imposed a permanent bar through a revised 2018/2019 Handbook provision. When he reapplied using improved A/L results, the online system blocked his NIC indefinitely. The petitioner argued that the sanction was unlawfully applied retrospectively. The Supreme Court considered whether Article 12(1) had been violated through arbitrary administrative action. The Court acknowledged that while the initial misrepresentation justified disciplinary consequences, the imposition of a permanent ban based on a later rule was retrospective, unreasonable, and disproportionate. It emphasized that administrative rules cannot operate to retrospectively aggravate penalties unless clearly authorized. The Court further noted that deprivation of access to higher education must be grounded in clear and existing legal standards and that fairness requires proportionality in sanctions. Accordingly, the Court held that the petitioner's right to equality was violated and directed the UGC to reconsider and process his application in accordance with his lawful residence-based eligibility criteria.

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"case_name": "M. A. Shamly Mohammed v. University Grants Commission and Others",
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"year": 2019,
"word_count": 281,
"judgment": "VIOLATED",
"articles_cited": ["12(1)"],
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<<<CASE_START>>>

SUMMARY:

In SC(FR) Application No. 311/2019, the petitioner, a high-performing GCE A/L candidate, was denied admission to the University of Colombo Faculty of Law despite clearly meeting the required Z-score threshold. The University Grants Commission (UGC) rejected his application on the basis that he was allegedly registered at the Advanced Technological Institute (ATI), Galle. However, evidence showed he never completed registration, as he had not submitted a mandatory school leaving certificate and had not attended lectures. ATI officials admitted that his name remained in the system due to a clerical error despite removal from physical records. The Supreme Court assessed whether this administrative mistake, relied upon by the UGC, violated Article 12(1). The Court held that the petitioner was not a valid registered student and that the UGC's reliance on erroneous data was arbitrary and unjustified. It emphasized that equality in university admissions requires decisions based on accurate, verifiable information and transparent criteria. The Court further recognized that access to higher education, while not explicitly guaranteed as a standalone right, is protected under Article 12(1) through fair and merit-based selection. It found that the State's failure to correct institutional error resulted in discriminatory exclusion of a qualified candidate. Accordingly, the Court ruled that the petitioner's fundamental rights were violated and ordered admission with compensation.

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{
"case_id": 143,
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"case_number": "SC (FR) Application No. 311/2019",
"year": 2019,
"word_count": 336,
"judgment": "VIOLATED",
"articles_cited": ["12(1)"],
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SUMMARY:

SC(FR) Case No. 260/2012 concerned the death of a detainee, D. Nimal Chandrasiri

Appuhamy, who was arrested on suspicion of cannabis possession and taken into police custody on 15 April 2012. While in custody, he exhibited severe chest pain shortly after arrest. Despite repeated requests by his son and visible distress, police officers failed to provide timely medical assistance, dismissing his condition as feigned. He remained untreated for over four hours and was later pronounced dead upon hospital admission. Medical evidence attributed death to blunt chest trauma combined with stress-induced aggravation of pre-existing myocarditis. The petitioners alleged violations of Article 11 of the Constitution. The Supreme Court examined whether the conduct of the officers amounted to torture or cruel, inhuman, or degrading treatment. While the Court did not find sufficient evidence to establish torture, it held that the prolonged denial of medical care constituted cruel, inhuman, and degrading treatment. The Court emphasized that custodial authorities have an absolute duty to safeguard detainees' health and life. It further held that failure to provide prompt medical attention, coupled with disregard for evident suffering, amounted to a constitutional violation. The State was held responsible for the conduct of its officers acting under official capacity, and compensation was awarded to the petitioners.

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{
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"case_number": "SC FR Case No. 260/2012",
"year": 2012,
"word_count": 336,
"judgment": "VIOLATED",
"articles_cited": ["11"],
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<<<CASE_START>>>

SUMMARY:

In SC(FR) Application No. 278/2021, the petitioner challenged the Moratuwa Municipal Council's handling of a housing estate title transfer policy. The Council had introduced a scheme to transfer deeds to long-term occupants at a nominal value, yet the petitioner alleged unequal treatment, claiming that others received deeds while his long-standing occupation was ignored. His claim was complicated by a prior Court of Appeal determination that his purchase agreement was void under the Registration of Title Act. The Supreme Court examined whether there was a violation of Article 12(1) based on alleged unequal application of the policy. The Court found that at the time of filing, no final administrative refusal had been made and the process was still ongoing, rendering the application premature. However, it observed that public authorities must apply policies consistently and fairly, and that long-term possession, including predecessor occupation, could be relevant in assessing entitlement. It emphasized that arbitrary deviation from declared policy may infringe equality guarantees. Despite dismissing the application on procedural grounds, the Court directed the Council to consider the petitioner's

eligibility fairly and make a reasoned determination. A dissenting view held that reliance on a void agreement could not establish lawful possession for benefit under the policy.

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"case_number": "SC (FR) Application No. 278/2021",  
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"judgment": "NOT_VIOLATED",  
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"legal_topic": ["equality", "arbitrary_state_interference"]  
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SUMMARY:

In SC(FR) Application No. 419/2015, the petitioner, a senior officer at People's Bank, alleged that she was unfairly denied promotion to Deputy Head of Finance despite being qualified and repeatedly applying between 2009 and 2013. She contended that the Bank deliberately delayed recruitment processes, cancelled interviews without justification, and ultimately promoted a junior officer after ensuring he became eligible. The Supreme Court considered whether this conduct violated Article 12(1). It found that the repeated postponement and cancellation of recruitment processes lacked valid justification and demonstrated arbitrariness and lack of transparency. The Bank's explanation of restructuring was rejected as a pretext. The Court held that failure to disclose criteria or marks and the manipulation of timing in recruitment undermined fair competition. It emphasized that when a public institution undertakes selection for promotion, it must act reasonably, transparently, and consistently with equal treatment principles. The Court concluded that the petitioner's legitimate promotional expectations were frustrated through discriminatory administrative conduct. Accordingly, it held that her fundamental rights were violated and declared the actions of the Bank and officials unconstitutional under Article 12(1).

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{  
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"judgment": "VIOLATED",  
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<<<CASE_START>>>

SUMMARY:

SC/F.R/348/2013 concerned 28 Sub-Inspectors who challenged the failure of the Inspector General of Police to backdate their promotions to Inspector effective from 1 January 2003. Although Circular No. 1737/2003 provided for filling 629 vacancies and 471 officers were promoted, 158 vacancies remained unfilled and the petitioners were promoted only in 2006, resulting in loss of seniority and subsequent career disadvantages, including loss of eligibility for higher ranks. The Supreme Court examined whether Article 12(1) had been violated through unequal treatment in promotions. The Court found that multiple official recommendations, including those of successive Inspectors General and the Nawaratne Committee, had created a legitimate expectation that promotions would be backdated. The Court held that failure to implement these recommendations resulted in arbitrary deprivation of seniority and allowed junior officers to supersede the petitioners. It characterized this as a continuing violation affecting career progression. The Court emphasized that public service promotions must adhere to fairness, rationality, and consistency to uphold equality before the law. It concluded that the petitioners' fundamental rights were infringed and ordered backdating of promotions to restore seniority and rectify the constitutional breach.

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{
  "case_id": 147,
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<<<CASE_START>>>

SUMMARY:

In SC(FR) Application No. 240/2020 and connected applications, the petitioner, a Senior Superintendent of Survey, challenged the Public Service Commission's decision to deduct his authorized no-pay overseas leave period from seniority, resulting in delayed promotion. At the time of his leave in 2001–2003, applicable circulars did not provide for such deduction, but a later 2004 amendment was applied retrospectively to his disadvantage. Despite an Administrative Appeals Tribunal ruling in his favor, the PSC refused to implement it. The Supreme Court examined violations of Articles 12(1) and 14(1)(g). It held that applying retrospective administrative rules to deprive vested rights was unlawful and contrary to the

presumption against retrospectivity. The Court further held that the petitioner had a legitimate expectation based on the 2001 circular that his career progression would not be adversely affected. It emphasized that disregard of binding appellate decisions undermines the rule of law and administrative hierarchy. The Court concluded that the PSC's actions were arbitrary and amounted to unjustified interference with his occupational progression and equality rights. It ordered restoration of seniority and awarded compensation, reaffirming that administrative authorities must act consistently with legal certainty and fairness.

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SUMMARY:

SC(FR) Application No. 162/2015 involved a challenge relating to alleged infringement of fundamental rights concerning land requisitioned for use by a cooperative society. The petitioner claimed continuing violation but had been aware of the alleged infringement since 2009 and only filed the application in 2015. The Supreme Court examined compliance with Article 126(2) of the Constitution, which imposes a strict one-month limitation period for filing fundamental rights applications. The Court found that the petition was filed far beyond the statutory timeframe without sufficient justification. It further noted suppression of material facts by the petitioner, undermining the integrity of the application. The Court emphasized that constitutional time limits are mandatory and serve the purpose of legal certainty and preventing abuse of process. It held that delay and laches barred the claim, and strict enforcement of procedural requirements is necessary to preserve judicial discipline in fundamental rights litigation. Accordingly, the application was dismissed with costs. The Court reaffirmed that equality claims under Article 12(1) cannot override mandatory procedural bars, and procedural compliance is an essential precondition for invoking constitutional remedies.

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<<<CASE_START>>>

SUMMARY:

SC F.R. No. 74/2020 concerned the interdiction and subsequent suspension of pay of the petitioner, a Senior Assistant Registrar at the University of Ruhuna, following allegations of examination fraud involving manipulation of MBBS results. The investigation indicated possible negligence or involvement in handling forged result sheets, leading to her interdiction on half-pay in 2018 and later suspension of pay in 2020 due to non-cooperation with inquiries. The petitioner challenged the measures as arbitrary and discriminatory under Articles 12(1) and 14(1)(g). The Supreme Court examined whether the disciplinary process complied with the University Establishment Code and whether differential treatment was established. The Court found that the University had followed proper procedures for preliminary inquiry and interdiction in cases of prima facie fraud. It held that withholding emoluments during interdiction was expressly permitted under applicable regulations. The Court further observed that delays in issuing charge sheets were partly attributable to the petitioner's refusal to cooperate with the investigation. It concluded that Article 12(1) guarantees equal protection of law, not immunity from lawful disciplinary action. Finding no evidence of arbitrariness, mala fides, or discrimination, the Court held that the petitioner's rights were not violated and dismissed the application.

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<<<CASE_START>>>

SUMMARY:

In SC(F/R) Application No. 66/2019, eight employees of the Sri Lanka Bureau of Foreign Employment challenged the refusal to reinstate them after termination in 2015. A Cabinet Subcommittee on Political Victimization recommended their reinstatement in 2017, and the

Cabinet approved the recommendation. However, the SLBFE refused implementation, asserting that the Subcommittee lacked legal authority to override disciplinary decisions taken under the SLBFE Act. The petitioners alleged that this refusal amounted to arbitrary and discriminatory treatment in violation of Articles 12(1) and 12(2). The Supreme Court considered whether Cabinet approval of a redress mechanism created an enforceable right to reinstatement. It held that the SLBFE, as a statutory body corporate, retains independent authority over employment matters and disciplinary outcomes, and such decisions cannot be displaced by a Subcommittee lacking statutory force. The Court further held that a political victimization redress scheme does not automatically invalidate lawful prior terminations or create an unconditional entitlement to reinstatement. It emphasized that equality requires consistent application of lawful criteria rather than mandatory acceptance of political recommendations. Since the respondents acted within their statutory framework and applied objective standards, the Court found no arbitrariness or discrimination. Accordingly, it held that the petitioners failed to establish a violation of fundamental rights and dismissed the application.

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  "word_count": 217,
  "judgment": "NOT_VIOLATED",
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SUMMARY:

In SC(F/R) Application No. 97/2021, the petitioner challenged his arrest and detention by the Terrorism Investigation Division under the Prevention of Terrorism Act on allegations of involvement in extremist activity linked to the Easter Sunday attacks. The arrest was based on intelligence reports and detention orders issued by the Minister of Defence. The petitioner argued that the arrest was arbitrary and lacked sufficient evidentiary basis, violating Articles 12(1), 13(1), and 13(2). The Supreme Court examined whether the threshold of reasonable suspicion under the PTA had been satisfied. It held that at the investigative stage, authorities are not required to establish a prima facie case but only reasonable suspicion based on available intelligence. The Court further emphasized the importance of national security considerations and the executive's duty to act on credible intelligence. It found that statutory procedures, including issuance of detention orders, had been followed and there was no evidence of mala fides or procedural illegality. Judicial intervention was held to be limited in ongoing national security investigations unless clear abuse of power is demonstrated. Accordingly, the Court concluded that the arrest and detention were lawful and did not violate fundamental rights, dismissing the application.

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SUMMARY:

In SC No. 471/2000 (FR), the petitioner alleged that her husband, an army deserter detained at Paiyagala Police Station, was subjected to severe custodial assault resulting in his death. Evidence from family observations and medical findings indicated multiple injuries, including 23 external wounds and acute renal failure caused by crush syndrome due to sustained beatings. The Supreme Court examined violations of Articles 11, 13(2), and 17. It found overwhelming medical evidence establishing torture and rejected the respondents' failure to provide a credible explanation for injuries sustained while the deceased was in exclusive custody. The Court reaffirmed that detainees are entitled to full constitutional protection regardless of allegations against them and that custodial violence constitutes a grave breach of fundamental rights. It also recognized that where torture results in death, the right to seek constitutional relief survives for dependents. The Court emphasized strict state accountability for actions of police officers and held that the treatment amounted to cruel, inhuman, and degrading conduct. Accordingly, it concluded that the fundamental rights of the deceased were violated, and compensation was awarded to the petitioner and minor child.

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"case_id": 153,
"case_name": "Sriyani Silva v. Iddamalgoda, Officer-in-Charge, Police Station Paiyagala and Others",
"case_number": "S.C. No. 471/2000 (FR)",
"year": 2000,
"word_count": 221,
"judgment": "VIOLATED",
"articles_cited": ["11", "13(2)", "17"],
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SUMMARY:

In SC (Spl.) 3/93, the petitioner, a Member of Parliament of the Sri Lanka Freedom Party, challenged his expulsion from the party following public criticism of its internal democratic process. He had advocated for intra-party elections and made public statements alleging lack of internal democracy, after which disciplinary proceedings led to his removal. He claimed violations of Articles 14(1)(a) and 14(1)(c). The Supreme Court examined whether expulsion from a political party infringed constitutional freedoms of expression and association. It held that membership in a political party is voluntary and subject to accepted rules of internal discipline, which may lawfully restrict individual expression where necessary for party cohesion. The Court found that the petitioner failed to utilize internal party mechanisms before resorting to public criticism, and that disciplinary action fell within permissible political judgment. Judicial intervention was held to be limited unless decisions were manifestly unreasonable or mala fide. The Court emphasized that effective functioning of parliamentary democracy requires enforceable party discipline. It concluded that the expulsion did not violate fundamental rights and dismissed the application.

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SUMMARY:

In SC (Special) No. 235/96, the petitioner was arrested without lawful grounds following a complaint to police and subsequently subjected to physical assault, humiliation, and public parading in handcuffs. The police justified the arrest by alleging traffic-related offences, which were unsupported by objective evidence. The Supreme Court examined violations of Articles 11, 13(1), and 13(2). It found that the arrest lacked lawful basis and that the conduct of the officers, including beating and public humiliation, constituted degrading treatment intended to shame the petitioner. The Court rejected fabricated explanations given by the respondents and relied on corroborating circumstances, including immediate complaints and intervention by public officials. It held that arbitrary arrest and detention, combined with physical and public abuse, violated constitutional guarantees of personal liberty and dignity. The State was held vicariously liable for acts of its officers, and both institutional and personal compensation orders were imposed. The Court emphasized that law enforcement powers must be exercised lawfully and cannot be used

as instruments of intimidation or punishment outside due process. It concluded that the petitioner's fundamental rights were violated.

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SUMMARY:

In SC Application No. 186/86, the petitioner was arrested on suspicion of robbery and subjected to severe custodial torture, including hanging over a chili-smoke fire and beating with plastic pipes. Initial medical reports falsely indicated absence of injuries, while subsequent examination confirmed multiple contusions, abrasions, and fractures. The petitioner alleged manipulation of medical documentation by police influence. The Supreme Court examined violations of Article 11. It rejected the initial medical report as unreliable, noting the impossibility of accurate examination in the presence of custodial pressure. The Court held that state responsibility extends to all acts of police officers and that custodial torture constitutes a grave constitutional violation irrespective of the alleged offence of the detainee. It emphasized that constitutional protection applies even to suspected or convicted offenders. The Court found that the petitioner was subjected to torture and cruel treatment and held the State liable. Compensation and costs were awarded, reaffirming strict judicial scrutiny over custodial conduct and medical integrity in detention settings.

METADATA:

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{
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SUMMARY:

In SC Application (F.R.) 478/97, the petitioner challenged the arrest and preventive detention of Mr. Sirisena Cooray under Emergency Regulation 17(1) issued on the basis of intelligence alleging involvement in a conspiracy against the President. The detention order was issued by the Secretary to the Ministry of Defence, and the detainee was not promptly informed of reasons nor produced before a magistrate within the required timeframe. The Supreme Court examined violations of Articles 13(1) and 13(2). It held that even under emergency powers, deprivation of liberty must be based on objective and verifiable material, and vague or unverified intelligence is insufficient to justify detention. The Court found that failure to communicate reasons for arrest and failure to comply with procedural safeguards rendered the detention unlawful. It emphasized that emergency regulations do not displace the rule of law or constitutional safeguards governing liberty. The Court concluded that the arrest and detention were arbitrary and illegal, ordering immediate release and awarding compensation. It reaffirmed that executive discretion in national security matters remains subject to constitutional limits.

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SUMMARY:

In SC Application No. 994/99, the petitioner challenged emergency regulations permitting pre-censorship of publications relating to military operations and national security. The regulations empowered a Competent Authority to prohibit publication, seize printing equipment, and restrict dissemination of sensitive information. The petitioner alleged violations of Articles 10, 12(1), and 14(1)(a), arguing that the restrictions were overly broad and suppressed legitimate expression. The Supreme Court considered whether the restrictions were justified under Article 15(7) in the interests of national security and public order. It held that during armed conflict, the State may impose proportionate restrictions on expression where there is a pressing social need. The Court found that classification of military information and pre-publication controls were rationally connected to preventing dissemination to hostile actors. It further held that a fair balance had been struck between individual freedom of expression and collective security interests. Accordingly, it concluded that the regulations were not disproportionate and did not violate fundamental rights, and dismissed the application.

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"word_count": 219,
"judgment": "NOT_VIOLATED",
"articles_cited": ["10", "12(1)", "14(1)(a)"],
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SUMMARY:

In SC Application 749/96 (FR), the petitioner, a senior bank officer with an unblemished 25-year service record, challenged the Bank of Ceylon's refusal to grant a one-year service extension after reaching retirement age. Although internal recommendations supported the extension under exceptional circumstances, the Board delayed decision-making and ultimately rejected the request without providing reasons, despite granting extensions to similarly situated officers. The Supreme Court examined whether this amounted to a violation of Article 12(1). It held that while employers have discretion in service extensions, such discretion must be exercised fairly, reasonably, and consistently. The unexplained rejection, in contrast with treatment of comparable officers, constituted arbitrary and unequal treatment. The Court further addressed post-settlement disputes, holding that "other remuneration" included all allowances attached to the post, regardless of actual service during litigation. It emphasized that equality requires transparent and reasoned decision-making in public employment. The Court found that the petitioner's fundamental rights were violated and ordered payment of arrears, allowances, compensation, and costs.

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{
"case_id": 159,
"case_name": "Suranganie Marapana v. The Bank of Ceylon and Others",
"case_number": "S.C. Application 749/96 (F.R.)",
"year": 1996,
"word_count": 219,
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SUMMARY:

In SC Nos. 63 and 68 of 1980, the petitioners alleged that they were subjected to torture and cruel, inhuman, or degrading treatment by police officers while in custody on 26 May 1980. One application was filed beyond the constitutional one-month limitation period, and the respondents also noted that a police inquiry was already underway. The Supreme Court examined compliance with Article 126 procedural requirements and the evidentiary standard for establishing custodial torture. It held that strict adherence to the one-month limitation period is mandatory and cannot be waived absent adequate justification. The Court further applied a high standard of proof, finding that the medical evidence presented was insufficient to conclusively establish torture beyond reasonable doubt. It also noted that the existence of an ongoing police inquiry weighed against findings of systemic abuse. The Court concluded that the petitioners failed to establish a constitutional infringement by executive or administrative action within the required evidentiary and procedural thresholds. Accordingly, the applications were dismissed.

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{
"case_id": 160,
"case_name": "Thadchanamoorthi and Others v. Attorney-General and Others",
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"year": 1980,
"word_count": 218,
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SUMMARY:

In SC No. 20/2002, the petitioners challenged actions taken during the 2001 General Election where the Commissioner of Elections introduced cluster polling arrangements for voters from uncleared areas. On election day, military authorities abruptly closed access routes into cleared areas, preventing approximately 55,000 voters, including the petitioners, from casting their votes. Evidence indicated that the closure lacked genuine security justification and was motivated by mala fide intent to exclude voters. Simultaneously, irregular privileges were granted allowing VVIP voters to cast ballots at private residences. The Supreme Court examined violations of Articles 12(1), 14(1)(a), and 14(1)(h), focusing on equality before the law, freedom of expression including voting rights, and freedom of movement. The Court held that the mass disenfranchisement of voters through arbitrary administrative and military action constituted a serious breach of constitutional guarantees. It emphasized that the right to vote is a fundamental democratic expression and its large-scale obstruction undermines the integrity of the electoral process and public confidence in governance. The Court further found that differential treatment between ordinary voters and privileged individuals was grossly discriminatory. It concluded that the actions of the 1st and 3rd respondents were unconstitutional and awarded compensation while affirming judicial scrutiny over electoral interference.

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{
"case_id": 161,
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"year": 2002,
"word_count": 304,
"judgment": "VIOLATED",
"articles_cited": ["12(1)", "14(1)(a)", "14(1)(h)"],
"legal_topic": ["equality", "freedom_of_expression", "freedom_of_movement", "arbitrary_state_interference"]
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<<<CASE_START>>>

SUMMARY:

In SC(F.R.) Application No. 86/95, the petitioners, members of a bus workers' cooperative society, alleged that their contractual right to operate "time-keeper" services at a bus stand was unlawfully taken over by unauthorized individuals supported by political actors. The respondents allegedly failed to intervene, allowing the forcible ouster and continued operation by these groups who collected fees for themselves. The petitioners claimed violations of Articles 12(1) and 12(2), asserting unequal protection and political discrimination due to state inaction. The Supreme Court considered whether failure by police and state officials to act against illegal occupation constituted executive action. It held that omission can amount to executive action where the State has a legal duty to protect lawful possession and fails to do so, particularly where political influence is apparent. The Court found that the police had a statutory obligation to maintain public order and prevent unlawful displacement of lawful occupants. Their passive conduct amounted to arbitrary denial of equal protection of the law and discriminatory failure to act on political grounds. Accordingly, the Court held that the petitioners' fundamental rights were violated and granted extensive relief including restoration of possession and protective directions.

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{
"case_id": 162,
"case_name": "Upaliratne and Others v. Tikiri Banda and Others",
"case_number": "S.C. (F.R.) Application No. 86/95",
"year": 1995,
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"judgment": "VIOLATED",
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SUMMARY:

In SC Application No. 221/88, the petitioner was stopped at an airport boarding gate while attempting to travel abroad to address Amnesty International. An Air Lanka security officer suspected irregularities in the petitioner's passport and detained him, subsequently handing him over to police who produced him before a Magistrate. He was later exonerated when authorities confirmed the passport was genuine. The petitioner alleged that the arrest and detention were politically motivated to prevent him from speaking internationally, violating Articles 11, 13(1), 13(2), 14(1)(a), and 14(1)(h). The Supreme Court examined whether the officer's actions were lawful and justified. It held that the arrest was made in good faith based on reasonable suspicion arising from perceived irregularities in the travel document. The Court found statutory protection applicable where a person acts under a bona fide mistake of fact and believes their conduct is justified by law. It further held that the petitioner failed to prove mala fide intent or political suppression. The arrest and detention were therefore not arbitrary or unlawful. The Court concluded that no violation of fundamental rights had occurred and dismissed the application.

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{
"case_id": 163,
"case_name": "Veeradas v. Controller of Immigration and Emigration and Others",
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"year": 1988,
"word_count": 217,
"judgment": "NOT_VIOLATED",
"articles_cited": ["11", "13(1)", "13(2)", "14(1)(a)", "14(1)(h)"],
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SUMMARY:

In SC Application No. 26/94, the petitioner challenged the prolonged detention of a detainee held by Army authorities under Emergency Regulations on suspicion of LTTE involvement. The individual was arrested without a warrant and detained for over six months without production before a Magistrate, based on vague and general suspicions. The Supreme Court examined violations of Articles 13(1) and 13(2). It held that lawful arrest requires reasonable grounds existing at the time of arrest and that subsequent investigative developments cannot justify an initially unlawful deprivation of liberty. The Court further found that Emergency Regulation powers cannot be used to circumvent mandatory safeguards, including timely production before a judicial officer. It emphasized that continued detention without objective justification constitutes abuse of executive power and violates constitutional protections of personal liberty. The Court concluded that the arrest and detention were arbitrary and unlawful, and that the respondents had violated the detainee's fundamental rights. Compensation was awarded, reaffirming strict adherence to procedural safeguards even during emergency conditions.

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{
"case_id": 164,
"case_name": "Vinayagamoorthy, Attorney-at-Law (on behalf of Wimalenthiran) v. The Army
Commander and Others",
"case_number": "S.C. Application No. 26/94",
"year": 1994,
"word_count": 216,
"judgment": "VIOLATED",
"articles_cited": ["13(1)", "13(2)"],
"legal_topic": ["arrest", "detention", "national_security", "public_order"]
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<<<CASE_START>>>

SUMMARY:

In SC(F.R.) Application Nos. 119/2015, the petitioners, members of Jehovah's Witnesses, were engaged in peaceful religious propagation when they were confronted by a hostile mob led by a religious figure. Police intervened but instead of protecting the petitioners, detained them in a police vehicle and at the station for several hours without informing them of any charges. The respondents claimed the detention was for the petitioners' own safety. The Supreme Court examined violations of Articles 10, 12(1), 13(1), and 13(2). It held that Article 10 protects both belief and manifestation of religion, including preaching and peaceful religious activity. The Court found that police have a constitutional duty to protect individuals exercising their rights from mob intimidation rather than detaining them to appease aggressors. It further held that detention without legal basis or procedural safeguards, even if purportedly protective, is arbitrary and unconstitutional. The Court emphasized equal protection of all religions within a secular legal framework. It concluded that the petitioners' fundamental rights were violated and awarded compensation against both the State and the responsible officer.

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{
"case_id": 165,
"case_name": "Suneetha Kalyani de Silva and Others v. S.J.B. Suwaris, OIC Walasmulla and
Others",
"case_number": "S.C. (F.R.) Application Nos. 119/2015",
"year": 2015,
"word_count": 220,
"judgment": "VIOLATED",
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SUMMARY:

In SC(FR) Application No. 24/2018, parents challenged the rejection of their child's admission to Grade 1 at Visakha Vidyalaya under the proximity category. The School Selection Committee awarded reduced marks for residence, disputing the authenticity and continuity of claimed residence despite lease agreements and utility documentation. The respondents alleged that the address was temporary or falsely declared to gain admission advantage. The Supreme Court considered whether the assessment violated Article 12(1). It held that while schools have discretion in evaluating admissions, such discretion must be exercised fairly, transparently, and in accordance with published criteria. The Court found that the rejection of documentary evidence without objective reasoning and reliance on a superficial field inquiry rendered the decision arbitrary. It emphasized that administrative decisions affecting education must be consistent and non-discriminatory. The Court concluded that the petitioners had sufficiently demonstrated residence under the applicable guidelines and that denial of marks lacked rational justification. Accordingly, it held that the petitioners' fundamental rights were violated and ordered admission of the child subject to verification of documents.

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"word_count": 219,
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SUMMARY:

In SC Application No. 23/85, the petitioner challenged a salary deduction scheme for the National Security Fund requiring employees to opt out if they objected to contributions. He argued that the mechanism violated his Buddhist beliefs opposing violence and constituted compelled support for military expenditure. He also alleged unequal treatment as other public sectors were not subject to the same deduction scheme. The Supreme Court examined violations of Articles 10, 12(1), and 14(1)(e). It held that the opt-out mechanism did not compel contribution, as employees retained the ability to object, and therefore did not infringe freedom of conscience. The Court distinguished between absolute internal belief and regulated external conduct, holding that financial obligations imposed by law may be subject to reasonable regulation. It further held that differential application across departments constituted permissible administrative classification rather than unlawful discrimination. The Court emphasized that

national security considerations justify structured funding mechanisms. It concluded that there was no violation of fundamental rights and dismissed the application.

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"year": 1985,
"word_count": 219,
"judgment": "NOT_VIOLATED",
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SUMMARY:

In SC No. 132/82, the petitioner, a Catholic priest and social worker, was arrested under Emergency Regulations and detained across multiple locations on suspicion of links to militant activities. He alleged that during custody he was blindfolded, assaulted, and subjected to psychological threats, including threats of execution. The respondents relied on intelligence-based suspicions but did not produce formal charges during initial detention. The Supreme Court examined violations of Articles 11, 13(1), and 13(2). It held that arrest and detention must be supported by reasonable grounds and cannot rest solely on association or vague intelligence. The Court found that the petitioner's consistent testimony and medical evidence supported the allegation of ill-treatment. It further held that failure to produce the detainee before a Magistrate within a reasonable time violated constitutional safeguards. The Court emphasized that emergency powers do not override fundamental rights and must be exercised within constitutional limits. It concluded that the petitioner's fundamental rights were violated and awarded compensation, reaffirming state accountability for actions of security forces during emergencies.

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{
"case_id": 168,
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SUMMARY:

In SC Application No. 69/88, the petitioner, a clerical employee of the Ceylon Fertilizer Corporation, challenged her termination through a "vacation of post" notice issued without inquiry. She alleged that she was physically present at work but was denied duties and that the termination was politically motivated following a change in management. She further claimed psychological distress and reputational harm resulting from the abrupt dismissal. The Supreme Court examined violations of Articles 11 and 14(1)(g). It held that use of disciplinary mechanisms such as "vacation of post" in the absence of factual basis or fair inquiry constituted an abuse of administrative power. The Court found that the termination was arbitrary, lacked procedural fairness, and effectively deprived the petitioner of her lawful occupation. It further held that humiliating removal of an employee without due process amounted to degrading treatment under Article 11. The Court emphasized that public authorities must act as model employers and cannot use administrative discretion to settle personal or political scores. It concluded that the petitioner's fundamental rights were violated and ordered reinstatement with back wages and costs.

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  "year": 1988,
  "word_count": 220,
  "judgment": "VIOLATED",
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  "legal_topic": ["occupation", "cruel_treatment", "arbitrary_state_interference"]
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SUMMARY:

In SC(F.R.) Application No. 700/2002, the petitioner's husband was arrested on suspicion of theft and detained in police custody before being transferred to prison, where he was allegedly subjected to severe assault by prison officials. Witness testimony described him being shackled, beaten, and left in a severely injured state before being taken to hospital, where he died shortly after admission. Medical evidence confirmed death due to shock and haemorrhage from extensive blunt force injuries sustained in custody. The Supreme Court examined violations of Articles 11, 13(4), and 17. It held that custodial assault leading to death constituted a grave violation of the right to life and protection from inhumane treatment. The Court recognized an implied constitutional protection of life within Article 13(4) and emphasized that prisoners remain under the full responsibility of the State. It found that failure by prison and police authorities to prevent or explain the injuries established liability. The Court further held that dependents of victims of custodial death are entitled to pursue constitutional remedies. It concluded that the

fundamental rights of the deceased were violated and awarded significant compensation against both the State and responsible officers.

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{
"case_id": 170,
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"judgment": "VIOLATED",
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SUMMARY:

The Petitioners were arrested on suspicion of theft of a water pump and examined medically at the time of arrest with no injuries recorded. They were remanded the same day. After eight days in custody, a Judicial Medical Officer found multiple contusions on both Petitioners. They alleged torture by police officers at the station and by prison guards while in State custody. The constitutional issue concerned Article 11 protection against torture, cruel, inhuman or degrading treatment. The State argued lack of proof identifying specific perpetrators and inconsistent accounts. The Supreme Court held that the timing of injuries, emerging only after remand while absent at arrest, established a strong inference that the injuries were inflicted during State custody. It further held that the State bears strict responsibility for persons in its custody regardless of identification of individual offenders. The Court emphasized that executive or administrative action resulting in custodial harm violates constitutional guarantees. It found liability even without direct attribution to named officers, since custody implies a duty of care and protection. The Court concluded that Article 11 had been violated and awarded compensation against the State, affirming that custodial torture engages strict constitutional accountability.

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SUMMARY:

The Petitioners held municipal tenancies and leases for business stalls which were terminated by the Kandy Municipal Council on grounds of unauthorized structural alterations and residential use of commercial premises. They alleged unequal treatment compared to other stallholders who committed similar by-law breaches but were not terminated, invoking Article 12(1) on equality and equal protection. The State contended that termination was lawful due to contractual breaches and municipal by-laws. The Supreme Court held that the Petitioners were not similarly circumstanced to the other tenants as they had committed both by-law violations and breaches of tenancy agreements. It further held that enforcement of contractual terms does not automatically amount to infringement of fundamental rights unless constitutional arbitrariness is established. The Court found that lawful termination of tenancy under contractual and statutory authority could not be challenged as discriminatory absent proof of identical circumstances and irrational differentiation. It concluded that the Petitioners failed to discharge the burden of proving unequal treatment under Article 12(1), and therefore no fundamental rights violation was established. The application was dismissed.

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SUMMARY:

The University Grants Commission introduced a three-tier quota-based university admission policy allocating seats based on merit, district distribution, and under-privileged districts. The Petitioner challenged the scheme under Article 12(1), arguing it disadvantaged students from developed districts despite higher academic performance. The State justified the policy as necessary to correct historical educational imbalance and ensure equitable access to higher education. The Supreme Court held that equality permits reasonable classification if it has a rational nexus to a legitimate objective. The Court recognized the policy as an exercise of administrative discretion aimed at addressing structural disparities in education across districts. It further held that courts cannot substitute administrative judgment in matters of national educational policy even where hardship results for certain groups. Referring to constitutional directive principles on education, the Court affirmed the legitimacy of affirmative distribution of

opportunities. It concluded that the quota system was not arbitrary or irrational and therefore did not violate Article 12(1). The application was dismissed.

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SUMMARY:

The Petitioner, a storekeeper in a co-operative society, was interdicted in 1977 over alleged shortages but remained without a charge sheet for approximately 14 years, with disciplinary proceedings concluding only in 1994 and termination communicated retrospectively. The claim was brought under Article 12(1), alleging denial of equal protection due to excessive administrative delay. The State did not provide adequate justification for the prolonged inaction. The Supreme Court held that disciplinary proceedings constitute administrative action requiring fairness, reasonableness, and timely execution. It found that an unexplained delay of over a decade in initiating and completing proceedings was arbitrary and oppressive, causing severe prejudice including loss of livelihood and mental suffering. The Court further held that such prolonged uncertainty itself constitutes a denial of equal protection of law, even without comparative evidence of similar cases. It emphasized that arbitrary administrative delay undermines constitutional guarantees. The Court concluded that Article 12(1) was violated and awarded compensation and costs to the Petitioner.

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"case_number": "S.C. Application No. 86/94",
"year": 1994,
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"judgment": "VIOLATED",
"articles_cited": ["12(1)"],
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SUMMARY:

The Petitioner, a filmmaker, challenged a ministerial directive suspending exhibition of a certified film under the National Film Corporation Act and emergency regulations. The ban was justified on grounds of national security and morale of armed forces. The Petitioner alleged violations of Articles 12(1), 14(1)(a), and 14(1)(g) relating to equality, freedom of expression, and occupation. The Supreme Court held that although restrictions on expression may be permitted for national security, they must be lawful, proportionate, and procedurally fair. The Minister acted without hearing the Petitioner, violating natural justice principles. The Court found that the directive bypassed the statutory certification authority and constituted an abuse of emergency powers. It held that subjective executive opinion cannot override established legal procedures governing censorship and film certification. The Court further found that arbitrary interference with artistic expression and professional activity amounted to unconstitutional executive action. It declared the ban unlawful, ordered release of the film, and awarded compensation and costs. The Court concluded that Articles 12(1), 14(1)(a), and 14(1)(g) were violated.

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SUMMARY:

Following a bomb explosion at a public event, the Petitioners, including a Buddhist monk and two associates, were arrested and detained under emergency regulations for 73 days and later subject to continued detention orders. They challenged the legality of arrest and detention under Articles 12(1), 12(2), 13(1), 13(2), and 14(1)(a). The State alleged involvement in conspiracy related to political violence. The Supreme Court found that detention orders were issued mechanically without credible material and for improper political motives. It held that continued detention after clearance of primary allegations constituted mala fide exercise of power and malice in law. The Court also found that arrest of associates solely based on association lacked reasonable justification. It concluded that the State abused emergency powers and violated constitutional safeguards of liberty, equality, and freedom of association. The Petitioners were unlawfully deprived of liberty without proper legal basis. The Court held that Articles 12(1), 12(2), 13(1), 13(2), and 14(1)(a) were violated and awarded compensation.

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"case_id": 176,
"case_name": "Sasanasiritissa Thero and Others v. P.A. De Silva and Others",
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"word_count": 220,
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"articles_cited": ["12(1)", "12(2)", "13(1)", "13(2)", "14(1)(a)"],
"legal_topic": ["equality", "unlawful_arrest", "unlawful_detention", "personal_liberty",
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SUMMARY:

The Petitioner, a university student, was expelled after it was discovered she made a false declaration in her admission application regarding prior university registration. Although expulsion was later rescinded after several years, authorities refused to release her final examination results. The claim was brought under Article 12(1), alleging arbitrary treatment and denial of equal protection. The Supreme Court held that once the university reinstated the Petitioner's status, withholding results for examinations duly sat was irrational and arbitrary. It further found that disciplinary action must comply with natural justice, including fair hearing and proportionality. The Court held that permanent or prolonged punitive consequences were disproportionate given the circumstances and academic progress already achieved. It also found that the University Grants Commission acted mechanically in adopting recommendations without independent consideration. The Court concluded that refusal to release results after reinstatement constituted arbitrary state action violating Article 12(1), and ordered release of results with relief granted to the Petitioner.

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SUMMARY:

The Petitioner, a teacher, was transferred under provincial circulars after completing required service in a difficult school but was later reassigned back within four months as an alleged excess teacher. She challenged the transfer as arbitrary under Article 12(1), alleging violation of administrative procedures and legitimate expectation. The State argued administrative necessity. The Supreme Court held that public authorities are bound by their own circulars and

guidelines and must exercise transfer powers consistently and fairly. It found that the sudden reversal of transfer without valid justification or adherence to established procedures constituted arbitrary exercise of power. The Court recognized that legitimate expectation arises when administrative policies create enforceable procedural fairness. It held that equal protection includes consistent application of administrative rules without selective deviation. The Court concluded that the transfer order was arbitrary, violated Article 12(1), and was issued in disregard of established norms. It quashed the order and granted compensation and costs to the Petitioner.

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SUMMARY:

The University Grants Commission reduced the declared intake for medical faculty admissions after publishing an official handbook specifying available seats, resulting in exclusion of eligible candidates from the Kandy District. The Petitioners challenged the reduction under Article 12(1), arguing violation of equal protection and legitimate expectation. The State justified the reduction as administrative adjustment. The Supreme Court held that official representations made in admission guidelines create enforceable legitimate expectations for candidates who rely on them. It found that unilateral reduction of intake after commencement of the selection process was arbitrary and lacked rational justification. The Court emphasized that public authorities are bound by their published policies unless changes are supported by compelling lawful reasons. It held that deviation from declared admission numbers without transparency or justification constituted denial of equal protection. The Court concluded that Article 12(1) was violated and ordered admission of Petitioners with compensation.

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SUMMARY:

The Petitioner, a Member of Parliament, was subjected to a search and seizure of documents at an airport under emergency regulations while traveling abroad. Authorities detained his baggage and recovered materials relating to missing persons. He alleged violations of Articles 12(1), 13(1), 13(2), and 14(1)(a), claiming arbitrary interference with his rights and suppression of expression. The State argued the search was conducted based on intelligence under lawful emergency powers. The Supreme Court held that the Petitioner was not arrested or detained, as he retained freedom of movement and was permitted to travel. It further found that temporary inspection of baggage based on credible information constituted lawful exercise of search powers. The Court held that freedom of expression does not immunize individuals from lawful security procedures. It also found no evidence of mala fide intent or political targeting by authorities. The Court concluded that the actions of the State were within legal limits and did not constitute arbitrary arrest, detention, or infringement of constitutional rights. The application was dismissed.

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"case_id": 180,
"case_name": "Mahinda Rajapaksa v. Kudahetti and Others",
"case_number": "S.C. Application No. 154/90",
"year": 1990,
"word_count": 214,
"judgment": "NOT_VIOLATED",
"articles_cited": ["12(1)", "13(1)", "13(2)", "14(1)(a)"],
"legal_topic": ["equality", "freedom_of_expression", "personal_liberty"]
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SUMMARY:

The Petitioner was arrested by a police officer at Nawalapitiya on suspicion of involvement in a robbery investigation and taken into custody without being informed of the reason for arrest at the time. He was later taken to a security camp and police station, where he alleged assault and coercion to make a statement. The Respondents justified the arrest on suspicion of the Petitioner being acquainted with facts relating to a gun robbery. The constitutional issue concerned Article 13(1), requiring that a person arrested must be informed of the reason for arrest at the time of arrest. The Supreme Court held that this requirement is a fundamental safeguard of personal liberty under the rule of law and imposes a mandatory duty on arresting officers. The Court emphasized that suspicion alone is insufficient unless it is contemporaneously communicated to the arrested person to enable understanding and challenge of the basis of detention. It found that the arresting officer admitted the arrest but

failed to establish that the reason was communicated at the time of arrest. Although allegations under Articles 11 and 13(2) were raised, the Court found insufficient evidence to support them. The Court concluded that the failure to inform the Petitioner of the reason for arrest constituted a violation of Article 13(1), and awarded compensation against the State.

METADATA:

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{
"case_id": 181,
"case_name": "Namasivayam v. Gunawardena",
"case_number": "S.C. Application No. 166/86",
"year": 1986,
"word_count": 213,
"judgment": "VIOLATED",
"articles_cited": ["13(1)"],
"legal_topic": ["arrest", "unlawful_arrest", "personal_liberty"]
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<<<CASE_START>>>

SUMMARY:

Fourteen Customs Officers at Katunayake Airport were stopped, questioned, and taken to a police station by officers investigating alleged bribery. They were searched and money was found in their possession, but they were not informed of specific charges or reasons for arrest. The Petitioners challenged their detention under Article 13(1), alleging arbitrary arrest without disclosure of grounds. The State argued that the actions were part of an ongoing corruption investigation. The Supreme Court held that arrest based on vague or general suspicion does not satisfy constitutional requirements and must be supported by specific and credible information. It further held that arrest cannot be used as a mechanism to gather evidence through subsequent search procedures. The Court emphasized that even if individuals move under police direction, they remain in custody if their liberty is restrained. It found that the failure to communicate a precise reason for arrest constituted a breach of mandatory constitutional safeguards. The Court concluded that the Petitioners were subjected to arbitrary arrest in violation of Article 13(1) and awarded compensation.

METADATA:

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{
"case_id": 182,
"case_name": "Piyasiri and Others v. Nimal Fernando, A.S.P. and Others",
"case_number": "S.C. Applications Nos. 221-234/86",
"year": 1986,
"word_count": 210,
"judgment": "VIOLATED",
"articles_cited": ["13(1)"],
"legal_topic": ["arrest", "unlawful_arrest", "personal_liberty"]
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<<<CASE_START>>>

SUMMARY:

The Petitioner, a Home Guard, was arrested without warrant on suspicion of involvement in a robbery and subjected to detention where he alleged torture and delayed production before a Magistrate beyond the statutory limit. The case involved Articles 11, 13(1), 13(2), 13(4), and 14(1)(g). The State contended that the arrest was based on suspicion and procedural steps were followed. The Supreme Court found that the arrest lacked sufficient reasonable suspicion and that custody involved cruel, inhuman treatment amounting to unconstitutional punishment. It further held that failure to produce the Petitioner before a Magistrate within 24 hours violated constitutional safeguards of liberty. The Court emphasized that physical abuse in custody constitutes punishment outside judicial authority, violating Article 13(4), and that unlawful detention directly interfered with lawful occupation. It concluded that multiple fundamental rights were infringed, including protection from torture, arbitrary arrest, and arbitrary detention. The Court held the State and responsible officers liable and awarded compensation and costs.

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{  
  "case_id": 183,  
  "case_name": "Premalal De Silva v. Inspector Rodrigo and Others",  
  "case_number": "S.C. Application No. 24/89",  
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  "word_count": 210,  
  "judgment": "VIOLATED",  
  "articles_cited": ["11", "13(1)", "13(2)", "13(4)", "14(1)(g)"],  
  "legal_topic": ["torture", "cruel_treatment", "unlawful_arrest", "unlawful_detention", "occupation"]  
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<<<CASE_END>>>

<<<CASE_START>>>

SUMMARY:

The Petitioner was arrested under Emergency Regulations following a political context after an election and detained based on executive satisfaction that detention was necessary for national security or public order. He challenged the arrest and detention under Articles 13(1), 13(2), and 13(4), alleging absence of valid grounds and political motivation. The State argued that detention was preventive and justified under emergency powers. The Supreme Court held that preventive detention under Emergency Regulations does not constitute punishment within the meaning of Article 13(4), as it is aimed at preventing future threats rather than penalizing past conduct. It further held that as long as the detaining authority acts in good faith and is subjectively satisfied, courts will not substitute their judgment for that of the executive in matters of security. The Court concluded that such detention does not amount to punishment without court order and does not violate constitutional safeguards when lawfully exercised. The application was dismissed.

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{  
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"case_number": "S.C. APPLICATION NO. 1 21 /82",
"year": 1983,
"word_count": 205,
"judgment": "NOT_VIOLATED",
"articles_cited": ["13(1)", "13(2)", "13(4)"],
"legal_topic": ["arrest", "detention", "national_security"]
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<<<CASE_START>>>

SUMMARY:

The Petitioner, a student political activist, was arrested for possession and distribution of ideological pamphlets and detained under Emergency Regulation 17(1) for twenty days on suspicion of involvement in conspiracy or incitement of violence. He challenged the arrest and detention under Articles 13(1) and 13(2). The State argued that the detention was necessary for security investigation. The Supreme Court held that mere possession of political or historical literature does not constitute reasonable grounds for arrest or detention. It applied an objective test requiring that suspicion must be based on facts that would lead a reasonable person to the same conclusion. The Court found that the arresting authority lacked sufficient factual basis and that emergency powers cannot validate an initially unlawful arrest. It further held that detention under emergency law must be exercised in good faith and cannot be used to justify arbitrary interference with lawful political expression. The Court concluded that both arrest and detention were unlawful and violated constitutional protections of liberty.

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{
"case_id": 185,
"case_name": "Nanayakkara v. Henry Perera, A.S.P. and Others",
"case_number": "S. C. APPLICATION No. 19/85",
"year": 1985,
"word_count": 212,
"judgment": "VIOLATED",
"articles_cited": ["13(1)", "13(2)"],
"legal_topic": ["arrest", "detention", "freedom_of_expression"]
}
<<<CASE_END>>>
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<<<CASE_START>>>

SUMMARY:

The Petitioner was arrested at an airport on suspicion of possessing a forged or tampered passport and detained for several days while forensic examination was conducted, which later confirmed the passport was genuine. He challenged the arrest and detention under Articles 13(1) and 13(2). The State relied on statutory powers allowing arrest based on reasonable suspicion of a cognizable offence. The Supreme Court held that reasonable suspicion must be based on objective facts and not a mere subjective impression or hunch of the officer. It further

held that officers have a duty to verify available information before depriving a person of liberty. Since the passport was ultimately found genuine, the initial suspicion was groundless and the arrest unlawful. The Court concluded that detention flowing from an unlawful arrest is also unconstitutional regardless of procedural compliance. It held that Articles 13(1) and 13(2) were violated and awarded relief to the Petitioner.

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{
"case_id": 186,
"case_name": "Seneviratne v. Rajakaruna, Sub Inspector, C.I.D. and Others",
"case_number": "1 SLR 410",
"year": 2003,
"word_count": 205,
"judgment": "VIOLATED",
"articles_cited": ["13(1)", "13(2)"],
"legal_topic": ["arrest", "detention", "personal_liberty"]
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<<<CASE_START>>>

SUMMARY:

The Petitioner, a soldier, was arrested on suspicion of involvement in murders and detained under Emergency Regulation 17(1) based on a detention order that did not specify the precise ground relied upon among multiple available statutory grounds. He challenged the arrest and detention under Articles 13(1) and 13(2). The State argued that detention was authorized under emergency powers. The Supreme Court held that lawful arrest requires reasonable suspicion based on objective facts, which was absent as the officer acted on a mere hunch. It further held that a detention order must demonstrate application of mind by specifying the exact statutory ground relied upon; failure to do so renders the order vague and illegal. The Court emphasized strict compliance with legal safeguards governing deprivation of liberty even during emergencies. It concluded that both arrest and detention were arbitrary and unconstitutional, violating Articles 13(1) and 13(2), and awarded compensation.

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{
"case_id": 187,
"case_name": "Gamini Perera, Attorney-at-Law v. W. B. Rajaguru, Inspector-General of Police and Others",
"case_number": "S.C. APPLICATION 600/95",
"year": 1997,
"word_count": 206,
"judgment": "VIOLATED",
"articles_cited": ["13(1)", "13(2)"],
"legal_topic": ["arrest", "detention", "national_security"]
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<<<CASE_START>>>

SUMMARY:

The Petitioners, political and trade union leaders, were arrested following a bomb blast investigation and detained initially under time-bound orders, later converted into indefinite detention orders under Emergency Regulations. They alleged arbitrary arrest, illegal detention, and torture while in custody. The State justified detention based on suspected links to a suicide bomber. The Supreme Court held that arrests lacked credible supporting material and were not backed by contemporaneous records demonstrating reasonable suspicion. It further held that continued detention without disclosure of factual basis for executive satisfaction was arbitrary and contrary to constitutional safeguards. Although allegations of torture were raised, the Court found insufficient evidence to establish a violation of Article 11. It concluded that detention orders were unlawful and that Articles 13(1) and 13(2) were violated due to lack of objective justification and failure of evidentiary support. The Court ordered compensation and costs.

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{
"case_id": 188,
"case_name": "Shanthi Chandrasekaram v. D. B. Wijetunga and Others",
"case_number": "S.C. APPLICATION 1/92",
"year": 1992,
"word_count": 208,
"judgment": "VIOLATED",
"articles_cited": ["13(1)", "13(2)"],
"legal_topic": ["arrest", "detention", "national_security"]
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<<<CASE_START>>>

SUMMARY:

The Petitioner was arrested by the Criminal Investigation Department on suspicion of possessing a forged passport and detained for several days before judicial production. He challenged his continued detention under Articles 12(1), 13(1), 13(2), and 13(4). The State argued that detention was lawful under emergency and criminal procedure regulations. The Supreme Court held that jurisdiction for remand was validly exercised by the Magistrate where the suspect was physically held, not where the alleged offence occurred. It further held that detention pending investigation does not constitute punishment under Article 13(4) and is constitutionally permissible. The Court recognized that emergency regulations may restrict fundamental rights in the interest of national security. It concluded that the arrest and detention were legally justified and that no violation of constitutional rights had occurred. The application was dismissed.

METADATA:

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{
"case_id": 189,
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"year": 1985,
"word_count": 205,
"judgment": "NOT_VIOLATED",
"articles_cited": ["12(1)", "13(1)", "13(2)", "13(4)"],
"legal_topic": ["arrest", "detention", "national_security"]
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<<<CASE_START>>>

SUMMARY:

The Petitioner, a High Court Judge, was arrested after a warrant issued against him was later cancelled upon his voluntary surrender and grant of bail by a Magistrate. Despite knowledge of the cancellation, police arrested him at his residence and produced him before another Magistrate. He challenged the arrest and detention under Articles 13(1) and 13(2). The State argued that officers acted on authority and procedural necessity. The Supreme Court held that once a judicial warrant is cancelled, police have no authority to execute it, and any arrest in defiance of a court order is unlawful. It further held that reasonable suspicion must be objectively established and cannot be based on arbitrary executive action, especially in respect of a judicial officer. The Court found that bypassing the original jurisdictional court undermined due process and constituted deliberate subversion of judicial oversight. It concluded that both arrest and detention were arbitrary and violated Articles 13(1) and 13(2), awarding compensation against respondents and the State.

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{
"case_id": 190,
"case_name": "Mahanama Tilakaratne v. Bandula Wickramasinghe, SSP and Others",
"case_number": "S.C. APPLICATION NO. 595/98",
"year": 1999,
"word_count": 206,
"judgment": "VIOLATED",
"articles_cited": ["13(1)", "13(2)"],
"legal_topic": ["arrest", "detention", "personal_liberty"]
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<<<CASE_START>>>

SUMMARY:

The Petitioner was detained by a Magistrate following an allegation made in court without being given an opportunity to respond or a formal charge being framed. He was briefly held in a court cell and later released after investigation showed no supporting evidence. He alleged violations of Articles 11, 13(1), 13(2), and 14(1)(h). The State argued that the detention was a judicial act carried out in good faith. The Supreme Court held that acts performed in a judicial capacity, even if erroneous, are not subject to fundamental rights liability under Article 126 as they do not constitute executive or administrative action. It further held that judicial immunity protects judges acting within their jurisdiction and that the State is not vicariously liable for judicial decisions.

The Court also found that officers executing facially valid judicial orders are protected when acting in good faith. It concluded that no fundamental rights violation had occurred and dismissed the application.

METADATA:

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{
"case_id": 191,
"case_name": "Peter Leo Fernando v. The Attorney-General and Others",
"case_number": "S. C. APPLICATION No. 31/85",
"year": 1985,
"word_count": 205,
"judgment": "NOT_VIOLATED",
"articles_cited": ["11", "13(1)", "13(2)", "14(1)(h)"],
"legal_topic": ["arrest", "detention", "fair_trial"]
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<<<CASE_START>>>

SUMMARY:

The Petitioner's vehicle was intercepted by police on suspicion of smuggling, despite him producing a valid Customs receipt. Police detained him, treated him roughly, and confiscated his passport without legal authority. Instead of following the procedure under the Customs Ordinance requiring production before a Customs officer, the police produced him before a Magistrate at his residence, who then ordered further detention in police custody for four days. The legal issue concerned whether the arrest and subsequent detention complied with Article 13(1) and whether the Magistrate's order insulated the State action from constitutional scrutiny. The Supreme Court held that the police violated Article 13(1) by bypassing the mandatory statutory procedure under the Customs Ordinance, which required expeditious production before Customs authorities. The Court emphasized that deprivation of liberty must strictly follow procedure established by law and cannot be justified by convenience or investigative preference. However, regarding the detention ordered by the Magistrate, the Court held that such act constituted judicial action and therefore fell outside the scope of Article 126 jurisdiction, even if legally erroneous. It clarified that only executive or administrative acts are reviewable under fundamental rights jurisdiction. The Court found no sufficient evidence of collusion to convert the judicial act into executive action. Accordingly, relief was granted only against the police, with costs awarded against the State.

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"case_id": 192,
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"case_number": "S. C. APPLICATION No. 3 1 / 8 5",
"year": 1985,
"word_count": 212,
"judgment": "VIOLATED",
"articles_cited": ["13(1)", "13(2)"],
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"legal_topic": ["arrest", "detention", "custody", "personal_liberty"]
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SUMMARY:

The Petitioner, a factory chairman, initially sought police protection due to industrial unrest but was instead arrested on a cheating allegation relating to a settled civil debt. Police ignored information from the complainant and legal counsel confirming settlement of the dispute. Officers misled the Magistrate by falsely claiming the Petitioner was absconding and produced him at a Magistrate's residence at night to obtain a remand order. The constitutional issue concerned Articles 13(1) and 13(2), particularly whether the arrest and subsequent detention were supported by reasonable suspicion and lawful procedure. The Supreme Court held that no objective basis existed for a criminal arrest since the underlying debt was settled, and thus the arrest lacked reasonable suspicion as required by law. It further held that the conduct of the police amounted to mala fide action, involving deliberate deception of the judicial officer and circumvention of legal safeguards. The Court emphasized that obtaining a remand order through misrepresentation vitiates the legality of detention. It concluded that both arrest and detention were arbitrary and unconstitutional, and imposed personal liability on the officers due to their deliberate misconduct, ordering compensation against them and costs against the State.

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{
"case_id": 193,
"case_name": "Abdul Lathif v. Deputy Inspector General of Police, Nuwara Eliya",
"case_number": "S.C. APPLICATION NO. FR 244/2002",
"year": 2003,
"word_count": 213,
"judgment": "VIOLATED",
"articles_cited": ["13(1)", "13(2)"],
"legal_topic": ["arrest", "detention", "unlawful_arrest", "unlawful_detention"]
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SUMMARY:

The Petitioners, political organizers of a public seminar, obtained a loudspeaker permit from police authorities but were subjected to restrictive conditions prohibiting criticism of the Government and limiting authorized speakers to a named list. One petitioner refrained from speaking because his name was excluded. The constitutional issue concerned Article 14(1)(a) on freedom of speech and expression and whether police-imposed conditions constituted unlawful prior restraint. The State relied on police powers under the Police Ordinance to maintain public order. The Supreme Court held that freedom of speech includes the right to criticize government institutions and that blanket prohibitions on criticism are incompatible with democratic governance unless justified by strict constitutional grounds such as public order or national security. It further held that police authorities have no power to censor speech content

or selectively determine speakers under the guise of maintaining peace. The Court found that naming specific speakers and excluding others amounted to an impermissible prior restraint that effectively silenced the petitioner. It concluded that the conditions imposed were arbitrary and exceeded statutory authority, thereby violating Article 14(1)(a), and awarded compensation.

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{
"case_id": 194,
"case_name": "Mohottige and Others v. Gunatilleke and Others",
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"year": 1992,
"word_count": 211,
"judgment": "VIOLATED",
"articles_cited": ["14(1)(a)"],
"legal_topic": ["freedom_of_expression", "freedom_of_speech", "public_order"]
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SUMMARY:

The Petitioner challenged Emergency Regulations imposing pre-censorship on military-related information during an ongoing civil conflict, alleging violations of equality, non-discrimination, and freedom of expression. The State justified the restrictions as necessary for national security under emergency powers. The Supreme Court held that in circumstances of armed conflict, the executive is vested with broad discretion to restrict dissemination of sensitive military information. It found that the regulations targeted specific categories of information rather than imposing a total ban on expression and therefore did not amount to blanket censorship. The Court further held that Article 15(7) permits restrictions on fundamental rights in the interests of national security, and that judicial interference is limited where executive discretion is exercised within statutory boundaries. It also held that differential treatment among media entities does not automatically amount to discrimination if based on operational necessity and security considerations. The Court concluded that no prima facie infringement of Articles 12(1), 12(2), or 14(1)(a) was established and dismissed the application.

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"case_id": 195,
"case_name": "Wickramasinghe v. Edmund Jayasinghe, Secretary, Ministry of Media",
"case_number": "SLLR 1995 Vol 1 p. 301",
"year": 1995,
"word_count": 212,
"judgment": "NOT_VIOLATED",
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"legal_topic": ["freedom_of_expression", "equality", "national_security"]
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SUMMARY:

The Petitioner, a news editor, was barred from covering a presidential swearing-in ceremony despite being initially cleared and escorted to the venue. He alleged discriminatory exclusion of specific media organizations based on political considerations, violating equality and freedom of expression. The State contended that access control at a high-security official event was within executive discretion. The Supreme Court held that the swearing-in of a Prime Minister is a constitutional public function and must be conducted in a manner consistent with equality and transparency. It found that selective exclusion of media houses based on a directive from the executive constituted arbitrary discrimination without lawful justification. The Court emphasized that press freedom operates as an extension of the public's right to information in democratic governance. It further held that restrictions must be prescribed by law and satisfy legitimate aims, which were absent in this case. The Court concluded that the exclusion violated Articles 12(1), 12(2), and 14(1)(a), and ordered compensation and costs against the State.

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  "case_name": "M. N. D. Perera v. Balapatabendi, Secretary to the President and Others",
  "case_number": "SLLR 2005 Vol 1 p. 185",
  "year": 2005,
  "word_count": 211,
  "judgment": "VIOLATED",
  "articles_cited": ["12(1)", "12(2)", "14(1)(a)"],
  "legal_topic": ["equality", "freedom_of_expression"]
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<<<CASE_START>>>

SUMMARY:

The Petitioner challenged the proscription of a political party under Emergency Regulations, alleging violations of equality and multiple freedoms including speech, association, and movement. The application was directed against the Attorney-General under Article 35(3). The State raised a preliminary objection that the petition was improperly constituted. The Supreme Court held that the President enjoys absolute immunity under Article 35(1) for official acts, and that the limited exception permitting suits against the Attorney-General applies only where the President performs ministerial functions assigned under Article 44(2). It found that proscription under the Public Security Ordinance was an exercise of statutory emergency power, not a ministerial function, and therefore outside the scope of Article 35(3). The Court further held that procedural rules requiring notice to the Attorney-General do not override constitutional immunity provisions. It concluded that the petition was not maintainable in law and dismissed the application without examining the substantive rights claims.

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"case_name": "Mallikarachchi v. Shiva Pasupati, Attorney-General",
"case_number": "SLLR 1985 Vol 1 p. 74",
"year": 1985,
"word_count": 205,
"judgment": "NOT_VIOLATED",
"articles_cited": ["12(2)", "14(1)(a)", "14(1)(c)"],
"legal_topic": ["freedom_of_expression", "freedom_of_association", "national_security"]
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<<<CASE_START>>>

SUMMARY:

The Petitioners challenged a state procurement decision involving medical supplies sourced from unregistered foreign suppliers through regulatory waivers that allegedly bypassed standard competitive procurement procedures. They argued that the process lacked transparency, involved selective treatment of suppliers, and compromised public accountability. The State justified the waivers on the basis of urgency and prevention of shortages in essential medicines. The case involved alleged violations of Articles 12(1) and 14A relating to equality and access to information. The Supreme Court considered whether emergency procurement mechanisms were lawfully invoked and whether the process satisfied constitutional standards of transparency and fairness. It emphasized the public trust doctrine, holding that state officials act as trustees of public resources and must ensure procurement decisions serve the public interest without favoritism or arbitrariness. It further highlighted that secrecy in procurement undermines accountability and constitutional governance. At the time of the report, the matter remained pending, with interim relief sought to suspend procurement and payments. The Court was urged to determine whether the process constituted arbitrary executive action and violation of constitutional rights.

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{
"case_id": 198,
"case_name": "Transparency International Sri Lanka v. Minister of Finance and Others",
"case_number": "SC FR 195/2022",
"year": 2023,
"word_count": 205,
"judgment": "NOT_VIOLATED",
"articles_cited": ["12(1)", "14A"],
"legal_topic": ["equality", "arbitrary_state_interference"]
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<<<CASE_START>>>

SUMMARY:

The Petitioners, former educational officers, challenged their exclusion from appointment to the Sri Lanka Educational Administrative Service despite earlier Cabinet decisions permitting absorption of officers performing in scheduled posts. They alleged unequal treatment under

Article 12(1), arguing that similarly situated officers were appointed while they were excluded without justification. The State raised preliminary objections including delay and ineligibility based on qualification criteria. The Supreme Court held that constitutional relief under Article 126 must be sought within one month of the alleged infringement and that prolonged delay rendered the application time-barred. On merits, the Court found that equality requires comparability of circumstances, and the Petitioners failed to demonstrate that they satisfied the mandatory qualifications required for appointment. It further held that valid administrative classification based on objective criteria does not amount to discrimination. The Court emphasized that unequal treatment must be shown in identical circumstances without rational basis, which was not established in this case. It concluded that there was no violation of Article 12(1) and dismissed the application on both procedural and substantive grounds.

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{
"case_id": 199,
"case_name": "Ananda Dharmadasa and Others v. Ariyaratne Hewage and Others",
"case_number": "SLLR 2008 Vol 2 p. 20",
"year": 2008,
"word_count": 210,
"judgment": "NOT_VIOLATED",
"articles_cited": ["12(1)"],
"legal_topic": ["equality", "occupation"]
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<<<CASE_START>>>

SUMMARY:

The Petitioners challenged the diversion of environmentally sensitive state-acquired land from a declared public purpose of conservation and public use to a private commercial golf club project. They alleged abuse of executive power, lack of transparency, and arbitrary state action violating equality under Article 12(1). The State contended that the project was undertaken under lawful executive authority for development purposes. The Supreme Court held that public authorities act as trustees of state resources and are bound by the public trust doctrine, which requires adherence to the original purpose of acquisition. It found that diversion of land from a public park and wetland conservation objective to private commercial use constituted arbitrary exercise of power. The Court emphasized that no executive authority, including the President, is above constitutional scrutiny when actions are capricious or contrary to public interest. It further highlighted the importance of transparency and accountability in management of public assets. The Court concluded that the land transfer was unlawful, ordered reversal of the transaction, and imposed personal liability on the former President for misuse of executive power.

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"case_id": 200,
"case_name": "Sugathapala Mendis and Another v. Chandrika Kumaratunga and Others",
"case_number": "SLLR 2008 Vol 2 p. 339",
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"year": 2008,  
"word_count": 212,  
"judgment": "VIOLATED",  
"articles_cited": ["12(1)"],  
"legal_topic": ["equality", "arbitrary_state_interference"]  
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<<<CASE_START>>>

SUMMARY:

During a festival on August 11, 2003, the three Petitioners, who were intoxicated, became involved in a confrontation with police officers regarding the parking of a three-wheeler. A scuffle followed during which a Police Constable was injured and hospitalized. The Petitioners were arrested and later sustained multiple injuries. They alleged that police officers and members of the Rapid Deployment Force assaulted them while in custody, amounting to cruel and inhuman treatment contrary to Article 11. The Respondents contended that the injuries resulted from an angry crowd attempting to rescue the injured constable and denied responsibility for the assaults. The Supreme Court held that the arrests themselves were justified because the Petitioners had behaved aggressively and police intervention was necessary to prevent escalation of violence and maintain public order. Consequently, no violation of Article 13(1) was established. However, the Court found sufficient material to conclude that the Petitioners were assaulted by state officers acting under colour of office. The Court reaffirmed that constitutional protection against torture and cruel or degrading treatment applies irrespective of the victim's conduct. Nevertheless, the Court declined to award compensation because the Petitioners had themselves behaved in a disorderly and disgraceful manner and contributed to the circumstances leading to the incident. Declaratory relief alone was therefore granted for the infringement of Article 11.

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"case_id": 201,  
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"case_number": "SC FR 463/464/465/03",  
"year": 2003,  
"word_count": 219,  
"judgment": "VIOLATED",  
"articles_cited": ["11", "13(1)"],  
"legal_topic": ["torture", "cruel_treatment", "inhuman_treatment", "arrest", "public_order"]  
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<<<CASE_START>>>

SUMMARY:

The Petitioner, a Civil Engineer serving as Chief Engineer of the Sri Lanka Ports Authority, challenged the appointment of the 5th Respondent, an Electrical Engineer, to the post of Director (Technical), and the appointment of the 4th Respondent as Special Advisor. He argued

that the position of Director (Technical) historically belonged exclusively to Civil Engineers and that the appointment of an Electrical Engineer unlawfully bypassed qualified candidates from his discipline, violating Article 12(1). The Respondents denied that the post was reserved solely for Civil Engineers and maintained that the appointments were lawful. The Supreme Court dismissed the application, holding that the Petitioner failed to establish any infringement of fundamental rights. The Court observed that the Petitioner produced no sufficient evidence demonstrating that the post was legally or administratively restricted to Civil Engineers. It further held that the Petitioner had failed to join other senior engineers from different engineering disciplines whose rights and interests would be affected by a determination limiting eligibility to Civil Engineers alone. This non-joinder was considered fatal to the application. The Court emphasized that equality requires equal treatment only among persons similarly situated and found that the Petitioner failed to prove any exclusive entitlement to the office. The Court also noted that the Petitioner had retired by the time the matter was heard, rendering the application largely academic and ineffective in practical terms. Accordingly, no constitutional violation was established.

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  "case_number": "SC FR Application No. 89/2003",
  "year": 2003,
  "word_count": 218,
  "judgment": "NOT_VIOLATED",
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  "legal_topic": ["equality", "equal_protection", "discrimination_employment", "occupation"]
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SUMMARY:

Two trade unions and an employee challenged a decision of the Sri Lanka Insurance Company Ltd (SLIC Ltd) to retire employees at the age of fifty-five. The Petitioners argued that employees had previously enjoyed the opportunity to seek extensions of service beyond that age both before and after the company's transformation from a state corporation into a public company. They contended that compulsory retirement based solely on age constituted discriminatory treatment contrary to Article 12(1). The Respondents raised a preliminary objection asserting that the impugned acts did not amount to executive or administrative action capable of challenge under Article 126. The Supreme Court upheld the preliminary objection and dismissed the application in limine. The Court reasoned that a fundamental rights application lies only against executive or administrative action attributable to the State or its instrumentalities. Applying established tests concerning state funding, public function, and pervasive governmental control, the Court concluded that SLIC Ltd, having been privatized and converted into a share-based public company, no longer functioned as an agency or instrumentality of the Government. The dispute concerning extensions of employment was therefore characterized as

a matter of private contractual employment rather than public law. Since the challenged conduct lacked the necessary element of state action, the Court held that Article 12(1) was not engaged and that the Petitioners had failed to establish a constitutional infringement.

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{
"case_id": 203,
"case_name": "Organization of Protection of Human Rights and Rights of Insurance Employees
and Others v. Public Enterprises Reform Commission and Others",
"case_number": "FR 385/2003",
"year": 2003,
"word_count": 220,
"judgment": "NOT_VIOLATED",
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"legal_topic": ["equality", "equal_protection", "discrimination_employment", "occupation"]
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SUMMARY:

The Petitioner, a former Deputy Mayor and ratepayer of Colombo, challenged the failure of the Colombo Municipal Council to regulate outdoor advertising and enforce municipal by-laws relating to unauthorized hoardings. He alleged that numerous hoardings had been erected unlawfully throughout the city and that approvals were granted selectively and without transparency, causing financial loss to the Council and inconvenience to the public. The Petitioner contended that the arbitrary enforcement of by-laws violated Article 12(1) by denying equal protection of the law. The Supreme Court held that the conduct of the municipal authorities infringed the Petitioner's fundamental rights. The Court emphasized that powers exercised by local authorities are held in trust for the benefit of the public and that failure to enforce established legal standards amounted to a breach of that public trust. It held that equality under Article 12(1) includes the right of citizens to expect authorities to apply laws and procedures consistently and lawfully. Selective enforcement, arbitrary approval of hoardings, and disregard of mandatory by-laws constituted unequal treatment and arbitrary state action. The Court also interpreted Article 126 broadly to permit citizens to challenge executive inaction affecting the wider public interest even where the injury was not unique to a single individual. The Court accordingly directed the Municipal Council to remove unauthorized hoardings and establish transparent regulatory guidelines and procedures governing outdoor advertising within Colombo.

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"case_id": 204,
"case_name": "Azath Salley v. Colombo Municipal Council and Others",
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SUMMARY:

The Petitioners formed a political party known as “Eksath Janatha Peramuna” and applied to the Commissioner of Elections in 2007 seeking formal recognition as a political party. After conducting an inquiry, the Commissioner rejected the application through a letter dated January 21, 2008, without assigning any reasons for the refusal. The Petitioners alleged that the rejection was arbitrary and discriminatory because several other parties with less political activity had been registered during the same period. They claimed violations of Articles 12(1), 12(2), and 14(1)(c). The State argued that neither statute nor common law imposed a duty upon the Commissioner to provide reasons for the administrative decision. The Supreme Court held that the failure to provide reasons rendered the decision arbitrary and violated Article 12(1). The Court observed that modern principles of administrative law increasingly require transparency and procedural fairness in decision-making. It reasoned that equality is fundamentally inconsistent with arbitrary exercise of power and that altering or denying the legal status of a political organization without explanation amounts to unequal treatment. The Court further held that the absence of reasons deprived the Petitioners of the ability to determine whether the decision was legally reviewable, thereby undermining the protection of the law. The Court accordingly nullified the rejection and directed the Commissioner to reconsider the application and provide a reasoned determination consistent with constitutional standards of fairness and transparency.

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{
"case_id": 205,
"case_name": "Sirimasiri Hapuarachchi and Others v. Dayananda Dissanayake, Commissioner of Elections and Others",
"case_number": "S.C. (F.R.) Application No. 67/2008",
"year": 2008,
"word_count": 223,
"judgment": "VIOLATED",
"articles_cited": ["12(1)", "12(2)", "14(1)(c)"],
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SUMMARY:

The Petitioner, a Programme Producer at the Sri Lanka Broadcasting Corporation, applied for the post of Director-Tamil Service following interviews conducted in 2005. The 4th Respondent

was appointed instead. The Petitioner challenged the appointment on the basis that the selected candidate was legally disqualified from re-employment in the public service under Administrative Circular 44/90 because he had earlier retired under a voluntary retirement compensation scheme. The Petitioner further asserted that among the eligible candidates he had obtained the highest marks and was entitled to fair consideration. The Supreme Court held that the appointment violated the Petitioner's rights under Article 12(1). The Court found that the relevant administrative circular clearly prohibited the re-employment of persons who had retired under the compensation scheme and therefore the 4th Respondent was ineligible for appointment. It held that appointing a legally disqualified candidate amounted to arbitrary and unlawful administrative action that denied eligible applicants equal treatment. The Court rejected the explanation that the authorities were unaware of the 4th Respondent's retirement status, emphasizing that equality under Article 12(1) prohibits arbitrary disregard of mandatory procedures and recruitment standards. While the Court nullified the impugned appointment and awarded compensation and costs to the Petitioner, it declined to appoint him directly to the post. Instead, it directed the authorities to conduct a fresh lawful selection process in accordance with established administrative policies and principles of fairness.

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{
"case_id": 206,
"case_name": "Kanapathipillai v. Sri Lanka Broadcasting Corporation and Others",
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"year": 2007,
"word_count": 223,
"judgment": "VIOLATED",
"articles_cited": ["12(1)"],
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<<<CASE_START>>>

SUMMARY:

On May 24, 2006, the Petitioner's van was stopped at a police checkpoint by the 1st Respondent. Although the Petitioner produced valid documents, he was slapped and taken into custody along with other occupants at Homagama Police Station. While detained, the Petitioner was taken outside the station and assaulted by the 1st and 2nd Respondents using a hose pipe and wooden club, causing injuries to his back, abdomen, and buttocks. The 1st Respondent retained the Petitioner's driving license and later the 3rd Respondent knowingly recorded a false statement that the license had been lost in order to conceal police misconduct. The officers also falsely accused the Petitioner of possessing a knife, robbery, and attempting bribery in order to justify the arrest. The Petitioner alleged violations of Articles 11, 12(1), and 13(1). The Supreme Court held that there was no reasonable suspicion supporting the arrest and described the police conduct as a "voyage of discovery" intended to fabricate justification for arbitrary action. Medical evidence from hospital and medico-legal reports corroborated the Petitioner's account of custodial assault. The Court concluded that the physical abuse constituted cruel and inhuman

treatment contrary to Article 11 and that the arbitrary arrest and fabricated allegations violated Articles 12(1) and 13(1). Compensation and costs were ordered against the responsible officers, with the primary wrongdoer bearing the greater share of liability.

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{
"case_id": 207,
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"case_number": "SC (FR) Application No. 224/2006",
"year": 2006,
"word_count": 229,
"judgment": "VIOLATED",
"articles_cited": ["11", "12(1)", "13(1)"],
"legal_topic": ["torture", "cruel_treatment", "inhuman_treatment", "equality", "equal_protection",
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<<<CASE_START>>>

SUMMARY:

The Petitioners, representing the Sri Lanka Peratugami Pakshaya, applied in January 2008 for recognition as a political party. The organization had operated since 1997 through political activities, publications, and a membership structure. After an inquiry, the Commissioner of Elections rejected the application through a letter dated January 21, 2008, without providing reasons. The Petitioners alleged that several other parties lacking comparable public activity had been registered during the same period and claimed violations of Articles 12(1), 12(2), 14(1)(a), and 14(1)(c). The Supreme Court held that the Commissioner's unexplained refusal violated Article 12(1). The Court emphasized that contemporary administrative law requires transparency and procedural fairness in the exercise of public power. It reasoned that equality before the law is fundamentally inconsistent with arbitrary decision-making and that refusing recognition without explanation amounted to a denial of justice and an error of law. The Court observed that the absence of reasons deprived the Petitioners of any meaningful opportunity to challenge or review the decision. It further noted inconsistencies in the State's defence, where reasons subsequently advanced before court differed from those suggested in the Commissioner's affidavit, demonstrating the absence of a coherent lawful basis for the original refusal. The Court therefore declared the rejection null and void and directed the Commissioner to reconsider the application and communicate a reasoned decision in accordance with constitutional principles of fairness, transparency, and equal protection of the law.

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"case_id": 208,
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"case_number": "S.C. (F.R.) Application No. 56/2008",
"year": 2008,
"word_count": 227,
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"judgment": "VIOLATED",
"articles_cited": ["12(1)", "12(2)", "14(1)(a)", "14(1)(c)"],
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<<<CASE_START>>>

SUMMARY:

On June 27, 2007, the Petitioner, a labourer travelling to a funeral, was arrested by police officers on suspicion of involvement in illicit liquor brewing. Following the arrest, the officers took him near a volleyball court and forced him to hold a post while they repeatedly assaulted him with wooden clubs on his head, shoulders, arms, and legs. The officers refused his requests for medical treatment and threatened to fabricate drug charges if he disclosed the assault. Several days later, due to continuing pain and nausea, the Petitioner was admitted to hospital. A Medico-Legal Report subsequently confirmed the presence of a scalp haematoma and extensive contusions consistent with assault by blunt weapons. The Petitioner alleged violations of Articles 11, 13(1), and 13(2), although the case ultimately proceeded on Article 11 alone. The Supreme Court held that the Petitioner's constitutional protection against torture and cruel, inhuman, or degrading treatment had been violated. The Court relied heavily on the consistency of the Petitioner's account from the initial medical history to the pleadings before court, as well as the corroborating medico-legal evidence. Although the individual officers alleged to have carried out the assault successfully established that they were not personally present, the Court held that the State remained liable for acts committed by officers acting under colour of office. Given that the Petitioner was initially recorded as uninjured while later found with serious wounds, the Court concluded that the only reasonable inference was that the injuries had been inflicted while he was in police custody.

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{
"case_id": 209,
"case_name": "Uduwa Athukoralage Chandrasena v. Sub-Inspector Buddhika and Others",
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"year": 2007,
"word_count": 230,
"judgment": "VIOLATED",
"articles_cited": ["11", "13(1)", "13(2)"],
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"custody", "arrest", "detention"]
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<<<CASE_START>>>

SUMMARY:

The Petitioners challenged the alienation of approximately sixty acres of State land near the Deegavapi Raja Maha Viharaya to several hundred Muslim families. They alleged that the

executive authorities failed to comply with mandatory statutory procedures governing state land alienation, including the requirement of conducting a Land Kachcheri under the Land Development Ordinance. The Petitioners further contended that the settlement scheme threatened the cultural and religious character of the area surrounding the Viharaya and infringed their rights under Articles 10, 12(1), and 12(2). The Supreme Court held that the alienation was unlawful and violated the Petitioners' fundamental rights. The Court emphasized the public trust doctrine, holding that state land is held by the executive in trust for the People and may only be alienated through lawful, fair, and transparent procedures. It found that the authorities had acted ultra vires by disregarding mandatory statutory safeguards intended to ensure equitable distribution and legality in land administration. The Court further concluded that the process lacked bona fides and bypassed legal mechanisms established to prevent arbitrary exercises of executive power. Addressing standing, the Court held that the Petitioners were entitled to challenge the alienation because unlawful disposal of public land affects the rights of citizens generally where the State acts as trustee of national resources. The Court therefore granted relief against the impugned alienation and ordered costs against the State authorities responsible for the unlawful conduct.

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{
"case_id": 210,
"case_name": "Ven. Ellawala Medananda Thero v. District Secretary, Amara and Others",
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"word_count": 224,
"judgment": "VIOLATED",
"articles_cited": ["10", "12(1)", "12(2)"],
"legal_topic": ["freedom_of_religion", "equality", "equal_protection", "discrimination",
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SUMMARY:

The Petitioner instituted a public interest fundamental rights application challenging the privatization and sale of shares of Lanka Marine Services Ltd, a state-owned enterprise, to John Keells Holdings Ltd. The Petition alleged that the 8th Respondent, P.B. Jayasundara, acting as Chairman of the Public Enterprise Reform Commission, orchestrated the transaction without lawful authority and acted in collusion with the purchaser to secure unlawful advantages. The dispute concerned the grant of tax holidays by the Board of Investment and the transfer of valuable land at the Colombo Port without complying with mandatory statutory procedures or consulting the Provincial Council as required by law. The Court considered whether these acts violated Article 12(1) by denying equal protection of the law and facilitating arbitrary state action favouring a private entity. The Court held that public officials are trustees of powers vested in them for the benefit of the People and that the 8th Respondent had acted arbitrarily and ultra vires in breach of the public trust doctrine. The Court further ruled that the executive could not

disregard statutory requirements under the PERC Act and constitutional provisions governing land alienation. The sale and related agreements were declared null and void, the 8th Respondent was directed to personally compensate the State, and Lanka Marine Services Ltd was ordered to vacate the Colombo Port premises.

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"case_name": "Vasudeva Nanayakkara v. Choksy and Others (John Keells Case)",
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SUMMARY:

The Petitioner, employed as a driver for the Sri Lanka State Plantation Corporation, was waiting at a bus halt on April 2, 2007 when a police jeep arrived and the 1st Respondent, the Officer-in-Charge of Pitigala Police Station, questioned him. Although the Petitioner produced his driving licence as identification, the 1st Respondent assaulted him by slapping him repeatedly and compelled him to load a heavy motorbike into a truck. When the Petitioner requested assistance, the 1st Respondent assaulted him with a club several times. The Petitioner was then taken to the police station, detained in a cell for nearly two hours, and released without any statement being recorded or charges being filed. The Respondent attempted to justify the arrest on the basis of suspicious conduct. The Court held that no reasonable suspicion existed to support the arrest and clarified that a driving licence constituted valid identification. The Court determined that the public assault, forced labour, and unlawful detention subjected the Petitioner to degrading treatment within the meaning of Article 11, notwithstanding the non-grievous nature of the injuries. The Court further held that the failure to provide reasons for arrest or record a statement constituted a serious procedural lapse. The Supreme Court concluded that Articles 11 and 13(1) had been violated and directed the 1st Respondent to personally compensate the Petitioner.

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"case_id": 212,
"case_name": "K.H.G. Kushan Indika v. Christy Leonard Ranjan Wijesekera, OIC Pitigala and Others",
"case_number": "S.C. (F.R.) Application No. 129/2007",
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<<<CASE_START>>>

SUMMARY:

The Petitioner and the 4th Respondent were both selected for the MBBS programme for the academic year 2008/2009. The Petitioner was assigned to the University of Sri Jayawardenapura but requested a transfer to the University of Colombo due to personal hardships, while the 4th Respondent simultaneously sought a transfer in the opposite direction. The proposed exchange would not have altered the total number of students or created additional vacancies at either institution. The University Grants Commission delayed and refused to implement the transfer, arguing that any vacancy had to be filled strictly according to Z-score rankings and not through an inter-university exchange. The Court examined whether this refusal violated Article 12(1) of the Constitution. It held that the mutual transfer would not prejudice any other student because no new vacancy was being created or filled. The Court further observed that the uncontested hardships presented by the Petitioner justified administrative intervention and that the delay in responding to a fair and reasonable request was arbitrary. The Court also questioned the legitimacy of the Appeals Committee process because the UGC could not identify the statutory authority under which the committee had been appointed. The Supreme Court concluded that the arbitrary failure to effect the transfer infringed the Petitioner's right to equal protection of the law and issued a writ of mandamus directing the immediate transfers between the two universities.

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SUMMARY:

The Petitioner, a former employee of Brown and Company, was returning from an exorcism ritual performed for his son on February 28, 2007 when his vehicle encountered that of the 1st Respondent, the Officer-in-Charge of Ginigathhena Police Station, on a narrow road. Following

a dispute over reversing the vehicles, the 1st Respondent assaulted the Petitioner and accused him of being a treasure hunter after observing ritual items inside the jeep. The Petitioner was arrested, transported to Kandy Police Station while bleeding and injured, and detained for approximately eighteen hours before being produced before a Magistrate, who observed that no offence appeared to have been committed. Medical evidence established grievous injuries including a fractured nasal bone and perforated ear drum caused by a blunt weapon. The Respondents attempted to justify the arrest by alleging treasure hunting activities and claimed the injuries were caused by a crowd. The Court rejected these explanations after the Archaeological Department confirmed that the location possessed no archaeological significance. The Court held that the arrest lacked reasonable suspicion and that detention for eighteen hours without promptly recording a statement or producing the Petitioner before a Magistrate was arbitrary. The Court further ruled that the severe assault constituted cruel and degrading treatment contrary to Article 11. The Supreme Court found violations of Articles 11, 13(1), and 13(2), ordered compensation against the 1st Respondent and the State, and condemned the use of barbarous police methods undermining public confidence.

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"case_id": 214,
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"year": 2007,
"word_count": 339,
"judgment": "VIOLATED",
"articles_cited": ["11", "13(1)", "13(2)"],
"legal_topic": ["torture", "cruel_treatment", "degrading_treatment", "arrest", "unlawful_arrest",
"detention", "unlawful_detention", "custody", "personal_liberty"]
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SUMMARY:

The Petitioners, who served as Class II Jailors in the Department of Prisons, challenged the promotion of the 15th to 23rd Respondents to the rank of Class I Jailors. The promotions were conducted under a 2004 marking scheme allocating marks for seniority, experience, performance, and presentation at an interview. The Petitioners alleged that the promotions violated Article 12(1) because several selected officers were junior to them in service and because the marking scheme introduced subjectivity. They also contended that an inquiry was pending against the 17th Respondent, making that promotion improper. The Respondents maintained that the governing recruitment scheme lawfully permitted promotions based on both seniority and merit. The Court held that seniority alone was not the exclusive criterion in public service promotions and that the applicable recruitment framework authorized the consideration of efficiency and performance. Although the Court acknowledged that interview presentation marks introduced some degree of subjectivity, it found this acceptable because such marks represented only a limited portion of the total evaluation and were assessed by a balanced

panel. The Court further determined that the Petitioners had failed to provide any specific evidence regarding the alleged inquiry against the 17th Respondent. The Supreme Court concluded that the marking scheme constituted an objective method of appraisal ensuring fairness among eligible candidates and held that the Petitioners failed to establish any infringement of the right to equality and equal protection of the law.

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"case_id": 215,
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"word_count": 278,
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SUMMARY:

The Petitioner, a child represented by her father, applied for admission to Grade 1 at Visakha Vidyalaya for the year 2009 under the category reserved for residents living in close proximity to the school. Although marks were initially allocated to the application, school authorities conducted site inspections to verify the claimed residential address. The investigation disclosed that the premises functioned as a granite shop and revealed no indication that the Petitioner or her family resided there. Consequently, the school authorities rejected the application, and the Appeal and Opposition Board affirmed that decision. The Petitioner alleged that the refusal of admission infringed Article 12(1) of the Constitution by denying equal protection of the law. The Court examined whether the authorities had acted arbitrarily or discriminatorily in applying the admission criteria. It held that the prescribed admission procedure entitled school authorities to scrutinize claims made by applicants and that any attempt to provide false or misleading information warranted disqualification in order to safeguard the rights of genuine applicants. The Court accepted the findings from the site inspection as sufficient evidence disproving the claimed residence. It further held that the refusal of admission was based solely on the failure to satisfy a mandatory eligibility requirement rather than unequal or arbitrary treatment. The Supreme Court therefore concluded that no violation of Article 12(1) had been established and dismissed the application.

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"case_id": 216,
"case_name": "Dona Dinaya Nimdini Wijayaweera v. Ms. B.M. Weerasuriya, Principal, Visakha
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"case_number": "S.C. (F/R) No. 13/2009",
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SUMMARY:

The Petitioner, a Police Officer attached to the Commission to Investigate Allegations of Bribery or Corruption, challenged a transfer order returning him to the Police Department. He alleged that the transfer had been influenced by the 12th Respondent, the Director General of the Bribery Commission, and that the National Police Commission and the Inspector General of Police lacked authority to transfer officers seconded to the Commission. The Petitioner further argued that the transfer process bypassed the Chairman of the Commission and therefore violated Article 12(1) of the Constitution. Documentary material before the Court revealed that the Petitioner had initially requested only a deferment of the transfer rather than its cancellation. The Court held that secondment to the Bribery Commission did not terminate the Petitioner's status as a police officer and that the Inspector General of Police and National Police Commission retained their constitutional powers under Article 155 to effect transfers. The Court reasoned that any contrary interpretation would be untenable and detrimental to the administration of the police service and the officer's career progression. The Court further found that the Petitioner had failed to provide concrete evidence establishing mala fides, bias, or undue influence by the Director General. Although the transfer communication bypassed the Chairman of the Commission, the Court concluded that this procedural irregularity did not amount to a constitutional infringement. The Supreme Court therefore dismissed the application and held that no violation of Article 12(1) had been proved.

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"case_id": 217,  
"case_name": "C.A. Premashantha v. Neville Piyadigama, Chairman, National Police  
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"case_number": "S.C. (F/R) No. 458/2007",  
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"word_count": 289,  
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"legal_topic": ["equality", "equal_protection", "occupation"]  
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<<<CASE_START>>>

SUMMARY:

The Petitioner, an employee and trade union representative of The Associated Newspapers of

Ceylon Ltd., challenged a disciplinary direction issued on March 17, 2008 requiring him to explain why disciplinary action should not be initiated for violating a notice dated January 6, 2006. The Petitioner contended that neither he nor his trade union had received the notice and sought relief on the basis that the impugned direction violated Article 12(1) of the Constitution. However, the fundamental rights application was filed in the Supreme Court on May 6, 2009, more than one year after the issuance of the disciplinary direction. The Respondents raised a preliminary objection that the application was time-barred under Article 126(2), which requires a fundamental rights petition to be filed within one month of the alleged infringement. The Court accepted this objection and held that the Petitioner had failed to act within the constitutionally prescribed time limit. It observed that the Petitioner had slept over his rights for an extended period without presenting any valid justification for the delay. The Court further held that such unexplained delay prevented consideration of the substantive merits of the complaint. In light of the mandatory constitutional limitation period and the absence of any exceptional circumstances excusing the delay, the Supreme Court concluded that the application lacked merit and dismissed it without costs, holding that no violation of Article 12(1) had been established.

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"case_id": 218,
"case_name": "Pradeep Sanjeewa Samarasinghe v. The Associated Newspapers of Ceylon Ltd.
and Others",
"case_number": "S.C. (F.R.) Application No. 361/2009",
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SUMMARY:

The Petitioners challenged the alienation of state land and the authorization of residential and commercial constructions within the Victoria Reservoir reservation area and the Victoria-Randenigala-Rantembe Sanctuary. They alleged that the Mahaweli Authority of Sri Lanka had permitted private individuals to undertake developments within environmentally protected zones without complying with mandatory legal procedures prescribed under the National Environmental Act. The Petitioners contended that the failure to enforce environmental safeguards and the arbitrary allocation of protected lands infringed Article 12(1) of the Constitution by denying equal protection of the law. The Court examined whether public authorities had complied with statutory obligations governing environmental protection and land allocation. It held that no alienation or development activity should occur within protected areas without adherence to the procedures set out in Part IV C of the National Environmental Act, including the necessary environmental assessments. The Court reasoned that granting unauthorized permissions in environmentally sensitive areas constituted a failure of the State to

uphold the rule of law and ensure equal protection to citizens. It further applied the public trust doctrine, holding that natural resources are held by the State in trust for present and future generations and cannot be arbitrarily exploited. The Supreme Court concluded that the Mahaweli Authority had violated the Petitioners' rights under Article 12(1), ordered investigations into the unauthorized constructions, restrained further allocations without legal compliance, and awarded costs to the Petitioners.

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"case_id": 219,
"case_name": "Environmental Foundation Limited and Others v. Mahaweli Authority of Sri Lanka and Others",
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SUMMARY:

The Petitioner challenged the recommendation and selection of the 3rd Respondent for a post within the Parliamentary staff and alleged that the process violated Article 12(1) of the Constitution. Prior to filing the fundamental rights application, the Petitioner had instituted proceedings in the Court of Appeal seeking identical relief through a writ application. That application was subsequently withdrawn on February 2, 2007. The Petitioner thereafter filed the present fundamental rights application in the Supreme Court on July 3, 2007, approximately five months after withdrawing the earlier proceedings. The Respondents raised a preliminary objection that the application was barred by the one-month limitation period prescribed under Article 126(2) of the Constitution. The Court accepted the objection and held that the Petitioner had full knowledge of the material facts giving rise to the complaint well before instituting the Supreme Court proceedings. The Court observed that the Petitioner's prior litigation in the Court of Appeal clearly demonstrated awareness of the alleged infringement and that he had failed to provide any adequate explanation justifying the substantial delay. It further noted that exceptions to the constitutional time limit are entertained only in rare and exceptional circumstances, such as where a litigant is prevented from accessing legal remedies. The Supreme Court concluded that the Petitioner had slept over his rights, that the application was time-barred, and that no violation of Article 12(1) had been established.

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"case_id": 220,
"case_name": "Lal Jayasiri Kulatunga v. Hon. W.J.M. Lokubandara, Speaker of Parliament and Others",

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"legal_topic": ["equality", "equal_protection"]
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SUMMARY:

The Petitioner, an Anesthetist attached to the Base Hospital, Dambadeniya, was arrested on May 19, 2006 by the 1st Respondent, an Inspector of Police, in connection with allegations of professional negligence arising from the death of a patient following surgery. The Petitioner alleged that while in police custody he was assaulted by the 1st Respondent, sustaining injuries that required prolonged hospitalization at the Kegalle Teaching Hospital until July 4, 2006. Medical evidence, including a Medico-Legal Report, confirmed the existence of injuries consistent with the Petitioner's account of assault while in custody. The Respondents raised an objection regarding delay, contending that the application had been filed outside the one-month constitutional limitation period. The Court applied the principle of *lex non cogit ad impossibilia* and held that the Petitioner's detention in remand custody and subsequent hospitalization deprived him of practical access to legal representation, thereby justifying the delay. The Court further emphasized that the seriousness of the allegations against a suspect did not authorize the police to use violence either as punishment or to extract information. Relying heavily on the corroborative medical material establishing a direct nexus between the injuries and the period of police custody, the Supreme Court concluded that the Petitioner had been subjected to cruel and degrading treatment in violation of Article 11 and ordered the 1st Respondent to personally pay compensation.

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"case_id": 221,
"case_name": "Amarasinghe Arachchige Mangalasiri Amarasinghe v. P.M. Seneviratne and Others",
"case_number": "S.C. (F/R) No. 264/2006",
"year": 2006,
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SUMMARY:

The Petitioners, the mother and sister of Sunil, alleged that police officers unlawfully arrested

and assaulted him following his receipt of a lottery prize exceeding three million rupees. On July 21, 2003 police officers arrived at a relative's residence seeking to arrest another individual named Chanaka. According to the Respondents, Sunil, who was intoxicated, obstructed the police officers and threatened to commit suicide if Chanaka was taken into custody. He was thereafter arrested and detained at the police station. The following morning Sunil collapsed in his cell. The police maintained that he suffered a fit and fell face-first, while the Petitioners alleged that the injuries resulted from police assault. Sunil later underwent brain surgery and died on July 26, 2003. The post-mortem examination attributed the death to a head injury caused by blunt trauma consistent with a fall. The Petitioners alleged violations of Articles 11, 13(1), 13(2), 13(4), and 17 of the Constitution. The Court held that the contemporaneous police records documenting Sunil's conduct and suicide threats supported the Respondents' version of events. It further concluded that the arrest was justified because Sunil had obstructed police duties and that detention was intended to safeguard his life following the threats of self-harm. The Judicial Medical Officer's findings that the injuries were consistent with a fall caused by alcohol withdrawal rather than assault were accepted by the Court. The Supreme Court therefore held that the Petitioners failed to establish any infringement of fundamental rights and dismissed the application.

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"case_name": "Guneththige Misilin Nona and Another v. Muthubanda (PC 10312) and Others",
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"word_count": 326,
"judgment": "NOT_VIOLATED",
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<<<CASE_START>>>

SUMMARY:

The Petitioner company submitted a tender bid to provide cleaning and maintenance services to several government hospitals. After formally submitting the bid, the Petitioner sent an additional communication offering a special discount on the total bid price. The Technical Evaluation Committee and the Ministry of Healthcare and Nutrition rejected the bid on the basis that the discount offer amounted to an impermissible alteration of price after the deadline and effectively constituted a second bid contrary to the procurement requirements. The Petitioner challenged the rejection under Article 12(1), alleging arbitrary treatment and denial of equal opportunity in the tender process. The Court examined whether the rejection complied with procurement rules designed to ensure fairness and transparency. It held that the tender process depends upon preserving the blind nature of competitive bidding and that permitting bidders to alter prices after submission would undermine fair competition by allowing strategic advantages over competitors. The Court accepted the Respondents' position that the discount communication

was a disguised second bid prohibited under the applicable bid conditions. It further observed that the proposed discount unlawfully affected statutory labour cost components fixed by law for worker protection and therefore could not lawfully be reduced to secure a contract. The Court concluded that the rejection was fully consistent with procurement guidelines intended to prevent unfair advantages and maintain transparency in government contracting. The Supreme Court therefore held that no arbitrary or discriminatory conduct had been established and dismissed the application with costs.

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"case_id": 223,  
"case_name": "Target Environmental Services Company (Private) Limited and Another v. Dr. Ashoka Kahandaliyanage and Others",  
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SUMMARY:

The Petitioners, who served as Supra Grade Librarians in the public service, challenged the salary structure introduced through Public Administration Circular No. 6/2006 revising public service salaries. They contended that Supra Grade Librarians had historically enjoyed salary parity with officers in the Sri Lanka Administrative Service Class II Grade II and alleged that the revised circular created discrimination by granting SLAS officers a more favourable salary conversion. The Petitioners invoked Article 12(1) of the Constitution, asserting unequal treatment and arbitrary discrimination. The Court examined whether the Petitioners and SLAS officers constituted similarly situated categories capable of comparison for constitutional equality purposes. It held that the two services belonged to entirely distinct categories within the public service and therefore could not automatically be treated as equals for salary determination. The Court further considered evidence demonstrating that, following recommendations by the National Salaries and Cadre Commission, the Petitioners had in fact been placed on a salary step enabling them to draw higher remuneration than the SLAS officers with whom they compared themselves. In light of this evidence, the Court found no actual financial disadvantage or discriminatory treatment suffered by the Petitioners. It further held that the salary revisions formed part of a broader policy decision concerning restructuring of the public service and that there was no evidence of arbitrariness or irrationality in the implementation of the circular. The Supreme Court therefore concluded that no violation of Article 12(1) had been established and dismissed the application.

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"case_id": 224,  
"case_name": "Padma Maithrilatha Akarawita and Others v. Dr. Nanda Wickramasinghe and  
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"case_number": "S.C. (F.R.) Application No. 320/2007",  
"year": 2007,  
"word_count": 283,  
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SUMMARY:

The Petitioner was arrested on August 4, 2006 at a lodge in Vavuniya while in possession of a National Identity Card, a Methodist Church identification card, and an LTTE travel pass. Following the discovery of a large cache of explosives in a lorry on the previous day, the authorities suspected the Petitioner of involvement in unlawful activities. The Petitioner alleged that officers attached to the Criminal Investigation Department assaulted him with clubs in order to obtain a confession, causing injuries to his arm, head, and back. He was detained for eight months at CID Headquarters and for a further four months at the Boossa Detention Camp pursuant to successive Detention Orders issued under Emergency Regulations. A confession was recorded in Sinhala, and the Petitioner later asserted that he did not understand the language. The Court examined multiple Medico-Legal Reports from doctors in Colombo and Galle, all of which disclosed no injuries or signs of dislocation, thereby contradicting the allegations of torture. The Court further held that the Petitioner's possession of an LTTE travel pass, coupled with the surrounding circumstances relating to the explosives discovery, provided reasonable suspicion justifying arrest and investigation. The Court also found that the Petitioner had deliberately misled the Court regarding his fluency in Sinhala, noting evidence that he had conducted sermons in Sinhala and originated from a Sinhala-speaking area. The detention was held to be lawful under Emergency Regulations, and the Supreme Court concluded that no violations of Articles 11, 12(1), 13(1), or 13(2) had been established.

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SUMMARY:

The Petitioners, employees of the Vocational Training Authority of Sri Lanka, challenged the promotion and appointment of several individuals to higher grades within the Authority. They alleged that the impugned appointments were made pursuant to recommendations issued by a Political Victimization Committee and subsequently approved by the Cabinet of Ministers, bypassing ordinary recruitment procedures and adversely affecting their own promotional opportunities. Invoking Article 12(1) of the Constitution, the Petitioners contended that the appointments were arbitrary and discriminatory. The Respondents raised a preliminary objection that the Cabinet of Ministers had not been joined as parties to the proceedings despite the fact that Cabinet approval constituted the central administrative act under challenge. The Court considered long-standing judicial precedent requiring that where relief is sought against decisions flowing directly from Cabinet directives, the Cabinet must be joined as a necessary party. It held that because the Petitioners specifically challenged the authority of the Cabinet and the Political Victimization Committee to interfere in matters relating to promotions within the Vocational Training Authority, those bodies were indispensable parties to the litigation. Their absence created a fatal procedural defect depriving the Court of the ability to fully adjudicate upon the legality of the impugned decisions or grant the requested relief. The Court therefore upheld the preliminary objection and dismissed the application without considering the substantive merits of the allegations concerning promotions and recruitment procedures. The Supreme Court concluded that no infringement of Article 12(1) had been established due to the fatal non-joinder of necessary parties.

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"case_id": 226,
"case_name": "S.S. Senaweera and Others v. Vocational Training Authority of Sri Lanka and Others",
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SUMMARY:

The Petitioners, employees of the Vocational Training Authority, challenged the appointment and promotion of the 5th to 20th Respondents to higher grades within the Authority. They alleged that the promotions were not granted through ordinary recruitment procedures but instead resulted from recommendations made by a Political Victimization Committee and

approved by the Cabinet of Ministers. According to the Petitioners, these out-of-turn promotions unfairly prejudiced their own opportunities for advancement and violated Article 12(1) of the Constitution. The Respondents raised a preliminary objection contending that the Cabinet of Ministers, whose approval formed the basis of the impugned decisions, had not been joined as parties to the proceedings. The Court considered established judicial precedent requiring that where a challenge is directed against administrative actions arising from Cabinet directives, the Cabinet constitutes a necessary party to the litigation. It held that the Petitioners' allegations directly questioned the authority of both the Cabinet and the Political Victimization Committee to interfere in the internal affairs and promotion processes of the Vocational Training Authority. In such circumstances, the failure to join the Cabinet created a fatal procedural irregularity preventing effective adjudication of the claims and depriving the relevant authorities of an opportunity to defend their actions. The Court therefore upheld the preliminary objection and dismissed the petition without entering into the substantive merits of the challenge relating to appointments and promotions. The Supreme Court concluded that, due to the fatal non-joinder of necessary parties, no violation of Article 12(1) had been established.

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"case_id": 227,
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SUMMARY:

The Petitioner applied for appointment to the post of Teacher Educator in the Sri Lanka Teacher Educator Service pursuant to a Gazette notification issued in 2005. The recruitment process divided applicants into categories based on specified educational qualifications, and although the Petitioner attended the interview, she was not selected. She alleged that the classification system adopted by the authorities was arbitrary and that less qualified persons had been selected in preference to her, thereby violating Article 12(1) of the Constitution. The Court examined the recruitment structure by applying the established two-condition test governing reasonable classification. It held that a classification must be founded upon an intelligible differentia and bear a rational relationship to the objective sought to be achieved. The Court found that categorizing candidates according to educational qualifications was both rational and necessary for filling specialized vacancies within the teacher educator service. It further held that the Petitioner's non-selection resulted from the fact that other applicants within her category had obtained higher marks under the applicable objective marking scheme. The Court

determined that the selection process was conducted according to structured and transparent criteria designed to identify suitably qualified candidates. Since the categorization and evaluation process bore a rational nexus to the objective of recruiting competent personnel, the Court concluded that the recruitment process was neither arbitrary nor discriminatory. The Supreme Court therefore held that no violation of Article 12(1) had been established and dismissed the application without costs.

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"case_id": 228,
"case_name": "Walawe Durage Dulani v. Nimal Bandara, Secretary, Ministry of Education and Others",
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SUMMARY:

The Petitioners, representing Grade 1 officers of the Sri Lanka Principals' Service, challenged the recruitment criteria applicable to Class III of the Sri Lanka Education Administrative Service under the 2002 Service Minute. The scheme allocated recruitment through three streams consisting of an Open Competitive Examination, a Limited Competitive Examination, and recruitment based on Merit and Seniority. The Petitioners contended that, due to their seniority within the Principals' Service, they should receive priority in absorption into the Sri Lanka Education Administrative Service over candidates from the open and limited streams. They alleged that the failure to accord such priority violated Article 12(1) of the Constitution. The Court examined whether the recruitment structure established by the Service Minute was arbitrary or discriminatory. It held that granting the relief sought by the Petitioners would fundamentally alter the prescribed recruitment ratios and amount to a gross violation of the Service Minute governing appointments to the administrative service. The Court further observed that prioritizing one group solely on the basis of seniority would adversely affect thousands of other candidates eligible to compete through the open and limited examination streams. It emphasized that all qualified persons were entitled to equal opportunities to enter the service through the established competitive procedures and that according preferential treatment to one category would itself create inequality. The Court regarded the recruitment structure as a legitimate policy decision balancing experience and merit with competitive entry and found no irrationality or arbitrariness in its operation. The Supreme Court therefore concluded that no infringement of Article 12(1) had been established and dismissed the application.

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"case_id": 229,
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SUMMARY:

The Petitioner applied for the post of Social Service Officer in the Western Province pursuant to a Gazette notification issued in 2007. She attended an interview, produced her academic certificates, and was subsequently selected and issued with an appointment letter. Thereafter, the 1st Respondent informed her that her Bachelor of Arts General Degree did not satisfy the recruitment requirement specifying qualifications in Sociology or Economics. Consequently, the authorities cancelled her appointment. The Petitioner challenged the cancellation under Article 12(1), relying primarily on the doctrine of legitimate expectation and contending that the authorities could not revoke an appointment after formally selecting her. The Court examined the recruitment criteria contained in the Gazette notification and held that the prescribed qualifications expressly required a degree specializing in Sociology or Economics. Since the Petitioner possessed only a general arts degree, the Court found that she did not satisfy the mandatory eligibility criteria for the post. The Court further held that the doctrine of legitimate expectation cannot compel a public authority to perpetuate an illegality or act contrary to lawfully established recruitment requirements. It reasoned that the initial appointment resulted from an administrative error which the State was entitled to correct in the interests of legality and proper administration. The Court concluded that the cancellation was based upon an objective evaluation of qualifications and did not constitute arbitrary or discriminatory treatment. The Supreme Court therefore held that no violation of Article 12(1) had been established and dismissed the application without costs.

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"case_number": "S.C. (F.R.) Application No. 589/2009",
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SUMMARY:

The Petitioner, a Senior Lecturer attached to the Siyane National College of Education, received government-funded scholarships to pursue postgraduate studies in Australia and entered into an agreement requiring him to serve the Government for eight years and seven months upon his return in January 2004. Shortly after returning, the Petitioner accepted employment at the University of Peradeniya and later at the Open University without obtaining a formal release from the Public Service Commission, which remained his appointing authority. Because he failed to report back to his substantive post despite repeated instructions, he was served with a Vacation of Post notice in June 2006. The Petitioner alleged that the refusal to release him and the subsequent administrative action violated Article 12(1) of the Constitution. He further compared himself with another officer who had been granted release after scholarship service. The Court held that the fundamental purpose of government scholarship schemes was to ensure that officers returned to serve the institutions that sponsored their studies and thereby enhance public service capacity. It found that the Petitioner had completed only nine months of a service obligation extending nearly nine years, whereas the comparator officer had substantially fulfilled his own obligations. Accordingly, the Court concluded that the two officers were not similarly circumstanced for purposes of equality analysis. The Court further held that the Vacation of Post proceedings constituted a lawful application of the Establishments Code to an officer absent without leave and that the requirement to reimburse study costs before reinstatement was neither arbitrary nor irrational. The Supreme Court therefore dismissed the application and held that no infringement of Article 12(1) had been established.

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SUMMARY:

The Petitioner, a retired Principal of a Government School, challenged the calculation of his pension and salary-related benefits under Public Administration Circular No. 9/2004, which introduced a revised salary structure for public officers. The dispute concerned whether the

Petitioner fell within Clause 10.1, applicable to pensioners retiring on or before December 1, 2004, or Clause 10.2, applicable to officers who worked on December 1, 2004 and retired thereafter. The Petitioner argued that because he had worked on his final day of service, he should receive the more advantageous benefits available under Clause 10.2. The Respondents maintained that the Petitioner's retirement legally took effect on December 1, 2004 and therefore fell squarely within Clause 10.1. The Court relied on prior judicial precedent establishing that where an officer's retirement becomes effective from a specified date, the officer is deemed to have retired on that date itself. Applying this interpretation, the Court held that the Petitioner retired on December 1, 2004 and therefore did not qualify for benefits reserved for officers retiring after that date. The Court further emphasized the necessity of strictly construing the language of administrative circulars governing pension entitlements and held that the Petitioner had received all benefits applicable to his proper category. Since the classification was based on objective criteria applicable uniformly to all similarly situated officers, the Court found no arbitrariness or unequal treatment. The Supreme Court therefore concluded that no violation of Article 12(1) had been established and dismissed the application.

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SUMMARY:

The Petitioner, a Class II officer in the Local Government Service, was lawfully appointed by the Provincial Public Service Commission to the post of Secretary of the Elpitiya Pradeshiya Sabha. Upon reporting for duty, the 2nd Respondent, the Chairman of the Sabha, refused to permit her to assume office on the basis that she was allegedly unsuitable for the position. Instead, the 2nd Respondent allowed the 3rd Respondent, a Library Assistant, to continue discharging the functions of Secretary in an acting capacity. Despite repeated interventions by the Provincial Commissioner of Local Government directing compliance with the lawful appointment, the Chairman continued to obstruct the Petitioner from exercising her official duties. The Petitioner alleged that this conduct violated her right to equal protection under Article 12(1) of the Constitution. The Court held that the Chairman possessed no authority to reject or disregard an appointment made by the competent appointing authority and that his conduct constituted an arbitrary abuse of administrative power. It further observed that the continued retention of a Library Assistant in the Secretary's position while excluding the properly appointed officer

undermined the rule of law and statutory administrative procedures governing local authorities. The Court emphasized that public officials cannot selectively disregard lawful appointments based on personal preference. Finding the actions of the 2nd and 3rd Respondents to be wilful and blatant defiance of lawful authority, the Supreme Court held that the Petitioner's rights under Article 12(1) had been violated, ordered the immediate transfer of duties to her, and directed the Respondents to personally pay compensation and costs.

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SUMMARY:

The Petitioners sought admission of the 3rd Petitioner to Grade 1 at D.S. Senanayake College for the year 2011 under the category applicable to residents living in close proximity to the school. The school selection panel awarded zero marks for residence, concluding that the Petitioners had failed to prove occupation of the stated address because the lease agreement was unregistered and because they did not possess formal title documents such as deeds or gift transfers. The Petitioners produced several documents in support of their claim, including a lease agreement, electoral register extracts, utility bills, and bank statements consistently reflecting the same address over a substantial period. The Petitioners alleged that the rejection violated Article 12(1) of the Constitution. The Court held that the selection panel had acted arbitrarily by focusing narrowly on the absence of stereotyped ownership documents while disregarding the cumulative evidentiary value of the materials produced. It emphasized that residence must be assessed in a practical and realistic manner rather than according to rigid notions of title documentation. The Court found that the totality of the evidence, including utility records and electoral documentation, sufficiently established genuine residence at the relevant address. Although acknowledging the administrative burden on school selection panels, the Court held that authorities were nevertheless required to act reasonably and fairly in evaluating applications. The Supreme Court concluded that the rejection based upon a fixed and unreasonable approach to documentary proof violated the Petitioners' right to equality and equal protection of the law and directed the immediate admission of the 3rd Petitioner to the school.

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SUMMARY:

The Petitioner, a Superintendent of Police, challenged the backdated promotion of the 10th Respondent to the rank of Senior Superintendent of Police granted on January 2, 2009. The Petitioner filed the present fundamental rights application on May 11, 2009, alleging that he became aware of the promotion only later through a postal communication while serving as Personal Assistant to the Deputy Inspector General of Police for the Eastern Range in Trincomalee. He claimed that the promotion process violated his right to equality and equal protection under Article 12(1) of the Constitution. The Respondents raised a preliminary objection that the application had been filed outside the one-month limitation period prescribed under Article 126(2). The Court examined the communication practices relating to promotions of gazetted police officers and found that such promotions are routinely transmitted immediately to all police ranges and divisions by telephone or facsimile. In light of the Petitioner's official position as Personal Assistant to a Deputy Inspector General, the Court considered it unreasonable and contrary to the balance of probabilities for him to claim ignorance of the promotion for several months. The Court further noted that the Petitioner failed to produce evidence establishing the precise date on which he allegedly received the postal notification and therefore could not shift the commencement of the constitutional limitation period. Finding the Petitioner's explanations inconsistent and unsupported by evidence, the Court held that the application was time-barred and lacked a tenable legal basis. The Supreme Court accordingly dismissed the application and concluded that no violation of Article 12(1) had been established.

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SUMMARY:

The Petitioners, who were Ayurvedic Medical Officers employed on a contractual basis in the public service, sought absorption into the Sri Lanka Administrative Service or alternatively requested seniority and permanency equivalent to other public officers. The dispute arose from the operation of the Sri Lanka Administrative Service Minute and the Establishments Code governing recruitment, appointment, and seniority in the public sector. The Petitioners alleged that despite their qualifications and years of service, they were unfairly denied appointment opportunities within the Sri Lanka Administrative Service, amounting to a violation of their right to equality under Article 12(1) of the Constitution. The Respondents maintained that recruitment and seniority decisions were governed strictly by the applicable service regulations and that the Public Service Commission had acted lawfully within those established criteria. The Supreme Court dismissed the application and held that no infringement of fundamental rights had occurred. The Court reasoned that the Petitioners failed to establish discriminatory treatment in comparison with similarly situated officers. It emphasized that seniority must be determined according to the date of appointment to the relevant post and that disturbing established seniority structures without legal basis would be improper. The Court also observed that some contractual claims had become moot because the relevant contracts had already expired.

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SUMMARY:

The Petitioner, a machine operator employed at an oil mill, alleged that he was arrested by Police Sergeant Dayawansa following a theft complaint and subjected to severe torture while in police custody. He claimed that he was stripped naked, suspended from a roof hook, beaten with a wooden stick and baton, and suffocated using a bag containing chili powder. The Petitioner further alleged that the assault caused fractured ribs and severe pain, leading to his hospitalization after release on bail. The police denied the allegations and maintained that the arrest occurred on a different date based on evidence linking the Petitioner to the theft. Medical

evidence produced before the Court consisted of a Judicial Medical Officer's report noting only superficial abrasions and skin exfoliation on the wrist. The Supreme Court dismissed the application and held that no violation of Article 11 had been established. The Court reasoned that the medical findings did not corroborate the allegations of severe torture or fractured ribs and that the injuries observed were more consistent with handcuffing during lawful arrest procedures. The Court also identified major inconsistencies in the Petitioner's account regarding the dates of arrest and assault. Official police information book extracts supported the police version of events, and the Court concluded that the Petitioner had failed to satisfy the high standard of proof required to establish torture under the Constitution.

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Dayawansa and Others",  
  "case_number": "S.C. (F.R.) Application No. 431/2010",  
  "year": 2010,  
  "word_count": 346,  
  "judgment": "NOT_VIOLATED",  
  "articles_cited": ["11"],  
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"custody"]  
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<<<CASE_START>>>

SUMMARY:

The original Petitioner, Chaminda Tissa Peiris, instituted a Fundamental Rights application alleging that police officers attached to the Anuradhapura Police Station violated his constitutional rights through unlawful conduct involving torture and arbitrary arrest. During the pendency of the proceedings, the Petitioner died on December 31, 2011, and the cause of death was recorded as suicide by hanging. Following his death, the Petitioner's father, Malalage Gunadasa Peiris, sought substitution to continue the litigation on behalf of his deceased son. Affidavits filed by the deceased Petitioner's mother and brothers confirmed that they had no objection to the father being substituted as Petitioner. The Supreme Court upheld the substitution application and permitted the father to continue prosecuting the Fundamental Rights proceedings. The Court did not determine the substantive allegations concerning Articles 11 and 13(1), reserving those issues for later adjudication. In allowing substitution, the Court held that the father was a fit and proper person to continue the action as a direct legal heir. The Court further reasoned that a Fundamental Rights application does not automatically terminate upon the death of a Petitioner, particularly where a close family member is willing to continue the proceedings. The absence of objections from other immediate family members was treated as a significant factor supporting the father's legal standing and authority to maintain the case on behalf of the deceased Petitioner.

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"case_name": "Malalage Chaminda Tissa Peiris (Deceased) and Another v. Hettigedara
Weerakoon and Others",
"case_number": "S.C. (F/R) Application No. 278/2008",
"year": 2008,
"word_count": 269,
"judgment": "NOT_VIOLATED",
"articles_cited": ["11", "13(1)"],
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<<<CASE_START>>>

SUMMARY:

The Petitioner alleged that he was brutally assaulted by three police officers near a boutique on December 29, 2007, and claimed that one officer struck his head with a firearm, causing unconsciousness. The Respondents denied the allegations and asserted that the Petitioner had been riding a motorcycle while intoxicated, ignored police orders to stop at a roadblock, and fell from the motorcycle twice while attempting to escape. Upon arrest, police officers allegedly discovered two packets of heroin in his possession. The Petitioner invoked Articles 11 and 13(1) of the Constitution, alleging torture and unlawful arrest. Medical evidence before the Court included an initial medico-legal report recording that the Petitioner himself admitted he had fallen due to drunkenness. The injuries documented, including scalp lacerations and scratches, together with the damaged condition of the motorcycle, were found consistent with a fall rather than a police assault. The Supreme Court dismissed the application, holding that the Petitioner failed to satisfy the high standard of proof necessary to establish a violation of Article 11. The Court also noted inconsistencies in the Petitioner's subsequent claims of hearing and vision loss, which medical examinations failed to substantiate. The Court concluded that the arrest was lawful because the Petitioner was allegedly committing cognizable offences involving heroin possession and intoxicated driving. The Petitioner's credibility was further undermined by inconsistent accounts and undisclosed prior criminal convictions relating to substance abuse.

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"case_id": 239,
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"case_number": "S.C. (F.R.) Application No. 43/2008",
"year": 2008,
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"judgment": "NOT_VIOLATED",
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}  
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<<<CASE_START>>>
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SUMMARY:

The Petitioners, comprising a trade union and its office bearers attached to Associated Newspapers of Ceylon Ltd, challenged actions taken by management in removing union notices and correspondence from designated notice boards within the institution. Management relied on a 2006 notice requiring prior approval from the Chairman before displaying any material. The Petitioners alleged that between December 2008 and July 2009 several documents, including communications addressed to the President and a Minister, were forcibly removed by security officers. A formal response issued by the Deputy Security Manager reaffirmed the mandatory requirement of prior approval. The Petitioners alleged violations of Articles 12(1), 14(1)(a), and 14(1)(c) concerning equality, freedom of expression, and freedom of association. The Supreme Court upheld a preliminary objection and dismissed the application without costs on the basis that it was time-barred under Article 126(2) of the Constitution. The Court reasoned that a Fundamental Rights application must be filed within one month of the alleged infringement. It distinguished between discrete acts and continuing violations and held that even where there is a series of acts, the cause of action accrues from the last component act. Since the final impugned document was dated July 16, 2009 and the application was filed on August 25, 2009, the Court held that the mandatory constitutional time limit had expired, depriving the Court of jurisdiction to hear the matter.

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"case_id": 240,  
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"case_number": "S.C. (F.R.) Application No. 637/2009",  
"year": 2009,  
"word_count": 295,  
"judgment": "NOT_VIOLATED",  
"articles_cited": ["12(1)", "14(1)(a)", "14(1)(c)"],  
"legal_topic": ["equality", "equal_protection", "freedom_of_speech", "freedom_of_expression",  
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<<<CASE_START>>>
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SUMMARY:

The Petitioner challenged his disqualification from the post of Deputy General Manager (Commercial) at the National Water Supply and Drainage Board on the basis that he lacked the expressly required Master of Business Administration qualification, although he possessed a

Postgraduate Diploma claimed to be equivalent. The dispute concerned whether refusal to accept an unlisted equivalent qualification amounted to a violation of Article 12(1) on equality and Article 14(1)(g) on freedom of occupation. The Respondents relied on the published Scheme of Recruitment which strictly required an MBA from a recognized university. The Court held that public recruitment processes must be governed by strict adherence to the terms of the Scheme of Recruitment and that introducing equivalency not stated in the document would undermine legal certainty and fairness to other applicants who complied with the express criteria. It further held that the State and statutory bodies are entitled to prescribe higher qualifications for specialized administrative positions and such regulatory standards do not constitute an unlawful restriction on professional activity. Since all candidates were assessed under identical criteria, there was no differential treatment or arbitrariness. The Court therefore concluded that the Petitioner's rights under Articles 12(1) and 14(1)(g) were not infringed and dismissed the application.

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{  
"case_id": 241,  
"case_name": "Christobuge Chrishan Hilary Sriolith Fernando v. National Water Supply and  
Drainage Board and Others",  
"case_number": "S.C. (F.R.) No. 498/2011",  
"year": 2011,  
"word_count": 170,  
"judgment": "NOT_VIOLATED",  
"articles_cited": ["12(1)", "14(1)(g)"],  
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SUMMARY:

The Petitioners sought Grade 1 admission for their daughter to Visakha Vidyalaya under a residency-based category, but their application was rejected for failing to obtain sufficient marks under the admissions criteria. They alleged that the decision was discriminatory and influenced by religious bias due to their surname, raising issues under Articles 12(1) and 12(2). The Court examined documentary evidence including the Electoral Register, which contradicted the Petitioners' claim of continuous residence at the specified address. This evidence established that the residency requirement was not satisfied, thereby justifying the allocation of lower marks under the objective scoring system. The Court further held that the allegation of discrimination based on religion was not substantiated, as the decision-making process was strictly grounded in the numerical evaluation prescribed by the admission circular. It emphasized that where public authorities apply transparent and pre-established criteria uniformly, no inference of unequal treatment or arbitrariness can be drawn. Accordingly, the rejection of the application was held to be lawful and consistent with the equality guarantee. The Court therefore dismissed the petition, finding no violation of fundamental rights.

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{
"case_id": 242,
"case_name": "Jahangir Sherifdeen and Another v. Sandamali Aviruppola, Principal, Visakha
Vidyalaya and Others",
"case_number": "S.C. (F.R.) Application No. 01/2015",
"year": 2015,
"word_count": 170,
"judgment": "NOT_VIOLATED",
"articles_cited": ["12(1)", "12(2)"],
"legal_topic": ["equality", "discrimination_education"]
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<<<CASE_START>>>

SUMMARY:

The Petitioner, a police officer, challenged disciplinary proceedings and resulting orders, arguing that they were unfair and violated his constitutional rights under Articles 12(1), 13(3), and 13(5), particularly in relation to pending criminal proceedings and the presumption of innocence. The Respondents raised a preliminary objection that the application was filed beyond the mandatory one-month limitation period under Article 126(2). The Court upheld this objection, holding that the application was filed approximately three months after the impugned orders, rendering it time-barred and depriving the Court of jurisdiction. It further clarified that disciplinary proceedings within the police service are independent of criminal proceedings and are governed by administrative and service regulations, meaning criminal law principles do not automatically apply. The Court also held that Articles relating to fair trial and presumption of innocence are contextually linked to criminal adjudication and are not directly applicable to internal disciplinary mechanisms. On this basis, the Court found no basis for constitutional intervention and dismissed the application on procedural grounds without examining merits.

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"case_id": 243,
"case_name": "D.M. Anura Mangala v. The Inspector General of Police and Others",
"case_number": "S.C. (F.R.) Application No. 273/2014",
"year": 2014,
"word_count": 165,
"judgment": "NOT_VIOLATED",
"articles_cited": ["12(1)", "13(3)", "13(5)"],
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SUMMARY:

The Petitioners, Hajj travel operators, challenged the allocation of pilgrim quotas by the Department of Muslim Religious and Cultural Affairs, arguing that the formula-based distribution system was arbitrary and violated equality and religious freedom under Articles 12(1) and 14(1)(e). The allocation process distributed limited pilgrimage slots using a predefined marking system under official guidelines. The Court held that the system was based on an objective and mathematical formula consistently applied to all operators, and therefore did not involve arbitrariness or unequal treatment. It further emphasized the public and religious importance of ensuring timely and efficient allocation of Hajj quotas, noting that administrative delays could result in loss of pilgrimage opportunities for many citizens. The Court observed that the Petitioners failed to demonstrate any deviation from the prescribed guidelines or any intentional bias in application. It also highlighted that cooperative operational practices among operators helped maintain system functionality and accessibility. Accordingly, the Court found no infringement of constitutional rights and dismissed the application.

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"case_number": "S.C. (F.R.) Application No. 230/2015",
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"word_count": 170,
"judgment": "NOT_VIOLATED",
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SUMMARY:

The Petitioner filed an application on behalf of detainees arrested under Detention Orders following allegations of involvement in a coup conspiracy after the 2010 Presidential Election. The Petitioners challenged the legality of arrest and prolonged detention under Articles 12(1), 12(2), 13(1), and 13(2), arguing that there was no lawful basis for their deprivation of liberty. Despite serious allegations raised by the State, no formal charges were ever filed, and the detainees were later discharged by a Magistrate. The Court found that there was no material evidence supporting a reasonable suspicion of involvement in any subversive activity or threat to national security. It held that the Detention Orders were issued without factual justification, amounting to an abuse of executive power. The Court emphasized that while national security considerations permit preventive measures, such powers must still comply with the rule of law and cannot be exercised arbitrarily or without evidentiary basis. It concluded that the arrests and detention were unconstitutional and violated fundamental rights, awarding compensation and costs to each detainee.

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"case_id": 245,  
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"year": 2010,  
"word_count": 175,  
"judgment": "VIOLATED",  
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<<<CASE_START>>>

SUMMARY:

The Petitioners, Sub-Inspectors of Police, challenged the Scheme of Recruitment and Promotion for Inspector of Police, particularly the Special Promotion Category which granted the Inspector General discretionary power to promote officers based on “special skills” or duties. They alleged violations of equality and occupational rights under Articles 12(1) and 14(1)(g). The Court upheld the validity of the Seniority, Competitive Examination, and Merit-based categories but found the Special Promotion Category unconstitutional due to the absence of objective criteria governing the IGP’s discretion. It held that such unfettered discretion created a real risk of arbitrariness and favoritism, undermining equal opportunity in public employment. Applying the doctrine of severability, the Court struck down only the unconstitutional portion while preserving the remaining structure of the recruitment scheme to ensure administrative continuity. It concluded that merit-based promotion must be guided by transparent and objective standards, and the impugned provision violated constitutional equality guarantees.

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"case_id": 246,  
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"case_number": "S.C. (F.R.) No. 46/2021",  
"year": 2021,  
"word_count": 170,  
"judgment": "VIOLATED",  
"articles_cited": ["12(1)", "14(1)(g)"],  
"legal_topic": ["equality", "occupation"]  
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<<<CASE_START>>>

SUMMARY:

The Petitioners, a hotel company and its Managing Director, challenged a demand for payment of alleged arrears of license fees imposed under a revised Excise Notification. They contended that the retrospective application of increased fees was arbitrary and violated Article 12(1). The

Court considered an application for interim relief and found that there was a prima facie issue regarding the legality and retrospective effect of the demand. It held that State authorities must act within lawful limits and in good faith, consistent with the principle of legality under constitutional governance. The Court further noted that preventing potential prejudice to the Petitioners was necessary pending final determination of the constitutional validity of the notification. It also recognized the broader public interest in maintaining an orderly economic regulatory framework while ensuring fairness to affected parties. Accordingly, it granted interim relief restraining enforcement actions to collect the disputed arrears until the final hearing, preserving the status quo without making a final determination on merits.

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  "word_count": 170,  
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  "legal_topic": ["equality"]  
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SUMMARY:

The Petitioner was arrested following a land dispute and alleged that while in police custody he was subjected to severe assault resulting in permanent injuries, including loss of teeth. The case raised issues under Articles 11, 13(1), and 13(2), particularly concerning torture and arbitrary treatment by State officials. The Court found that medical evidence strongly supported the Petitioner's claim, confirming serious physical harm consistent with brutal assault rather than lawful use of force. It held that the level of injury satisfied the high evidentiary threshold required for establishing violations of Article 11. The Court further ruled that State liability arises where police officers act in their official capacity, even if the individual officer is no longer available to answer proceedings. It emphasized that protection against torture is absolute and cannot be justified under investigative or custodial authority. Accordingly, the Court held that the Petitioner's fundamental rights were violated and ordered compensation for the severe and permanent injuries sustained.

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  "case_number": "S.C. (F.R.) No. 1006/2009",  
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"articles_cited": ["11", "13(1)", "13(2)"],  
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SUMMARY:

The Petitioner, a former High Court Judge, challenged the decision of the Attorney-General to indict him for alleged sexual abuse, arguing that the investigation was incomplete and biased, thereby violating Articles 12(1), 13(3), and 13(5). He contended that failure to record certain defense witnesses rendered the prosecution arbitrary and unfair. The Court held that the Attorney-General possesses wide discretionary authority in deciding whether to institute criminal proceedings, based on an overall assessment of investigative material. It emphasized that judicial review of prosecutorial discretion is limited and will only intervene in cases of bad faith, improper purpose, or excess of power. The Court further held that the existence of sufficient material establishing a realistic prospect of conviction is adequate for indictment, and that alleged investigative omissions can be addressed during trial through cross-examination and defense evidence. It concluded that the Petitioner failed to demonstrate illegality or constitutional violation and refused leave to proceed.

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"word_count": 170,  
"judgment": "NOT_VIOLATED",  
"articles_cited": ["12(1)", "13(3)", "13(5)"],  
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SUMMARY:

The Petitioners, a father and son, were arrested in connection with a domestic dispute and alleged police brutality during custody, including severe physical assault resulting in injuries such as fractured ribs. The second Petitioner was also arrested without being informed of the reason for detention. The case raised issues under Articles 11, 12(1), and 13(1). The Court found strong medical corroboration supporting the claim of torture, with the Judicial Medical Officer confirming injuries inconsistent with minimal force. It held that the arrest and detention of the second Petitioner were arbitrary due to the absence of lawful justification or communication of grounds. The Court emphasized that police officers must act strictly within legal authority and

that custodial violence constitutes a serious breach of constitutional protections. It also imposed personal liability on the officers involved, reinforcing accountability for State agents. Accordingly, the Court held that the Petitioners' fundamental rights were violated and awarded compensation.

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"year": 2008,  
"word_count": 170,  
"judgment": "VIOLATED",  
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<<<CASE_START>>>

SUMMARY:

The Petitioner, a Special Grade Clerk at the Sri Lanka Ports Authority, challenged the recruitment process for the post of Communication and Media Assistant after the interview panel deviated from the published Circular P10 and introduced unauthorized evaluation criteria such as "Service in the Media Unit" and a general "Interview" mark. She alleged that these deviations resulted in an arbitrary and discriminatory selection process that violated Articles 12(1) and 12(2). The dispute also involved allegations of bias linked to her trade union activity and prior complaint to the Human Rights Commission, which she argued influenced the selection outcome. The Court examined the marks allocation and found that the Petitioner had objectively higher merit under the lawful criteria, while the selected candidate had been awarded marks on impermissible and non-transparent grounds. It held that public recruitment bodies are strictly bound by the published scheme and cannot introduce extraneous considerations after applications are called. The Court further emphasized that victimization based on prior rights complaints or union involvement constitutes impermissible discrimination. It concluded that the selection process was arbitrary, violated equality guarantees, and required correction by judicial intervention. Accordingly, it quashed the impugned appointment and ordered the Petitioner's appointment with retrospective effect.

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{  
"case_id": 251,  
"case_name": "Sandhya Ramani Vithana v. Sri Lanka Ports Authority and Others",  
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"judgment": "VIOLATED",
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SUMMARY:

The Petitioner was arrested without being informed of reasons and later subjected to public humiliation when police officers paraded him at his children's school, falsely labeling him a criminal in front of students and staff. He was detained and later implicated through fabricated drug charges, which were subsequently admitted to be false by a prosecution witness who also implicated the police in planting evidence. The case raised violations under Articles 11, 12(1), 13(1), and 13(2). The Court held that both physical detention and public degradation constituted inhuman and degrading treatment within the meaning of Article 11, extending to psychological harm and reputational destruction. It further found that fabrication of evidence and abuse of arrest powers amounted to a denial of equal protection under the law. The Court also held that failure to produce the Petitioner before a Magistrate within the constitutionally mandated time frame constituted unlawful detention. It emphasized that State agents must act in good faith and within legal limits, and that abuse of criminal process for ulterior motives is unconstitutional. Accordingly, the Court found the fundamental rights of the Petitioner were violated and imposed compensation jointly and severally on the respondents and the State.

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"case_id": 252,
"case_name": "Rajapaksha Pathirage Justin Rajapaksha v. Prasanna Rathnayake and Others",
"case_number": "S.C. (F.R.) No. 689/2012",
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"word_count": 195,
"judgment": "VIOLATED",
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SUMMARY:

The Petitioner was arrested without being informed of reasons and later subjected to severe custodial violence at a police station, including beatings, head trauma against a wall, and near-drowning through forced submersion in a water-filled sink. He was subsequently produced before a Magistrate on fabricated narcotics charges. The case raised issues under Articles 11, 13(1), and 13(2). The Court held that Article 11 provides absolute protection against torture and cruel, inhuman, or degrading treatment irrespective of allegations against the suspect. It found that the medical evidence and contemporaneous injuries corroborated the Petitioner's account,

establishing severe physical and psychological suffering. The Court further held that arbitrary arrest and delayed production before a judicial authority violated constitutional safeguards designed to ensure judicial oversight over detention. It emphasized that detention cannot be used as a mechanism for coercing confessions or fabricating evidence. The Court concluded that multiple respondents were responsible for the violations and held them accountable, awarding compensation and costs against the State.

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"case_id": 253,  
"case_name": "D.G. Wijotmanna v. Diyakeliyawela and Others",  
"case_number": "S.C. (F.R.) No. 138/2007",  
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"word_count": 190,  
"judgment": "VIOLATED",  
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<<<CASE_START>>>

SUMMARY:

The Petitioners, elected members of the Homeopathic Council, were removed from office before the expiry of their statutory term and replaced by ministerial appointees without an election process as required under the governing statute. They challenged the action as arbitrary and contrary to Articles 12(1) and 14(1)(g). The Respondents claimed ministerial authority to make interim appointments. The Court held that the Minister acted ultra vires as the statute only permitted appointment where an election failed to take place following due invitation, which had not occurred. It found that bypassing the mandatory electoral process and removing duly elected members without cause violated principles of natural justice and the rule of law. The Court emphasized that statutory discretion must be exercised strictly within the limits and purposes of the enabling legislation and cannot be used to arbitrarily replace elected office holders. It concluded that the impugned removals and appointments were unlawful, null and void, and constituted a violation of equality protections under the Constitution.

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{  
"case_id": 254,  
"case_name": "Sithambirala Martin Sebastian Premalal Perera and Others v. Tissa  
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"case_number": "S.C. (F.R.) Application No. 891/2009",  
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"judgment": "VIOLATED",  
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"legal_topic": ["equality", "occupation"]
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SUMMARY:

The Petitioners were arrested in connection with a theft investigation and alleged severe custodial torture by multiple police officers, including beatings intended to extract a confession. The second Petitioner, the father of the first, was also arrested without explanation. The case involved violations of Articles 11, 12(1), and 13(1). The Court found credible medical evidence, including a judicial medical report confirming a fractured rib and multiple injuries, supporting the allegation of physical abuse. It held that such treatment constituted torture and cruel, inhuman, and degrading treatment under Article 11. The Court further found that the arrest of the second Petitioner was arbitrary due to absence of lawful grounds or communication of reasons. It emphasized that custodial violence and arbitrary deprivation of liberty undermine constitutional guarantees and attract both State and personal liability. The Court accordingly held that the Petitioners' fundamental rights were violated and ordered compensation, including personal liability against the responsible officers.

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"case_id": 255,
"case_name": "A.A. Dinesh Priyankara Perera v. Police Constable 6118 and Others",
"case_number": "S.C. (F.R.) Application No. 260/2011",
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"word_count": 185,
"judgment": "VIOLATED",
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<<<CASE_START>>>
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SUMMARY:

The Petitioner, a candidate for Vice-Chancellor at Eastern University, was excluded from the electoral ballot and challenged both his exclusion and the subsequent presidential appointment of another candidate. He alleged violations of Articles 12(1), 12(2), and 14(1)(g). The Respondents raised a time-bar objection under Article 126(2). The Court held that the challenge to the exclusion from the election process was filed out of time, as the Petitioner had knowledge of the alleged infringement on the election date. However, it distinguished the presidential appointment as a separate executive act occurring later, thereby permitting the challenge to that appointment as it was filed within one month. The Court emphasized strict enforcement of constitutional limitation periods while also recognizing distinct causes of action arising from separate administrative decisions. It allowed the petition to proceed only in relation to the

appointment decision, reaffirming its duty to hear timely constitutional grievances. The case was thus partially maintainable on procedural grounds.

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"case_id": 256,  
"case_name": "Dr. K. Kobindarajah v. Eastern University, Sri Lanka and Others",  
"case_number": "S.C. (F.R.) Application No. 24/2016",  
"year": 2016,  
"word_count": 185,  
"judgment": "NOT_VIOLATED",  
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SUMMARY:

The Petitioner, a foreign company, challenged a procurement decision relating to a coal supply tender for a power plant, alleging that post-bid modifications to evaluation criteria resulted in unfair selection and violated Articles 12(1) and 14(1)(g). It was argued that procurement guidelines were unlawfully altered after bid opening, undermining transparency and equality. The Court observed that the evaluation process had indeed deviated from mandatory procedural steps, thereby raising serious concerns about legality and fairness in public procurement. However, it held that the Petitioner lacked locus standi to invoke fundamental rights jurisdiction independently due to its status as a foreign entity without a registered local representative. Consequently, the application was dismissed on preliminary grounds without adjudicating the substantive legality of the procurement process. The Court nevertheless reaffirmed that public procurement must adhere strictly to established guidelines and that deviations may amount to violations of the rule of law in appropriate proceedings.

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"case_name": "Noble Resources International Pte Limited v. Hon. Ranjith Siyambalapitiya and Others",  
"case_number": "S.C. (F.R.) No. 394/2015",  
"year": 2015,  
"word_count": 180,  
"judgment": "NOT_VIOLATED",  
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SUMMARY:

The Petitioner, a Member of Parliament, was arrested on suspicion of involvement in fraudulent share transactions and challenged the legality of his arrest under Articles 13(1), 13(2), 13(5), 12(1), and related rights. He contended that the arrest lacked proper legal basis and that he was not informed of reasons for detention. The Court found that there was prima facie material suggesting reasonable suspicion of a cognizable offence, thereby justifying arrest under the law. However, it identified a factual dispute regarding whether the Petitioner was properly informed of the reasons for arrest, a requirement under Article 13(1). Given the absence of full factual clarification at the preliminary stage, the Court granted leave to proceed on this limited issue. It emphasized that judicial review under Article 126 is confined to executive or administrative action and that arrest powers are valid where reasonable suspicion exists. The matter was allowed to proceed for further inquiry only in relation to the alleged failure to communicate reasons for arrest.

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  "case_number": "S.C. (F.R.) Application No. 207/2016",
  "year": 2016,
  "word_count": 175,
  "judgment": "NOT_VIOLATED",
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SUMMARY:

The Petitioner alleged that he was unlawfully arrested following a dispute and subjected to custodial assault and fabricated drug charges by police officers. He further claimed he was detained without proper legal justification and produced before court on false evidence. The case raised issues under Articles 11, 13(1), and 13(2). The Court found credible evidence supporting allegations of physical assault and fabrication of charges, including inconsistencies in police accounts and lack of lawful justification for arrest. It held that the conduct of police officers amounted to cruel, inhuman, and degrading treatment under Article 11. The Court further found that failure to inform the Petitioner of reasons for arrest and delay in judicial production violated constitutional safeguards governing personal liberty. It emphasized that Article 13 protections are fundamental checks against abuse of police power. The Court concluded that the Petitioner's rights were violated and ordered compensation, including State liability for the conduct of its officers.

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"case_id": 259,  
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"year": 2009,  
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"judgment": "VIOLATED",  
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SUMMARY:

The Petitioner alleged that police officers assaulted him during an investigation into a theft complaint, using excessive force including beating, dragging, and use of rifle butts. He was subsequently taken into custody and treated in a manner that caused physical illness and distress. The Respondents claimed minimal force was used during a lawful arrest due to resistance. The case involved alleged violations of Articles 11 and 13(1). The Court accepted medical evidence showing injuries consistent with assault rather than accidental force or resistance. It held that custodial violence and degrading treatment by police officers constituted a violation of Article 11, which protects individuals from cruel, inhuman, or degrading treatment. The Court found that while the arrest itself was based on a valid investigation into theft and therefore not unlawful, the manner of execution was unconstitutional. It emphasized that State agents must use proportionate force and maintain humane treatment even during lawful arrests. Accordingly, the Court held the relevant officers personally liable for violating the Petitioner's fundamental rights and ordered compensation.

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"case_id": 260,  
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<<<CASE_START>>>

SUMMARY:

The Petitioner was arrested on January 26, 2011, by officers of the Criminal Investigation Department pursuant to a warrant issued by the Nugegoda Magistrate's Court and based on an anonymous petition alleging involvement in a 1982 double murder and illegal firearm activities.

Police officers searched the Petitioner's residence but recovered no firearms, explosives, or unlawful material. The Petitioner was remanded in custody but was later discharged after the supposed complainant informed a Mediation Board that he had never made any complaint and that the alleged incident had never occurred. The Petitioner alleged that the arrest and detention violated Article 12(1) of the Constitution. The Supreme Court held that the arrest lacked lawful and reasonable basis because the warrant referred to a different individual identified as "Meemadamudalige Don Gamini," whereas the Petitioner was "Omaththa Mudalige Don Gamini." The Court further held that reliance solely on an unverified anonymous petition without corroborative statements from aggrieved parties amounted to arbitrary and unlawful executive action. The concurring judgment also found the Officer-in-Charge liable for failing to verify false reports submitted by subordinates. The Court concluded that the Respondents violated the Petitioner's right to equal protection of the law and directed the State to pay compensation.

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"case_name": "Omaththa Mudalige Don Gamini v. Nishantha Silva, Inspector of Police and Others",
"case_number": "S.C. (F.R.) No. 81/2011",
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"word_count": 283,
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<<<CASE_START>>>

SUMMARY:

The Petitioners challenged the decision of the National Water Supply and Drainage Board relating to promotions to the post of Engineer Class II (Civil). In 2010, the Petitioners and the 10th Respondent each obtained 86 marks and were ranked equally in merit. Several batches of promotions were made between 2011 and 2012, but the Petitioners did not challenge their exclusion at that time. In July 2013, the 10th Respondent alone was promoted to Engineer Class I (Civil) following a recommendation by the Commissioner of Labour on the basis that she had performed duties of that office for three years. The Petitioners claimed that denying them equivalent promotions violated Article 12(1) of the Constitution because they possessed equal qualifications and marks. The Supreme Court dismissed the application and held that the Petitioners could not invoke the equality clause to compel the repetition of an unlawful administrative act. The Court observed that the Board Circulars limited the validity of the interview results to one year and therefore the 2011 results had expired by 2013. The Court further reasoned that the promotion granted to the 10th Respondent itself contravened the applicable Circulars and that Article 12 guarantees equality only in the lawful exercise of

administrative powers. The Court concluded that no enforceable constitutional right arose from an earlier illegality and held that the Petitioners' rights had not been violated.

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<<<CASE_START>>>

SUMMARY:

The Petitioner, a teacher employed at Mahanama College, alleged that she was subjected to continuous sexual harassment and unwanted advances by the Principal and another teacher. According to the Petitioner, when she resisted such conduct, the Principal obstructed her salary increments, threatened her employment prospects, and initiated acts intended to damage her reputation. Internal complaints failed to produce any remedial action. Consequently, the Petitioner participated in a television interview on the programme "Sirasa Vimarshana" to publicize her grievances. Following the broadcast, the Ministry of Education interdicted her on the basis that she had violated provisions of the Establishment Code relating to unauthorized communications with the media. The Petitioner alleged violations of Articles 12(1) and 14(1)(a) of the Constitution. The Supreme Court held that workplace sexual harassment and the hostile environment created by the Respondents infringed the Petitioner's constitutional rights and that the State was obliged to protect women against discriminatory and oppressive treatment. The Court further held that the Establishment Code could not be used to silence a victim who sought protection after institutional mechanisms had failed. Referring to principles embodied in CEDAW, the Court emphasized the constitutional obligation to ensure equality and freedom of expression. The interdiction order was declared null and void, and the 11th and 12th Respondents were directed to pay personal compensation to the Petitioner.

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and Others",  
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<<<CASE_START>>>

SUMMARY:

The Petitioner, a mason, was arrested on July 5, 2008, by police officers investigating a house-breaking complaint and was taken to the Moratuwa Police Station. During detention from July 5 to July 12, he was repeatedly assaulted in order to extract a confession. The abuse included being lifted and dropped to the ground, suspended by his fingers, hung upside down over a pole placed between tables, and beaten with cricket bats and clubs on various parts of his body. The Petitioner was detained for eight days without being produced before a Magistrate and was later falsely charged with theft and heroin possession to justify the detention. The Petitioner alleged violations of Articles 11 and 13(2) of the Constitution. The Supreme Court relied significantly on findings made by the Magistrate in the related criminal proceedings, where the arresting officer was found to have fabricated evidence and false charges. Medical records from the prison hospital and the Medico-Legal Report corroborated the Petitioner's account of torture while in police custody. The Court emphasized that Article 11 is absolute and applies irrespective of the character or background of the detainee. The Court concluded that the Respondents subjected the Petitioner to torture and unlawful detention in violation of his constitutional rights. Compensation was awarded personally against the officers and additionally against the State.

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<<<CASE_START>>>

SUMMARY:

The Petitioner served as Deputy General Manager (Bunkering) of Magampura Port Management Company, a company wholly owned by the Sri Lanka Ports Authority. In December 2015, he was suspended by a letter signed by the Managing Director of the Sri

Lanka Ports Authority rather than by the company itself. Subsequently, in January 2016, his employment was terminated on grounds of redundancy without the conduct of any disciplinary inquiry. The Respondents raised preliminary objections contending that the dispute arose purely from a private contract of employment and therefore did not involve executive or administrative action capable of attracting fundamental rights jurisdiction. The Petitioner alleged violations of Articles 12(1), 12(2), and 14(1)(g) of the Constitution. The Supreme Court rejected the preliminary objections and held that the matter fell within the scope of public law because the company was fully owned and extensively controlled by the Sri Lanka Ports Authority, which is a State institution. Applying the principle of functional realism, the Court observed that the State exercised deep and pervasive control over the company's operations, finances, and administration. The Court further rejected the proposition that constitutional protections cease once a contractual relationship is formed. It held that State entities cannot avoid constitutional accountability by operating through corporate structures or by invoking contractual provisions arbitrarily. The Court concluded that the allegations disclosed executive or administrative action subject to constitutional scrutiny and permitted the application to proceed.

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SUMMARY:

The Petitioner applied for the post of Director Finance at the Land Reform Commission and was selected as the most suitable candidate. By letter dated April 22, 2016, the Commission formally appointed him to the position with effect from May 15, 2016. Acting in reliance on the appointment, the Petitioner resigned from his previous employment. However, on April 28, 2016, the Chairman of the Commission issued a further letter temporarily suspending the appointment without providing any reasons. The Respondents justified the suspension by referring to a Ministry directive ordering an investigation into an appointment. The Petitioner contended that the directive related to the position of Accountant and not to the Director Finance post for which he had been selected. Alleging violations of Articles 12(1) and 14(1)(g), the Petitioner challenged the legality of the suspension. The Supreme Court held that the Chairman lacked authority to suspend the appointment on the basis of a directive that clearly referred to a different post. The Court further held that suspending a valid appointment without lawful cause,

particularly after the Petitioner had resigned from his former employment in reliance upon it, constituted arbitrary and unreasonable executive action. The Court concluded that the Respondents had violated the Petitioner's constitutional rights to equality and lawful occupation. The suspension letter was declared null and void, and directions were issued requiring the Commission to implement the original appointment within one month.

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<<<CASE_START>>>

SUMMARY:

The Petitioner, a former soldier, was arrested on February 27, 2010, by officers of the Terrorist Investigation Division in connection with the murder investigation of journalist Lasantha Wickramatunga. The arrest was based on information that SIM cards allegedly used by the perpetrators had been purchased using the National Identity Card of one Pitchchai Jesudasan, who claimed that he lost his identity card after consuming liquor with the Petitioner. Following his arrest, the Petitioner was detained under a detention order and later remanded in custody. In August 2013, the Magistrate discharged the Petitioner upon the advice of the Attorney General due to absence of evidence. The Petitioner alleged that he had not been informed of the reasons for his arrest and that the arrest and detention violated Articles 12(1) and 13(1) of the Constitution. The Supreme Court held that mere suspicion or association with a person who lost an identity card could not amount to reasonable grounds for arrest in relation to a serious offence such as murder. The Court further noted the absence of arrest notes and the failure of the arresting officer to submit an affidavit justifying the arrest. It held that lawful arrest requires objective material supporting reasonable suspicion rather than conjecture or speculation. Since the initial arrest lacked legal foundation, the detention order issued thereafter was also unsupported by sufficient material. The Court concluded that the Petitioner's constitutional rights had been violated.

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<<<CASE_START>>>

SUMMARY:

The Petitioners, husband and wife, were arrested by officers attached to the Kiribathgoda Police Station in August 2010. The 2nd Petitioner was first arrested when she visited the police station to inquire about her husband, and the Court found that she was detained as a hostage to compel the surrender of the 1st Petitioner. The 1st Petitioner was later arrested and detained from August 13 to August 26 without being produced before a Magistrate or held under a valid detention order. During custody he was stripped, suspended from an iron rod, assaulted, and subjected to severe burns using hot coals and a cigarette lighter on sensitive parts of his body. The Petitioners alleged violations of Articles 11 and 13(1) of the Constitution. The Respondents denied inflicting injuries, but hospital records and medical documentation established blisters, contusions, and nerve damage consistent with the Petitioner's account of torture. The Supreme Court strongly condemned the practice of detaining family members as leverage to compel surrender, describing such conduct as an unlawful abuse of police powers. The Court further held that the Respondents failed to establish lawful grounds for arrest or detention and failed to produce a valid detention order under the Emergency Regulations. The Court concluded that the Petitioners had been subjected to torture, arbitrary arrest, and unlawful detention in violation of their fundamental rights and awarded substantial compensation against both the officers and the State.

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SUMMARY:

The Petitioner, a labourer, was arrested on May 20, 2009, by police officers while returning home carrying chicken meat. Police officers searched his residence without a warrant and seized pawning receipts belonging to third parties. He was detained at the Bandaragama Police Station for seven days before being produced before a Magistrate. During custody, the Petitioner was stripped, beaten with clubs and hose pipes, and forced to consume bird's eye chilies. Crushed chilies were also poured into his eyes and nose while he was restrained in painful positions. The Officer-in-Charge later falsely recorded the date of arrest as May 26 in an attempt to conceal the unlawful delay in producing the Petitioner before a Magistrate. The Petitioner was eventually acquitted of theft charges because of absence of evidence. Alleging violations of Articles 11, 13(1), and 13(2), the Petitioner challenged the conduct of the Respondents. The Supreme Court accepted the Petitioner's testimony and observed that methods such as the use of chilies and hose pipes are specifically intended to inflict suffering while minimizing visible physical marks. Hospital records corroborated injuries to the wrists and ankles consistent with suspension and assault. The Court held that the torture inflicted caused both physical and enduring psychological harm and that the Officer-in-Charge bore responsibility for permitting the police station to be used for unlawful acts. The Court concluded that the Petitioner's constitutional rights had been violated and awarded compensation against both the officers and the State.

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SUMMARY:

The Petitioner was arrested at his residence on September 24, 2005, by several police officers without being informed of the reasons for the arrest. He was thereafter taken to the Gokarella Police Station where he was subjected to severe physical and sexual torture. The officers assaulted him, struck him on the face and ears, and suspended him in a squatting position by passing an iron bar through his tied hands and legs. During the assault, a PVC pipe was inserted through the Petitioner's rectum. Medical reports produced before Court confirmed a ruptured eardrum and injuries consistent with the Petitioner's account of torture. Prior to the

fundamental rights proceedings, the High Court had convicted several of the Respondents under the Convention Against Torture Act for the same conduct. The Petitioner alleged violations of Articles 11, 12(1), 13(1), and 13(2) of the Constitution. The Supreme Court held that the failure of the officers to provide any lawful reason for the arrest rendered both the arrest and subsequent detention illegal. The Court further treated the medical reports and prior criminal convictions as compelling corroborative evidence establishing the occurrence of brutal torture and sexual abuse while in police custody. Given the gravity of the misconduct, the Court directed the responsible officers to pay compensation personally rather than through the State. The Court concluded that the Respondents had violated the Petitioner's constitutional rights guaranteed under Articles 11, 12(1), 13(1), and 13(2).

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SUMMARY:

The Petitioner leased his premises to the 8th Respondent and later discovered that the electricity meter installed at the property had been tampered with by associates connected to the tenant. Upon discovering the irregularity, the Petitioner promptly informed both the Ceylon Electricity Board and the Piliyandala Police and made formal complaints regarding the unlawful conduct. Despite being the original complainant, the Petitioner was arrested on September 26, 2005, by police officers and officials attached to the Ceylon Electricity Board. He was detained at the police station without being informed of any valid reason for the arrest, and the authorities disregarded both his prior complaints and his explanation that a third party had interfered with the electricity meter. Criminal proceedings were subsequently instituted against him, but he was later acquitted by the Magistrate's Court. The Petitioner alleged violations of Articles 12(1), 13(1), and 13(2) of the Constitution. The Supreme Court held that liability for meter tampering could not arise solely because the meter was registered in the Petitioner's name and that proof of actual involvement in tampering was necessary. The Court further held that the police and the Ceylon Electricity Board failed in their investigative duties by ignoring the Petitioner's earlier complaints and arbitrarily depriving him of liberty without cogent evidence. The Court concluded that the arrest and detention were unlawful and constituted violations of the Petitioner's constitutional rights.

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<<<CASE_START>>>

SUMMARY:

The Petitioner, a British tourist and practicing Buddhist, arrived in Sri Lanka on April 21, 2014, and was confronted by a taxi driver and a Civil Defence officer because she bore a tattoo depicting Lord Buddha seated on a lotus. She was taken to the Katunayake Police Station, where her passport was confiscated and she was arrested without being informed of any charge or lawful basis for detention. While in custody, prison guards subjected her to sexually explicit remarks and extorted money from both the Petitioner and her companion. Police officers subsequently obtained a deportation order from a Magistrate and detained the Petitioner in prison and a detention camp until she was deported on April 24, 2014. The Petitioner alleged violations of Articles 11, 12(1), and 13(1) of the Constitution. The Supreme Court observed that the police themselves had acknowledged in official reports that the Petitioner had no intention of insulting or outraging religious feelings and therefore had committed no recognizable offence. The Court held that the arrest amounted to an erroneous assumption of authority without lawful foundation. It further held that only the relevant Minister possessed statutory authority to order deportation under the Immigration and Emigration Act and that the attempt to obtain such an order from a Magistrate reflected a misapprehension of law. The Court also found that the sexual harassment and extortion committed during detention constituted degrading treatment prohibited by Article 11 and concluded that the Petitioner's constitutional rights had been violated.

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<<<CASE_START>>>
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SUMMARY:

The 1st Petitioner alleged that on November 20, 2011, police officers assaulted him and dragged him along a road following a dispute concerning his lorry obstructing traffic. He claimed that he sustained injuries to his hands and legs as a result of the assault. The 2nd Petitioner, his wife, alleged that she too was assaulted by police officers, thrown against a three-wheeler, and subjected to severe abdominal pain. The Petitioners alleged violations of Articles 11, 12(1), and 13(1) of the Constitution. Medical evidence produced before Court, however, did not support the allegations of severe assault. The medical report relating to the 1st Petitioner recorded only minor abrasions on the elbow and ankle, which were considered suggestive of injuries caused by a fall rather than assault. The report further noted that the 1st Petitioner smelled of liquor. The 2nd Petitioner's medical records indicated no abdominal pain or physical injuries. The Supreme Court referred to the principle established in prior authority that allegations under Article 11 must be established with a high degree of certainty because of the seriousness of such accusations. The Court observed that the 1st Petitioner himself had informed the Judicial Medical Officer that his injuries resulted from a fall and had admitted consuming toddy prior to the incident. Given the inconsistency between the Petitioners' testimony and the objective medical findings, the Court held that the allegations were not proved to the required standard and dismissed the application.

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SUMMARY:

The Petitioner was appointed Director General of the National Gem and Jewellery Authority in August 2011. Difficulties arose after the Bribery Commission requested information from him regarding a consultant connected to the Authority, and the Petitioner's cooperation with the investigation allegedly caused hostility from the Chairman of the Authority. Due to illness and

stress, the Petitioner proceeded on medical leave between February 22 and March 1, 2013, and submitted medical certificates and notifications regarding his absence. Despite these communications, the Respondents terminated his employment on the basis that he had vacated his post through unauthorized absence, asserting that he failed to notify the Chairman personally. The Petitioner alleged that the termination violated Articles 12(1) and 14(1)(g) of the Constitution. The Supreme Court examined documentary evidence establishing that the Petitioner had in fact submitted leave applications and medical certificates in compliance with the required procedure. The Court held that the Respondents' reliance on "vacation of post" was not supported by the facts and was used as a pretext to remove the Petitioner from office. The Court further concluded that the conduct of the Chairman was tainted with malice arising from the Petitioner's cooperation with an official corruption inquiry. Referring to the importance of the right to work, the Court emphasized that arbitrary interference with lawful employment attracts constitutional protection. The Court therefore held that the termination was unlawful and violated the Petitioner's rights to equality and lawful occupation.

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"legal_topic": ["equality", "equal_protection", "occupation", "arbitrary_state_interference"]
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<<<CASE_START>>>

SUMMARY:

The Petitioner, a retired Army Lieutenant, was involved in an incident in Pettah on April 28, 2008, after a three-wheeler nearly struck his wife. When the 1st Respondent, a police officer, used offensive language toward the Petitioner's wife, the Petitioner intervened and identified himself as a former military officer. The 1st Respondent then dragged the Petitioner by the collar, assaulted him, and arrested him. At the Dam Street Police Station, the Petitioner was further assaulted and kicked. When he refused to place his thumbprint on envelopes, he was kicked in the head and lost consciousness, later regaining consciousness at the Colombo National Hospital. The police subsequently produced him before a Magistrate on allegations that he possessed five cannabis cigars, but he was later acquitted. The Petitioner alleged violations of Articles 11, 13(1), and 13(2) of the Constitution. The Supreme Court relied on medical records from Colombo National Hospital and Negombo Hospital, which documented injuries consistent with assault by fists and feet, thereby corroborating the Petitioner's account and contradicting the police explanation. The Court further found it highly improbable that a person knowingly carrying narcotics would deliberately provoke a police officer and concluded that the narcotics

charge had been fabricated to justify an unlawful arrest. Although the Court observed that the Petitioner had behaved in a boisterous manner, it emphasized that Article 11 is absolute and that no conduct justifies torture or cruel treatment by State officers. The Court concluded that the Petitioner's constitutional rights had been violated.

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"case_id": 275,
"case_name": "Janaka Sampath Batawalage v. Inspector Prasanna Ratnayake and Others",
"case_number": "S.C. (FR) Application No. 393/2008",
"year": 2008,
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"judgment": "VIOLATED",
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<<<CASE_START>>>

SUMMARY:

The Petitioner, a Consultant Plastic Surgeon and former Head of the Burns Unit at the National Hospital of Sri Lanka, challenged her removal from the position of Head of the Unit in March 2017. Hospital authorities justified the decision by referring to a crisis within the Unit, alleging that the Petitioner had reduced ward capacity, behaved aggressively toward staff and patients, and contributed to administrative failures that affected patient care. Several medical officers refused to continue working under her supervision, and the Nurses' Union requested intervention due to complaints of harassment and aggressive conduct. The Petitioner alleged that her removal violated Articles 12(1) and 14(1)(g) of the Constitution. The Supreme Court held that the administrative authorities were required to respond promptly to the deteriorating situation within the Burns Unit in order to maintain proper hospital operations and patient care. The Court rejected the contention that the Petitioner possessed a legitimate expectation to remain indefinitely as Head of the Unit and observed that she continued to serve as a Consultant Plastic Surgeon despite her removal from the administrative position. The Court further found that the decision was not arbitrary or capricious but was rationally connected to concerns raised by staff and patients. As a preliminary inquiry had commenced and the Petitioner had been afforded an opportunity to be heard, the Court held that principles of natural justice were sufficiently observed. The application was therefore dismissed and the alleged violations were not established.

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"case_id": 276,
"case_name": "Chandini Perera v. Dr. J.M.W. Jayasundara Bandara and Others",
"case_number": "S.C. F.R. No. 120/2017",
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"year": 2017,  
"word_count": 322,  
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SUMMARY:

In 1988, the Urban Development Authority and the Sri Lanka Land Reclamation and Development Corporation granted 100 perches of land to Sri Wijeyashramaya Viharaya as temple property through a registered deed. Seventeen years later, officials of the Sri Lanka Land Reclamation and Development Corporation, together with the then Viharadhipathi, executed a further deed transferring the same land into the Viharadhipathi's private ownership. The following day, the property was sold for Rs. 75 million and mortgaged to a leasing company for the same amount. Thereafter, proceedings were instituted seeking the ejectment of monks residing at the temple and demolition of the premises. The Petitioners, representing Buddhist worshippers, alleged violations of Articles 12(1) and 14(1)(e) of the Constitution. The Supreme Court held that under the Buddhist Temporalities Ordinance, property granted for the benefit of a temple becomes temple property and cannot subsequently be converted into private property by the Viharadhipathi. The Court further found that the transfer executed by State officials lacked the necessary Board and Cabinet approvals and was therefore legally invalid. The leasing company's claim of bona fide status was rejected because the land registry records clearly disclosed the original grant as temple property. The Court also rejected arguments that the original grant was invalid due to absence of religious rituals, holding that ordinary civil methods of acquisition are sufficient for temples to hold property. All subsequent deeds were declared null and void for violating the Petitioners' constitutional rights.

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{  
"case_id": 277,  
"case_name": "Rev. Athuthudave Gunasiri Thero and Others v. Muthuwelu Manimuththu and Others",  
"case_number": "S.C. F.R. 452/2008",  
"year": 2008,  
"word_count": 339,  
"judgment": "VIOLATED",  
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<<<CASE_START>>>

SUMMARY:

The 1st Petitioner, a Japanese vehicle exporting company, and its Country Manager were investigated by Sri Lanka Customs on allegations of undervaluing imported vehicles in order to reduce customs duties payable to the State. Investigations disclosed that undervalued pro-forma invoices had been issued to local importers while the remaining balance of the vehicle prices was collected through a local agent and transferred unlawfully to Japan. Following an inquiry conducted under the Customs Ordinance, the 2nd Petitioner was ordered to pay a mitigated forfeiture amounting to Rs. 6,000,000. The Petitioners alleged that their rights under Articles 12(1), 13(1), and 13(4) had been violated because the importer involved in the transactions had not been similarly punished. The Supreme Court dismissed the application and held that Article 12 guarantees equality only in the lawful exercise of executive power and does not entitle a party to claim "equal violation of the law." The Court observed that the Petitioners sought to rely upon the alleged failure to prosecute another party in order to avoid lawful consequences arising from their own misconduct. The Court further noted that the Petitioners had deliberately suppressed material facts because the 2nd Petitioner had already admitted involvement in the undervaluation scheme during the Customs investigation despite later claiming otherwise before Court. The Court held that Customs officials were legally bound to act upon the findings of the inquiry under the Customs Ordinance and that the allegations of arbitrary punishment lacked merit. The application was dismissed with costs.

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{
"case_id": 278,
"case_name": "JPC Trade Company Ltd and R. Lahiru Rakshitha v. Jagath P. Wijeweera and Others",
"case_number": "S.C. F.R. Application 290/2014",
"year": 2014,
"word_count": 302,
"judgment": "NOT_VIOLATED",
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SUMMARY:

The Petitioners were tenants occupying premises within the YMBA building and had historically received electricity through individual connections maintained by the Ceylon Electricity Board. Owing to concerns regarding unsafe and ad-hoc wiring arrangements, the YMBA obtained a certificate of exemption from the Public Utilities Commission of Sri Lanka permitting the installation of a Bulk Electricity Supply system for the building. In July 2016, the individual electricity meters of the Petitioners were removed pursuant to that scheme. The Petitioners alleged that the YMBA charged electricity tariffs at rates higher than those ordinarily applicable to industrial consumers and issued invoices lacking sufficient clarity. They further contended that

the Public Utilities Commission had acted in bad faith by granting the exemption without properly verifying the technical competence of the YMBA. Alleging violations of Articles 12(1) and 14(1)(g), the Petitioners invoked the fundamental rights jurisdiction of the Supreme Court. The Court dismissed the application in limine, primarily on the basis that it had been filed outside the one-month constitutional time limit prescribed by Article 126(2). The Court observed that the exemption had been gazetted in 2014 and that the Petitioners failed to provide a satisfactory explanation for the delay in filing proceedings after the removal of the meters in July 2016. The Court further held that the Public Utilities Commission and the YMBA had complied with the procedures prescribed under the Sri Lanka Electricity Act concerning bulk supply schemes and exemptions. Complaints regarding billing disputes between landlord and tenant were characterized as matters of private law rather than executive or administrative action capable of attracting constitutional remedies.

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{
"case_id": 279,
"case_name": "Laboratory Equipment Co. (Pvt) Ltd and Others v. Ceylon Electricity Board and Others",
"case_number": "S.C. F.R. Application No. 412/2016",
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"judgment": "NOT_VIOLATED",
"articles_cited": ["12(1)", "14(1)(g)"],
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<<<CASE_START>>>

SUMMARY:

The 1st Petitioner was arrested on March 1, 2009, and the 2nd Petitioner on March 2, 2009, by officers attached to the Meegahathenna Police Station on suspicion of theft involving a television and cassette recorder. During custody, the 1st Petitioner was suspended from a pole with his wrists and ankles tied, beaten on the soles of his feet and back, rotated while suspended, and later manacled to a table in an uncomfortable position for approximately forty-eight hours without food, water, or access to toilet facilities. The 2nd Petitioner was assaulted by a soldier acting under police authority, beaten with a club by the police, and handcuffed to an iron rod for twelve hours until he vomited blood and lost consciousness. The Respondents denied all allegations and claimed that the Petitioners were detained only in a standard police cell. The Petitioners alleged violations of Article 11 of the Constitution. The Supreme Court relied upon Judicial Medical Officer reports documenting rope abrasions, swelling, and tenderness consistent with the Petitioners' accounts of suspension and assault. The Court also rejected the official police version after finding that the Officer-in-Charge's travel records were contradicted by the police vehicle running charts. The Court held that compelling the 1st Petitioner to crawl into the station and denying toilet access for prolonged periods constituted degrading and humiliating treatment incompatible with human dignity. The Court

concluded that the Petitioners had been subjected to torture and cruel treatment while in police custody in violation of Article 11 and awarded compensation against both the officers and the State.

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{  
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Others",  
"case_number": "S.C. (F.R.) Application 479/2009",  
"year": 2009,  
"word_count": 330,  
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"articles_cited": ["11"],  
"legal_topic": ["torture", "cruel_treatment", "inhuman_treatment", "degrading_treatment",  
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<<<CASE_START>>>

SUMMARY:

The Petitioner, a housewife, became involved in a dispute with her neighbor, the 1st Respondent, on June 27, 2008 regarding garbage disposal. Before any formal complaint was recorded, police officers arrested the Petitioner using a private vehicle. The Court noted that the 1st Respondent was the wife of the Officer-in-Charge of Matale Prison, the 2nd Respondent, and found that the police had shown unusual and improper interest in the matter. At court, the police falsely alleged that the Petitioner had used a knife and caused serious injury, resulting in her remand. While detained at Bogambara Prison, the 6th to 9th Respondents, who were female prison guards, assaulted the Petitioner by slapping her ears and banging her head against a wall, allegedly acting under instructions from the 2nd Respondent to "half-kill" her. Medical evidence from the Consultant Judicial Medical Officer established permanent hearing impairment consistent with the assault described by the Petitioner. The Court accepted her explanation for not immediately reporting the abuse to prison doctors, recognizing the fear of reprisals faced by a first-time prisoner under guard custody. The Court concluded that the conduct of the Respondents constituted degrading and cruel treatment and reflected arbitrary and unequal state action influenced by personal connections. Accordingly, the Court held that Articles 11 and 12(1) had been violated and awarded compensation against both the State and the individual Respondents.

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Others",  
"case_number": "S.C. (F.R.) Application No. 599/2009",  
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<<<CASE_START>>>

SUMMARY:

The Petitioners were twenty-two individuals employed by the Irrigation Department on casual or contract terms for periods ranging from ten months to nearly twelve years. Following the issuance of Public Administration Circular 25/2014, which permitted permanent appointments of qualifying employees to the same posts for which they had originally been recruited, the 1st Respondent initially issued letters appointing the Petitioners as Clerks. Approximately ten months later, these letters were cancelled and replaced with appointments as Labourers. The Petitioners contended that they had performed clerical and computer-related functions for years and produced letters from supervising officers confirming such duties. They alleged that the cancellation of the Clerk appointments violated Articles 12(1) and 14(1)(g) of the Constitution. The Respondents argued that official recruitment documents and payroll records demonstrated that the Petitioners had originally been recruited and paid as casual laborers, irrespective of later assigned duties. The Court held that the relevant Circular required strict adherence to the original basis of recruitment and that the Respondents were legally obliged to correct the erroneous Clerk appointments to maintain equality among public servants. The Court further observed that some documents produced by the Petitioners themselves identified them as daily-paid laborers. Relying on established precedent, the Court stated that Article 14(1)(g) protects the general right to work but does not confer a right to occupy a specific public post. Since the Petitioners failed to establish discriminatory treatment or arbitrary conduct, the application was dismissed and no violation of fundamental rights was found.

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"case_number": "S.C. (F.R.) Application No. 153/2016",  
"year": 2016,  
"word_count": 346,  
"judgment": "NOT_VIOLATED",  
"articles_cited": ["12(1)", "14(1)(g)"],  
"legal_topic": ["equality", "equal_protection", "occupation", "discrimination_employment"]  
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<<<CASE_START>>>

SUMMARY:

The Petitioner, a meat stall owner, was arrested on April 24, 2011 at a fair by four men in civilian clothes who handcuffed and blindfolded him before taking him to a thicket where he was intermittently assaulted. He was subsequently transported to the Madampe Police Station. The Petitioner alleged that the 1st Respondent assaulted him with a club-like object on his shoulders and head and compelled him to visit houses that had been burgled while demanding the return of stolen property. He remained in police custody for four days without being produced before a Magistrate and was eventually released on police bail on April 28, 2011. The Petitioner further alleged that the 1st Respondent demanded Rs. 50,000 to avoid filing charges, leaving his contact details on a written note. Medical evidence contained in the Medico-Legal Report documented seven contusions and an abrasion consistent with blunt force injuries caused by a staff. The Court held that the arrest was unlawful because the 1st Respondent failed to disclose any specific offence at the time of arrest, noting that Article 13(1) requires communication of the reason for arrest rather than a general assertion of lawful authority. The Court also found that the prolonged detention violated Article 13(2). Although the 2nd Respondent did not participate directly in the arrest or assault, he was held responsible for sanctioning unlawful detention beyond the legal period without sufficient grounds. The Court concluded that the Petitioner's rights under Articles 11, 13(1), and 13(2) had been violated and awarded compensation against the individual officers and the State.

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"case_id": 283,
"case_name": "Tuduge Achalanka Srilal Perera v. Police Sergeant Ananda and Others",
"case_number": "S.C. (F/R) Application No: 198/2011",
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"word_count": 333,
"judgment": "VIOLATED",
"articles_cited": ["11", "13(1)", "13(2)"],
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"detention", "unlawful_detention", "custody", "personal_liberty"]
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<<<CASE_START>>>

SUMMARY:

The Petitioners sat for the 2007 Limited Competitive Examination for recruitment to Class III of the Sri Lanka Administrative Service and later discovered that the "Case Study" paper had leaked. Authorities cancelled only that paper and conducted a fresh examination in November 2009. The Petitioners alleged that two additional papers had also leaked and claimed that certain candidates obtained exceptionally high marks through political influence or access to the typesetting process. Following interviews conducted in June 2010, a list of successful candidates was published in August 2010. The Petitioners alleged that the recruitment process violated Article 12(1) by denying equal treatment and transparency. The Court dismissed the application on procedural and substantive grounds. It held that Article 126(2) required the application to be filed within one month of the alleged infringement, yet the Petitioners had

delayed filing despite being aware of the alleged leak and interview results well beforehand. The Court further observed that the selected candidates had already served in the Sri Lanka Administrative Service for nearly eight years, making any attempt to invalidate their appointments futile and disruptive. Additionally, the Petitioners failed to join necessary parties, including officials responsible for conducting investigations into the alleged fraud and other candidates whose rights would be affected by the relief sought. The Court also found that the Petitioners had not acted with utmost good faith because they falsely asserted that no investigations had been conducted, despite evidence of inquiries initiated under the Public Examinations Act. Accordingly, the Court held that no infringement of fundamental rights had been established.

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"case_name": "P.S.R. Premalal and Others v. Wasala Mudiyanseelage Nimal Jayantha
Pushpakumara and Others",
"case_number": "S.C. (FR) Application No. 502/2010",
"year": 2010,
"word_count": 335,
"judgment": "NOT_VIOLATED",
"articles_cited": ["12(1)"],
"legal_topic": ["equality", "equal_protection", "discrimination_employment"]
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<<<CASE_START>>>

SUMMARY:

The Petitioner, a sanitary labourer employed at Sevanagala Divisional Hospital, was summoned on February 3, 2012 to a rest room by the 3rd Respondent, who was the Medical Officer-in-Charge of the hospital. The 3rd Respondent questioned the Petitioner regarding the alleged poisoning of his official water tank and thereafter assaulted him using a rubber or conduit pipe. In his affidavit before Court, the 3rd Respondent admitted assaulting the Petitioner, claiming that he acted under provocation and loss of self-control after the Petitioner allegedly admitted responsibility for the poisoning. Medical evidence from the Judicial Medical Officer documented five contusions on the Petitioner's arm, chest, and buttock and confirmed that the injuries were caused by a flexible blunt weapon within the relevant timeframe. The Petitioner alleged that this conduct violated Article 11 of the Constitution. The Court held that the admission contained in the 3rd Respondent's own affidavit established the assault with the high degree of certainty required in cases alleging torture and cruel treatment. Relying on prior constitutional jurisprudence, including *W.M.K. de Silva v. Fertilizer Corporation and Channa Peiris v. Attorney General*, the Court emphasized that the intentional infliction of severe physical pain by a public official acting under the colour of office constitutes a violation of human dignity protected by Article 11, irrespective of provocation. The Court concluded that the conduct reached the qualitative threshold necessary for constitutional intervention and held that the Petitioner's fundamental rights had been violated. The 3rd Respondent was directed to pay

personal compensation to the Petitioner.

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<<<CASE_START>>>

SUMMARY:

The Petitioner challenged the refusal to admit her daughter to Grade 1 at Sirimavo Bandaranaike Vidyalaya for the year 2018. She claimed to reside in the upstairs portion of her mother's house in Narahenpita and asserted that her sister's child, who lived in the same premises, had previously been admitted to the school. The Principal rejected the application after three separate field inspections concluded that the Petitioner did not actually reside at the declared address. During inspections conducted in October and December 2017, officials found the upstairs section either locked or used merely for storing brooms and plastic items. Inspectors further observed an absence of children's clothing, school bags, books, or other ordinary residential indicators. The Petitioner alleged that the refusal of admission violated Article 12(1) of the Constitution. The Court held that the Petitioner failed to establish actual residence at the address relied upon for admission eligibility. It found it highly suspicious that the Petitioner repeatedly failed to provide access to the premises during early morning inspections despite claiming to live there. The Court also rejected photographs tendered by the Petitioner showing furniture and household items, concluding that they appeared to have been prepared solely for litigation purposes rather than reflecting genuine occupation. The Court accepted the inspection reports produced by the Respondents and held that minor clerical inconsistencies in dates did not undermine their credibility. Since the evidence objectively contradicted the Petitioner's assertions and demonstrated that the admission criteria had been correctly applied, the Court concluded that no arbitrary or discriminatory conduct had occurred and dismissed the application without finding a violation of fundamental rights.

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"case_number": "S.C. F.R. Application No. 54/2018",
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SUMMARY:

The Petitioner, a printing technician, was arrested on January 1, 2011 while celebrating the New Year at his workplace. The 1st Respondent informed him that he was being taken to Panadura Police Station but instead transported him to Moronthuduwa Police Station. There, the 5th Respondent displayed four parcels of cannabis and demanded that the Petitioner confess ownership. Upon refusal, the Petitioner was threatened and compelled to place his fingerprints on the parcels. Police later submitted a B-report falsely stating that the Petitioner had been arrested on January 3, 2011 while transporting 500 grams of cannabis on a motorcycle. Evidence from the Petitioner's supervisor and father established that he had actually been in custody since January 1. Because the fabricated charge fell under the Poisons and Dangerous Drugs Ordinance, the Petitioner remained in remand custody for over two months while senior officers delayed correcting the true date of arrest. The Court found that the Respondents had deliberately deceived the Magistrate's Court by introducing contraband and falsifying official records in order to justify unlawful detention. Affidavits and admissions by senior officers confirmed that the police narrative was fabricated with mala fide intent. Although the Court did not make full findings of constitutional liability against the senior officials, it strongly condemned their culpable lethargy in prolonging the Petitioner's incarceration. The Court concluded that the conduct of the 1st to 5th Respondents violated Articles 12(1), 13(1), and 13(2) of the Constitution through arbitrary arrest, fabricated charges, unlawful detention, and unequal treatment under the law. Compensation was awarded against the officers personally and against the State.

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"case_number": "S.C. F.R. Application No. 672/2011",  
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"articles_cited": ["12(1)", "13(1)", "13(2)"],  
"legal_topic": ["equality", "equal_protection", "arrest", "unlawful_arrest", "detention",  
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<<<CASE_START>>>

SUMMARY:

The Petitioner, an Experimental Officer with sixteen years of service at the Rubber Research Institute, sought promotion to the post of Research Officer. After several unsuccessful recruitment attempts between 2005 and 2012, the Institute conducted a fresh competitive examination in February 2016. The Petitioner alleged that the examination process had been arbitrarily altered from a subject-specific Chemistry examination to an Intelligence Quotient test in order to favour external candidates. She further complained that examination results were not publicly displayed and that she was only verbally informed of her failure. The Petitioner also referred to earlier recruitment exercises where she had passed written examinations but was unsuccessful at interviews, including an occasion when an older external candidate was selected. She alleged violations of Articles 12(1) and 14(1)(g) of the Constitution. The Court examined the applicable 2011 Scheme of Recruitment and found that it expressly required candidates to undergo an "Aptitude Test." It held that an IQ examination fell within the scope of such a test and that the same requirement applied equally to all candidates irrespective of their academic specialization or internal status. The Court further observed that the Petitioner failed to demonstrate differential treatment or discriminatory conduct toward similarly situated candidates. It emphasized that the suitability and structure of a recruitment process constitute matters of institutional policy rather than judicial determination under fundamental rights jurisdiction. Although the Court noted that publication of examination results would improve transparency, it held that the absence of publication alone did not amount to a constitutional violation. Accordingly, the Court dismissed the application and concluded that no infringement of Articles 12(1) or 14(1)(g) had been established.

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  "judgment": "NOT_VIOLATED",
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<<<CASE_START>>>

SUMMARY:

The matter arose from an incident in September 2013 in which the 1st Petitioner was accused of damaging a hotel. His brother, the 2nd Petitioner, attempted to resolve the dispute by paying compensation for the damage. The 1st Respondent, who was the Headquarters Inspector of Police, rejected the settlement, handcuffed the 2nd Petitioner, assaulted him, and unlawfully detained him as a "hostage" in order to compel the surrender of the 1st Petitioner. After the 1st Petitioner surrendered, he was taken to the hotel premises and assaulted with broomsticks and

cinnamon sticks until he vomited blood. He was further threatened with death and instructed to mislead the Judicial Medical Officer. Although the initial medical report indicated no injuries, later medical records from Matara and Karapitiya Hospitals confirmed a fracture of the left ulna and additional trauma consistent with assault. The Court held that the arrest and detention of the 2nd Petitioner were unlawful because they were carried out solely to compel another person's surrender and not on reasonable suspicion of any offence. The Court also found that the later medical evidence and the Petitioner's eventual truthful account satisfied the high degree of certainty required to establish torture under Article 11, despite his earlier denial of injuries out of fear. The Court criticized the conduct of the initial Judicial Medical Officer for failing to properly examine the Petitioner despite indications of serious injury and called for an investigation into that conduct. The Court concluded that the 1st Respondent violated Articles 11 and 13(1) of the Constitution and ordered personal compensation together with costs payable by the State.

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"case_id": 289,
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"case_number": "S.C. F.R. Application No. 387/2013",
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"word_count": 324,
"judgment": "VIOLATED",
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<<<CASE_START>>>

SUMMARY:

The Petitioners applied for Grade 1 admission for their daughter to Vishaka Vidyalaya for the year 2018 under the category relating to residence in close proximity to the school. The child obtained 58.3 marks at the admission interview while the relevant cut-off mark was 61.5. School authorities deducted thirty marks on the basis that six other government schools were located closer to the Petitioners' residence than Vishaka Vidyalaya. The Petitioners challenged the deduction of marks relating to St. Anthony's Balika and St. Mary's Balika, contending that, as Buddhists, those schools could not reasonably be considered viable alternatives for their child. The Court examined Circular 22/2017 governing school admissions and observed that a school could only be treated as a viable alternative if it admitted at least ten percent of students belonging to the applicant's religion. Evidence established that St. Anthony's Balika, despite being a formerly Catholic-assisted school, had admitted only seven percent Buddhist students during the relevant period and therefore failed to satisfy the required threshold. The Court held that the deduction of five marks in relation to that school was contrary to the admission circular and unlawfully reduced the child's total score. Once the incorrect deduction was restored, the child's revised mark exceeded the applicable cut-off point. The Court emphasized that the

constitutional guarantee of equality under Article 12(1) requires authorities to apply legal rules and administrative circulars equally and correctly among similarly situated applicants. By misapplying the admission criteria to the detriment of the Petitioners, the Respondents acted arbitrarily and infringed the Petitioners' right to equal protection of the law. The Court therefore directed the admission of the child to Vishaka Vidyalaya.

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"case_number": "S.C. F.R. Application No. 58/2018",
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SUMMARY:

The Petitioner applied for the post of Grama Niladhari in the Welivitiya, Divithura Divisional Secretariat Division and obtained 132 marks at the competitive examination and 7 marks at the interview, totaling 139 marks. After one of the originally selected candidates was disqualified for not residing within the required division, the 5th and 6th Respondents, who had each obtained 131 marks at the examination, were called for a later interview before a different interview board. They ultimately secured higher aggregate scores and were appointed. The Petitioner alleged that conducting separate interviews before a different board violated her right to equality and equal protection under Article 12(1), contending that the procedure permitted arbitrary and inconsistent marking. The Respondents maintained that the additional interviews were necessitated by the residency-based disqualification and were conducted according to recruitment guidelines. The Court held that no violation had occurred. It observed that the Chairman of both interview boards was the same person, ensuring consistency and supervision. The Court further found no material evidence of bias or arbitrary marking, noting that all candidates received identical marks for interview performance and that the selected candidates obtained higher overall scores on objective criteria. The petition was dismissed.

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"legal_topic": ["equality", "equal_protection", "discrimination_employment"]
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SUMMARY:

The Petitioners, residents of Chapel Lane, Nugegoda, challenged the operation of Royal Institute and the construction of unauthorized high-rise buildings within a Mixed Development Zone where educational institutions were prohibited under the applicable Development Plan. They alleged that the Urban Development Authority and Kotte Municipal Council unlawfully permitted construction contrary to zoning regulations, including erecting a building with five upper floors on a site below the minimum land extent and situated on a road only six meters wide instead of the required twelve meters. The Petitioners further complained that no Certificate of Conformity had been issued for one building despite occupation by approximately 1,900 students, causing traffic congestion, noise, and restrictions on movement. Invoking Articles 12(1) and 14(1)(h), they argued that the authorities had granted preferential treatment to the school while disregarding the rights of residents. The Court held that the Respondents had violated the Petitioners' fundamental rights by failing to enforce zoning laws and building regulations. It emphasized that occupation without a Certificate of Conformity directly contravened statutory regulations and created serious public safety risks. The Court found the approval of a high-rise building on a narrow road to be an intentional violation of legal requirements and ordered the demolition of the illegal constructions and cancellation of permits within three months.

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"case_number": "S.C. F.R. 621/2010",
"year": 2010,
"word_count": 312,
"judgment": "VIOLATED",
"articles_cited": ["12(1)", "14(1)(h)"],
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<<<CASE_START>>>

SUMMARY:

The Petitioner, a paraplegic scientist and founder of the organization "IDIRIYA," instituted proceedings alleging the continuing failure of State authorities to enforce statutory accessibility

obligations for persons with disabilities. Despite the enactment of the Protection of Rights of Persons with Disabilities Act No. 28 of 1996 and Accessibility Regulations of 2006, public buildings and transport systems remained largely inaccessible, and Certificates of Conformity were routinely issued for structures that failed to comply with mandatory accessibility standards. The application followed an earlier Supreme Court decision directing compulsory compliance for new constructions, which had not been effectively implemented. The Petitioner relied principally on Article 12(1), contending that disabled persons were unlawfully marginalized and deprived of equal protection of the law. The Court held that the State's failure to enforce accessibility laws violated the fundamental rights of persons with disabilities. Adopting the social model of disability, the Court reasoned that disability becomes oppressive when society fails to provide a barrier-free environment. The Court emphasized that accessibility is intrinsically linked to human dignity and that forcing disabled individuals to confront humiliation and danger while accessing public services constituted serious impairment of dignity. Referring to Article 12(4), the Court observed that affirmative measures for disabled persons were constitutionally recognized. Directions were issued prohibiting the grant of Certificates of Conformity for non-compliant buildings and requiring disciplinary and prosecutorial action against violators.

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"word_count": 312,
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<<<CASE_START>>>

SUMMARY:

The 1st Petitioner applied for Grade 1 admission for her son to Dharmaraja College, Kandy, under the close proximity category provided in Circular No. 22/2017. The application was rejected because the Petitioners failed to achieve the minimum qualifying score of 85 marks, having obtained only 76.25 marks. The Petitioners challenged the allocation of residency marks, asserting that the ownership period of the Petitioner's father should have been aggregated with her own period of ownership for purposes of calculating marks. They also disputed deductions made on the basis that several other schools were geographically closer to their residence than Dharmaraja College. Invoking Article 12(1), the Petitioners alleged arbitrary and discriminatory treatment in the admissions process. The Court dismissed the application and held that the Respondents had correctly applied the provisions of Circular No. 22/2017. It reasoned that the Circular expressly calculated residency marks according to the duration of ownership held by the applicant or spouse, and therefore prior ownership by the Petitioner's father could not be considered. The Court further held that the Circular required the use of official aerial maps

prepared by the Department of the Surveyor General to determine proximity, and those maps established that the schools identified by the Respondents were in fact nearer to the residence. The allegation of unequal treatment was rejected because no evidence of bias or arbitrary marking against similarly situated applicants in the same academic year was established.

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"case_number": "SC.FR. No. 30/18",  
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"word_count": 337,  
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<<<CASE_START>>>

SUMMARY:

The Petitioner, a seaman, traveled to Japan on a tourist visa in 2004, overstayed unlawfully for three years, and was deported in 2007. In 2011 he submitted his Continuous Discharge Certificate to obtain a Certificate of Watch Keeping. Following an inquiry conducted by the Acting Shipping Officer, during which the Petitioner admitted the overstay and deportation, the officer suspended the Petitioner's Continuous Discharge Certificate for six years under Regulation 8(a) of the Merchant Shipping Regulations 1980. The Petitioner alleged that the suspension was motivated by malice arising from a family dispute with the 1st Respondent and contended that such a sanction required a prior criminal conviction. Invoking Articles 12(1) and 14(1)(g), he argued that the decision arbitrarily interfered with his occupation. The Court dismissed the application and held that the Respondents had acted lawfully within their statutory authority. It determined that Regulation 8(a) empowered the Shipping Officer to suspend a certificate where a seaman was found unsuitable for maritime employment after inquiry, and that the regulation did not require a judicial conviction. The Court accepted the State's position that a person previously deported for illegal overstay could reasonably be regarded as a flight risk and unsuitable for employment aboard ships. The allegation of malice was rejected because the impugned decision was based on admitted facts and made independently by the 2nd Respondent.

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"case_number": "S.C. F.R. Application No. 495/2011",
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"word_count": 328,  
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SUMMARY:

The Petitioner applied for appointment as an Assistant Superintendent of Police under the Ordinary Police Service category pursuant to a Gazette notification issued in 2010. Although he successfully completed the written examination and initial interview stages, he married before the final interview and formal appointment. The appointing authority subsequently disqualified him because the Gazette expressly required candidates for the Ordinary Police Service category to remain unmarried. The Petitioner alleged that the condition violated his rights under Articles 12(1) and 14(1)(g), contending that marriage is a fundamental right and that candidates in technical police categories such as medicine and engineering were permitted to be married. The Court dismissed the application and held that the classification was reasonable and constitutionally permissible. It observed that officers in the Ordinary Police Service are responsible for law enforcement duties requiring intensive physical and weapons training, and that authorities were entitled to require minimal family commitments during training and probation. The Court further held that technical officers formed a distinct category because their functions and training requirements materially differed from those of ordinary police officers. It concluded that the unmarried requirement was a functional condition applicable until the completion of recruitment, training, and probation. Referring to precedent concerning professional restrictions imposed for operational reasons, the Court found that the distinction was rationally connected to the objectives of the service and did not amount to arbitrary discrimination or unlawful interference with occupational rights.

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{  
"case_id": 296,  
"case_name": "Rubasin Gamage Indika Athula Priyantha v. The Inspector General of Police and Others",  
"case_number": "S.C. (F/R) Application No. 275/2013",  
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"word_count": 291,  
"judgment": "NOT_VIOLATED",  
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SUMMARY:

The case concerned a fourteen-year-old schoolgirl who was questioned and detained by police officers during an investigation into alleged sexual abuse involving a local politician. The 1st Respondent and several officers entered the child's home under the pretext of a media introduction, questioned her publicly before neighbors despite her denials, and removed her to Matara Police Station against the wishes of her parents. She was detained overnight in a cell with an adult female detainee, denied food and water, and later kept in hospital for eight days under police guard for repeated medical examinations even after the initial report disclosed no evidence of abuse. The Petitioners alleged violations of Articles 11, 12(1), 13(1), and 13(2), contending that the child had been subjected to degrading treatment, arbitrary arrest, and unlawful detention. The Court held that the Respondents had violated the child's fundamental rights and imposed personal liability on the 1st Respondent. It reasoned that there was no legal authority permitting the arrest or detention of an alleged victim solely for purposes of interrogation. The Court further held that publicly questioning a child about allegations of sexual abuse and detaining her with adult offenders violated both domestic protections for children and international standards concerning the rights of the child. Directions were issued requiring the Inspector General of Police to formulate human rights guidelines concerning the treatment of children and women.

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"case_number": "S.C. (F.R.) Application No. 273/2012",
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SUMMARY:

The Petitioner graduated from Odessa National Medical University in Ukraine, an institution officially recognized by the Sri Lanka Medical Council, and successfully passed the Examination for Registration to Practise Medicine. Despite satisfying these requirements, the Sri Lanka Medical Council refused to grant provisional registration on the basis of a newly introduced pre-entry qualification contained in Circular 1R, requiring specified credit passes in Advanced Level science subjects before admission to foreign medical schools. The Petitioner had enrolled in the university before the circular came into operation, at a time when the applicable legal requirement was merely the minimum Advanced Level qualification required for admission to a

State university. Invoking Articles 12(1) and 14(1)(g), the Petitioner contended that the retrospective application of the circular unlawfully interfered with her right to equality and her ability to engage in the medical profession. The Court held that the Respondents had violated the Petitioner's fundamental rights and directed the Sri Lanka Medical Council to grant provisional registration within thirty days. It reasoned that the Medical Ordinance exhaustively prescribed the conditions for registration and that the Council, as a subordinate regulatory authority, could not impose additional qualifications inconsistent with parliamentary legislation. The Court further recognized that the Council's prior recognition of the university created a legitimate expectation that graduates satisfying the statutory requirements would be registered. Applying the circular retrospectively was found to undermine legal certainty and constitute an unlawful abuse of regulatory power.

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"case_id": 298,
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SUMMARY:

The Petitioners, consisting of twenty-two Agriculture Monitoring Officers and their trade union, challenged the introduction of a new Service Minute and Circular No. 10/2012 establishing the Programme Officers' Service under the Ministry of Agriculture. They alleged that the restructuring arbitrarily altered their designations and potentially excluded them from a limited competitive examination relevant to promotions. The Petitioners further claimed discriminatory treatment because Economic Assistants, who were Arts graduates recruited through a competitive process, were placed on a higher salary scale than the Petitioners, although both groups had entered public service under graduate employment schemes. The Respondents maintained that absorption into the new service was optional and that officers who declined absorption would remain in their existing posts. Relying on Articles 12(1) and 14(1)(g), the Petitioners contended that the scheme violated equality and occupational rights. The Court dismissed the application and held that no arbitrary or discriminatory conduct had been established. It reasoned that arbitrariness required capricious or irrational executive action and that the optional nature of the scheme demonstrated reasonableness rather than compulsion. The Court further held that Economic Assistants and the Petitioners did not belong to the same class because they had been recruited through materially different procedures. The Court additionally held that the Petitioners were estopped from relitigating the salary issue because a

previous application seeking similar relief had already been refused. The Respondents' assurance that a future promotion scheme would be introduced was also accepted.

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"judgment": "NOT_VIOLATED",
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SUMMARY:

The Petitioner, a Grama Niladhari, applied for the admission of her child to Grade 1 at Dharmasoka College under the Transfer Category provided by Circular 22/2017. Her application was rejected because the transfer relied upon was within the same Divisional Secretariat area and therefore did not satisfy the requirement of a transfer made on exigencies of service from outside the relevant feeder area. The Appeal Board upheld the rejection and further observed that the transfer occurred within a distance of ten kilometers. During proceedings, the Court discovered that the Petitioner had submitted different permanent residential addresses in applications made to two separate schools, one identifying Balapitiya and the other Ambalangoda as the permanent residence. Invoking Articles 12(1) and 12(2), the Petitioner alleged discriminatory and unequal treatment in the admissions process. The Court dismissed the application and held that the Petitioner was not similarly situated to applicants genuinely displaced by transfers into a new feeder area. It reasoned that the Transfer Category was specifically intended to provide relief to public servants transferred into unfamiliar localities and not to persons remaining within the same educational zone. The Court further distinguished routine administrative transfers from transfers made on exigencies of service. Applying the equitable doctrine requiring litigants to approach the Court with clean hands, the Court found that the Petitioner's inconsistent declarations regarding residence constituted prima facie misleading conduct intended to secure an unfair advantage and undermined the integrity of the admissions process.

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"case_id": 300,
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SUMMARY:

The Petitioner, an Arts graduate teacher serving at Kotahena Methodist Tamil Vidyalayam since 2010, challenged a series of transfers issued within the Colombo North educational zone during 2016. He was first transferred to Mutwal Hindu College, then to Fathima Muslim Ladies College where the Principal declined to accept him due to the institution's policy permitting only female teachers, and finally to St. Anthony's Tamil Vidyalayam where acceptance was initially refused. The Petitioner alleged that the transfers were arbitrary, unlawful, and influenced by the 7th Respondent following complaints regarding mismanagement at his original school. Invoking Article 12(1), he contended that the repeated transfers violated his right to equality and equal protection of the law. The Respondents maintained that the transfers were administrative measures undertaken pursuant to Circular 1/2016 to balance teacher allocations within the educational zone and fill vacancies affecting several teachers. The Court dismissed the application and held that no violation of fundamental rights had occurred. It found that the transfers were routine administrative actions implemented according to established Ministry procedures and therefore could not be characterized as arbitrary. The Court emphasized that reasonableness is an essential component in determining non-arbitrariness and observed that the Petitioner failed to establish differential treatment when compared with similarly situated teachers. The Court further noted that the Petitioner objected to every transfer before reporting for duty, indicating a preference for a specific teaching assignment outside his specialization rather than evidence of discrimination.

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SUMMARY:

The Petitioners, comprising the Sri Lanka Nidahas Rubber Inspectors' Union and Rubber Development Officers, challenged a new Scheme of Recruitment approved by the Public Service Commission on 14 November 2014. The revised scheme classified them as Supervisory Management Assistant - Technical officers under salary code MN 3 and removed the degree qualification previously associated with recruitment. The Petitioners contended that their actual duties and status warranted classification as Field or Office Based Officers under salary code MN 5. They further alleged that the changes adversely affected their professional standing and opportunities within the service. Invoking Articles 12(1) and 14(1)(g), they argued that the scheme was discriminatory and unlawfully interfered with their occupational rights. The Respondents raised a preliminary objection that the application had been filed outside the constitutional time limit prescribed by Article 126(2). Documentary evidence demonstrated that the Petitioners had participated in a meeting on 25 November 2014 specifically discussing amendments to the already approved Scheme of Recruitment, thereby proving prior knowledge of the impugned decision. The Court dismissed the application in limine without examining the substantive merits. It held that the one-month limitation period under Article 126(2) is mandatory and begins from the date the alleged infringement becomes known to the Petitioners. The Court rejected the claim that awareness arose only upon publication of a later job advertisement and found that no exceptional circumstances had prevented earlier invocation of the Court's jurisdiction.

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SUMMARY:

The Petitioner, an Ayurvedic medical officer attached to the Mawathagama Pradeshiya Sabha, challenged her transfer to the Bingiriya Pradeshiya Sabha effected in March 2011. She alleged that the transfer was arbitrary, unlawful, and motivated by retaliation arising from complaints she had previously made to the Human Rights Commission and from discrimination connected to her spinal injury. The Respondents maintained that the transfer was necessitated by administrative exigencies and referred to an investigative report indicating that the Petitioner had created workplace conflict, including an incident involving the burning of photocopies of official documents and cheques, thereby causing disharmony with superiors and colleagues.

Invoking Articles 12(1) and 14(1)(g), the Petitioner contended that the transfer unlawfully interfered with her equality and occupational rights. The Court dismissed the application and held that the transfer was a valid administrative measure justified by exigencies of service. It reasoned that the efficient functioning of a public institution required cooperative relationships between officers and management and that transferring an officer who was in serious conflict with superiors could legitimately restore administrative harmony. The Court further observed that although employers may sympathetically consider medical conditions, an employee cannot insist on serving at a specific workplace as a legal entitlement, particularly where no medical evidence had been presented before the transfer decision. The Court additionally held that the authority to transfer Ayurvedic medical officers had been lawfully delegated and noted that the Petition improperly challenged only the notification communicating the appeal outcome rather than the original transfer order itself.

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SUMMARY:

The Petitioner was arrested on 26 June 2012 by police officers attached to the Maho Police Station in connection with an alleged train bag theft. He alleged that during custody he was suspended by his hands from a roof, beaten with a wooden pole, and assaulted on the soles of his feet while officers stood on his knees. The police denied the arrest to family members and kept him outside formal custody until he was placed in a cell on 28 June and produced before a Magistrate on 29 June. Although an initial medical report from Maho Hospital recorded no injuries, a later Judicial Medical Officer's examination confirmed multiple injuries consistent with the Petitioner's account of torture. The Petitioner was also not identified by witnesses at an identification parade. Invoking Articles 11, 12(1), 13(1), and 13(2), he alleged torture, arbitrary arrest, and unlawful detention. The Court held that the Respondents had violated the Petitioner's fundamental rights. It rejected the earlier hospital report as unreliable because it contradicted the detailed findings of the Judicial Medical Officer and appeared suspiciously superficial. The Court further found that the police version regarding the date of arrest was fabricated and unsupported by the medical evidence. Liability was imposed not only on the officers directly involved but also on superior officers who failed in their duty to supervise

subordinates and ensure humane treatment of detainees. Compensation was awarded against the individual officers and the State.

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<<<CASE_START>>>

SUMMARY:

The 2nd Petitioner, a Grama Niladhari transferred on exigencies of service from Ahungalla to Kandegoda in March 2016, applied for her son's admission to Grade 1 at Dharmashoka College under the Transfer Category contained in Clause 7.6 of Circular 22/2017. Following the transfer, she relocated her residence within the same district. The Interview Board rejected the application without awarding marks on the basis that both the previous and present residences and workplaces fell within a ten-kilometer radius of the school. The Respondents interpreted the circular as requiring that a qualifying transfer must originate from outside the school's ten-kilometer area. Invoking Article 12(1), the Petitioners alleged that the authorities had arbitrarily misapplied the admission criteria and denied equal treatment. The Court held that the Respondents had violated the Petitioners' right to equality and directed the immediate admission of the child to the school. It reasoned that the ten-kilometer provision was introduced to broaden eligibility for applications rather than to create an exclusionary condition against persons relocating within that radius. The Court emphasized that Clause 7.6 did not require the previous workplace or residence to be outside any prescribed distance and only mandated that the new workplace be within the school area and the transfer occur within five years. By introducing additional restrictions not contained in the circular, the Interview Board acted arbitrarily and unlawfully. The Court acknowledged the complexity of school admissions but held that judicial intervention was warranted where the applicable circular had been misinterpreted and misapplied to the prejudice of a child.

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Principal, Dharmashoka College and Others",
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<<<CASE_START>>>

SUMMARY:

The Petitioners, Sunway International (Pvt) Ltd and another entity, challenged the award of a tender relating to the operation of travel service counters at Bandaranaike International Airport. Although the Technical Evaluation Committee recommended the Petitioners and disqualified the 11th Respondent for lacking financial capability, the Ministerial Procurement Committee waived the mandatory financial eligibility requirement after closure of bids and awarded the tender to the 11th Respondent solely because a higher financial offer had been made. The Petitioners further complained that the Appeal Board hearing their objections consisted of the same officials responsible for the original decision and that they were denied an opportunity to be heard. Invoking Articles 12(1) and 14(1)(g), they alleged discriminatory and arbitrary treatment. The Court held that Article 12(1) had been violated but rejected the claim under Article 14(1)(g). It reasoned that altering mandatory eligibility conditions after submission of bids amounted to “changing the goal post,” thereby depriving other bidders of a fair and equal competitive process. The Court emphasized that State authorities are bound by procurement guidelines and cannot disregard established procedures merely to maximize revenue. It further held that the composition and conduct of the Appeal Board violated principles of natural justice because the same officials effectively adjudicated their own earlier decision without granting the Petitioners a hearing. However, the Court clarified that the constitutional freedom to engage in an occupation does not confer an enforceable right to obtain a particular commercial contract. Compensation was awarded against both the State and the officials personally responsible for the impugned conduct.

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"case_id": 306,
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"judgment": "VIOLATED",
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<<<CASE_START>>>

SUMMARY:

The case arose from the arrest of Ranamukage Ajith Prasanna by officers attached to the Embilipitiya Police Station on 16 September 2010. While in police custody, witnesses observed that the deceased appeared pale, swollen, and physically injured, and he informed relatives that he was being severely assaulted and feared for his life. On 18 September 2010 he was fatally shot while still in custody. The police claimed that the shooting occurred when the deceased attempted to seize a rifle during a recovery operation relating to weapons. However, a second post-mortem examination established fatal gunshot injuries to the neck and head together with ante-mortem blunt force injuries on the fingers, contradicting the police assertion that there had been no prior injuries. The Petitioner alleged violations of Articles 11 and 13(1), and the Court additionally recognized the implicit constitutional right to life arising from Articles 11 and 13(4). The Court held that the Respondents had violated the deceased's fundamental rights through torture and unlawful deprivation of life. It reasoned that life is a necessary precondition for the enjoyment of all constitutional protections and that deprivation of life without judicial sanction is fundamentally unlawful. The Court rejected the police narrative as implausible in light of the medical evidence and found that the officers had failed to comply with ordinary safety measures and standing orders during custody and transport. Compensation was ordered against the individual officers and the State for the custodial abuse and death.

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SUMMARY:

The Petitioner, an Attorney-at-Law, visited the Meegahatenna Police Station on 27 January 2012 to surrender a suspect wanted in connection with allegations of rape and stabbing. During the visit, a heated confrontation occurred between the Petitioner and the 1st Respondent, the Officer-in-Charge of Crimes. The Petitioner alleged that she was verbally abused, insulted, and threatened with imprisonment and further claimed that the emotional trauma resulting from the incident caused her to suffer a miscarriage. The Respondents denied the allegations and

asserted that the Petitioner herself behaved in an unruly and insulting manner by demanding the suspect's release and using derogatory language toward police officers. A departmental inquiry concluded that the Petitioner had behaved improperly and failed to substantiate allegations of abuse through independent witnesses. Invoking Articles 11 and 12(1), the Petitioner alleged cruel and degrading treatment and denial of equal protection. The Court refused the application and held that the allegations had not been established to the requisite standard of probability. It emphasized that Article 11 requires a high degree of certainty because of the gravity of torture allegations and observed that the incident involved no evidence of physical assault or medical proof linking the verbal confrontation to the miscarriage. The Court further held that verbal exchanges in the circumstances described did not attain the degree of coerciveness necessary to constitute cruel, inhuman, or degrading treatment and criticized the Petitioner's own conduct as unbecoming of a legal professional.

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"case_name": "Ratnayaka Weerakoonge Sandya Kumari v. Lakshitha Weerasinghe, Sub
Inspector of Police and Others",
"case_number": "Case No: SC FR 75/2012",
"year": 2012,
"word_count": 322,
"judgment": "NOT_VIOLATED",
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SUMMARY:

The Petitioner, a three-wheeler driver, alleged that he was forcibly taken by unidentified civilians to the Biyagama Police Station on 28 June 2012 and thereafter assaulted by the 4th and 5th Respondents, who were police officers attached to the Mirihana Police. He claimed that while driving the officers toward Mirihana he was repeatedly struck on the head, lost consciousness due to the assault, and later suffered severe hearing impairment. Medical reports subsequently confirmed profound sensory neural hearing loss in the right ear. The Petitioner invoked Articles 11, 12(1), and 13(1), alleging torture, unequal treatment, and arbitrary arrest. The Court dismissed the application on the basis that the Petitioner failed to establish the allegations to the required standard of probability. It observed that the Petitioner's account materially differed between the initial complaint made to police, the history provided to medical officers, and the pleadings before the Supreme Court. In the original complaint he alleged an assault arising from a fare dispute involving officers who used his taxi, whereas later versions portrayed him as a formal detainee subjected to custodial abuse. The Court further held that although the medical evidence confirmed hearing loss, no reliable evidence connected the condition directly to the alleged assault on the relevant date, especially since records from the private hospital allegedly

visited immediately after the incident were not produced. The Court also regarded the alleged assault while the vehicle was in motion as inherently implausible because it would have endangered the officers themselves. Applying the elevated standard applicable to torture allegations, the Court concluded that the evidence did not establish constitutional violations.

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"case_id": 309,
"case_name": "Arangallage Samantha v. The Officer-in-Charge, Police Station Biyagama and Others",
"case_number": "S.C. (F/R) Application No. 458/2012",
"year": 2012,
"word_count": 326,
"judgment": "NOT_VIOLATED",
"articles_cited": ["11", "12(1)", "13(1)"],
"legal_topic": ["torture", "cruel_treatment", "inhuman_treatment", "degrading_treatment", "equality", "equal_protection", "arrest", "unlawful_arrest"]
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SUMMARY:

The Petitioners, both Judicial Officers, challenged the refusal to admit their children to Grade 1 at Visakha Vidyalaya for the 2017 academic year. Although the standard school admission circular did not expressly recognize a category for Judicial Officers, a consistent administrative practice from 2011 to 2016 permitted such admissions through recommendations made by the Judicial Service Commission and approval by the Ministry of Education. In 2017 the Ministry abandoned this practice and introduced a restrictive transfer-based criterion, resulting in the rejection of the Petitioners' applications. At the same time, another child connected to a junior officer was admitted and several admissions were granted after the official closing date. The Petitioners alleged that these actions violated Article 12(1) and undermined judicial independence by compelling Judges to engage directly with Ministry officials regarding school placements. The Court held that the Respondents had violated the Petitioners' right to equality and equal protection of the law. It reasoned that the longstanding administrative practice created a legitimate expectation that Judicial Officers would continue to be treated as a distinct category unless formal changes were introduced through a transparent process. The abrupt departure from the established practice without consultation or notice was found to be arbitrary and inconsistent with principles of natural justice. The Court further emphasized that compelling members of the judiciary to negotiate educational admissions with executive authorities compromised the institutional dignity and independence protected by Article 111C. Directions were issued requiring immediate admission of the Petitioners' children and formulation of formal criteria for future admissions.

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"case_number": "S.C. F.R. Application No. 222/2018 & 223/2018",  
"year": 2018,  
"word_count": 332,  
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SUMMARY:

The Petitioners, members of the Locomotive Assistants Union employed as Railway Driver Assistants, challenged the failure of the Railway Department to implement the 2016 Scheme of Recruitment governing their service. Although the Scheme of Recruitment had been duly approved by the Department Head, Ministry Secretary, and Public Service Commission, the recruitment process was suspended repeatedly due to strikes and objections raised by the Railway Locomotive Operating Engineers' Union representing Engine Drivers. The Added-Respondents argued that Driver Assistants were over-qualified under the new scheme and improperly classified under a technical management scale. As a consequence, over 300 vacancies remained unfilled since 2011, forcing the Department to depend on untrained labour and retired personnel, thereby affecting operational safety and denying Petitioners recruitment and promotional opportunities. The Petitioners alleged that the State's refusal to implement the valid recruitment framework due to external union pressure violated Article 12(1) of the Constitution. The Court held that the 2016 Scheme of Recruitment remained legally operative until formally replaced and that yielding to pressure from one trade union at the expense of another constituted arbitrary and hostile discrimination. The Court emphasized that the conduct of the authorities undermined public confidence and safety and directed the Respondents to immediately implement the Scheme of Recruitment and report compliance to Court.

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"case_number": "S.C. (F/R) No. 29/2018",  
"year": 2018,  
"word_count": 300,  
"judgment": "VIOLATED",  
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SUMMARY:

The Petitioners were nine medical graduates from foreign universities in Georgia, the Philippines, Belarus, Russia, and China, all recognized by the Sri Lanka Medical Council. Upon returning to Sri Lanka, they sought permission to sit for the Examination for Registration to Practise Medicine, which was refused by the Sri Lanka Medical Council on the basis of a 2010 “pre-entry qualification” requiring credit passes in Biology, Chemistry, and Physics or Mathematics at the G.C.E. Advanced Level examination prior to entering medical school. The Petitioners contended that the Medical Ordinance only required a recognized degree and success at the special examination for registration and that the SLMC had exceeded its statutory authority by imposing additional conditions. The Respondents argued that the Petition was time-barred, but the Court rejected this contention and held that the denial of access to professional registration constituted a continuing infringement. The Court found that Section 29(2) of the Medical Ordinance exhaustively defined the legal requirements for registration and that the SLMC, as a subordinate statutory body, could not override Parliament by introducing further pre-entry qualifications. The Court further held that the SLMC’s mandate was limited to evaluating standards of medical education rather than regulating admission criteria of universities. The refusal to permit the Petitioners to sit for the examination violated Articles 12(1) and 14(1)(g), and the Court ordered the SLMC to allow the Petitioners to sit for the ERPM.

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  "word_count": 308,  
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SUMMARY:

The Petitioners were six medical graduates from foreign universities in Georgia, the Philippines, and Russia recognized by the Sri Lanka Medical Council. After returning to Sri Lanka, they sought degree approval certificates from the SLMC, which were necessary to sit for the Examination for Registration to Practise Medicine. The SLMC refused approval on the basis of a 2010 “pre-entry qualification” requiring specific credit passes in Biology, Chemistry, and Physics or Mathematics at the G.C.E. Advanced Level examination before entering medical school abroad. The Petitioners contended that this requirement was ultra vires because the Medical Ordinance required only a recognized medical degree and success at the ERPM for registration.

The Court held that Section 29(2) of the Medical Ordinance established the exhaustive statutory requirements for provisional registration and that the SLMC, being a subordinate authority, lacked power to impose additional entry qualifications inconsistent with the Act of Parliament. The Court further reasoned that the SLMC's lawful role was confined to evaluating the quality of medical education provided by universities and did not extend to dictating admission standards adopted by those institutions. The Court also relied on Act No. 17 of 2018, in which Parliament recognized simple passes as sufficient basic qualifications for medical education, contradicting the SLMC's higher standard. Rejecting the objection that the application was time-barred, the Court held that denial of access to a profession amounted to a continuing infringement of fundamental rights. The Court found violations of Articles 12(1) and 14(1)(g) and directed the SLMC to permit the Petitioners to sit for the ERPM.

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"case_number": "S.C. F.R. Application No: 400/2019",
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"word_count": 308,
"judgment": "VIOLATED",
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<<<CASE_START>>>

SUMMARY:

The Petitioner was a medical graduate of Vitebsk State Medical University in Belarus, a university recognized by the Sri Lanka Medical Council. After completing her studies, she applied for approval to sit for the Examination for Registration to Practise Medicine, but the SLMC refused permission on the basis of a 2010 “pre-entry qualification” requiring specific credit passes in Biology, Chemistry, and Physics or Mathematics at the G.C.E. Advanced Level examination before admission to medical school. The Petitioner contended that this requirement exceeded the statutory authority granted to the SLMC under the Medical Ordinance and unlawfully restricted her ability to pursue medical practice. The Court held that Section 29(2) of the Medical Ordinance established the only legal prerequisites for provisional registration, namely possession of a recognized degree and passing the prescribed examination, and that the SLMC could not override Parliament by imposing additional requirements. The Court reasoned that the statutory mandate of the SLMC was limited to evaluating the standard of education provided by recognized universities and did not authorize regulation of university admission standards or Advanced Level qualifications. The Court further referred to Act No. 17 of 2018, which recognized simple passes as sufficient basic qualifications for medical education, thereby contradicting the stricter requirement imposed by the SLMC. Rejecting the argument that the application was time-barred, the Court held that denial of professional registration

constituted a continuing infringement of rights. The Court concluded that the refusal to permit the Petitioner to sit for the ERPM violated Articles 12(1) and 14(1)(g) and ordered the SLMC to grant approval. The decision also applied to related cases numbered 443/2019 and 444/2019.

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"case_number": "S.C. F.R. Application No: 442/2019",
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SUMMARY:

The Petitioner, a Reserve Sub-Inspector of Police, was suspended from service in 1999 following his arrest on a murder charge. Although he was acquitted in 2011, disciplinary proceedings continued for several years until he was reinstated on August 19, 2016, subject to the condition that he would not receive back wages for the seventeen-year suspension period. The Petitioner challenged the refusal to pay back wages as arbitrary and discriminatory, alleging a violation of Article 12(1). The Respondents raised a preliminary objection that the application was filed outside the one-month constitutional time limit prescribed by Article 126(2), as the reinstatement letter containing the impugned condition had been issued in August 2016 while the application was filed only in December 2016. The Court upheld the preliminary objection and held that the filing of an administrative appeal did not suspend or renew the constitutional limitation period. The Court further held that reserve police officers were governed by distinct circulars and conditions of service from the regular police force and were entitled to remuneration only for periods during which they actually performed duties. Since the Petitioner had not worked during the suspension period, he possessed no legal entitlement to back wages. The Court also rejected the allegation of discrimination because the Petitioner failed to establish differential treatment compared to similarly situated reservists. The application was accordingly dismissed for being time-barred and lacking substantive merit.

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<<<CASE_START>>>

SUMMARY:

The Petitioner, an Attorney-at-Law, instituted a public interest fundamental rights application challenging the Presidential Proclamation issued in November 2018 dissolving Parliament. Before the substantive application was supported, the Petitioner filed a motion requesting a Sinhala translation of the judgment delivered in another related matter concerning the dissolution of Parliament. The Petitioner argued that the Court should provide the requested translation under constitutional provisions after allegedly receiving no response from the former President regarding his request. The motion invoked Article 24(3) concerning the right to obtain translations of court proceedings and records. The Court examined the constitutional framework governing interpretation and translation rights and held that Article 24(3) specifically restricted such rights to judges, jurors, parties, applicants, or their legal representatives who were not conversant with the language used in Court. The Court further observed that under Article 24(5), the definition of “record” included judgments and pleadings, but the entitlement to obtain translations remained limited to the categories expressly identified in the Constitution. Since the judgment sought by the Petitioner arose from a separate proceeding instituted by another litigant, the Petitioner was neither a party, intervenient, nor legal representative in that case. Accordingly, he lacked locus standi to demand a State-provided translation of the judgment. The Court therefore rejected the motion and held that the Petitioner was outside the limited class of persons constitutionally entitled to translations of judicial records.

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<<<CASE_START>>>

SUMMARY:

The Petitioner, a permanent employee of the Sri Lanka Ports Authority, applied in 2012 for the post of Station Officer in the Fire Brigade. Although he was the only qualified applicant, the Harbour Master refused consent for his interview on the ground that he lacked continuous service in the Fire Brigade, despite such a requirement not appearing in the official vacancy notice. A subsequent Auditor General's report concluded that injustice had been caused to the Petitioner and that the recruitment process had been deliberately delayed to favour other internal candidates. Following a Court-directed inquiry, a fresh interview was conducted in 2016, and the panel recommended the Petitioner after awarding him the highest marks. Nevertheless, the 7th Respondent arbitrarily recommended cancellation of the results and called for fresh applications. The Petitioner alleged violations of Articles 12(1) and 14(1)(g). The Court held that Article 12(1) protected individuals from arbitrary, malicious, and capricious executive action and that public powers of appointment must be exercised according to the Rule of Law and for the benefit of the public rather than private interests. The Court observed that the Respondents failed to produce the relevant Scheme of Recruitment, inferring that its contents would have supported the Petitioner's claim. The Court concluded that the Respondents acted mala fide to deny the Petitioner a promotion to which he was legitimately entitled. Accordingly, the Court found a violation of Article 12(1), ordered the Petitioner's appointment as Station Officer with retrospective effect from July 1, 2012, and awarded compensation against both the Authority and individual Respondents.

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SUMMARY:

The Petitioner, an Inspector of Police with twenty-six years of service and numerous commendations, alleged that following successful heroin raids he became the target of arbitrary transfers and fabricated disciplinary proceedings initiated by superior officers. Despite an undertaking given by the State to the Supreme Court that the Petitioner would neither be transferred nor deprived of his personal firearm because of threats posed by underworld figures, the weapon was subsequently withdrawn. The Petitioner asserted that he received threats to his life from criminal elements and was followed by associates linked to a senior police officer.

Fearing for his safety, he ceased reporting for duty on March 16, 2017, after which a Vacation of Post notice was issued against him. The Petitioner challenged the notice as arbitrary and malicious, alleging a violation of Article 12(1). The Court held that vacation of post required not only physical absence but also animus deserendi, namely an intention to abandon employment permanently. The Court found that the Petitioner's absence arose from a genuine and grave apprehension regarding his personal safety rather than any intention to desert his office. The Court further held that the State and the Inspector General of Police had breached the undertaking previously given to Court concerning the Petitioner's protection, which directly contributed to his absence from work. The conduct of the superior officers in initiating contradictory transfers and fabricated disciplinary measures was held to be mala fide and arbitrary. The Court quashed the Vacation of Post notice, ordered reinstatement with full benefits, and directed individual Respondents to personally pay compensation.

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SUMMARY:

The Petitioner served as a contract Management Assistant in the Irrigation Department from 2008 and was appointed in November 2014 to the permanent and pensionable post of clerk with effect from October 2014 under Circular No. 25/2014. In August 2015, the Director General of Irrigation cancelled her permanent appointment and subsequently prevented her from reporting for duty. The State contended that the appointment had been issued mistakenly because the relevant circular applied only to employees on salary scale MN1, whereas the Petitioner had been receiving remuneration under the slightly higher MN2 scale. The Petitioner alleged that the cancellation of her permanent appointment violated Articles 12(1) and 14(1)(g). The Court held that even if the appointment had resulted from an administrative error, the mistake was attributable to the Government and not to any misconduct by the Petitioner. Applying the principle that no person should benefit from his own wrong, the Court reasoned that the State could not penalize a citizen for an error committed by its own officials. The Court further held that the issuance of the appointment letter and payment of salary over an eight-month period created a legitimate expectation that the Petitioner would continue in the permanent cadre until retirement. The cancellation of the appointment solely because she earned a slightly higher salary than the minimum threshold was held to be arbitrary and capricious. The Court therefore

found violations of Articles 12(1) and 14(1)(g), quashed the cancellation letters, ordered reinstatement with back wages, and awarded compensation against the State.

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SUMMARY:

The Petitioners, two Attorneys-at-Law, visited Ambalangoda Police Station on February 28, 2010, to represent a client whose relatives had allegedly been detained in connection with a child custody dispute following the death of the child's mother. The Petitioners alleged that the police had summoned the grieving family to the station and thereby prevented them from attending funeral arrangements. At the police station, the 1st and 2nd Respondents verbally abused the Petitioners, accused lawyers of earning money unfairly, threatened to arrest them for providing "wrong advice," and ordered them to switch off their mobile phones while coercing the family to surrender the child to the estranged father. The Petitioners contended that these acts violated Articles 11, 12(1), and 14(1)(g) of the Constitution. The Court held that Article 11 protects against severe mental suffering intentionally inflicted by public officials and that humiliating and threatening legal practitioners in front of a bereaved family amounted to degrading treatment. The Court further held that lawyers possess a constitutional right to represent clients and that intimidation aimed at obstructing legal representation violated the freedom to engage in a lawful profession guaranteed by Article 14(1)(g). The Court rejected any justification for the conduct of the officers and observed that the Petitioners had acted professionally while the Respondents acted under colour of office in an arbitrary and abusive manner. Accordingly, the Court found violations of Articles 11, 12(1), and 14(1)(g) and ordered the Respondents to personally pay compensation and litigation costs to the Petitioners.

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SUMMARY:

The petitioner in W.A.D.S. Wanasinghe v. Kamal Paliskara and Others alleged that between October 2013 and January 2014 he was subjected to repeated harassment by the 1st respondent, including coercion to sign documents requiring payment to a private company and threats of criminal proceedings, culminating in his arrest on 7 January 2014 and production before the Magistrate. He subsequently invoked Article 12(1) alleging infringement of his right to equality and equal protection of the law. The application was filed on 18 July 2014, well beyond the one-month limitation period under Article 126(2). The State raised a preliminary objection that the petition was time-barred and that the Court lacked jurisdiction to entertain it. The Court examined whether the alleged conduct constituted a continuing infringement capable of extending the limitation period and whether the time bar could be suspended due to proceedings before the Human Rights Commission under Section 13(1) of the HRC Act. It held that the alleged violations ceased on 7 January 2014 and no evidence supported a continuing course of conduct thereafter. The Court further held that mere lodging of a complaint with the HRC does not suspend time unless an active inquiry is proven. Emphasising the mandatory nature of Article 126(2), the Court found no justification for the six-month delay and upheld the preliminary objection. Accordingly, the application was dismissed in limine without consideration of the substantive merits of the alleged violation.

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SUMMARY:

The petitioners in Hettiarachchige Srimathi Devika Tissera and Others v. Police Constable Jayasekara and Others arose from an incident on Christmas Eve 2012 in Ja-Ela where a family dispute over a parked vehicle escalated into police intervention. The petitioners alleged that police officers verbally abused them, forcibly removed the daughter from the vehicle, and assaulted the minor son. They were taken to the police station and detained for several hours without explanation, effectively amounting to an unlawful deprivation of liberty, and were later formally arrested and remanded on allegations of assaulting police officers. A Special Investigations Unit later found procedural irregularities, including false entries in official records and misconduct by the officer-in-charge. The petitioners invoked Articles 12(1) and 13(1), alleging unequal treatment and arbitrary arrest. The Court held that keeping individuals confined at a police station without lawful justification constituted an implicit arrest, even in the absence of formal declaration. It further found that failure to inform the petitioners of reasons for arrest at the earliest opportunity violated mandatory procedural safeguards under Article 13(1). The Court also found the arrest to be arbitrary and supported by falsified documentation, rendering the State action unconstitutional. Accordingly, the Court held that Article 13(1) had been violated, affirmed the infringement of personal liberty, and awarded compensation against both the responsible officers and the State for unlawful arrest and detention.

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SUMMARY:

The petitioner in Jayamuni Anuradha Nilmini Vijesekara v. Sumedha Thushanga and Others concerned the custodial death of the petitioner's husband following his arrest on 25 February 2017 at about 4.00 a.m. in connection with a suspected vehicle robbery. He died within hours while in police custody, with police initially attributing death to a sudden medical episode described as a wheezing attack and hospitalisation. However, the post-mortem examination revealed twenty-eight external injuries, deep muscle contusions, and a cervical spine fracture, concluding that death was caused by hypovolemia due to blunt force trauma. The Attorney General informed Court that the officers concerned were being indicted for murder and torture. The petitioner alleged violations of Articles 11 and 12(1), asserting custodial violence resulting in death. The Supreme Court held that the deceased was in exclusive police custody and the extensive injuries could not be explained by the respondents. It found that the only irresistible

inference was that severe physical violence had been inflicted while in custody, rejecting the police explanation as medically untenable. The Court reaffirmed that Article 11, read with constitutional protections relating to arrest, safeguards the implied right to life and prohibits custodial torture. It therefore held that the fundamental rights of the deceased had been violated and awarded substantial compensation against both the State and individual officers, directing part of the compensation to be preserved for the benefit of the deceased's children.

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SUMMARY:

The petitioner in *Herath Mudiyanseelage Wasantha Anura Kumara v. Headquarters Inspector Channa Abeyratne and Others* arose from a land dispute involving allegations of encroachment by a Buddhist priest. The petitioner claimed that on 7 June 2010 he was forcibly arrested at his residence and detained at Maho Police Station until midnight, during which he was allegedly threatened by the Headquarters Inspector. The respondents denied any arrest, stating that the petitioner voluntarily attended the station upon request to resolve the complaint. Police records indicated the officer-in-charge was away on duty, and an affidavit from the petitioner's uncle confirmed that the petitioner went to the station on his own and left without complaint. The petitioner alleged violations of Articles 12(1) and 13(1), asserting arbitrary arrest and unequal treatment. The Supreme Court emphasised that in fundamental rights proceedings alleging police misconduct, the burden lies on the petitioner to establish facts with a high degree of probability. It found significant inconsistencies between the petitioner's version and contemporaneous documentary and testimonial evidence. The Court held that there was no credible proof of arrest within the meaning of law and that the petitioner's attendance at the police station was voluntary. Accordingly, the Court concluded that no infringement of constitutional rights had been established and dismissed the application in its entirety for failure of proof.

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SUMMARY:

The petitioner in Charith Eshanka Hopwood v. Inspector of Police Gunawardena and Others concerned the arrest of a chief manager in relation to a cheque dishonour and alleged financial fraud involving Rainbow Garments Technologies (Pvt) Ltd. The cheques in question were issued by the managing partner, who was the primary suspect, while the petitioner had no direct involvement in their issuance. On 18 July 2018, the petitioner was arrested at Ragama Police Station while attending on behalf of the ill managing partner and was detained overnight before being produced before the Magistrate on misappropriation charges. The petitioner alleged violations of Articles 13(1), 12(1), 13(2), and 14(1)(g), arguing that the arrest was arbitrary and unlawfully interfered with his occupational role. The respondents justified the arrest on the basis that the primary suspect was evading investigation and that the petitioner was a person in authority within the company. The Supreme Court held that the arrest lacked reasonable suspicion and objective evidentiary foundation linking the petitioner to the offence. It further found non-compliance with procedural safeguards requiring the arrestee to be informed of the grounds of arrest under the Criminal Procedure Code. The Court held that reliance on subjective satisfaction alone constituted arbitrary exercise of police power and suggested improper coercive intent. Accordingly, it found a violation of Article 13(1) and ordered personal compensation against the arresting officer.

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SUMMARY:

The petitioner in Kasthuri Achchilage Chamarie Samaradisa v. Prasantha Welikala and Others

concerned allegations arising from a police arrest of a pregnant woman with a history of psychiatric illness on 6 February 2016. The petitioner alleged that she was abducted by persons in civil attire, assaulted in a three-wheeler, denied medication, and subjected to torture and degrading treatment while in custody. The respondents contended that the arrest was lawful in connection with an illicit liquor raid, that a Woman Police Constable was present, and that only minor abrasions resulted from resistance. Medical evidence recorded three minor healing abrasions and psychiatric assessment indicated a stable mental condition with no post-traumatic disorder attributable to the arrest. The petitioner alleged violations of Articles 11, 12(1), and 13(1). The Supreme Court held that allegations of torture must be established with a high degree of certainty supported by credible contemporaneous evidence. It found that the medical findings were inconsistent with the alleged severe assault and that failure to raise complaints at the earliest opportunity undermined credibility. The Court relied on official police records confirming lawful execution of the raid. It further held that internal inquiries had already cleared the officers of wrongdoing. Accordingly, the Court found that the petitioner failed to prove any constitutional violation and dismissed the application.

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SUMMARY:

The petitioner in *Gurusinghe Senevirathnage Tharindu Priyan Akalanka v. Wijesinghe and Others* concerned allegations of custodial torture and illegal detention following an arrest on 20 September 2017 by Anuradhapura police officers. The petitioner alleged that he was arrested without explanation, taken to a secluded teak forest near Thisa Wewa, suspended from a tree, and brutally assaulted for two hours before being detained at the police station for four days without medical care or production before a Magistrate. The respondents claimed that he was a drug user who sustained injuries while attempting to flee during questioning related to a stolen motorcycle. Medical evidence, however, confirmed six grievous injuries including a brachial plexus rupture consistent with forceful suspension. The petitioner alleged violations of Articles 11, 13(1), and 13(2). The Supreme Court found the respondents' explanation wholly implausible and held that the injuries could only have resulted from deliberate custodial violence. It further held that failure to maintain proper arrest records and failure to produce the petitioner before a Magistrate constituted unlawful detention. The Court concluded that both torture and arbitrary

detention were established and held the responsible officers personally liable, awarding compensation and costs from their personal funds.

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SUMMARY:

The petitioners in Welikadage Nadeeka Priyadarshani Perera and Another v. Prof. G. L. Peiris and Others challenged the denial of Grade 1 admission for a child to Dharmasoka Vidyalaya, Ambalangoda under the proximity-based selection criteria for 2021. The child initially obtained 92.4 marks, exceeding the cutoff, but after a site inspection the marks were reduced to 77.4 on the basis that the residence was not properly established and proximity deductions applied due to another nearby school. The petitioners alleged violations of Articles 12(1) and 12(2), claiming unequal treatment and discrimination in educational admission. The respondents submitted that the decision was made in strict compliance with Ministry circulars and verified documentary evidence, including deficiencies in proof of five-year residence. A GPS-based survey confirmed proximity calculations justifying the deduction. The Supreme Court held that admission marks are provisional and subject to verification, and that failure to provide mandatory documentary proof justified revision of scores. It found no arbitrary or discriminatory conduct and held that the petitioners failed to establish constitutional infringement. The Court also noted that the child was admitted to another nearby school, satisfying the State's obligation to provide access to education. Accordingly, the application was dismissed.

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SUMMARY:

The petitioner in G.G.H.N. Gunasekera v. Chief Secretary, Provincial Council of the Western Province and Others concerned the administrative transfer of a Grade II officer following complaints from colleagues regarding workplace conduct affecting efficiency. An internal audit recommended action, and a Committee of Inquiry was scheduled for 8 June 2016. The petitioner claimed inadequate notice and inability to attend, while the respondents contended that he was present at the workplace but deliberately avoided participation. The inquiry proceeded in his absence, and he was subsequently released from the Provincial Council and transferred to the Ministry of Public Administration. The petitioner alleged violations of Articles 12(1) and 14(1)(g), arguing arbitrary interference with his occupational rights. The Supreme Court held that maintaining effective working relationships in public administration constitutes a legitimate public interest objective. It found that the transfer was carried out under lawful statutory authority and service regulations. The Court further held that the petitioner failed to demonstrate procedural unfairness or mala fides, noting evidence of deliberate avoidance of the inquiry. It also observed that the transfer did not affect employment status or remuneration but merely changed posting. Accordingly, the Court concluded that no constitutional violation had been established and dismissed the application.

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SUMMARY:

The petitioner in Herath Mudiyanseelage Podi Kumarihami v. Officer-in-Charge, Mahiyanganaya Police Station and Others arose from an incident on 17 August 2017 during the arrest of the petitioner's daughter by police officers. The petitioner alleged that she intervened and was subjected to severe assault including slapping, kicking, trampling, and threats of being shot, resulting in humiliation and physical harm. The respondents contended that she obstructed a lawful arrest and sustained no assault, claiming any injury was self-inflicted during resistance.

Medical evidence from Kandy Teaching Hospital recorded no injuries, with scans and X-rays showing normal results. The petitioner alleged violations of Articles 11 and 12(1). The Supreme Court held that allegations of torture require proof to a high degree of probability supported by credible medical evidence. It found the absence of injuries in medical reports inconsistent with the alleged severe assault. The Court also considered inconsistencies in witness statements and noted that the petitioner sought legal advice before medical treatment, which undermined her account of severe trauma. It further observed that internal police inquiries had been conducted into the complaint. Accordingly, the Court held that the petitioner failed to establish any constitutional violation and dismissed the application.

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SUMMARY:

The petitioner in Lakshika Dilani Kulathunga v. Sisira and Others alleged that on 9 August 2012 she was deceived into attending Kottawa Police Station after receiving a false call stating that her brother had been hospitalised, which was intended to lure her to the station. Upon arrival, a Development Assistant acting without police authority demanded she produce her brother in relation to a harassment complaint and threatened to detain her as a hostage until he appeared. The Acting Officer-in-Charge was present and failed to prevent this conduct, thereby implicitly endorsing the unlawful exercise of authority. The petitioner invoked Articles 12(1), 13(1), and 11, alleging arbitrary arrest, deprivation of liberty, and degrading treatment. The Court examined whether an individual without sworn police authority could lawfully exercise coercive powers such as detention and whether supervisory inaction could amount to constitutional liability. It held that the use of deception to secure a person's presence and the subsequent threat to detain her as leverage against a third party constituted arbitrary deprivation of liberty and a clear breach of equality before the law. The Court further held that the first respondent's actions were ultra vires and contrary to the rule of law, while the second respondent's failure to intervene amounted to culpable administrative inaction. However, it found insufficient evidence to establish aggravated suffering for Article 11. The Court held that Articles 12(1) and 13(1) had been violated and imposed personal liability on both respondents, awarding compensation to the petitioner.

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SUMMARY:

The petitioner in Sriyanee Dhammika Kumari Semasinghe v. Dharmasena Dissanayake and Others, a Sri Lanka Foreign Service officer, challenged the Public Service Commission's decision fixing her promotion to Grade I from 13 October 2015 rather than the requested retrospective date of 3 September 2013. She contended that this affected her seniority relative to her 1996 recruitment batch. The State argued that no Grade I vacancies existed in 2013 and that retrospective creation of posts would violate Financial Regulation 70, which prohibits creation of supernumerary posts in closed financial years. The petitioner also faced delays in earlier career progression due to failure to pass Efficiency Bar examinations within the stipulated period. The Supreme Court examined whether Article 12(1) or Article 14(1)(g) required retrospective promotion despite statutory financial constraints. It held that equality under Article 12(1) applies only to lawful entitlements and cannot compel the State to act in breach of binding financial regulations. The Court further noted that administrative delay partly arose from the petitioner's own failure to meet qualification requirements in time. It also observed that necessary parties whose seniority would be affected had not been joined. The Court concluded that the Public Service Commission acted within legal limits under the applicable service minute and financial framework. Finding no arbitrariness or illegality, the Court dismissed the application and held that no fundamental rights violation had been established.

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SUMMARY:

The petitioners in *Saman Ratnayake and Others v. National Police Commission and Others*, comprising serving and retired police officers, alleged discriminatory treatment in the implementation of recommendations made by a committee addressing political victimisation claims between 1994 and 2014. They contended that while some officers were promoted under Cabinet-approved recommendations following the Basnayake Committee report, their own promotions were withheld, and that another officer (the 17th respondent) was unfairly favoured. The National Police Commission and Inspector General of Police argued that implementing retrospective promotions would adversely affect the seniority of a large number of serving officers and would contravene conditions imposed by the President in the Cabinet decision, which required protection of existing seniority structures. The petitioners invoked Article 12(1) alleging unequal treatment. The Supreme Court examined whether differential treatment existed in comparable circumstances and whether executive implementation of a policy decision could override statutory recruitment principles. It held that the 17th respondent's circumstances were distinguishable, particularly as his promotion did not disrupt existing seniority due to his impending retirement. The Court further held that Cabinet decisions under Articles 55 and 155G must operate within the framework of law and cannot confer enforceable individual entitlements contrary to service regulations. It concluded that no arbitrary or discriminatory conduct had been proven and dismissed the application for failure to establish a violation of Article 12(1).

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SUMMARY:

The petitioners in *Rajaye Thakserukaruwange Sangamaya and Others v. P. P. D. S. Muthukumarana and Others*, a trade union and five government valuers, challenged administrative actions affecting salary increments, seniority deductions, and a revised promotional marking scheme issued in July 2021. They alleged that these measures were retaliatory following trade union activities and discriminated against union members, violating Articles 12(1), 14(1)(d) and 14(1)(g). The State raised a preliminary objection that the

application was filed beyond the one-month limitation period under Article 126(2). The Supreme Court examined whether the alleged infringement was continuous and whether a pending Human Rights Commission inquiry could suspend time limits under Section 13(1) of the HRC Act. It held that the publication of the revised marking scheme constituted the last operative act, and therefore the limitation period commenced from that date. The Court further found that the petitioners failed to produce evidence of an ongoing HRC inquiry sufficient to suspend the statutory deadline. Emphasising the mandatory nature of the constitutional time bar, the Court held that bare assertions were insufficient to extend jurisdiction. It concluded that the application was time-barred and dismissed it in limine without examining the substantive merits of the alleged infringement.

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SUMMARY:

The petitioner in K. M. R. Perera v. Dharmadasa Dissanayake and Others, a Sri Lanka Foreign Service officer, filed this application challenging administrative grievances related to service conditions, which were subsequently incorporated into a broader connected fundamental rights application, SC FR No. 55/2017. The parties agreed that the outcome of the present case would be fully dependent on the judgment delivered in the linked proceedings. The petitioner invoked Articles 12(1) and 14(1)(g), alleging unequal treatment and interference with occupational rights. The Supreme Court considered whether separate adjudication was necessary where claims were legally subsumed within another pending and determinative case. It held that the issues raised in this application were entirely encompassed within the factual and legal scope of the related proceeding and that duplication of adjudication would be unnecessary. The Court further noted that the parties had expressly agreed to abide by the outcome of the principal case, thereby binding the resolution of this application to that decision. Following dismissal of the linked application, the Court consequently dismissed the present application without separate merits analysis. It concluded that no independent basis remained for finding a violation of fundamental rights in isolation from the connected case.

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SUMMARY:

The petitioner in Viraj Priyankara Abeyratne v. Ceylon Electricity Board and Others challenged the arbitrary conversion of a privately constructed road into a public road in Tangalle to facilitate an electricity connection for an adjacent occupier. The 8th respondent certified the road as public within a highly expedited timeframe, enabling installation of electricity infrastructure across the petitioner's land despite his objections. The statutory framework under the Electricity Act required a mandatory inquiry by the Divisional Secretary within six weeks where objections to way-leave access were raised, but this procedure was bypassed. The petitioner alleged violations of Article 12(1) and interference with lawful economic activity. The respondents defended the actions as administrative necessity. The Supreme Court examined whether the decision-making process was arbitrary and whether statutory safeguards had been deliberately circumvented. It held that the coordinated and expedited actions of multiple officials demonstrated deliberate arbitrariness rather than administrative error. The Court found evidence of collusion and concluded that the petitioner was denied a legally mandated inquiry process available to all similarly situated persons. It held that such selective deprivation of statutory protection violated equality before the law. Accordingly, the Court found a violation of Article 12(1), quashed the administrative decision, and imposed personal liability on the responsible officials for damages.

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SUMMARY:

The petitioners in R. L. Buddhika Yangani Henri and Another v. Francis Welege and Others challenged the denial of Grade 1 admission for a child to Rahula College, Matara under the "Children of Old Boys" category. The child initially obtained 50 marks, below the cutoff, but certain submitted documents were rejected because they were signed by the Deputy Principal rather than the Principal, despite other documents signed by the same Deputy Principal being previously accepted for scoring purposes. The Appeals Board also refused to consider corrected documents signed by the Principal on the basis that they constituted new material. The petitioners alleged violation of Article 12(1) due to arbitrary evaluation of admission criteria. The Supreme Court examined whether the school authorities acted consistently in applying documentary requirements and whether rejection of certain documents despite acceptance of similar documents amounted to unequal treatment. It held that administrative authorities cannot adopt inconsistent standards in evaluating identical categories of evidence. The Court found that the doctrine of approbation and reprobation applied, preventing the respondents from accepting and rejecting documents on inconsistent grounds. It further held that the cumulative marks, if properly assessed, would have exceeded the admission threshold. The Court concluded that the decision-making process was arbitrary and violative of equality guarantees, and accordingly ordered admission of the child and awarded compensation.

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SUMMARY:

The petitioners in Sudath and Others v. E.P.T.K. Ekanayake and Others alleged that following objections raised by the first petitioner regarding a school administrative appointment, his two children were subjected to harassment and assault by a teacher and school staff, and that the school authorities failed to take adequate action. They contended that this inaction forced the children to leave the school and constituted a violation of Article 12(1). The respondents demonstrated that prompt disciplinary measures were taken, including removal of the teacher from classroom duties, initiation of formal disciplinary proceedings, salary increment delays, and punitive transfer following findings of misconduct. An alternative school placement was also offered by education authorities. The Supreme Court examined whether there was arbitrary state inaction or discriminatory failure to protect the petitioners. It held that the authorities had

acted with due diligence and that multiple corrective measures were taken in response to complaints. The Court further found that the alternative school offered was of comparable status and that the petitioners' refusal to accept it undermined the allegation of denial of educational access. It concluded that allegations of assault were not substantiated by independent evidence such as medical or police records. Accordingly, the Court held that no infringement of fundamental rights had been established and dismissed the application.

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SUMMARY:

The petitioners in Rita Rathnayake and Others v. Y. Wickramasiri and Others were volunteer teachers challenging their exclusion from a government absorption scheme into the teaching service based on age criteria. Although the initial recruitment process allowed candidates aged between 21 and 45, delays in implementation resulted in final verification in 2014, by which time the petitioners exceeded the age limit and were excluded. They alleged discrimination under Article 12(1), claiming inconsistent application of criteria since some over-aged candidates were allegedly appointed. The respondents contended that the scheme required strict adherence to eligibility criteria and that any deviations cited by petitioners were either erroneous or compliant with qualifications. The Supreme Court examined whether the State applied the eligibility criteria uniformly and whether exclusion due to age amounted to arbitrary discrimination. It held that the recruitment framework was governed by lawful policy requiring consistent application of age limits and qualification standards. The Court found no credible evidence of similarly situated individuals being treated differently. It further held that candidates who did not meet eligibility requirements could not claim legitimate expectation of appointment. Accordingly, the Court concluded that the petitioners failed to establish discrimination or arbitrary treatment and dismissed the application.

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SUMMARY:

The petitioner in M.D. Malik Sachinthana v. University Grants Commission and Others challenged the denial of admission to the Faculty of Law despite having obtained three A passes and a competitive Z-score in the GCE Advanced Level examination. The University Grants Commission rejected his application on the basis that he was allegedly registered for a Higher National Diploma at an Advanced Technological Institute, which under admission rules disqualified him from university entry unless formally withdrawn. The petitioner contended that he was never validly registered due to failure to submit mandatory documents and absence of attendance, and that the registration entry was a clerical error. The respondents relied on institutional records indicating active registration status. The petitioner alleged violation of Article 12(1). The Supreme Court examined whether administrative error could lawfully be used to deny merit-based university admission. It held that the petitioner was not validly registered under the applicable procedural requirements and that the State institution's clerical mistake could not prejudice his educational rights. The Court further held that denial of admission to a qualified student on the basis of erroneous data constituted arbitrary state action contrary to equality principles. It emphasised the State's obligation to ensure fair and non-arbitrary access to higher education. Accordingly, the Court found a violation of Article 12(1), set aside the decision, and granted relief restoring the petitioner's eligibility.

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SUMMARY:

The 24 Petitioners, employees of the Sri Lanka Tea Board, challenged alterations to their employment structure following a 2006 salary circular and the 2011 Scheme of Recruitment under which they were absorbed into the post of Management Assistant Non-Technical on 6

June 2012. They claimed that the new scheme removed previously existing promotional avenues, thereby violating their legitimate expectation and infringing Article 12(1) on equality and equal protection of the law. They pursued administrative remedies and later filed a complaint before the Human Rights Commission in 2014, before instituting this Fundamental Rights application in 2016. The Respondents raised a preliminary objection that the application was time-barred under Article 126(2), arguing that the alleged infringement crystallised upon issuance of absorption letters in 2012. The Supreme Court held that the impugned act constituted a single completed administrative decision and not a continuing violation. It further ruled that pursuing administrative remedies did not suspend the constitutional one-month limitation period. The Court also found that the Human Rights Commission exception under Section 13(1) was inapplicable due to delay in invoking its jurisdiction. Additionally, the Petitioners were deemed to have acquiesced by accepting revised salary conditions without timely protest. Accordingly, the application was dismissed.

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SUMMARY:

The Petitioner, appointed in 1999 to the Sri Lanka Education Administrative Service Class III, challenged the 2009 cancellation of her appointment and the State's attempt to recover approximately Rs. 1.9 million as alleged overpaid salary. The Respondents relied on a prior Supreme Court judgment invalidating the recruitment batch due to non-compliance with the national ethnic ratio requirement, asserting that the appointment was void ab initio. The Petitioner invoked Article 12(1), alleging arbitrary deprivation of employment benefits after years of service. The Supreme Court held that the cancellation was not arbitrary but a necessary consequence of compliance with a binding judicial determination affecting the entire recruitment scheme. However, it found that the Petitioner had acted in good faith and performed duties for a decade without knowledge of illegality. The Court accepted that although the matter arose long prior, filing before the Human Rights Commission activated statutory protection under Section 13(1) regarding limitation. While upholding the cancellation, the Court exercised equitable jurisdiction to prevent recovery of salaries already paid, considering it unjust to penalise the Petitioner for administrative error not attributable to her. Accordingly, the application was dismissed with partial relief.

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SUMMARY:

The Petitioners, Inspectors of Police, challenged the retrospective backdating of promotions granted to the 11th Respondent, which altered his seniority by backdating his promotion to Sub-Inspector and subsequently to Inspector of Police. They contended that such administrative action unlawfully elevated a junior officer above them, thereby violating Article 12(1) and Article 14(1)(g) relating to equality and freedom of occupation in public service. The Respondents raised a limitation objection, but the Court held that the time bar was inapplicable because the Petitioners had promptly invoked the Human Rights Commission, thereby suspending limitation. The Supreme Court found that the impugned backdating conferred an impermissible double benefit on the 11th Respondent for the same period of service, disrupting established seniority principles. It further held that such arbitrary restructuring of promotions without transparent criteria was inconsistent with the rule of law and equal treatment in public employment. The Court also emphasised that the process undermined institutional discipline and fairness within the police service. Accordingly, it quashed the impugned communication and held that the Petitioners' constitutional rights had been violated.

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"legal_topic": ["equal_protection", "occupation", "discrimination_employment"]
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SUMMARY:

The Petitioners challenged the reduction of marks during the Grade 1 admission process to Visakha Vidyalaya, where a valid Urban Development Authority housing installment agreement was initially awarded full marks under the “close proximity” category but later reduced to a lower score, resulting in failure to meet the admission cut-off. They alleged violation of Article 12(1) on equality and equal protection. The Supreme Court held that the Respondents acted arbitrarily by disregarding mandatory criteria in the School Admission Circular, which expressly recognised installment housing agreements as qualifying documents for full marks. It found that the Petitioners had complied fully with documentary requirements and that the subsequent reclassification lacked rational justification. The Court further held that penalising applicants for benefiting from state housing schemes amounted to indirect economic discrimination and undermined equality in educational access. It emphasised that similarly placed applicants must be treated alike and that administrative deviation from published criteria constitutes unequal treatment. Accordingly, the Court concluded that the Petitioners were deprived of equal protection of the law and declared that their fundamental rights had been infringed, directing admission of the child to the school.

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{
"case_id": 344,
"case_name": "Paalawa Rankoth Gedara Kenudi Dilandi and Another v. Sandamali Aviruppola,
Principal of Visakha Vidyalaya and Others",
"case_number": "SC/FR/13/2020",
"year": 2020,
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"legal_topic": ["equal_protection", "discrimination_education"]
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<<<CASE_START>>>

SUMMARY:

The Petitioner, a 58-year-old widow, alleged that police officers unlawfully arrested her on 26 September 2016 immediately after she attended an inquiry at a police station regarding a prior complaint of harassment. She was forcibly taken into custody and later detained in remand for six months. The police justified the arrest on the basis of an alleged prior drug raid, claiming she had fled leaving narcotics, although forensic analysis later confirmed no dangerous drugs were present. She invoked Article 12(1) and Article 13(1), alleging arbitrary arrest and failure to be informed of reasons for arrest. The Supreme Court found that the police narrative was contradictory, unsupported by contemporaneous records, and inconsistent with official documentation. It held that no credible basis existed for a lawful arrest and that mandatory procedural safeguards, including informing the reasons for arrest at the time of deprivation of liberty, were not complied with. The Court further found that the arrest was motivated by retaliation for her complaint to the Inspector General of Police, amounting to abuse of power. Accordingly, it held that the Petitioner’s fundamental rights had been violated.

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{
"case_id": 345,
"case_name": "Liyanagamage Anoma Santhi v. W.A. Mahinda and Others",
"case_number": "SC/FR/135/2017",
"year": 2017,
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"judgment": "VIOLATED",
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<<<CASE_START>>>

SUMMARY:

The Petitioner challenged a University Grants Commission decision disqualifying him from university admission after it was found that he had falsely claimed residency in the Anuradhapura district and misrepresented his period of school attendance to obtain a favourable Z-score advantage. Following investigation, his results were released without district ranking and he was subsequently barred from admission. He alleged violation of Article 12(1) on equality and equal protection. The Supreme Court held that the Petitioner had acted in bad faith by suppressing material facts and submitting false declarations in breach of UGC regulations. Applying the doctrine of clean hands, the Court held that equitable relief cannot be granted to a party who benefits from misrepresentation. It further found that such conduct prejudiced genuine students from the relevant district by distorting competitive allocation of university placements. The Court rejected the claim of legitimate expectation, holding that no expectation can arise from unlawful or fraudulent conduct under the regulatory framework. Accordingly, it held that there was no violation of fundamental rights and dismissed the application.

METADATA:

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{
"case_id": 346,
"case_name": "M.N.M. Nafees v. University Grants Commission and Others",
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"year": 2018,
"word_count": 350,
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<<<CASE_START>>>

SUMMARY:

The Petitioners, representing students of Talawakelle Tamil Maha Vidyalaya, challenged the failure of the Ceylon Electricity Board to construct an auditorium as promised under a written

assurance connected to a hydro power project relocation arrangement. While other school facilities were completed, the auditorium was not built, allegedly due to political interference and deviation from the original plan. They alleged violation of Article 12(1) on equal protection of the law in access to educational infrastructure. The Supreme Court held that the written assurance created a legitimate expectation enforceable in public law, and that deviation without lawful justification was arbitrary. It further found that the Board had acted under dictation of an external political entity rather than exercising independent administrative discretion. The Court emphasised that state authorities must act consistently with the best interests of children and ensure equal access to educational facilities, drawing support from international child rights principles. It also reaffirmed that public authorities are bound by assurances where reliance has been reasonably induced. Accordingly, it concluded that the Petitioners' fundamental rights had been violated.

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{  
"case_id": 347,  
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"year": 2014,  
"word_count": 380,  
"judgment": "VIOLATED",  
"articles_cited": ["12(1)",  
"legal_topic": ["equal_protection", "arbitrary_state_interference"]  
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<<<CASE_START>>>

SUMMARY:

The Petitioners, two schoolchildren, alleged that they were subjected to severe corporal punishment by the Deputy Principal after being wrongly accused of damaging school property. They were caned repeatedly, resulting in physical injuries and psychological trauma confirmed by medical evidence. They invoked Article 11 and Article 12(1), alleging cruel treatment and unequal protection of the law. The Supreme Court held that the conduct amounted to cruel, inhuman and degrading treatment in violation of constitutional guarantees. It further found that the Respondent acted in breach of Ministry of Education circulars prohibiting corporal punishment, and that such unlawful exercise of authority constituted arbitrary treatment under Article 12(1). The Court rejected the justification of disciplinary necessity, holding that teachers act under colour of office and remain subject to constitutional constraints. It also held that the State bears vicarious liability where there is a sufficient nexus between official duties and abusive conduct. Emphasising the heightened protection owed to children under domestic and international standards including the UN Convention on the Rights of the Child, the Court declared that the Petitioners' fundamental rights had been violated and ordered compensation.

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"case_id": 348,
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"case_name": "Mahapitiya Gedera Shanuka Gihan Karunaratne and Another v. Lory Koswatte and Others",  
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"word_count": 359,  
"judgment": "VIOLATED",  
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"legal_topic": ["cruel_treatment", "equal_protection", "degrading_treatment"]  
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<<<CASE_START>>>

SUMMARY:

The Petitioners, former occupants of Municipal Council staff quarters, sought transfer of ownership of the houses they had occupied for several decades, relying on a rent-purchase claim and a ministerial direction asserting a long-term expectation of ownership. They alleged violation of Article 12(1) due to unequal treatment in denial of property transfer. The Respondents argued that the premises were staff quarters not eligible for conversion and that statutory provisions under the housing legislation restricted ownership transfer based on rent thresholds, which the Petitioners exceeded. The Supreme Court held that the Petitioners were legally ineligible under the governing statutory framework, particularly Section 5(A), which imposed strict eligibility conditions. It further found that the agreements constituted tenancy arrangements rather than enforceable rent-purchase contracts capable of creating ownership rights. The Court also held that no legitimate expectation arose because the Council had made no binding promise but only indicated discretionary future consideration. Accordingly, it concluded that there was no arbitrary or unequal treatment and dismissed the application for failure to establish a constitutional violation.

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{  
"case_id": 349,  
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"case_number": "SC/FR/356/2014",  
"year": 2014,  
"word_count": 336,  
"judgment": "NOT_VIOLATED",  
"articles_cited": ["12(1)"],  
"legal_topic": ["equal_protection", "arbitrary_state_interference"]  
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<<<CASE_START>>>

SUMMARY:

The Petitioner, a senior officer of the Sri Lanka Administrative Service, challenged her transfer to the Ministry pool after an earlier approved transfer to Dambulla was deferred due to

allegations of conflict of interest involving her husband's alleged acquisition of state land through irregular transactions. She alleged violation of Article 12(1) and Article 14(1)(g), claiming arbitrariness and infringement of legitimate expectation. The Supreme Court held that the transfer was justified under Public Service Commission rules permitting reassignment during investigations into misconduct. It found that the Petitioner had made material misrepresentations regarding her husband's business interests, thereby attracting the clean hands doctrine and disentitling her from relief in equity. The Court further held that placement in the pool was necessary to prevent interference with ongoing investigations and to ensure administrative integrity. It also concluded that no legitimate expectation can arise where the expected outcome would facilitate a conflict of interest or improper conduct. Additionally, the Court directed referral of the matter for corruption investigation. Accordingly, it held that there was no violation of fundamental rights and dismissed the application.

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{  
"case_id": 350,  
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"case_number": "SC/FR/23/2021",  
"year": 2021,  
"word_count": 388,  
"judgment": "NOT_VIOLATED",  
"articles_cited": ["12(1)", "14(1)(g)"],  
"legal_topic": ["equal_protection", "occupation", "arbitrary_state_interference"]  
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<<<CASE_START>>>

SUMMARY:

The Petitioner, an officer of the Sri Lanka Accountants' Service, challenged the Public Service Commission's decision in 2013 to annul his promotion to Class II Grade I, which had been granted following reinstatement after his termination for participation in the 1980 General Strike and subsequent reinstatement in 1989. His appointment had been antedated to 20 May 1984 by Cabinet decision in 1999, although without back wages, and he was later promoted prospectively based on that service date following an Administrative Appeals Tribunal order. The PSC contended that he was ineligible because his "active service" commenced only upon actual reinstatement in 1992 and that entitlement to promotion required continuity of paid service. The Supreme Court considered Article 12(1) and held that the PSC's unilateral annulment of the antedating and consequent denial of promotion was arbitrary and contrary to equal protection. It ruled that decisions of the Administrative Appeals Tribunal are final and binding unless lawfully challenged, and the PSC had no authority to disregard or nullify such determinations. The Court further found that distinguishing employees based on receipt or non-receipt of back wages created an irrational classification between similarly situated public servants, since neither group had rendered actual service during the strike period. It held that such differentiation lacked a rational nexus to service requirements and amounted to an abuse of administrative power. Accordingly, the Court quashed the PSC decision and restored the promotion with

consequential relief.

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{
"case_id": 351,
"case_name": "K.A. Gunasena v. Public Service Commission and Others",
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"judgment": "VIOLATED",
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<<<CASE_START>>>

SUMMARY:

The Petitioner, an Attorney-at-Law, alleged that a Senior Superintendent of Police obstructed her professional duties when she attempted to represent a client at a police station in relation to a civil land dispute. It was claimed that the police officer ordered her to leave, threatened detention, seizure of her phone, and interference with her future court appearances after she insisted on her right of representation. The interaction was recorded and relied upon as evidence. The Petitioner invoked Articles 11, 12(1), and 14(1)(g), alleging degrading treatment, unequal protection, and interference with her professional practice. The Supreme Court did not deliver a final determination on leave but observed that the conduct of the police officer was offensive, improper, and undignified, and prima facie indicative of obstruction of legal representation. The Court identified a regulatory vacuum governing police handling of lawyer-client interactions during investigations and civil disputes. It held that such absence of clear guidelines risked arbitrary conduct affecting constitutional rights. Consequently, the Court issued interim and mandatory directions requiring institutional reform, including disciplinary inquiry into the officer's conduct and formulation of a regulatory framework involving legal professional bodies. The matter was treated as requiring systemic correction rather than immediate final adjudication.

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{
"case_id": 352,
"case_name": "Malka Denethi v. K.S.K. Rupasinghe and Others",
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"word_count": 322,
"judgment": "NOT_VIOLATED",
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SUMMARY:

The Petitioners, Sub-Inspectors of Police, challenged a 2020 Scheme of Recruitment governing promotion to Inspector of Police, alleging that it introduced arbitrary criteria by reducing the weightage of seniority, assigning marks for “good entries” favouring certain categories of officers, and introducing a discretionary “Special Promotion” category based on the Inspector General’s opinion and trust. They contended that these provisions violated Article 12(1) and Article 14(1)(g) by undermining equality and fair professional advancement. The Supreme Court held that the Special Promotion provision conferred unfettered discretion without objective standards, rendering it arbitrary and unconstitutional. It found that such open-ended authority created a risk of subjective and unequal decision-making inconsistent with the rule of law. Applying severability, the Court struck down only the impugned discretionary promotion clause while preserving the remainder of the scheme. The Court also rejected a preliminary time-bar objection, holding that limitation runs from the date of actual knowledge of the impugned scheme. It further held that arbitrary denial of fair promotional consideration directly impairs effective engagement in lawful occupation within public service. Accordingly, the Special Promotion category was declared void and the Petitioners’ rights were held to be violated.

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{
"case_id": 353,
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D. Wickramaratne and Others",
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SUMMARY:

The Petitioner, a medical doctor, challenged the National Water Supply and Drainage Board’s award of a contract for the Ambatale Water Supply System Improvement Project, alleging that the selected contractors failed to comply with required technical standards for pipeline joints, thereby endangering public safety and risking state financial loss. The Petition raised Article 12(1) concerns on equal protection and alleged procedural unfairness in public procurement. The Supreme Court dismissed the application at the threshold on the basis of limitation under Article 126(2), finding that the alleged infringement occurred when the Cabinet decision was publicly announced in November 2015, whereas the application was filed in April 2017. The Court rejected the argument that the limitation period should run from a later failure to respond to an information request, holding that constructive knowledge arose upon public disclosure. It further held that no exceptional circumstances justified extension of time under constitutional

discretion. Accordingly, the Court found no basis to proceed and dismissed the application without examining the merits of the procurement decision.

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{
"case_id": 354,
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SUMMARY:

The Petitioner filed the application on behalf of her deceased husband, who had been arrested by police officers on criminal allegations and later shot dead while being transported in a police vehicle. The police claimed the deceased attempted to seize a weapon while handcuffed, justifying the shooting under private defence. The Petitioner invoked Articles 12(1), 13(1), and 13(4), alleging arbitrary arrest and unlawful deprivation of life. The Supreme Court held that next-of-kin have standing to pursue violations of the right to life, since otherwise such protection would be illusory. It reaffirmed that Article 13(4) embodies a constitutional guarantee against deprivation of life except by judicial process, read in light of established precedent recognising the right to life. The Court rejected the police version as improbable given that the deceased was handcuffed and under control of multiple officers, and found excessive use of force. It also applied the principle of presumption of innocence and held that state agents remain bound by equal protection obligations even in respect of suspects. Accordingly, it declared that the deceased's fundamental rights had been violated.

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{
"case_id": 355,
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SUMMARY:

The Petitioner instituted proceedings on behalf of her deceased son who died while in police custody following arrest on suspicion of illicit liquor possession. It was alleged that he was severely assaulted with blunt instruments by multiple police officers and later died in hospital while still under state custody. The Respondents contended that injuries resulted from accidental falls and denied custodial violence. The Petitioner invoked Articles 11 and 13(4), alleging torture and unlawful deprivation of life, and also relied on Article 12(1). The Supreme Court held that medical evidence confirming 32 ante-mortem injuries was consistent with sustained physical assault and directly contradicted the Respondents' version. It further held that injuries sustained during police custody established a causal link to death, rendering state responsibility engaged. The Court rejected explanations of accidental injury as implausible and found that the conduct amounted to cruel, inhuman, and degrading treatment. It reaffirmed that Article 13(4) implies a constitutional right to life, prohibiting punishment or death without judicial sanction. Accordingly, it concluded that the deceased's fundamental rights had been violated.

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{
"case_id": 356,
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SUMMARY:

The Petitioners, members of the Sri Lanka Planning Service, challenged a series of Cabinet and Public Service Commission decisions authorising the absorption of Development Officers into the service, including candidates who had failed the prescribed qualifying examination. The Petitioners alleged that these decisions undermined merit-based recruitment and violated Article 12(1) by arbitrarily altering established selection criteria. The Supreme Court held that the impugned decisions were administrative in nature rather than broad policy determinations and therefore subject to constitutional review. It found that lowering and ultimately removing examination standards for absorption was irrational and inconsistent with the governing Service Minute. The Court held that such actions destroyed meritocracy and created grave anomalies within the public service by treating dissimilar candidates equally. It also rejected objections relating to locus standi and delay, holding that affected officers and trade unions had standing and that prior awareness issues did not bar relief. Accordingly, the Court quashed both impugned decisions and held that the Petitioners' fundamental rights had been violated.

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"case_name": "N. B. Krishantha Kumara and Others v. Dharmasena Dissanayaka and Others",
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SUMMARY:

The Petitioners, police officers and unsuccessful candidates for promotion to Assistant Superintendent of Police, challenged a complex series of promotional decisions arising from inconsistent use of two different examination mark sheets (raw and converted scores). Over time, conflicting administrative actions resulted in multiple competing promotions far exceeding the original vacancies. The Petitioners specifically challenged the promotion of officers with lower raw scores based on converted marks. The Supreme Court considered Article 12(1) and held that although the system was irregular, the impugned decision could not be struck down due to limitation under Article 126(2), as the underlying mark-sheet structure had been publicly known for years. The Court further held that the National Police Commission's later standardisation of a minimum cut-off constituted a reasonable attempt to restore order and uniformity in a previously chaotic recruitment process. It found that once dual systems had been officially recognised, candidates were not in comparable circumstances for equality analysis. The Court also emphasised cadre limitations and administrative necessity in preventing further expansion of promotions. Accordingly, the application was dismissed and no violation was found.

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<<<CASE_START>>>

SUMMARY:

The Petitioner, a government medical officer and professional association president, challenged his interdiction following public statements on child malnutrition allegedly made without prior approval and based on a limited sample survey. The authorities alleged that his statements

violated the Establishment Code and undermined public trust in government health policy. The Petitioner invoked Articles 12(1) and 14(1)(g), alleging arbitrary disciplinary action and restriction on professional expression. The Supreme Court held that public officers are bound by the Establishment Code, which restricts unauthorised public disclosure and commentary on official matters. It found that the Petitioner failed to obtain mandatory approval before making public statements, thereby justifying disciplinary proceedings. The Court further held that interdiction during inquiry does not amount to deprivation of professional status but is a procedural employment measure within lawful service regulation. It concluded that the disciplinary action was based on clear rules and therefore neither arbitrary nor discriminatory. Accordingly, the Court dismissed the application and found no violation of fundamental rights.

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{
"case_id": 359,
"case_name": "Dr. Galmangoda Guruge Chamal Sanjeewa v. Hon. Dr. Keheliya Rambukwella and Others",
"case_number": "SC/FR/371/2022",
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SUMMARY:

The Petitioners, transporters of meat products, were arrested and their goods seized after being stopped by police despite possessing a valid Public Health Inspector certificate confirming inspection and approval of the meat. Although initially charged with transport offences, the police later altered the legal basis of prosecution to offences under different statutes relating to Poya day restrictions and butchers' regulations. The seized meat was subsequently kept without proper preservation and later destroyed. The Petitioners invoked Articles 12(1) and 13(1), alleging arbitrary arrest and unequal treatment under the law. The Supreme Court held that there was no reasonable suspicion justifying arrest, as documentary evidence clearly demonstrated lawful transport and inspection compliance. It found that the arrest was speculative and that police attempted to retrospectively justify their actions by shifting charges after the fact, indicating mala fides. The Court also held that procedural safeguards were violated and that the conduct of authorities amounted to arbitrary exercise of power inconsistent with constitutional protections. A preliminary objection on limitation was rejected as the filing date fell on a permissible next working day. Accordingly, the Court held that the Petitioners' fundamental rights had been violated.

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<<<CASE_START>>>

SUMMARY:

The Petitioner sought admission of her daughter to Visakha Vidyalaya for Grade 1 under the “close proximity” category, challenging the School Appeal Board’s refusal to award full residence-related marks. The initial rejection occurred on an erroneous assumption regarding the child’s religion, later corrected on appeal, where the Board awarded 47 marks but denied full residential marks due to the family’s movement between two adjoining apartment units within the same building during the relevant five-year period. The Petitioner invoked Article 12(1), alleging unequal treatment and arbitrary evaluation of eligibility criteria. The Supreme Court held that the Appeal Board’s approach was excessively literal and failed to adopt a purposive interpretation of residence requirements under the admission circulars. It found that continuous residence was substantively satisfied as the two units were functionally part of the same residential occupation, separated only by a wall and not constituting a meaningful change of residence. The Court further held that denial of marks for additional documentation lacked textual support in the governing circular and amounted to arbitrary deviation from established criteria. It also noted inconsistency in administrative practice, as another national school had accepted identical documentation for full marks under the same framework. The Court rejected arguments relating to natural barriers, finding no rational basis for differential treatment. Accordingly, it held that the Petitioner was entitled to sufficient marks exceeding the cut-off and ordered admission of the child.

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{  
"case_id": 361,  
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"case_number": "SC/FR/204/2022",  
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"judgment": "VIOLATED",  
"articles_cited": ["12(1)"],  
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<<<CASE_START>>>

SUMMARY:

The Petitioner company challenged the Land Reform Commission's attempt to take over portions of land forming part of leased plantation estates, asserting lawful possession under long-standing lease agreements originating from 1995 and subsequent investments in plantation development. The dispute concerned whether specific land parcels were validly vested in the lessor state entity or unlawfully included in the lease. The Respondents contended that portions of the land had been acquired by the State in 1973 and never legally vested in the leasing authority, rendering the lease ultra vires. The Supreme Court considered Article 12(1) and held that no violation had been established. It found that the Petitioner failed to join the original lessor, a necessary party whose participation was essential to resolve inconsistencies in the extent and legality of the leasehold. The Court further noted significant discrepancies between gazetted land extents and contractual documents, undermining the factual foundation of the claim. It held that legitimate expectation cannot arise from an unlawful or ultra vires lease arrangement exceeding the lessor's legal authority. The Court also affirmed that the disputed land had been validly acquired under land acquisition law and remained state property. Accordingly, the application was dismissed with costs.

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{  
  "case_id": 362,  
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<<<CASE_START>>>

SUMMARY:

The Petitioners, officers of the Co-operative Development Department, challenged revised Schemes of Recruitment introduced in 2015 and implemented through 2016 selection processes, which introduced new marking criteria based on higher educational qualifications and professional training. They alleged that the new criteria were arbitrary and disadvantaged existing officers, thereby violating Articles 12(1) and 14(1)(g). The Supreme Court dismissed the application on the preliminary ground of limitation under Article 126(2). It held that the Petitioners had knowledge of the impugned scheme once official vacancy notices were published in March 2016 and participated in the selection process without objection. The Court found that such participation constituted acquiescence, preventing them from later challenging the legality of the process after failing to secure selection. It further held that the application was filed beyond the mandatory one-month period and therefore was jurisdictionally barred. The Court did not proceed to examine the substantive fairness of the recruitment criteria.

Accordingly, the application was dismissed as time-barred without a finding on the merits.

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{
"case_id": 363,
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Southern Province and Others",
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"year": 2016,
"word_count": 372,
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<<<CASE_START>>>

SUMMARY:

The Petitioner company challenged a directive issued by the Land Reform Commission seeking recovery of two land parcels long possessed under transfers dating back several decades, including properties used for plantation and tourism purposes. The Commission sought to invalidate prior transfers without prior hearing, despite decades of administrative inaction. The Petitioner alleged violation of Article 12(1), asserting arbitrary state interference and breach of legitimate expectation. The Supreme Court held that although no immediate deprivation had occurred, the threatened action constituted an imminent infringement of constitutional rights. It found that the Commission's attempt to reverse long-settled property arrangements without invoking proper statutory procedures was arbitrary and inconsistent with principles of legality. The Court further held that failure to afford a hearing violated natural justice, particularly audi alteram partem. It emphasised that administrative silence over prolonged periods cannot be abruptly reversed without lawful justification. The Court also rejected reliance on public pressure as a basis for administrative action. Accordingly, it declared that the proposed takeover would violate Article 12(1) if implemented and granted relief preventing the unlawful interference.

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"judgment": "VIOLATED",
"articles_cited": ["12(1)"],
"legal_topic": ["equal_protection", "arbitrary_state_interference"]
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SUMMARY:

The Petitioner, a Major in the Sri Lanka Army, was arrested following a fatal road traffic accident involving an army vehicle in which a child died and several passengers were injured. Although the Petitioner was a passenger, he was arrested and remanded on suspicion of aiding and abetting the driver. The police justified the arrest on alleged breaches of motor traffic law and concerns of public unrest. The Petitioner invoked Articles 12(1) and 13(1), alleging arbitrary arrest and unequal treatment under law. The Supreme Court held that there was no legal or evidentiary basis for imputing abetment, as mere presence in a vehicle does not constitute participation in a criminal act. It further found that the provisions relied upon by police were misapplied to the facts of the case. The Court rejected the justification of protective custody, holding that arrest cannot be effected for the alleged safety of the person detained. It also found a complete absence of reasonable suspicion, rendering the arrest arbitrary and unconstitutional. Accordingly, it held that the Petitioner's fundamental rights had been violated.

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{
  "case_id": 365,
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  "year": 2016,
  "word_count": 352,
  "judgment": "VIOLATED",
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SUMMARY:

The Petitioner company sought enforcement of approvals relating to a 10MW solar power project, alleging that the Ceylon Electricity Board initially granted technical concurrence and induced investment by requesting design modifications, but later refused issuance of the final Letter of Intent citing a policy change requiring competitive tendering. The Petitioner invoked Articles 12(1) and 14(1)(g), alleging arbitrary withdrawal of approval and impairment of business activity. The Supreme Court held that the Respondents' conduct created a substantive legitimate expectation that the project would proceed upon compliance with technical requirements. It further found that the reliance on a subsequent policy amendment was misapplied, as it did not lawfully exclude the Petitioner's category of renewable energy projects. The Court held that administrative authorities must act consistently with fairness and cannot arbitrarily reverse representations that induced reliance and investment. It also emphasised the public duty of energy authorities to promote sustainable development and avoid unreasonable delay in regulatory approvals. Accordingly, it ordered issuance of the Letter of Intent and permit and awarded compensation, holding that the Petitioner's rights had been violated.

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{
"case_id": 366,
"case_name": "Vavuniya Solar Power (Private) Limited v. Ceylon Electricity Board and Others",
"case_number": "SC FR Application No. 172/2017",
"year": 2017,
"word_count": 310,
"judgment": "VIOLATED",
"articles_cited": ["12(1)", "14(1)(g)"],
"legal_topic": ["equal_protection", "occupation"]
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<<<CASE_START>>>

SUMMARY:

The Petitioner was arrested and remanded following allegations of financial fraud arising from a complaint by a private individual regarding a disputed transaction involving bank account use and alleged vehicle import fraud. Despite the existence of exculpatory evidence, including recorded communications negating involvement in the alleged scheme, CID officers proceeded with arrest and prosecution. The Petitioner invoked Articles 12(1), 13(1), and 13(2), alleging arbitrary arrest, unequal treatment, and procedural violations. The Supreme Court held that the CID acted mechanically on an unverified complaint without conducting independent assessment of credibility or examining available exculpatory material. It found that the arrest lacked reasonable suspicion and was therefore arbitrary and unconstitutional. The Court further held that failure to communicate specific grounds of arrest violated constitutional safeguards under Article 13(1). It also imposed liability on the private complainant for instigating wrongful executive action through false allegations. However, it found no violation of Article 13(2) as the requirement of production before a Magistrate was satisfied. Accordingly, the Court held that the Petitioner's fundamental rights under Articles 12(1) and 13(1) had been violated.

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{
"case_id": 367,
"case_name": "Ganeshan Samson Roy v. M.M. Janaka Marasinghe and Others",
"case_number": "SC (FR) Application No. 405/2018",
"year": 2018,
"word_count": 310,
"judgment": "VIOLATED",
"articles_cited": ["12(1)", "13(1)", "13(2)"],
"legal_topic": ["unlawful_arrest", "equal_protection"]
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<<<CASE_START>>>

SUMMARY:

The Petitioners, senior officers of the Sri Lanka Ports Authority, challenged the denial of

promotion under a recruitment framework that retained an outdated circular reserving a percentage of vacancies for officers over 50 years of age to be assessed solely on interview performance. Although initially instructed to sit a written examination “nominally,” they were later denied promotion despite satisfying interview requirements, while junior officers were selected. The Respondents relied on a purported new recruitment scheme, but the Supreme Court found that the original circular had never been lawfully rescinded by the competent authority. The Petitioners invoked Article 12(1) and alleged unequal treatment and violation of legitimate expectation. The Court held that administrative circulars remain valid until properly revoked and that internal communications cannot override binding directives. It further held that the Petitioners had a legitimate expectation arising from both established practice and explicit assurances that interview-based selection would apply. The Court also affirmed that arbitrary deviation from published criteria constitutes violation of equal protection even absent discrimination in intent. Accordingly, it held that the Petitioners’ fundamental rights had been violated and ordered retrospective promotion with back wages.

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{
"case_id": 368,
"case_name": "K. L. I. Amarasekera and Others v. Sri Lanka Ports Authority and Others",
"case_number": "SC (FR) Application No. 122/2015",
"year": 2015,
"word_count": 300,
"judgment": "VIOLATED",
"articles_cited": ["12(1)", "14(1)(g)"],
"legal_topic": ["equal_protection", "occupation"]
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<<<CASE_START>>>

SUMMARY:

The Petitioners, a mother and daughter, alleged that Excise Department officers used excessive force during an arrest relating to suspected illicit alcohol possession, including physical assault, humiliation in public, and forced transportation. The Respondents contended that only minimum force was used following resistance and abusive conduct by the Petitioners. The Petitioner alleged violation of Article 11, with leave granted only in respect of the second Petitioner. The Supreme Court held that allegations of torture and degrading treatment require a high standard of proof and corroborative evidence of maltreatment of a serious nature. It found that medical records did not support claims of physical assault consistent with the alleged violence, and no injuries were documented. It further held that video evidence submitted failed to substantiate the allegations. The Court also considered inconsistencies in contemporaneous complaints and prior conduct of the Petitioners, affecting credibility. Accordingly, it concluded that the burden of proof had not been discharged and held that no violation of Article 11 was established.

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"case_id": 369,
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"case_name": "H. M. Punchimenike and Another v. D. M. Bandula Saman Dissanayake and Others",
"case_number": "SC (FR) Application No. 233/2018",
"year": 2018,
"word_count": 300,
"judgment": "NOT_VIOLATED",
"articles_cited": ["11"],
"legal_topic": ["cruel_treatment"]
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<<<CASE_START>>>

SUMMARY:

The Petitioner, a Sub-Inspector of Police, challenged his arrest and interdiction on serious criminal allegations including fabrication of evidence and possession of illegal weapons. Despite prolonged interdiction exceeding two years, no meaningful investigation or charge sheet was produced, and he remained without salary until interim judicial intervention. The Petitioner invoked Articles 12(1) and 14(1)(g), alleging arbitrary deprivation of employment and unequal treatment. The Supreme Court held that the interdiction was procedurally defective as it failed to specify clear reasons as required under the Establishments Code. It further found that prolonged inaction in conducting preliminary inquiries constituted an abuse of disciplinary authority and an arbitrary exercise of power. The Court held that failure to respond to allegations within a reasonable time rendered the continuation of interdiction unjustified. It also considered the absence of timely objections by Respondents as strengthening the Petitioner's case. The Court concluded that the disciplinary process lacked fairness and procedural compliance, and accordingly held that the Petitioner's fundamental rights had been violated, awarding compensation and restoration of service benefits.

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{
"case_id": 370,
"case_name": "Rannula Sugath Mohana Mendis v. D. K. A. Sanath Kumara and Others",
"case_number": "SC (FR) Application No. 100/2022",
"year": 2022,
"word_count": 298,
"judgment": "VIOLATED",
"articles_cited": ["12(1)", "14(1)(g)"],
"legal_topic": ["equal_protection", "occupation"]
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<<<CASE_START>>>

SUMMARY:

The petitioner alleged that in August 2014 she was harassed and verbally abused by the Acting Officer-in-Charge at Welipenna Police Station, and that her mother was unlawfully detained for nearly 24 hours without production before a Magistrate. She further claimed she was subjected

to cruel and degrading treatment when she attended the station regarding a land dispute and missing person complaint. The respondents denied detention and maintained the mother remained voluntarily after statement recording. The issues concerned alleged violations of Articles 11 and 12(1) of the Constitution relating to freedom from cruel, inhuman or degrading treatment and equality before the law. The Supreme Court examined the credibility of the petitioner's evidence and found significant inconsistencies, describing her account as unreliable and "patently insincere" in relation to her awareness of police inquiries. The Court also noted that an inquiry had been conducted by the Inspector General of Police and that the petitioner and her mother failed to attend despite notice. Applying the standard of proof on a preponderance of probabilities, the Court held that the petitioner failed to produce compelling material to establish harassment, illegal detention, or unequal treatment. It concluded that the alleged violations were not substantiated and dismissed the application, finding no infringement of the petitioner's fundamental rights under Articles 11 and 12(1).

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{  
"case_id": 371,  
"case_name": "Wasana Niroshini Wickrama v. Nalaka, Acting Officer-in-Charge and Others",  
"case_number": "SC (FR) Application No. 349/2014",  
"year": 2014,  
"word_count": 215,  
"judgment": "NOT_VIOLATED",  
"articles_cited": ["11", "12(1)"],  
"legal_topic": ["cruel_treatment", "degrading_treatment", "equality", "detention"]  
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<<<CASE_START>>>

SUMMARY:

The petitioner, an employee of the Land Reform Commission, alleged that she was unlawfully and arbitrarily denied promotion, claiming infringement of her right to equality under Article 12(1). She challenged the executive and administrative actions governing the promotion process and sought constitutional relief under Article 126. The respondents maintained that the selection procedure was conducted in accordance with established service requirements and that the petitioner failed to satisfy the necessary evidentiary threshold to demonstrate arbitrariness or unequal treatment. The Supreme Court examined whether there was sufficient material to establish discriminatory or irrational conduct. It reiterated that the standard of proof in fundamental rights litigation requires evidence commensurate with the seriousness of the allegation and that a petitioner must produce compelling material to satisfy the judicial conscience on a preponderance of probabilities. The Court further emphasized that mere allegations without supporting proof are insufficient to establish constitutional infringement. It found that the petitioner did not substantiate her claim that the promotion process was unfair or discriminatory and failed to demonstrate deviation from lawful procedure. Accordingly, the Court held that there was no violation of Article 12(1) and dismissed the application in its entirety.

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{
"case_id": 372,
"case_name": "Peduru Arachchige Tiuska Pushpa Weerasinghe v. Sirimewan Dias and Others",
"case_number": "SC/FR Application No. 120/2019",
"year": 2019,
"word_count": 205,
"judgment": "NOT_VIOLATED",
"articles_cited": ["12(1)"],
"legal_topic": ["discrimination_employment", "equality"]
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SUMMARY:

The petitioner, an instructor at a Montessori teacher training centre, alleged that she was unlawfully arrested and coerced by police officers following complaints regarding alleged illegal operations of the institution. She further claimed that she was forced to sign admissions of liability and that police officers solicited bribes from her husband. The respondents relied on multiple complaints against the petitioner and maintained that the arrest was based on credible information regarding financial misconduct and improper administration of the centre. The petitioner invoked Articles 12(1) and 13(1), alleging arbitrary arrest and unequal treatment. The Supreme Court considered whether the arrest was supported by reasonable suspicion and whether police conduct amounted to constitutional violation. It found that there were numerous corroborated complaints identifying the petitioner in connection with alleged irregular financial dealings, and that her managerial role justified police suspicion. The Court further held that allegations of coercion and bribery were unsupported by independent or contemporaneous evidence and failed to meet the required standard of proof. It concluded that the arrest was a lawful exercise of police discretion and not arbitrary in nature. Accordingly, the Court held that there was no violation of Articles 12(1) or 13(1) and dismissed the application.

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"case_id": 373,
"case_name": "Warnakuwatthawaduge Surani Lakshika Fernando v. Police Sergeant Attapattu and Others",
"case_number": "SC (F/R) Application No. 221/2015",
"year": 2015,
"word_count": 217,
"judgment": "NOT_VIOLATED",
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SUMMARY:

The petitioners, hereditary trustees of a Hindu temple, alleged that state authorities unlawfully took over administration of their ancestral temple and permitted third-party commercial activities on associated property after their displacement during the civil conflict. They contended that the takeover violated their constitutional rights, particularly under Article 12(1) and related provisions concerning cultural and religious interests. The respondents argued that state involvement was administrative and justified in the public interest due to abandonment and lack of proper management. The Supreme Court examined whether the State had lawful authority to assume control over a privately held hereditary trusteeship. It found that the petitioners had been forcibly displaced due to war and had not voluntarily abandoned the property. The Court held that the State lacked statutory authority to intervene in the management of the temple and that the administrative takeover was arbitrary and without legal foundation. It further emphasized the protected nature of long-standing religious and cultural institutions and rejected justification based on administrative convenience. The Court concluded that the respondents' actions constituted arbitrary state interference and infringed Article 12(1) and related constitutional protections. It ordered restoration of control and management to the petitioners, thereby upholding the claim.

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{
"case_id": 374,
"case_name": "Gunarathinam Manivannan v. Honourable D.M. Jayaratne and Others",
"case_number": "SC FR Application No. 393/2010",
"year": 2010,
"word_count": 217,
"judgment": "VIOLATED",
"articles_cited": ["12(1)", "10", "12(2)", "14(1)(e)", "14(1)(f)", "14(1)(h)"],
"legal_topic": ["equality", "cultural_rights", "religious_practice"]
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SUMMARY:

The petitioner claimed ownership of a 20-perch land parcel in Jaffna and alleged that the Sri Lanka Army unlawfully entered, occupied, and fenced her property, preventing access through her agent. The Army admitted occupation of a 20-perch area within a larger land tract for construction of an official residence but did not specify the exact lot number. The petitioner invoked Articles 12(1) and 14(1)(h), alleging arbitrary state action and interference with property use and freedom of movement. The respondents argued that occupation was for security purposes and that a formal land acquisition process had been initiated by the relevant ministerial authority. The Supreme Court focused on whether the petitioner had established, on a balance of probabilities, that the occupied land corresponded specifically to her titled property (Lot 2A). It found that the petitioner failed to produce sufficient survey evidence linking the occupation to her precise boundaries and did not adequately address the possibility that the

Army occupied other lots within the larger subdivision. The Court further noted inconsistencies in the petitioner's evidence regarding the nature of occupation. It held that the burden of proof was not discharged and therefore no constitutional infringement was established. The application was dismissed.

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{
"case_id": 375,
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"word_count": 214,
"judgment": "NOT_VIOLATED",
"articles_cited": ["12(1)", "14(1)(h)"],
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SUMMARY:

The petitioner, a resident of Australia, alleged that the Sri Lanka Army unlawfully occupied her land in Jaffna and denied access to her property through fencing and physical control. She claimed ownership of Lot 2B under a deed of transfer and asserted infringement of her constitutional rights under Articles 12(1) and 14(1)(h). The Army admitted occupation of a 20-perch area within a larger subdivision for construction of an official residence but did not specify the exact lot occupied. The respondents maintained that the occupation was part of a broader security arrangement and subject to pending land acquisition procedures. The Supreme Court assessed whether the petitioner had proven that the occupied land fell within her specific titled property. It found that the petitioner failed to establish, on a balance of probabilities, that the disputed land corresponded to Lot 2B. The Court highlighted the absence of survey plans or reliable mapping evidence and noted that the occupation could relate to other non-owned lots within the subdivision. It further observed inconsistencies in the petitioner's description of the alleged interference. The Court held that the evidentiary burden was not discharged and concluded that no violation of fundamental rights had been proven. The application was dismissed.

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{
"case_id": 376,
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"judgment": "NOT_VIOLATED",
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SUMMARY:

The petitioner alleged that the Sri Lanka Army unlawfully occupied her land in Jaffna by erecting fencing and restricting access to a 40-perch parcel claimed under a registered plan. The Army admitted occupation of a 20-perch area within a larger subdivision for construction of a Brigade Commander's residence but did not identify the specific lot number. The petitioner invoked Article 12(1) and related rights under Article 14(1)(h), alleging arbitrary state interference with property and personal liberty interests. The respondents contended that the occupation was part of security arrangements and that acquisition proceedings had been initiated. The Supreme Court examined whether the petitioner had established ownership of the specific occupied land. It held that the petitioner failed to provide adequate survey evidence demonstrating that the occupied portion corresponded to her claimed Lot 3. The Court emphasized that the larger subdivision contained multiple lots, and the possibility that the Army occupied non-owned parcels could not be excluded. It also noted the absence of detailed mapping evidence linking the construction to the petitioner's property. Accordingly, the Court found that the burden of proof had not been discharged and held that no constitutional violation was established. The petition was dismissed.

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"case_id": 377,
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SUMMARY:

The petitioner, a senior administrative officer, alleged that she was arbitrarily denied promotion to the Special Grade, claiming violation of Article 12(1) and interference with her occupational rights under Article 14(1)(g). She contended that her periods of no-pay leave taken to accompany her diplomat spouse should not have affected her seniority under the Establishments Code. The respondents maintained that promotion eligibility required a minimum period of active service under the applicable service minute, and that no-pay leave could not be counted for this purpose. The Supreme Court examined the applicable recruitment scheme and statutory provisions governing seniority and promotion. It held that the service minute clearly

required eighteen years of active service and that the specific proviso excluded no-pay leave from computation where a qualification threshold applied. The Court further found that the respondents had correctly applied the revised shortlisting procedure based on seniority and vacancy limits. It concluded that the petitioner failed to challenge the accuracy of her seniority ranking or produce material evidence showing arbitrary exclusion. Accordingly, the Court held that there was no violation of Article 12(1) or Article 14(1)(g) and dismissed the application.

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{
"case_id": 378,
"case_name": "Jebarajes Krishnamoorthy nee Kumarasingam v. Dharmasena Dissanayake and Others",
"case_number": "SC FR Application No. 192/2019",
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SUMMARY:

The petitioner, an Army officer, alleged violations of his constitutional rights following a Court of Inquiry into the death of a soldier and subsequent recommendation for withdrawal of his commission. He claimed he was assaulted in custody and denied the opportunity to cross-examine witnesses, invoking Articles 12(1) and 14(1)(g). The respondents argued that the inquiry was fact-finding in nature and that disciplinary procedures under the Army Act permitted the President to act on recommendations regarding commission status. The Supreme Court examined whether procedural fairness requirements were violated in the inquiry process. It held that a Court of Inquiry is not a disciplinary tribunal but a preliminary fact-finding body, and therefore does not require cross-examination. The Court further found that medical evidence did not support allegations of assault and that no injuries were recorded. It also held that the officer's commission was held at the pleasure of the President, rendering the recommendation legally valid within military disciplinary structure. The Court emphasized the importance of maintaining military discipline and found that the actions taken were justified in light of the findings of misconduct. It concluded that no infringement of fundamental rights was established and dismissed the application.

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"case_id": 379,
"case_name": "Captain Ambawalage Dammika Senaratne De Silva v. Lieutenant General Jagath Jayasuriya and Others",
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SUMMARY:

The petitioner, a minor student, alleged violation of her right to equality under Article 12(1) after being denied admission to a school under a religious quota system. She scored 75 marks but was excluded as the cut-off was 79.75 marks after deduction of marks for assumed residential proximity factors. She also challenged the validity of higher-ranked candidates allegedly admitted through fraudulent religious affiliation documents. The respondents justified the admission process based on established circulars governing quota allocation and distance-based marking criteria. The Supreme Court examined whether the deduction of marks and allocation of places complied with administrative circulars and principles of fairness. It found that the 5-mark deduction was based on an erroneous assumption regarding proximity eligibility criteria and that the school failed to properly verify compliance with the required quota threshold. The Court further held that the administration failed to investigate objections regarding alleged fraudulent documentation submitted by competing candidates. It concluded that these administrative failures resulted in unequal treatment and denial of fair opportunity. Accordingly, the Court held that Article 12(1) was violated and directed the relevant education authorities to admit the petitioner to the appropriate grade.

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"case_id": 380,  
"case_name": "Darmaraja Nilithi Prasadi (Minor) v. Ms. Sandhya Airani Pathiranawasam and  
Others",  
"case_number": "S.C. (F/R) 63/2018",  
"year": 2018,  
"word_count": 212,  
"judgment": "VIOLATED",  
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"legal_topic": ["discrimination_education", "equality", "religious_practice"]  
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<<<CASE_START>>>

SUMMARY:

The petitioners, long-serving employees of the National Water Supply and Drainage Board, challenged the denial of promotion to Engineer Class II, alleging violation of Article 12(1) on the basis of arbitrary alteration of recruitment criteria. The established Scheme of Recruitment

required a National Certificate in Technology qualification and 12 years of service; however, the Board issued applications under an unapproved draft scheme increasing the requirement to 17 years of experience. Despite being called for interviews, the petitioners were denied marks for seniority and service on the basis of the higher unapproved threshold, while other candidates were promoted. The respondents justified the process as an administrative necessity. The Supreme Court examined whether deviation from an approved recruitment scheme constituted arbitrary state action. It held that a Scheme of Recruitment has the force of law for the purposes of Article 12(1) and cannot be replaced by an ad hoc or unapproved standard. The Court found that applying the draft scheme amounted to arbitrary deviation from established legal norms and violated legitimate expectations of employees. It further held that calling the petitioners for interview confirmed prima facie eligibility, and failure to produce valid mark sheets or proper decision-making records undermined the respondents' justification. The Court concluded that the petitioners were unfairly excluded from promotion and that their right to equality was infringed. Relief was granted including retrospective appointment and compensation.

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{
"case_id": 381,
"case_name": "D. M. C. J. Dissanayaka and Others v. National Water Supply and Drainage Board and Others",
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<<<CASE_START>>>

SUMMARY:

The petitioner, a Principal of a government school, challenged an immediate transfer to the Provincial Department of Education alleging violation of Articles 12(1) and 14(1)(g) on grounds of arbitrariness and political motivation. The respondents contended that the transfer was necessitated by administrative exigencies due to allegations that the petitioner obstructed ongoing investigations into misconduct involving admissions and misuse of funds. The Supreme Court examined whether the transfer was supported by valid administrative reasons and compliance with procedural requirements under Public Service Commission rules. It held that refusal to cooperate with investigations constituted a legitimate administrative ground for transfer under applicable service regulations. The Court also found evidence that the petitioner had prior knowledge of the transfer and had publicly referred to it before formal issuance, undermining claims of surprise or mala fides. It further held that while reasons must be communicated, they need not always be in strict written form and may be inferred from surrounding circumstances. The Court concluded that the authorities acted within lawful discretion and without improper motive, and that no arbitrary or unequal treatment was

established. Accordingly, it found no violation of Article 12(1) or Article 14(1)(g) and dismissed the application.

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{
"case_id": 382,
"case_name": "Ranjith Udaya Kumara Rajapakse v. G.K.G.A.R.P.K. Nandana and Others",
"case_number": "S.C.(F.R.) Application No. 374/2017",
"year": 2017,
"word_count": 214,
"judgment": "NOT_VIOLATED",
"articles_cited": ["12(1)", "14(1)(g)"],
"legal_topic": ["occupation", "equal_protection"]
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<<<CASE_START>>>

SUMMARY:

The petitioner challenged the award of a toddy tavern tender, alleging violation of Article 12(1) due to irregularities in the tender process and the alleged forced absence of a competing bidder during tender opening. The respondents contended that the successful bidder submitted a higher and more financially advantageous offer and that the tender process complied with Gazette requirements and administrative discretion. The Supreme Court first addressed the preliminary issue of delay and held that the application was filed beyond the constitutional limitation period under Article 126(2). It further held that pursuing alternative administrative remedies does not suspend the mandatory one-month limitation period for filing fundamental rights applications. On merits, the Court found that the Gazette requirement did not mandate physical presence at the opening stage and that the Divisional Secretary retained discretion to accept the most beneficial bid for the State. The Court also noted that the petitioner's bid was below the required threshold and therefore not compliant with financial criteria. It concluded that the application was both time-barred and substantively without merit, and accordingly dismissed it in limine without finding any violation of Article 12(1).

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"case_id": 383,
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"case_number": "S.C. (F.R.) Application No. 544/2012",
"year": 2012,
"word_count": 214,
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SUMMARY:

The petitioner, a social media user, was arrested and detained under multiple criminal statutes after posting a Facebook message advocating ideological resistance through non-violent intellectual means during the COVID-19 period. He alleged violations of Articles 12(1), 13(1), 13(2), and 14(1)(a), claiming arbitrary arrest, unlawful detention, and suppression of free expression. The respondents justified the arrest under sedition and hate speech provisions, alleging that the post promoted extremist ideology. The Supreme Court examined the content of the Facebook post in its full context and held that it advocated intellectual resistance using non-violent means, with references to “pen and keyboard” negating any violent intent. It further found that the police mischaracterized the content and misled the Magistrate, thereby misusing criminal law as a tool to suppress dissent. The Court held that the statutory threshold for hate speech under the ICCPR Act was not met and that no reasonable suspicion existed to justify arrest. It concluded that the arrest and prolonged detention were unlawful and constituted arbitrary state action. The Court declared violations of Articles 12(1), 13(1), 13(2), and 14(1)(a), and awarded compensation against both the State and individual officers.

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{
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"case_number": "SC / FR Application No. 135/2020",
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"judgment": "VIOLATED",
"articles_cited": ["12(1)", "13(1)", "13(2)", "14(1)(a)"],
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<<<CASE_START>>>

SUMMARY:

The petitioners, relatives of victims of a fatal bus accident, alleged that the Road Development Authority failed to maintain road safety by not removing a landslide boulder obstructing a mountainous road, thereby violating Article 12(1). The respondents contended that the road was under contractor supervision, that expert advice recommended careful removal methods due to monsoon risks, and that warning measures had been implemented. The Supreme Court considered whether there was a failure of administrative duty amounting to unequal or arbitrary state action. It found that the authority had taken reasonable steps including partial clearance, installation of warning signs, and engagement of expert consultation for safe removal through chemical blasting. The Court further held that the accident was significantly contributed to by driver negligence, including excessive speed on a hazardous route, and that public authorities are not insurers against all accidents involving negligent conduct by road users. It emphasized that administrative responsibility must be assessed in context of environmental conditions and

operational constraints. The Court concluded that the respondents had not acted arbitrarily or in breach of their duty under Article 12(1) and dismissed the application.

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"case_name": "Sebastian Benadic and Others v. Kodithuwakku Arachchilage Nihal  
Chandranantha and Others",  
"case_number": "SC (FR) Application No. 335/2021",  
"year": 2021,  
"word_count": 216,  
"judgment": "NOT_VIOLATED",  
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"legal_topic": ["public_order", "arbitrary_state_interference"]  
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<<<CASE_START>>>

SUMMARY:

The petitioner alleged that she was abducted, unlawfully detained, and subjected to severe torture by police officers, resulting in serious physical and psychological injuries, in violation of Articles 11, 12(1), 13(1), and 13(2). The respondents disputed the allegations and relied on inconsistent arrest records. The Supreme Court examined medical and testimonial evidence and found strong corroboration of the petitioner's account, including medico-legal findings confirming multiple injuries consistent with torture and nerve damage. It held that the police version of events was fabricated and internally inconsistent, and that the arrest lacked reasonable suspicion as it was based on an unverified anonymous complaint. The Court further held that the conduct of supervisory officers amounted to participation by omission and presence at the scene of abuse. It emphasized that state actors are strictly liable for torture and arbitrary detention under Article 11 and that such conduct represents a grave constitutional violation. The Court concluded that the petitioner's fundamental rights were infringed, including protection from torture, unlawful arrest, and equality before the law. It imposed personal liability on responsible officers and ordered compensation from both individuals and the State.

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{  
"case_id": 386,  
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"year": 2011,  
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SUMMARY:

The petitioner, a police officer, challenged his transfer from his station alleging violation of Article 12(1) on grounds of arbitrariness and political motivation, contending that it was a disguised disciplinary measure without valid justification. The respondents justified the transfer as being based on intelligence reports and allegations of misconduct including misuse of official resources and improper conduct with a subordinate officer. The Supreme Court considered whether the transfer was supported by valid administrative grounds and whether procedural fairness was observed. It found that internal investigative documents had already exonerated the petitioner from the alleged misconduct prior to the transfer decision, rendering reliance on those allegations misleading. The Court further held that invoking "exigencies of service" while suppressing true reasons deprived the petitioner of a fair opportunity to challenge the decision before the Public Service Commission. It concluded that the transfer was arbitrary and constituted an abuse of administrative power, lacking a lawful or rational basis. Accordingly, the Court held that Article 12(1) was violated and found the transfer decision unconstitutional, although no reinstatement order was issued due to subsequent postings.

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"case_id": 387,

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"case_number": "SC FR 298/2021",

"year": 2021,

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"judgment": "VIOLATED",

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"legal_topic": ["occupation", "equal_protection", "arbitrary_state_interference"]

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<<<CASE_START>>>

SUMMARY:

The petitioner, a senior accountant in the public service, challenged disciplinary proceedings initiated shortly before retirement, alleging violation of Article 12(1) due to arbitrary administrative action. The dispute arose after he used official stamp in Right to Information applications relating to a public incident, initially attracting a recommendation for a warning only. The Public Service Commission later escalated the matter into formal disciplinary charges and compelled retirement under statutory provisions allowing retirement pending inquiry. The Supreme Court examined whether the escalation from a warning to formal charges was supported by a prima facie case. It held that the preliminary investigation had not established misconduct and that initiation of charges lacked evidentiary foundation. The Court found that the Commission acted contrary to procedural safeguards under the Establishments Code and

ignored recommendations of subordinate authorities without justification. It further held that the timing and circumstances of the proceedings indicated arbitrariness and misuse of disciplinary powers. The Court concluded that the actions of the Public Service Commission amounted to unequal and arbitrary treatment in violation of Article 12(1). It held the petitioner's rights were infringed and awarded costs against the State.

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  "case_number": "SC /FR/ Application No. 62/2020",  
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<<<CASE_START>>>

SUMMARY:

The petitioners challenged the denial of school admission under a proximity-based quota system, alleging violation of Article 12(1). The authorities rejected admission to Grade 1 at a national school despite ownership of the residential premises and supporting utility documentation. The dispute centered on whether authorities could distinguish between two houses within the same family compound for proximity calculation purposes. The respondents argued that the application was based on incorrect residency representation and that the relevant assessment should be made from the actual occupied house used for residence. The Supreme Court held that where a family owns an entire property compound and no competing occupancy exists, school authorities cannot arbitrarily distinguish between buildings within the same premises for admission assessment. It found that the rejection was based on an unjustified investigative approach that treated internal residential arrangement as determinative. The Court emphasized that documentary evidence already supported the petitioners' residence claim and that authorities had no basis to override ownership and occupancy facts. It concluded that the denial of admission was arbitrary and amounted to unequal treatment under Article 12(1). The Court declared a violation and ordered immediate admission of the child.

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{  
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  "case_number": "SC. FR. NO. 50/2021",  
  "year": 2021,  
  "word_count": 212,
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"articles_cited": ["12(1)"],
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<<<CASE_START>>>

SUMMARY:

The petitioners, Buddhist monks, alleged that police officers unlawfully deprived them of possession of a temple and facilitated rival claimants in violation of Article 12(1). The dispute arose after competing claims over occupation of temple premises led to potential public disorder, prompting police intervention and a Magistrate's order directing custody to be vested with the Divisional Secretary. The respondents argued that police acted to maintain public order and prevent escalation of conflict between rival groups. The Supreme Court examined whether police conduct was arbitrary or discriminatory. It found that the petitioners had suppressed material facts, including their initial unlawful occupation of state land and lack of formal monastic status at the time of dispute. The Court held that police acted lawfully under judicial direction and took necessary steps to prevent breach of peace. It further found that property custody was managed by the lawful civil authority pursuant to court order, not by arbitrary police action. The Court concluded that the petitioners failed to establish bad faith or unequal treatment and that the application lacked credibility. Accordingly, it held that Article 12(1) was not violated and dismissed the application with costs.

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Police Station, Minneriya and Others",
"case_number": "SC FR 382/2013",
"year": 2013,
"word_count": 214,
"judgment": "NOT_VIOLATED",
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<<<CASE_START>>>

SUMMARY:

The petitioner, a private media company, challenged orders issued under Emergency Regulations by the appointed Competent Authority (CA) restricting publication of the Sunday Leader and authorising seizure of its printing press and premises by the Inspector General of Police. The dispute arose from the legality of the CA's authority under Regulation 14, where the petitioner contended that the Emergency Regulations did not validly confer decision-making power on the named authority. The respondents relied on presidential appointment under

emergency powers and argued that the measures were lawful under national security regulations. The Supreme Court examined whether the delegation of power complied with the Public Security Ordinance and whether the Competent Authority had been validly empowered by law. It held that statutory compliance required explicit conferral of power within the regulations themselves and that a mere definitional reference was insufficient to constitute lawful authority. The Court further emphasized that extraordinary restrictions affecting publication and occupation of property must satisfy strict requirements of legality and clarity to uphold the rule of law. It rejected the argument that presidential immunity barred review, holding that the challenge concerned the legality of subordinate orders rather than the President personally. The Court concluded that the orders were issued without lawful authority, rendering them null and void, and found violations of Articles 12(1), 14(1)(a), and 14(1)(g), restoring the petitioner's rights and ordering costs against the State.

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"articles_cited": ["12(1)", "14(1)(a)", "14(1)(g)"],  
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<<<CASE_START>>>

SUMMARY:

The Petitioner, a radio presenter, was arrested following a traffic stop and allegedly subjected to assault, derogatory treatment, and unlawful detention at a police station. Medical evidence confirmed a grievous dental fracture consistent with excessive force. The case concerned violations of Articles 11 and 12(1) arising from custodial treatment and police conduct during arrest. The State argued that force used was incidental to a lawful arrest. The Supreme Court held that the medical evidence objectively established excessive and punitive force inconsistent with lawful police authority. It emphasized that even minor offences such as traffic violations do not justify degrading or violent treatment of individuals in custody. The Court further held that once a person is in police custody, the State assumes full responsibility for their safety and dignity, and failure to ensure this constitutes a breach of equal protection under Article 12(1). It concluded that the conduct amounted to cruel and degrading treatment violating Article 11, and that both individual officers and the State were liable. Compensation was awarded from both personal and State funds.

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